



LAWS OF KENYA

The Civil Procedure Act

CHAPTER 21

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CHAPTER 21

THE CIVIL PROCEDURE ACT

Commencement : 31st January, 1924

An Act of Parliament to make provision for procedure in civil courts

PART I - PRELIMINARY

1. (1) This Act may be cited as the Civil Procedure Act.

(2) This Act applies to proceedings in the High Court and, subject to the Magistrate's Courts Act, to proceedings in subordinate courts.

1A (1) The overriding objective of this Act and the rules made hereunder is to facilitate the just, expeditious, proportionate and affordable resolution of the civil disputes governed by the Act.

(2) The Court shall, in the exercise of its powers under this Act or the interpretation of any of its provisions, seek to give effect to the overriding objective specified in subsection (1).

(3) A party to civil proceedings or an advocate for such a party is under a duty to assist the Court to further the overriding objective of the Act and, to that effect, to participate in the processes of the Court and to comply with the directions and orders of the Court.

1B. (1) For the purpose of furthering the overriding objective specified in section 1A, the Court shall handle all matters presented before it for the purpose of attaining the following aims –

- (a) the just determination of the proceedings;
- (b) the efficient disposal of the business of the Court;
- (c) the efficient use of the available judicial and administrative resources;
- (d) the timely disposal of the proceedings, and all other proceedings in the Court, at a cost affordable by the respective parties; and

Cap. 5 (1948),
39 of 1956,
L.N. 299/1956,
L.N. 300/1956,
46 of 1963, 19 of 1964,
17 of 1967, 8 of 1968,
21 of 1968, 38 of 1968,
10 of 1969, 11 of 1970,
4 of 1974, 14 of 1977,
13 of 1978, 13 of 1980,
1 of 1981,
L.N. 22/1984,
L.N. 50/1985;
L.N. 36/00, L.N 128/01
6 of 2009.

Short title and
application.
17 of 1967, s.37.
Cap.10.

Objective of Act.
6 of 2009, Sch.

Duty of Court.
6 of 2009, Sch.

(e) the use of suitable technology.

Interpretation.
17 of 1967, s. 38,
10 of 1969, Sch.,
4 of 1974, Sch.

2. In this Act, unless the context otherwise requires-

“Act” includes rules;

“court” means the High Court or a subordinate court, acting in the exercise of its civil jurisdiction;

“decree” means the formal expression of an adjudication which, so far as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final; it includes the striking out of a plaint and the determination of any question within section 34 or section 91, but does not include -

(a) any adjudication from which an appeal lies as an appeal from an order; or

(b) any order of dismissal for default:

Provided that, for the purposes of appeal, “decree” includes judgment, and a judgment shall be appealable notwithstanding the fact that a formal decree in pursuance of such judgment may not have been drawn up or may not be capable of being drawn up;

Explanation. - A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.

“decree holder” means any person in whose favour a decree has been passed or an order capable of execution has been made, and includes the assignee of such decree or order;

“district” means the local limits of the jurisdiction of a subordinate court;

“foreign court” means a court situate outside Kenya which has no authority in Kenya;

“foreign judgment” means the judgment of a foreign court;

“judge” means the presiding officer of a court;

“judgment-debtor” means any person against whom a decree has been passed or an order capable of execution has been made;

“legal representative” means a person who in law represents the estate of a deceased person, and where a party sues or is sued in a representative character the person on whom the estate devolves on the death of the party so suing or sued;

“mesne profits”, in relation to property, means those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits, but does not include profits due to improvements made by the person in wrongful possession;

“movable property” includes growing crops;

“order” means the formal expression of any decision of a court which is not a decree, and includes a rule *nisi*;

“pleading” includes a petition or summons, and the statements in writing of the claim or demand of any plaintiff, and of the defence of any defendant thereto, and of the reply of the plaintiff to any defence or counterclaim of a defendant;

“prescribed” means prescribed by rules;

“registrar” includes a district registrar and a deputy registrar;

“rules” means rules and forms made by the Rules Committee to regulate the procedure of courts;

“share in a corporation” includes stock, debenture stock, debentures and bonds;

“suit” means all civil proceedings commenced in any manner prescribed.

3. In the absence of any specific provision to the contrary, nothing in this Act shall limit or otherwise affect any special jurisdiction or power conferred, or any special form or procedure prescribed, by or under any other law for the time being in force.

Saving of special jurisdiction and powers.

3A. Nothing in this Act shall limit or otherwise affect the inherent power of the court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court.

Saving of inherent powers of court.

4. Save in so far as is otherwise expressly provided, nothing herein contained shall operate to give any court jurisdiction over suits the amount or value of the subject-matter of which exceeds the pecuniary

Pecuniary jurisdiction.

limits, if any, of its ordinary jurisdiction.

PART II - SUITS IN GENERAL

Jurisdiction of Courts

Courts to try all civil suits unless barred.

5. Any court shall, subject to the provisions herein contained, have jurisdiction to try all suits of a civil nature excepting suits of which its cognizance is either expressly or impliedly barred.

Stay of suit.
10 of 1969, Sch.

6. No court shall proceed with the trial of any suit or proceeding in which the matter in issue is also directly and substantially in issue in a previously instituted suit or proceeding between the same parties, or between parties under whom they or any of them claim, litigating under the same title, where such suit or proceeding is pending in the same or any other court having jurisdiction in Kenya to grant the relief claimed.

Explanation. - The pendency of a suit in a foreign court shall not preclude a court from trying a suit in which the same matters or any of them are in issue in such suit in such foreign court.

Res judicata.
L.N. 22/1984.

7. No court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such court.

Explanation. (1) - The expression "former suit" means a suit which has been decided before the suit in question whether or not it was instituted before it.

Explanation. (2) - For the purposes of this section, the competence of a court shall be determined irrespective of any provision as to right of appeal from the decision of that court.

Explanation. (3) - The matter above referred to must in the former suit have been alleged by one party and either denied or admitted, expressly or impliedly, by the other.

Explanation. (4) - Any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.

Explanation. (5) - Any relief claimed in a suit, which is not expressly granted by the decree shall, for the purposes of this section,

be deemed to have been refused.

Explanation. (6) - Where persons litigate bona fide in respect of a public right or of a private right claimed in common for themselves and others, all persons interested in such right shall, for the purposes of this section, be deemed to claim under the persons so litigating.

8. Where a plaintiff is precluded by rules from instituting a further suit in respect of any particular cause of action, he shall not be entitled to institute a suit in respect of that cause of action.

Bar to further suit.

9. A foreign judgment shall be conclusive as to any matter thereby directly adjudicated upon between the same parties or between parties under whom they or any of them claim, litigating under the same title, except -

When foreign judgment not conclusive.
10 of 1969, Sch.

- (a) where it has not been pronounced by a court of competent jurisdiction;
- (b) where it has not been given on the merits of the case;
- (c) where it appears on the face of the proceedings to be founded on an incorrect view of international law or a refusal to recognize the law of Kenya in cases in which such law is applicable;
- (d) where the proceedings in which the judgment was obtained are opposed to natural justice;
- (e) where it has been obtained by fraud;
- (f) where it sustains a claim founded on a breach of any law in force in Kenya.

10. (*Repealed by 46 of 1963, 2nd Sch.*)

Place of Suing

11. Every suit shall be instituted in the court of the lowest grade competent to try it, except that where there are more subordinate courts than one with jurisdiction in the same district competent to try it, a suit may, if the party instituting the suit or his advocate certifies that he believes that a point of law is involved or that any other good and sufficient reason exists, be instituted in any one of such subordinate courts:

Court in which suit to be instituted.
19 of 1964, Sch.

Provided that -

- (i) if a suit is instituted in a court other than a court of the lowest grade competent to try it, the magistrate holding such court shall return the plaint for presentation in the court of the lowest grade competent to try it if in his opinion there is no point of law involved or no other good and sufficient reason for instituting the suit in his court; and
- (ii) nothing in this section shall limit or affect the power of the High Court to direct the distribution of business where there is more than one subordinate court in the same district.

Suit to be instituted where subject matter situate.
10 of 1969, Sch.

12. Subject to the pecuniary or other limitations prescribed by any law, suits -

- (a) for the recovery of immovable property, with or without rent or profits;
- (b) for the partition of immovable property;
- (c) for the foreclosure, sale or redemption in the case of a mortgage of or charge upon immovable property;
- (d) for the determination of any other right to or interest in immovable property;
- (e) for compensation for wrong to immovable property;
- (f) for the recovery of movable property actually under distraint or attachment,

where the property is situate in Kenya, shall be instituted in the court within the local limits of whose jurisdiction the property is situate:

Provided that a suit to obtain relief respecting, or compensation for wrong to, immovable property held by or on behalf of the defendant may, where the relief sought can be entirely obtained through his personal obedience, be instituted either in the court within the local limits of whose jurisdiction the property is situate, or in the court within the local limits of whose jurisdiction the defendant actually and voluntarily resides or carries on business, or personally works for gain.

Suit for immovable property situate within jurisdiction of different courts.

13. Where a suit is to obtain relief respecting, or compensation for wrong to, immovable property situate within the jurisdiction of different courts, the suit may be instituted in any court within the local limits of whose jurisdiction any portion of the property is situate, provided that,

in respect of the value of the subject-matter of the suit, the entire claim is cognizable by such court.

14. Where a suit is for compensation for wrong done to the person or to movable property, if the wrong was done within the local limits of the jurisdiction of one court and the defendant resides or carries on business, or personally works for gain, within the local limits of the jurisdiction of another court, the suit may be instituted at the option of the plaintiff in either of those courts.

Suit for compensation for wrong to the person or movables.

Illustration. - (a) A residing in Mombasa beats B in Nairobi. B may sue A either in Mombasa or Nairobi.

Illustration. - (b) A residing in Mombasa publishes at Nairobi statements defamatory of B. B may sue A either in Mombasa or Nairobi.

15. Subject to the limitations aforesaid, every suit shall be instituted in a court within the local limits of whose jurisdiction -

Other suits to be instituted where defendant resides or cause of action arises. 10 of 1969, Sch.

- (a) the defendant or each of the defendants (where there are more than one) at the time of the commencement of the suit, actually and voluntarily resides or carries on business, or personally works for gain; or
- (b) any of the defendants (where there are more than one) at the time of the commencement of the suit, actually and voluntarily resides or carries on business, or personally works for gain, provided either the leave of the court is given, or the defendants who do not reside or carry on business, or personally work for gain, as aforesaid acquiesce in such institution; or
- (c) the cause of action, wholly or in part, arises.

Explanation.(1) - Where a person has a permanent dwelling at one place and also a temporary residence at another place, he shall be deemed to reside at both places in respect of any cause of action arising at the place where he has such temporary residence.

Explanation.(2) - A corporation shall be deemed to carry on business at its sole or principal office in Kenya, or, in respect of any cause of action arising at any place where it has also a subordinate office, at such place.

Explanation.(3) - In suits arising out of contract, the cause of action arises within the meaning of this section at any of the following places, namely -

- (i) the place where the contract was made;
- (ii) the place where the contract was to be performed or the performance thereof completed;
- (iii) the place where in performance of the contract any money to which the suit relates was expressly or impliedly payable.

Illustration. - (a) A is a tradesman in Nairobi. B carries on business in Mombasa. B by his agent at Nairobi buys goods of A and requests A to deliver them to Mombasa by rail. A may sue B for the price of the goods either in Nairobi, where the cause of action has arisen, or in Mombasa, where B carries on business.

Illustration. - (b) A resides at Kisumu, B at Nairobi, and C at Mombasa. A, B, and C being together at Nakuru, B and C make a joint promissory note payable on demand and deliver it to A. A may sue B and C at Nakuru, where the cause of action arose. He may also sue them at Nairobi, where B resides, or at Mombasa, where C resides; but in each of these cases, if the non-resident defendant objects, the suit cannot proceed without the leave of the court.

Objections to jurisdiction.

16. No objection as to the place of suing shall be allowed on appeal unless such objection was taken in the court of first instance and there has been a consequent failure of justice.

Power to transfer suits which may be instituted in more than one court.

17. Where a suit may be instituted in any one of two or more subordinate courts, and is instituted in one of those courts, any defendant after notice to the other parties, or the court of its own motion, may, at the earliest possible opportunity, apply to the High Court to have the suit transferred to another court; and the High Court after considering the objections, if any, shall determine in which of the several courts having jurisdiction the suit shall proceed.

Power of High Court to withdraw and transfer case instituted in subordinate court.

18. (1) On the application of any of the parties and after notice to the parties and after hearing such of them as desire to be heard, or of its own motion without such notice, the High Court may at any stage -

- (a) transfer any suit, appeal or other proceeding pending before it for trial or disposal to any court subordinate to it and competent to try or dispose of the same; or
- (b) withdraw any suit or other proceeding pending in any court subordinate to it, and thereafter -

- (i) try or dispose of the same; or
- (ii) transfer the same for trial or disposal to any court subordinate to it and competent to try or dispose of the same; or
- (iii) retransfer the same for trial or disposal to the court from which it was withdrawn.

(2) Where any suit or proceeding has been transferred or withdrawn as aforesaid, the court which thereafter tries such suit may, subject to any special directions in the case of an order of transfer, either retry it or proceed from the point at which it was transferred or withdrawn.

Institution of Suits

19. Every suit shall be instituted in such manner as may be prescribed by rules. Institution of suits.

Procedure in Suits and Discovery

20. Where a suit has been duly instituted the defendant shall be served in manner prescribed to enter an appearance and answer the claim. Service on defendant.

21. (1) Any document which is required to be served in connexion with a suit may be sent for service in another district to a court having jurisdiction in that district. Service where defendant resides in another district.

(2) The court to which such document is sent shall, upon receipt thereof, proceed as if it had been issued by such court and shall then return the document to the court of issue together with the record, if any, of its proceedings with regard thereto.

22. Subject to such conditions and limitations as may be prescribed, the court may, at any time, either of its own motion or on the application of any party - Power to order discovery and the like.

- (a) make such orders as may be necessary or reasonable in all matters relating to the delivery and answering of interrogatories, the admission of documents and facts, and the discovery, inspection, production, impounding and return of documents or other material objects producible as evidence;
- (b) issue summonses to persons whose attendance is required either to give evidence or to produce documents or such other objects as aforesaid;

(c) order any fact to be proved by affidavit.

Summons to witness.

23. Sections 21 and 22 shall apply to summonses to give evidence or to produce documents or other material objects.

Penalty for default.

24. The court may compel the attendance of any person to whom a summons has been issued under section 22, and for that purpose may -

- (a) issue a warrant for his arrest;
- (b) attach and sell his property;
- (c) impose a fine on him not exceeding one thousand shillings;
- (d) order him to furnish security for his appearance and in default commit him to prison.

Judgement and decree

Judgment and decree.

25. The court, after the case has been heard, shall pronounce judgment, and on such judgment a decree shall follow:

Provided that it shall not be necessary for the court to hear the case before pronouncing judgment -

- (i) where the plaint is drawn claiming a liquidated demand, and either -
 - (a) the defendant has not entered such appearance as may be prescribed; or
 - (b) the defendant, having entered such appearance, has failed to file a defence within the time prescribed; or
 - (ii) in such cases as may be prescribed under section 81 (2)
- (f).

Interest

Interests.

26. (1) Where and in so far as a decree is for the payment of money, the court may, in the decree, order interest at such rate as the court deems reasonable to be paid on the principal sum adjudged from the date of the suit to the date of the decree in addition to any interest adjudged on such principal sum for any period before the institution of the suit, with further interest at such rate as the court deems reasonable on the aggregate sum so adjudged from the date of the decree to the date of payment or to such earlier date as the court thinks fit.

(2) Where such a decree is silent with respect to the payment of further interest on such aggregate sum as aforesaid from the date of the decree to the date of payment or other earlier date, the court shall be

deemed to have ordered interest at 6 per cent per annum.

Costs

27. (1) Subject to such conditions and limitations as may be prescribed, and to the provisions of any law for the time being in force, the costs of and incidental to all suits shall be in the discretion of the court or judge, and the court or judge shall have full power to determine by whom and out of what property and to what extent such costs are to be paid, and to give all necessary directions for the purposes aforesaid; and the fact that the court or judge has no jurisdiction to try the suit shall be no bar to the exercise of those powers:

Costs.

Provided that the costs of any action, cause or other matter or issue shall follow the event unless the court or judge shall for good reason otherwise order.

(2) The court or judge may give interest on costs at any rate not exceeding fourteen per cent per annum, and such interest shall be added to the costs and shall be recoverable as such.

PART III - EXECUTION

General

28. The provisions of this Act relating to the execution of decrees shall, so far as they are applicable, be deemed to apply to the execution of orders.

Application to orders.

29. The expression “court which passed a decree”, or words to that effect, shall, in relation to the execution of decrees, except where the context otherwise requires, include -

Definition of “court which passed a decree”.

- (a) where the decree to be executed has been passed in the exercise of appellate jurisdiction, the court of first instance; and
- (b) where the court of first instance has ceased to exist or to have jurisdiction to execute it, the court which, if the suit wherein the decree was passed were instituted at the time of making the application for the execution of the decree, would have jurisdiction to try such suit.

Courts by which Decrees may be Executed

30. A decree may be executed either by the court which passed it or by the court to which it is sent for execution.

Court by which decree may be executed.

31. (1) The court which passed a decree may, on the application of the decree-holder, send it for execution to another court -

Transfer of decree.

- (a) if the person against whom the decree is passed actually and voluntarily resides or carries on business, or personally works for gain, within the local limits of the jurisdiction of that other court; or
- (b) if such person has no property within the local limits of the jurisdiction of the court which passed the decree sufficient to satisfy such decree and has property within the local limits of the jurisdiction of such other court; or
- (c) if the decree directs the sale or delivery of immovable property situate outside the local limits of the jurisdiction of the court which has passed it; or
- (d) if the court which has passed the decree considers for any other reason, which it has recorded in writing, that the decree should be executed by such other court.

(2) The court which passed a decree may of its own motion send it for execution to any court of inferior but competent jurisdiction.

Result of execution proceedings to be certified.

32. The court to which a decree is sent for execution shall certify to the court which passed it the fact of such execution, or where the former court fails to execute the same the circumstances attending such failure.

Powers of court in executing transferred decree.

33. (1) The court executing a decree sent to it shall have the same powers in executing such decree as if it had been passed by itself.

(2) All persons disobeying or obstructing the execution of the decree shall be punishable by such court in the same manner as if it had passed the decree; and its order in executing such decree shall be subject to the same rules in respect of appeal as if the decree had been passed by itself.

Questions to be determined by court executing decree.

Questions to be Determined by Court Executing Decree

34. (1) All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the court executing the decree and not by a separate suit.

(2) The court may, subject to any objection as to limitation or jurisdiction, treat a proceeding under this section as a suit, or a suit as a proceeding, and may, if necessary, order payment of any additional court fees.

(3) Where a question arises as to whether any person is or is not

the representative of a party, such question shall, for the purposes of this section, be determined by the court.

Explanation. - For the purposes of this section, a plaintiff whose suit has been dismissed, and a defendant against whom a suit has been dismissed, are parties to the suit.

35. (*Repealed by 21 of 1968, Sch.*)

Transferees and Legal Representatives

36. Every transferee of a decree shall hold the same subject to the equities, if any, which the judgment-debtor might have enforced against the original decree-holder. Transferee of decree.

37. (1) Where a judgment-debtor dies before the decree has been fully satisfied, the holder of the decree may apply to the court which passed it to execute the same against the legal representative of such deceased, or against any person who has intermeddled with the estate of such deceased. Legal representative.

(2) Where the decree is executed against such legal representative, or against any person as aforesaid, he shall be liable only to the extent of the property of the deceased which has come to his hands and has not been duly disposed of; and, for the purpose of ascertaining such liability the court executing the decree may, of its own motion or on the application of the decree-holder, compel such legal representative to produce such accounts as it thinks fit.

Procedure in Execution

38. Subject to such conditions and limitations as may be prescribed, the court may, on the application of the decree-holder, order execution of the decree - Powers of court to enforce execution. 11 of 1970, Sch.

- (a) by delivery of any property specifically decreed;
- (b) by attachment and sale, or by sale without attachment, of any property;
- (c) by attachment of debts;
- (d) by arrest and detention in prison of any person;
- (e) by appointing a receiver; or
- (f) in such other manner as the nature of the relief granted may require:

Provided that where the decree is for the payment of money, execution by detention in prison shall not be ordered unless, after giving the judgment-debtor an opportunity of showing cause why he should not be committed to prison, the court, for reasons to be recorded in writing, is satisfied -

- (a) that the judgment-debtor, with the object or effect of obstructing or delaying the execution of the decree-
 - (i) is likely to abscond or leave the local limits of the jurisdiction of the court; or
 - (ii) has after the institution of the suit in which the decree was passed, dishonestly transferred, concealed or removed any part of his property, or committed any other act of bad faith in relation to his property; or
- (b) that the judgment-debtor has, or has had since the date of the decree, the means to pay the amount of the decree, or some substantial part thereof, and refuses or neglects, or has refused or neglected, to pay the same, but in calculating such means there shall be left out of account any property which, by or under any law, or custom having the force of law, for the time being in force, is exempt from attachment in execution of the decree; or
- (c) that the decree is for a sum for which the judgment-debtor was bound in a fiduciary capacity to account.

Enforcement of
decree against legal
representative.

39. (1) Where a decree is passed against a party as the legal representative of a deceased person, and the decree is for the payment of money out of the property of the deceased, it may be executed by the attachment and sale of any such property.

(2) Where no such property remains in the possession of the judgment-debtor, and he fails to satisfy the court that he has duly applied such property of the deceased as is proved to have come into his possession, the decree may be executed against the judgment-debtor to the extent of the property in respect of which he has failed so to satisfy the court in the same manner as if the decree had been against him personally.

Arrest and Detention

Arrest and detention.
L.N.299/1956,
L.N.300/1956,
10 of 1969, Sch.

40. (1) A judgment-debtor may be arrested in execution of a decree at any hour and on any day, and shall as soon as practicable be brought before the court, and his detention may be in any prison of the district in which the court ordering the detention is situate, or, if such prison

does not afford suitable accommodation, in any other place which the Minister may appoint for the detention of persons ordered by the courts of such district to be detained:

Provided that -

- (i) for the purpose of making an arrest under this section, no dwelling-house shall be entered after sunset and before sunrise;
- (ii) no outer door of a dwelling-house shall be broken open unless such dwelling-house is in the occupancy of the judgment-debtor and he refuses or in any way prevents access thereto; but when the officer authorized to make the arrest has duly gained access to any dwelling-house he may break open the door of any room in which he has reason to believe the judgment-debtor is to be found;
- (iii) if the room is in the actual occupancy of a woman who is not the judgment-debtor, and who according to the custom of her community does not appear in public, the officer authorized to make the arrest shall give notice to her that she is at liberty to withdraw and, after allowing a reasonable time for her to withdraw and giving her reasonable facility for withdrawing, may enter the room for the purpose of making the arrest;
- (iv) where the decree in execution of which a judgment-debtor is arrested is a decree for the payment of money and the judgment-debtor pays the amount of the decree and the costs of the arrest to the officer arresting him, such officer shall at once release him.

(2) The Minister may, by notice in the Gazette, declare that any person or class of persons whose arrest might be attended with danger or inconvenience to the public shall not be liable to arrest in execution of a decree otherwise than in accordance with such procedure as he may direct.

41. The Minister may, by notice in the Gazette, fix scales of monthly allowances payable for the subsistence of a judgment-debtor.

Subsistence allowances.
L.N. 300/1956,
8 of 1968, Sch.,
10 of 1969, Sch.

42. (1) Every person detained in prison in execution of a decree shall be so detained -

Detention and release.

- (a) where the decree is for the payment of a sum of money exceeding one hundred shillings, for a period not exceeding six months; and
- (b) in any other case, for a period not exceeding six weeks:

Provided that he shall be released from such detention before the expiration of the said period of six months or six weeks, as the case may be -

- (i) on the amount mentioned in the warrant for his detention being paid to the officer in charge of the prison; or
- (ii) on the decree against him being otherwise fully satisfied, if the court so orders; or
- (iii) on the request of the person on whose application he has been so detained, if the court so orders; or
- (iv) on the omission of the person, on whose application he has been so detained, to pay subsistence allowance.

(2) A judgment-debtor released from detention under this section shall not merely by reason of his release be discharged from his debt, but he shall not be liable to be rearrested under the decree in execution of which he was detained in prison.

Release on ground of illness.

43. (1) At any time after a warrant for the arrest of a judgment-debtor has been issued, the court may cancel it on the ground of his serious illness.

(2) Where a judgment-debtor has been arrested, the court may release him if in its opinion he is not in a fit state of health to be detained in prison.

(3) Where a judgment-debtor has been committed to prison, he may be released therefrom -

- (a) by the superintendent of the prison in which he is confined on the grounds of the existence of any infectious or contagious disease; or
- (b) by the committing court or the High Court on the ground of his suffering from any serious illness.

(4) A judgment-debtor released under this section may be rearrested, but the period of his detention in prison shall not in the

aggregate exceed that prescribed by section 42 of this Act.

Attachment

44. (1) All property belonging to a judgment debtor, including property over which or over the profits of which he has a disposing power which he may exercise for his own benefit, whether that property is held in his name or in the name of another but on his behalf, shall be liable to attachment and sale in execution of a decree:

Provided that the following shall not be liable to attachment or sale -

Property liable to attachment and sale in execution of a decree.
1 of 1981, s. 25.

- (i) the necessary wearing apparel, cooking vessels, beds and bedding of the judgment-debtor and of his wife and children, and those personal ornaments from which, in accordance with religious usage, a woman cannot be parted;
- (ii) the tools and implements of a person necessary for the performance by him of his trade or profession;
- (iii) where the judgment-debtor is an agriculturalist -
 - (a) the first ten thousand shillings in value of his livestock, if any; and
 - (b) the first five thousand shillings in value of all implements, tools, utensils, plant and machinery used in connection with stock or dairy farming or in the production of crops or plants; and
 - (c) the first one thousand shillings in value of agricultural produce necessary to enable him to earn his livelihood;
- (iv) books of accounts;
- (v) a right to sue in damages;
- (vi) a right of personal service;
- (vii) stipends and gratuities allowed to pensioners of the Government, or payable out of a service family pension fund notified in the Gazette by the Minister, and political pensions;
- (viii) two thirds of the salary of public officer or other person in employment;

(ix) a contingent or possible right or interest, including an expectancy of succession by survivorship;

(x) a right of future maintenance;

(xi) any fund or allowance declared by law to be exempt from attachment and sale in execution of a decree.

Cap.199.

(2) Nothing in this section shall affect the provisions of the Armed Forces Act or of any similar law for the time being in force.

Seizure of property in dwelling-house.

45. (1) No person in executing any process under this Act directing or authorizing seizure of movable property shall enter any dwelling-house after sunset and before sunrise.

(2) No outer door of a dwelling-house shall be broken open unless such dwelling-house is in the occupancy of the judgment-debtor and he refuses or in any way prevents access thereto; but when the person executing the process has duly gained access to any dwelling-house he may break open the door of any room in which he has reason to believe any such property to be.

(3) Where a room in a dwelling-house is in the actual occupancy of a woman who, according to the custom of the country, does not appear in public, the person executing the process shall give notice to the woman that she is at liberty to withdraw; and after allowing reasonable time for her to withdraw and giving her reasonable facility for withdrawing, he may enter the room for the purpose of seizing the property, using at the same time every precaution consistent with these provisions to prevent its clandestine removal.

Property attached in execution of decrees of several courts.

46. (1) Where property not in the custody of a court is under attachment in execution of decrees of more courts than one, the court which shall receive and realize that property and shall determine any claim thereto and any objection to the attachment thereof shall be the court of the highest grade, or, where there is no difference in grade between the courts, the court under whose decree the property was first attached.

(2) Nothing in this section shall invalidate any proceeding taken by a court executing one of the decrees.

Private alienation of property after attachment to be void.

47. Where an attachment has been made, any private transfer or delivery of the property attached or of any interest therein, and any payment to the judgment-debtor of any debt, dividend or other moneys contrary to such attachment, shall be void as against all claims enforceable under the attachment.

Sale

48. Where immovable property is sold in execution of a decree and the sale has become absolute, the property shall be deemed to have vested in the purchaser from the time when the property is sold and not from the time when the sale becomes absolute.

Purchaser's title.

49. (1) No suit shall be maintained against any person claiming title under a purchase certified by the court in such manner as may be prescribed on the ground that the purchase was made on behalf of the plaintiff or on behalf of someone through whom the plaintiff claims.

Suit against purchaser not maintainable on ground of purchase being on behalf of plaintiff.

(2) Nothing in this section shall bar a suit to obtain a declaration that the name of any purchaser certified as aforesaid was inserted in the certificate fraudulently or without the consent of the real purchaser, or interfere with the right of a third person to proceed against that property, though ostensibly sold to the certified purchaser, on the ground that it is liable to satisfy a claim of such third person against the real owner.

Distribution of Assets

50. (1) Where assets are held by any court and more persons than one have before the receipt of such assets by such court lodged applications in court for the execution of decrees for the payment of money issued against the same judgment-debtor and have not obtained satisfaction thereof, the assets, after deducting the costs of realization, shall be distributed amongst such decree-holders in accordance with the priorities of the lodging of their several applications:

Distribution of assets.

Provided that, where any property is sold subject to a mortgage or charge, the mortgagee or encumbrancer shall not be entitled to share in any surplus arising from the sale.

(2) Every application for execution of a decree shall, at the time of lodgment, be endorsed by the court, or by a duly authorized officer of the court, with a note of the day upon which and the hour at which such lodgment has been effected.

(3) Nothing in this section shall affect any right of the Government.

Resistance to Execution

51. Where the court is satisfied that the holder of a decree for the possession of immovable property, or that the purchaser of immovable property sold in execution of a decree, has been resisted or obstructed in obtaining possession of the property by the judgment-debtor or some other person on his behalf, and that such resistance or obstruction was without any just cause, the court may, at the instance of the decree-

Resistance to execution.

holder or purchaser, order the judgment-debtor or such other person to be detained in prison for a term which may extend to thirty days, and may further direct that the decree-holder or purchaser be put in possession of the property.

PART IV - INCIDENTAL PROCEEDINGS

Commissions

Power of court to
issue commission.

52. Subject to such conditions and limitations as may be prescribed, the court may issue a commission -

- (a) to examine any person;
- (b) to make a local investigation;
- (c) to examine or adjust accounts; or
- (d) to make a partition.

Commission to
another court.
10 of 1969, Sch.

53. (1) A commission for the examination of any person may be issued by the High Court to any subordinate court or to any advocate, and by a subordinate court of the first or second class to any other subordinate court situate in a district other than the district in which the court of issue is situate and having jurisdiction in the place in which the person to be examined resides.

(2) Every court receiving a commission for the examination of any person under subsection (1) shall examine him or cause him to be examined pursuant thereto, and the commission, when it has been duly executed, shall be returned, together with the evidence taken under it, to the court from which it was issued, unless the order for issuing the commission has otherwise directed, in which case the commission shall be returned in terms of the order.

Letter of request.
10 of 1969, Sch.

54. In lieu of issuing a commission, the High Court or a subordinate court with the sanction of the High Court may issue a letter of request to examine a witness residing at any place outside Kenya.

Commission issued
by foreign court.
10 of 1969, Sch.

55. Commissions issued by foreign courts for the examination of persons in Kenya shall be executed and returned in such manner as may be from time to time authorized by the High Court.

PART V - SUITS IN PARTICULAR CASES

Suits by Aliens and by or against Foreign Rulers

56. (1) Alien enemies residing in Kenya with the permission of the President, and alien friends, may sue in the courts of Kenya.

When alien may sue.
10 of 1969, Sch.

(2) No alien enemy residing in Kenya without such permission, or residing in a foreign country, shall sue in any of such courts.

Explanation. - Every person residing in a foreign country the government of which is at war with Kenya, and carrying on business in that country without a licence in that behalf under the hand of the President, shall, for the purpose of subsection (2), be deemed to be an alien enemy residing in foreign country.

57. (1) A foreign state may sue in any court of Kenya, provided that state has been recognized by Kenya, and provided the object of the suit is to enforce a private right vested in the head of that state or in any officer of that state in his public capacity.

When foreign state
may sue.
10 of 1969, Sch.

(2) Every court shall take judicial notice of the fact that a foreign state has or has not been recognized by Kenya.

Interpleader

58. Where two or more persons claim adversely to one another the same debt, sum of money or other property, movable or immovable, from another person, who claims no interest therein other than for charges or costs and who is ready to pay or deliver it to the rightful claimant, such other person may institute a suit of interpleader against all the claimants, or where a suit dealing with the same subject-matter is pending may intervene by motion on notice in such suit, for the purpose of obtaining a decision as to the person to whom the payment or delivery shall be made, and of obtaining indemnity for himself:

When interpleader
suit may be
instituted.

Provided that where any suit is pending in which the rights of all parties can be properly decided no such suit of interpleader shall be instituted.

PART VI - SPECIAL PROCEEDINGS

Arbitration

59. All references to arbitration by an order in a suit, and all proceedings thereunder, shall be governed in such manner as may be prescribed by rules.

Arbitration.

Special Case

Power to state case
for opinion of court.

60. Where any persons agree in writing to state a case for the opinion of the court, then the court shall try and determine the same in the manner prescribed.

Suits Relating to Public Matters

Public nuisance.

61. (1) In the case of a public nuisance, the Attorney-General, or two or more persons having the consent in writing of the Attorney-General, may institute a suit though no special damage has been caused, for a declaration and injunction or for such other relief as may be appropriate to the circumstances of the case.

(2) Nothing in this section shall limit or otherwise affect any right of suit which may exist independently of its provisions.

Public charity.

62. In the case of an alleged breach of any express or constructive trust created for public purposes of a charitable or religious nature, or where the direction of the court is deemed necessary for the administration of the trust, the Attorney-General, or two or more persons having an interest in the trust and having obtained the consent in writing of the Attorney-General, may institute a suit, whether contentious or not in the High Court to obtain a decree -

- (a) removing any trustee;
- (b) appointing a new trustee;
- (c) vesting any property in trustees;
- (d) directing accounts and inquiries;
- (e) declaring what proportion of the trust property or of the interest therein shall be allocated to any particular object of the trust;
- (f) authorizing the whole or any part of the trust property to be let, sold, mortgaged or exchanged;
- (g) settling a scheme; or
- (h) granting such further or other relief as the nature of the case may require.

PART VII - SUPPLEMENTAL PROCEEDINGS

63. In order to prevent the ends of justice from being defeated, the court may, if it is so prescribed - Supplemental proceedings.

- (a) issue a warrant to arrest the defendant and bring him before the court to show cause why he should not give security for his appearance, and if he fails to comply with any order for security commit him to prison;
- (b) direct the defendant to furnish security to produce any property belonging to him and to place the same at the disposal of the court or order the attachment of any property;
- (c) grant a temporary injunction and in case of disobedience commit the person guilty thereof to prison and order that his property be attached and sold;
- (d) appoint a receiver of any property and enforce the performance of his duties by attaching and selling his property;
- (e) make such other interlocutory orders as may appear to the court to be just and convenient.

64. (1) Where, in any suit in which an arrest or attachment has been effected or a temporary injunction granted under section 63 - Compensation for arrest, attachment or injunction on insufficient grounds.

- (a) it appears to the court that the arrest, attachment or injunction was applied for on insufficient grounds; or
- (b) the suit of the plaintiff fails and it appears to the court that there was no reasonable or probable ground for instituting the same,

the defendant may apply to the court, and the court may, upon such application, award against the plaintiff by its order such amount, not exceeding two thousand shillings, as it deems a reasonable compensation to the defendant for the expense or injury caused to him:

Provided that, a court shall not award under this section an amount exceeding the limits of its pecuniary jurisdiction.

(2) An order determining an application under subsection (1) shall bar any suit for compensation in respect of the arrest, attachment or injunction.

PART VIII - APPEALS TO THE HIGH COURT AND COURT OF APPEAL

Appeals from Original Decrees

Appeal from other courts.
17 of 1967, s.39,
10 of 1969, Sch.,
4 of 1974, Sch.

65. (1) Except where otherwise expressly provided by this Act, and subject to such provision as to the furnishing of security as may be prescribed, an appeal shall lie to the High Court -

- (a) (*Deleted by 10 of 1969, Sch.*);
- (b) from any original decree or part of a decree of a subordinate court, other than a magistrate's court of the third class, on a question of law or fact;
- (c) from a decree or part of a decree of a Kadhi's Court, and on such an appeal the Chief Kadhi or two other Kadhis shall sit as assessor or assessors.

(2) (*Deleted by 10 of 1969, Sch.*)

Appeal from decree of High Court.
14 of 1977, Sch.

66. Except where otherwise expressly provided in this Act, and subject to such provision as to the furnishing of security as may be prescribed, an appeal shall lie from the decrees or any part of decrees and from the orders of the High Court to the Court of Appeal.

Appeal from original decree.

67. (1) An appeal may lie from an original decree passed *ex parte*.

(2) No appeal shall lie from a decree passed by the court with the consent of parties.

Appeal from final decree where no appeal from preliminary decree.

68. Where any party aggrieved by a preliminary decree does not appeal from that decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree.

Decision where appeal heard by two or more judges.
13 of 1980, Sch.

69. Where an appeal is heard by a court consisting of two or more judges the appeal shall be decided in accordance with the opinion of the judges or a majority of them:

Provided that where a court consisting of two judges is divided in its opinion the appeal shall be reheard by a court consisting of an uneven number of judges being not less than three.

70. (*Renumbered as section 79A.*)

71. *(Renumbered as section 79C.)**Appeals from Appellate Decrees of a Subordinate Court*

71A. (1) Except where otherwise expressly provided by this Act, and subject to such provision as to the furnishing of security as may be prescribed, an appeal shall lie to the High Court from a decree passed by a subordinate court of the first class on an appeal from a subordinate court of the third class, on a question of law only.

Second appeal from subordinate court.
10 of 1969, Sch.,
13 of 1978, Sch.

(2) An appeal under this section shall be final.

Appeals from Appellate Decrees of the High Court

72. (1) Except where otherwise expressly provided in this Act or by any other law for the time being in force, an appeal shall lie to the Court of Appeal from every decree passed in appeal by the High Court, on any of the following grounds, namely -

Second appeal from the High Court.
10 of 1969, Sch.

- (a) the decision being contrary to law or to some usage having the force of law;
- (b) the decision having failed to determine some material issue of law or usage having the force of law;
- (c) a substantial error or defect in the procedure provided by this Act or by any other law for the time being in force, which may possibly have produced error or defect in the decision of the case upon the merits.

(2) An appeal may lie under this section from an appellate decree passed *ex parte*.

73. *(Repealed by 10 of 1969, Sch.)*

74. *(Repealed by 10 of 1969, Sch.)*

Appeals from Orders

75. (1) An appeal shall lie as of right from the following orders, and shall also lie from any other order with the leave of the court making such order or of the court to which an appeal would lie if leave were granted -

Orders from which appeal lies.

- (a) an order superseding an arbitration where the award has not been completed within the period allowed by the court;

- (b) an order on an award stated in the form of a special case;
- (c) an order modifying or correcting an award;
- (d) an order staying or refusing to stay a suit where there is an agreement to refer to arbitration;
- (e) an order filing or refusing to file an award in an arbitration without the intervention of the court;
- (f) an order under section 64;
- (g) an order under any of the provisions of this Act imposing a fine or directing the arrest or detention in prison of any person except where the arrest or detention is in execution of a decree;
- (h) any order made under rules from which an appeal is expressly allowed by rules.

(2) No appeal shall lie from any order passed in appeal under this section.

76. (1) Save as otherwise expressly provided, no appeal shall lie from any order made by a court in the exercise of its original or appellate jurisdiction; but, where a decree is appealed from, any error, defect or irregularity in any order affecting the decision of the case may be set forth as a ground of objection in the memorandum of appeal.

(2) Notwithstanding anything contained in subsection (1), where any party aggrieved by an order of remand from which an appeal lies does not appeal therefrom, he shall thereafter be precluded from disputing its correctness.

What court to hear appeal.

77. Where an appeal from any order is allowed, it shall lie to the court to which an appeal would lie from the decree in the suit in which the order was made.

General Provisions Relating to Appeals

Powers of appellate court.

78. (1) Subject to such conditions and limitations as may be prescribed, an appellate court shall have power -

- (a) to determine a case finally;
- (b) to remand a case;

(c) to frame issues and refer them for trial;

(d) to take additional evidence or to require the evidence to be taken;

(e) to order a new trial.

(2) Subject as aforesaid, the appellate court shall have the same powers and shall perform as nearly as may be the same duties as are conferred and imposed by this Act on courts of original jurisdiction in respect of suits instituted therein.

79. The provisions of this Part relating to appeals from original decrees shall, as far as may be, apply to appeals -

Procedure in appeals from appellate decrees and orders.

(a) from appellate decrees; and

(b) from orders made under this Act or under any special or local law in which a different procedure is not provided.

79A. No decree shall be reversed or substantially varied, nor shall any case be remanded, in appeal on account of any misjoinder of parties or causes of action or any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the court.

No decree to be altered for error not affecting merits or jurisdiction.
10 of 1969, Sch.

79B. Before an appeal from a subordinate court to the High Court is heard, a judge of the High Court shall peruse it, and if he considers that there is no sufficient ground for interfering with the decree, part of a decree or order appealed against he may, notwithstanding section 79C, reject the appeal summarily.

Summary rejection of appeal.
17 of 1967, s.40,
38 of 1968, Sch.,
10 of 1969, Sch.

79C. Appeals from subordinate courts shall be heard by one judge of the High Court except when in any particular case the Chief Justice shall direct that the appeal be heard by two or more judges of the High Court; and such direction may be given before the hearing of the appeal or at any time before judgment is delivered.

Mode of hearing appeal.
10 of 1969, Sch.

79D. No second appeal from a decree passed in appeal by the High Court shall lie except on the grounds mentioned in section 72.

Grounds for second appeal from High Court.
10 of 1969, Sch.

79E. No second appeal from a decree passed in appeal by the High Court shall lie in any suit when the amount or value of the subject-matter of the original suit does not exceed ten thousand shillings unless special leave has been first obtained from the court before whom the

No second appeal from High Court in certain cases.
10 of 1969, Sch.
21 of 1990.

appeal is to be heard.

Appeals by paupers.
10 of 1969, Sch.

79F. A person who has been allowed to take, defend or be a party to any legal proceedings in a subordinate court as a pauper may not appeal to the High Court, or from the High Court to the Court of Appeal, except with the leave of the Court before whom the proceedings appealed against were heard or (if such leave is refused) unless special leave has been first obtained from the Court before whom the appeal is to be heard.

Time for filing
appeals from
subordinate courts.
10 of 1969, Sch.

79G. Every appeal from a subordinate court to the High Court shall be filed within a period of thirty days from the date of the decree or order appealed against, excluding from such period any time which the lower court may certify as having been requisite for the preparation and delivery to the appellant of a copy of the decree or order:

Provided that an appeal may be admitted out of time if the appellant satisfies the court that he had good and sufficient cause for not filing the appeal in time.

PART IX - REVIEW

Review.

80. Any person who considers himself aggrieved -

- (a) by a decree or order from which an appeal is allowed by this Act, but from which no appeal has been preferred; or
- (b) by a decree or order from which no appeal is allowed by this Act,

may apply for a review of judgment to the court which passed the decree or made the order, and the court may make such order thereon as it thinks fit.

PART X - RULES

Rules Committee.
39 of 1956, s.5,
14 of 1977, Sch.
13 of 1978, Sch.
10 of 1997,
6 of 2009, Sch.

81. (1) There shall be a Rules Committee consisting of two judges of the High Court, two judges of the Court of Appeal, the Attorney-General and two advocates, one to be nominated by the Law Society of Kenya and the other by the Mombasa Law Society, which shall have power to make rules not inconsistent with this Act and, subject thereto, to provide for any matters relating to the procedure of civil courts.

(1A) The judges referred to in subsection (1) shall be appointed by the Chief Justice, who shall nominate one of them to be chairman of the Committee, and the Chief Justice may himself elect to be a member of the Committee in which case he shall be the chairman.

(2) In particular, and without prejudice to the generality of the powers conferred by subsection (1), such rules may provide for all or any of the following matters namely-

- (a) the service of summonses, notices and other processes by post or in any other manner either generally or in any specified areas, and the proof of such service;
- (b) the maintenance and custody, while under attachment, of livestock and other movable property, the fees payable for such maintenance and custody, the sale of such livestock and property, and the proceeds of such sale;
- (c) procedure in suits by way of counterclaim and the valuation of such suits for the purposes of jurisdiction;
- (d) procedure in garnishee and charging orders either in addition to, or in substitution for, the attachment and sale of debts;
- (e) procedure where the defendant claims to be entitled to contribution or indemnity over against any person, whether a party to the suit or not;
- (f) summary procedure-
 - (i) in suits in which the plaintiff seeks only to recover a debt or liquidated demand in money payable by the defendant, with or without interest, arising on a contract express or implied; or on an enactment where the sum sought to be recovered is a fixed sum of money or in the nature of a debt other than a penalty; or on a guarantee, where the claim against the principal is in respect of a debt or a liquidated demand only or on a trust; or
 - (ii) in suits for the recovery of immovable property, with or without a claim for rent or mesne profits, by a landlord against a tenant whose term has expired or has been duly determined for non-payment of rent, or against persons claiming under such tenant;
- (ff) the selection of mediators and the hearing of matters referred to mediation under this Act.
- (g) procedure by way of originating summons;
- (h) consolidation of suits, appeals and other proceedings;

- (i) delegation to any registrar or other official of the court of any judicial, quasi-judicial and non-judicial duties; and
- (j) all forms, registers, books, entries and accounts which may be necessary or desirable for the transaction of the business of civil courts.

(3) The Chief Justice may, in consultation with the Rules Committee, issue practice notes or directions to resolve procedural difficulties arising under this Act, in order to facilitate the attainment of the overriding objective of this Act as specified in section 1A.

PART XI -MISCELLANEOUS PROVISIONS

Exemption of certain women.

82. (1) Women who according to the customs and manners of their community ought not to be compelled to appear in public shall be exempt from personal appearance in court.

(2) Nothing herein contained shall be deemed to exempt those women from arrest in execution of civil process.

Arrest other than in execution of decree.

83. The provisions of section 40, 41 and 43 shall apply so far as may be to all persons arrested under this Act.

Exemption from arrest under civil process.

84. (1) No judge, magistrate or other judicial officer shall be liable to arrest under civil process while going to, presiding in or returning from his court.

(2) Where any matter is pending before a tribunal having jurisdiction therein, or believing in good faith that it has such jurisdiction, the parties thereto, their advocates and recognized agents, and their witnesses acting in obedience to a summons shall be exempt from arrest under civil process other than process issued by such tribunal for contempt of court while going to or attending such tribunal for the purpose of such matter, and while returning from such tribunal.

(3) Nothing in subsection (2) shall enable a judgment-debtor to claim exemption from arrest under an order for immediate execution, or where such judgment-debtor attends to show cause why he would not be committed to prison in execution of a decree.

Procedure relating to arrest and attachment.

85. (1) Where an application is made to a subordinate court that any person shall be arrested or that any property shall be attached under any provision of this Act, and where the person resides or is found, or the property is situate, outside the local limits of the jurisdiction of the court to which the application is made, the court may in its discretion

issue a warrant of arrest, or make an order of attachment, and send to the magistrate of the subordinate court within the local limits of whose jurisdiction that person resides or is found or the property is situate the warrant or order together with the probable amount of the costs of the arrest or attachment.

(2) On the issue of a warrant or order under subsection (1) the magistrate of the subordinate court within whose jurisdiction the person to be arrested resides or is found or the property to be attached is situate, as the case may be, shall have power -

- (a) to endorse and execute the warrant or order; or
- (b) to issue, before the endorsement, a provisional warrant or order for the arrest of the defendant or the attachment of the property upon receipt of such telegraphic or other information as may satisfy him that a warrant or order has been issued:

Provided that a person arrested or property attached under the provisional warrant or order shall be discharged or released from attachment unless the original warrant or order is produced and endorsed within such time as may seem reasonable.

(3) The court ordering an arrest under subsection (2) shall upon receipt of the original warrant send the person arrested to the court by which the original warrant was issued, unless that person shows cause to the satisfaction of the former court why he should not be so sent or unless he furnishes sufficient security for his appearance before the latter court or for satisfying any decree that may be or may have been passed against him by that court, in either of which cases the court making the arrest shall release him and shall inform the court by which the original warrant was issued accordingly.

(4) Where an application is made to a judge of the High Court that any person shall be arrested or that any property shall be attached under any provision of this Act, and where owing to distance or for other sufficient cause the warrant or order cannot be immediately executed, it shall be competent for another judge of the High Court to issue a provisional warrant or order for the arrest of the defendant or the attachment of the property upon receipt of such telegraphic or other information as may satisfy him that a warrant or order has been issued:

Provided that a person arrested or property attached under the provisional warrant or order shall be discharged or released from

attachment unless the original warrant or order is produced within such time as may seem reasonable.

(5) The judge issuing a provisional warrant under subsection (4) shall send the person arrested to such places as may be specified in the original warrant, unless such person shows cause why he should not be so sent, or unless he furnishes sufficient security for his appearance at such place as aforesaid or for satisfying any decree that may be or may have been passed against him, in either of which cases the judge ordering the arrest shall release him and shall inform the judge by whom the original warrant was issued accordingly.

Language of courts.
17 of 1967, s. 41,
14 of 1977, Sch.

86. (1) The language of the High Court and of the Court of Appeal shall be English, and the language of subordinate courts shall be English or Swahili.

(2) (*Deleted by 17 of 1967, s. 41.*)

(3) Written applications to the High Court and to the Court of Appeal shall be in English and to subordinate courts in English or Swahili.

Assessors.

87. (1) Any court may in any cause or matter pending before it in which questions may arise as to the laws or customs of any tribe, caste or community, summon to its assistance one or more competent assessors, and such assessors shall attend and assist accordingly.

(2) In any Admiralty or Vice-Admiralty cause of salvage, towage or collision, the court, whether it be exercising its original or its appellate jurisdiction, may summon to its assistance, in such manner as it may direct or as may be prescribed, two competent assessors; and such assessors shall attend and assist accordingly.

(3) Every such assessor shall be summoned in such manner as the court may direct, and shall receive such fees for his attendance as may be prescribed to be paid in such manner as the court may direct.

Administration of
oath on affidavit.

88. In the case of any affidavit under this Act -

(a) any court, magistrate, registrar of a court, notary public or commissioner of oaths; or

(b) any officer or other person whom the High Court may appoint in this behalf,

may administer the oath to the deponent.

- 89.** The procedure provided in this Act in regard to suits shall be followed as far as it may be applicable in all proceedings in any court of civil jurisdiction. Miscellaneous proceedings.
- 90.** All orders or notices served on or given to any person under this Act shall be in writing. Orders and notices to be in writing.
- 91.** (1) Where and in so far as a decree is varied or reversed, the court of first instance shall, on the application of the party entitled to any benefit by way of restitution or otherwise, cause such restitution to be made as will, so far as may be, place the parties in the position they would have occupied but for such decree or such part thereof as has been varied or reversed; and for this purpose the court may make any orders, including orders for the refund of costs and for the payment of interest, damages, compensation and mesne profits, which are properly consequential on such variation or reversal. Application for restitution.
- (2) No suit shall be instituted for the purpose of obtaining any restitution or other relief which could be obtained by application under subsection (1).
- 92.** Where any person has become liable as surety - Enforcement of liability of surety.
- (a) for the performance of any decree or any part thereof; or
- (b) for the restitution of any property taken in execution of a decree; or
- (c) for the payment of any money, or for the fulfillment of any condition imposed on any person, under an order of the court in any suit or in any proceeding consequent thereon,
- the decree or order may be executed against him, to the extent to which he has rendered himself personally liable, in the manner herein provided for the execution of decrees, and such person shall for the purposes of appeal be deemed a party within the meaning of section 34:
- Provided that such notice in writing as the court in each case thinks sufficient has been given to the surety.
- 93.** In all suits to which any person under disability is a party, any consent or agreement as to any proceeding shall, if given or made with the express leave of the court by the next friend or guardian for the suit, have the same force and effect as if such person were under no disability and had given such consent or made such agreement. Consent or agreement by persons under disability.
- 94.** Where the High Court considers it necessary that a decree Execution of decree

of High Court before costs ascertained.

passed in the exercise of its original civil jurisdiction should be executed before the amount of the costs incurred in the suit can be ascertained by taxation, the court may order that the decree shall be executed forthwith, except as to so much thereof as relates to the costs; and as to so much thereof as relates to the costs that the decree may be executed as soon as the amount of the costs shall be ascertained by taxation.

Enlargement of time.

95. Where any period is fixed or granted by the court for the doing of any act prescribed or allowed by this Act, the court may, in its discretion, from time to time, enlarge such period, even though the period originally fixed or granted may have expired.

Power to make up deficiency of court fees.

96. Where the whole or any part of any fee prescribed for any document by the law for the time being in force relating to court fees has not been paid, the court may, in its discretion, at any stage, allow the person by whom such fee is payable to pay the whole or part, as the case may be, of the fee; and upon such payment the document in respect of which such fee is payable shall have the same force and effect as if such fee had been paid in the first instance.

97. (*Renumbered as section 3A.*)

Execution of instruments by order of court.

98. Where any person neglects or refuses to comply with a decree or order directing him to execute any conveyance, contract or other document, or to endorse any negotiable instrument, the court may, on such terms and conditions, if any, as it may determine, order that the conveyance, contract or other document shall be executed or that the negotiable instrument shall be endorsed by such person as the court may nominate for that purpose, and a conveyance, contract, document or instrument so executed or endorsed shall operate and be for all purposes available as if it had been executed or endorsed by the person originally directed to execute or endorse it.

Amendment of judgments, decrees or orders.

99. Clerical or arithmetical mistakes in judgments, decrees or orders, or errors arising therein from any accidental slip or omission, may at any time be corrected by the court either of its own motion or on the application of any of the parties.

General power to amend.

100. The court may at any time, and on such terms as to costs or otherwise as it may think fit, amend any defect or error in any proceeding in a suit; and all necessary amendments shall be made for the purpose of determining the real question or issue raised by or depending on the proceeding.

SUBSIDIARY LEGISLATION**Scale of allowances under section 41–**

Ten shillings per day.

Rules under section 81–**THE CIVIL PROCEDURE RULES****ARRANGEMENT OF RULES****ORDER I***Parties to Suits**Rule*

- 1–Who may be joined as plaintiffs.
- 2–Power of court to order separate trial.
- 3–Who may be joined as defendants.
- 4–Court may give judgment for or against one or more of joint parties.
- 5–Defendant need not be interested in all relief claimed.
- 6–Joinder of parties liable on same contract.
- 7–When plaintiff in doubt from whom redress to be sought.
- 8–One person may sue or defend on behalf of all in same interest.
- 9–Misjoinder and non-joinder.
- 10–Substitution and addition of parties.
- 10A–Government proceedings.
- 11–Conduct of suit.
- 12–Appearance of one of several plaintiffs or defendants for others.
- 13–Practice.
- 14–Notice to third and subsequent parties.
- 14A–Notice to Government as third party.
- 15–Default of appearance by third party.
- 15A–Default of appearance by Government as third party.
- 16–Judgment against third party in default.
- 16A–No judgment against Government without leave of the court.
- 17–Judgment after trial against third party in default.
- 18–Appearance of third party and directions.
- 19–Costs.
- 20–(Deleted by L.N. 119/1975.)
- 21–Defendant claiming against a co-defendant.
- 22–Procedure.

L.N. 119/1968,
Cap. 5 (1948),
G.N. 383/1953,
G.N. 1755/1955,
L.N. 96/1957,
L.N. 229/1957,
L.N. 367/1957,
L.N. 525/1958,
L.N. 551/1959,
G.N. 2391/1959,
L.N. 358/1968,
L.N. 32/1970,
L.N. 119/1975,
L.N. 88/1978,
L.N. 130/1979,
L.N. 275/1979,
L.N. 90/1982,
L.N. 126/1982,
L.N. 16/1984,
L.N. 22/1984,
L.N. 50/1985,
L.N. 216/1985,
L.N. 205/1988.

[Subsidiary]

ORDER II

*Frame of Suit**Rule*

- 1–Suit to include the whole of claim.
- 2–Joinder of causes of action.
- 3–Only certain claims to be joined to suit for recovery of immovable property.
- 4–Claims by or against executor, administrator or heir.
- 5–Power of court to order separate trials.
- 6–(*Deleted* by L.N. 88/1978.)
- 7–Declaratory judgment.
- 8–Procedure.

ORDER III

Recognized Agents and Advocates

- 1–Appearance, etc., may be in person, by recognized agent or by advocate.
- 2–Recognized agents.
- 3–Service of process on recognized agent.
- 4–(*Deleted* by L.N. 88/1978.)
- 5–Agent to accept service.
- 6–Change of advocate.
- 7–Service of notice of change of advocate.
- 8–Notice of appointment of advocate.
- 9–Notice of intention to act in person.
- 10–Power to act in person or through new advocate.
- 11–Removal of advocate from record at instance of another party.
- 12–Withdrawal of advocate who has ceased to act for a party.

ORDER IV

Institution of Suit and Issue of Summons

- 1–Suit to be commenced by plaintiff.
- 2–Register of civil suits and filing.
- 3–Issue of summons.

ORDER V

Service of Summons

- 1–Duration and renewal of summons.
- 2–Service on a corporation.
- 3–Concurrent summons.
- 4–(*Deleted* by L.N. 119/1975.)
- 5–(*Deleted* by L.N. 119/1995.)

Rule

[Subsidiary]

- 6–Delivery or transmission of summons for service.
- 7–Mode of service.
- 8–Service on several defendants.
- 9–Service to be on defendant in person or on his agent.
- 9A–Mode of service on the Government.
- 10–Service on agent by whom defendant carries on business.
- 11–Service on agent in charge in suits for immovable property.
- 12–Service on agent or adult.
- 13–Person served to sign acknowledgment.
- 14–Procedure when defendant refuses to accept service or cannot be found.
- 15–Return of service.
- 16–Examination of serving officer.
- 17–Substituted service.
- 18–Service on defendant in prison.
- 19–Service on public officers and soldiers.
- 20–Duty on person to whom the summons is sent.
- 21–In certain cases service of the writ, etc., allowed out of jurisdiction.
- 21A–Service of other process out of the jurisdiction.
- 22–Probate suits.
- 23–Application to be supported by evidence.
- 24–Order to fix time for entering appearance.
- 25–Service where defendant resides out of Kenya.
- 26–Notice in lieu of summons.
- 27–Service in a foreign country.
- 28–Extension of procedure to any order or notice.
- 28A–Application to Government.

Service of Foreign Legal Process in Kenya

- 29–Procedure.
- 30–General powers of the court.
- 31–Request for service from foreign country.
- 32–Procedure.

ORDER VI

Pleadings Generally

- 1–Pleadings in proceedings against the Government.
- 2–Formal requirements.
- 3–Facts, not evidence, to be pleaded.
- 4–Matters which must be specifically pleaded.
- 5–Matter may be pleaded whenever arising.
- 6–Departure.
- 6A–Particulars in defamation actions.
- 6B–Particulars of evidence in mitigation.

[Subsidiary]

Rule

- 7–Points of law.
- 8–Particulars of pleading.
- 9–Admissions and denials.
- 10–Denial by joinder of issue.
- 11–Close of pleadings.
- 12–Technical objection.
- 13–Striking out pleadings.
- 14–Pleading to be signed.
- 15–Proceedings *in rem*.
- 16–Procedure.

ORDER VIA

Amendment of Pleadings

- 1–Amendment of pleading without leave.
- 2–Application for disallowance of amendment.
- 3–Amendment of pleading with leave.
- 4–Amendment of originating process.
- 5–General power to amend.
- 6–Failure to amend after order.
- 7–Mode of amendment.
- 8–Procedure.

ORDER VII

Plaint

- 1–Particulars to be contained in plaint.
- 2–Money suits.
- 3–Where the subject-matter of the suit is immovable property.
- 4–Capacity of parties.
- 5–Defendant's interest and liability to be shown.
- 6–Statement of relief claimed.
- 7–Relief founded on separate grounds.
- 8–Copies of plaint.
- 9–Return of plaint.
- 10–Procedure.

ORDER VIII

Defence and Counterclaim

- 1–Defence.
- 1A–Defence of tender.

Rule

[Subsidiary]

- 2–Set-off and counterclaim.
- 2A–Set-off or counterclaim in proceedings by Government
- 3–(*Deleted by L.N. 88/1978.*)
- 4–Persons in representative capacity.
- 5–(*Deleted by L.N.88/1978.*)
- 6–Pleading a counterclaim.
- 7–Title of counterclaim.
- 8–Claim against person not party.
- 9–Appearance by added parties.
- 10–Reply to counterclaim.
- 11–Exclusion of counterclaim.
- 12–Discontinuance.
- 13–Judgment for balance.
- 14–(*Deleted by L.N. 119/1975.*)
- 15–Defence or set-off founded on separate grounds.
- 16–New ground of defence.
- 17–Subsequent pleadings.
- 18–Filing subsequent pleadings.
- 19–Register of documents.
- 20–Procedure.

ORDER IX

Appearance of Parties

- 1–Time of appearance.
- 2–Mode of appearance.
- 3–Defendant’s address for service.
- 4–Memorandum irregular, address fictitious.
- 5–Defendants appearing by same advocate.
- 6–Procedure.
- 7–Delivery of documents to address for service.

ORDER IXA

Consequence of Non-appearance and Default of Defence

- 1–Suits against infants and persons of unsound mind.
- 2–Affidavit of service upon non-appearance.
- 3–Judgment upon a liquidated demand.
- 4–Liquidated demand against several defendants.
- 5–Interlocutory judgment.
- 6–Interlocutory judgment where several defendants.
- 7–Judgment in default against the Government.
- 8–General rule where no appearance entered.
- 9–Default of defence.

[Subsidiary]

Rule

- 10–Setting aside judgment.
- 11–Procedure.

ORDER IXB

Hearing and Consequence of Non-attendance

- 1–Setting down suit for hearing
- 2–When neither party attends.
- 3–When only plaintiff attends.
- 4–When only defendant attends.
- 5–When some only of plaintiffs attend.
- 6–When some only of defendants attend.
- 7–Effect of dismissal.
- 8–Setting aside judgment or dismissal.

ORDER X

Interrogatories, Discovery and Inspection

- 1–Discovery by interrogatories.
- 2–Particular interrogatories to be submitted.
- 2A–Proceedings to which the Government is a party.
- 3–Interrogatories in defamation actions.
- 4–Form of interrogatories.
- 5–Corporations.
- 6–(*Deleted by L.N.88/1978.*)
- 7–Affidavit in answer, filing.
- 8–Form of affidavit in answer.
- 9–(*Deleted by L.N. 88/1978.*)
- 10–Order to answer or answer further.
- 11–Discovery of documents.
- 12–Affidavit in answer to order for discovery against Government.
- 13–Production of documents.
- 14–Inspection of documents referred to in pleadings or affidavits.
- 15–Notice to produce for inspection.
- 16–Time for inspection when notice given.
- 17–Order for inspection.
- 18–Verified copies.
- 19–Premature discovery.
- 20–Non-compliance with order for discovery.
- 21–Using answers to interrogatories at trial.
- 22–Order to apply to minors.
- 22A–Non-disclosure of certain documents in proceedings to which Government is party.

Rule

[Subsidiary]

23–Procedure.

ORDER XI

Consolidation of Suits

1–Consolidation of suits.

2–Procedure.

ORDER XII

Admissions

1–Notice of admission of case.

2–Notice to admit documents.

3–Form of notice

4–Notice to admit facts.

5–Form of admission.

6–Judgment on admissions.

7–Affidavit of signature.

8–Notice to produce documents in court.

9–Costs.

ORDER XIII

Production, Impounding and Return of Documents

1–Endorsements on documents admitted in evidence.

2–Endorsements on copies of admitted entries in books, accounts,
and records.

3–Recordings of admitted and return of rejected documents.

4–Court may order any document to be impounded.

5–Return of admitted documents.

6–Court may send for records of its own or of other court.

7–Provisions as to documents applied to material objects.

8–Procedure.

ORDER XIV

*Settlement of Issues and Determination of Suit on Issues of Law or on
Issues Agreed Upon*

1–Framing of issues.

2–Issues of law and fact.

3–Materials from which issues may be framed.

4–(Deleted by L.N. 88/1978.)

5–Power to amend and strike out issues.

[Subsidiary]

Rule

- 6—Questions of fact or law may by agreement be stated in form of issues.
- 7—Court, if satisfied that agreement was executed in good faith, may pronounce judgment.

ORDER XV

Summoning and Attendance of Witnesses

- 1—Summons to attend to give evidence or produce documents.
- 2—Expenses of witnesses to be paid into court on applying for summons.
- 3—Tender of expenses or notification of sum lodged.
- 4—Procedure where insufficient sum paid in; expenses of witnesses detained more than one day.
- 5—Time, place, and purpose of attendance to be specified in summons.
- 6—Summons to produce documents.
- 7—Power to require persons present in court to give evidence or produce document.
- 8—Summons, how served.
- 9—Time for serving summons.
- 10—Procedure where witness fails to comply with summons.
- 11—If witness appears, attachment may be withdrawn.
- 12—Procedure if witness fails to appear.
- 13—Mode of attachment.
- 14—Duty of persons summoned to give evidence or produce document.
- 15—When they may depart.
- 16—Application of rules 10 to 13.
- 17—Procedure where witness apprehended cannot give evidence or produce document.
- 18—(*Deleted by L.N. 88/1978.*)
- 19—Consequence of refusal of a party to give evidence when called on by the court.
- 20—Rules as to witnesses to apply to parties summoned.

ORDER XVI

Prosecution of Suits and Adjournments

- 1—Hearing to be from day to day.
- 2—Notice to show cause why suit should not be dismissed.
- 3—Procedure if parties fail to appear on day fixed.
- 4—Court may proceed notwithstanding either party fails to produce evidence.
- 5—Dismissal of suit for want of prosecution.
- 6—Suit may be dismissed if no step taken for three years.

ORDER XVII

[Subsidiary]

*Hearing of the Suit and Examination of Witnesses**Rule*

- 1–Right to begin.
- 2–Statement and production of evidence.
- 3–Evidence where several issues.
- 4–Witnesses to be examined in open court.
- 5–How evidence to be recorded.
- 6– (*Deleted by L.N. 119/1975.*)
- 7–Any particular question and answer may be taken down.
- 8–Questions objected to and allowed by court.
- 9–Remarks on demeanour of witness.
- 10–Power to deal with evidence taken before another judge.
- 11–Power to examine witness immediately.
- 12–Court may recall and examine witness.
- 13–Power of court to inspect.
- 14–Procedure.

ORDER XVIII

Affidavits

- 1–Power to order any point to be proved by affidavit.
- 2–Power to order attendance of deponent for cross-examination.
- 3–Matters to which affidavits shall be confined.
- 4–Deponent’s description, etc.
- 5–Manner of drawing affidavit.
- 6–Striking out matter.
- 7–Irregularity in form of affidavit.
- 8–Procedure.
- 9–Affidavit sworn before suit filed.

ORDER XIX

Application for an Account

- 1–Order for accounts.
- 2–Procedure

ORDER XX

Judgment and Decree

- 1–Judgment when pronounced.
- 2–Power to pronounce judgment written by another judge.

[Subsidiary]

Rule

- 3–Judgment to be signed.
- 4–Contents of judgment.
- 5–Court to state its decision on each issue.
- 5A–Judgment affecting registered title to land.
- 6–Contents of decree.
- 7–Preparation and dating of decrees and orders.
- 8–Costs.
- 9–Decree for recovery of immovable property.
- 10–Decree for delivery of movable property.
- 11–Decree may direct payment by installments.
- 12–Decree for possession and mesne profits.
- 13–Decree in administration suit.
- 14–Decree in suit for dissolution of partnership.
- 15–Decree in suit for account between principal and agent.
- 16–Special directions as to accounts.
- 17–Decree in suit for partition of property or separate possession of a share.
- 18–Decree where set-off is allowed.
- 19–Certified copies of judgment and decree to be furnished.
- 20–Procedure.

ORDER XXI

Execution of Decrees and Orders

- 1–Modes of paying money under decree.
- 2–Payment out of court to decree-holder.
- 3–Lands situate in more than one jurisdiction.
- 4–Procedure where court desires that its own decree shall be executed by another court.
- 5–Court receiving copies of decree to file same without proof.
- 6–Application for execution.
- 7–Oral and written applications.
- 8–Application for attachment of movable property not in judgment debtor’s possession.
- 9–Application for attachment of immovable property to contain certain particulars.
- 10–Power to require certified extract from Land Registries in certain cases.
- 11–Application for execution by joint decree-holder.
- 12–Application for execution by transferee of decree.
- 13–Procedure on receiving an application for execution of decree.
- 14–Execution in case of cross-decrees.
- 15–Execution in case of cross-claims under same decree.
- 16–Cross-decrees and cross-claims in mortgage suits.
- 17–Simultaneous execution.
- 18–Notice to show cause against execution in certain cases.

Rule

[Subsidiary]

- 19–Procedure after issue of notice.
- 20–Process for execution.
- 21–Endorsement on process.
- 22–When court may stay execution.
- 23–Liability of judgment–debtor discharged.
- 24–Order of court which passed decree or of appellate court to be binding upon court applied to.
- 25–Stay of execution pending suit between decree-holder and judgment-debtor.
- 26–Decree for payment of money.
- 27–Decree for specific movable property.
- 28–Decree for specific performance, for restitution of conjugal rights, or for an injunction.
- 29–(*Deleted by L.N. 119 / 1975.*)
- 30–Decree for immovable property.
- 31–Decree for delivery of immovable property when in occupancy of tenant.
- 32–Discretionary power to permit judgment-debtor to show cause against detention in prison.
- 33–Warrant for arrest to direct judgment-debtor to be brought up.
- 34–Subsistence allowance.
- 35–Proceedings on appearance of judgment-debtor in obedience to notice or after arrest.
- 36–Examination of judgment-debtor as to his property.
- 37–Attachment in case of decree for rent, or mesne profits, or other matter, amount of which to be subsequently determined.
- 38–Attachment of movable property other than agricultural produce, in possession of judgment-debtor.
- 39–Attachment of agricultural produce.
- 40–Provisions as to agricultural produce under attachment.
- 41–Attachment of share and other property not in possession of judgment-debtor.
- 42–Attachment of share in movables.
- 43–Attachment of salary or allowance.
- 44–Attachment of partnership property.
- 45–Execution of decree against firm.
- 46–Attachment of negotiable instrument.
- 47–Attachment of property in custody of court.
- 48–Attachment of decree.
- 49–Attachment of immovable property.
- 50–Removal of attachment after satisfaction of decree.
- 51–(*Deleted by L.N. 88/1978.*)
- 52–Determination of attachment.
- 53–Objections to attachment.
- 54–Stay of execution.
- 55–Raising of attachment.
- 56–Notice of intention to proceed.
- 57–Procedure.

[Subsidiary]

Rule

- 58–Objector failing to proceed.
- 59–Power to order property attached to be sold and proceeds to be paid to person entitled.
- 60–Sales, by whom conducted and how made.
- 61–Notification of sales by public auction.
- 62–Time of sale.
- 63–Adjournment or stoppage of sale.
- 64–Defaulting purchaser answerable for loss on re-sale.
- 65–Decree-holder not to bid for or buy property without permission.
- 66–Restriction on bidding or purchase by officers.
- 67–Negotiable instruments and shares in corporations.
- 68–Sales by public auction.
- 69–Irregularity not to vitiate sale, but any person injured may sue.
- 70–Delivery of movable property, debts and shares.
- 71–Vesting order in case of other property.
- 72–Sale of immovable property.
- 73–Deposit by purchaser and re-sale on default.
- 74–Payment of purchase-money.
- 75–Procedure in default of payment.
- 76–Notification on re-sale.
- 77–Bid of co-sharer to have preference.
- 78–Application to set aside sale on deposit.
- 79–Application to set aside sale on ground of irregularity or fraud.
- 80–Application by purchaser to set aside sale on ground of judgment-debtor having no saleable interest.
- 81–Sale, when to become absolute or be set aside.
- 82–Return of purchase-money in certain cases.
- 83–Certificate to purchaser.
- 84–Delivery of property in occupancy of judgment-debtor.
- 85–Delivery of property in occupancy of tenant.
- 86–Resistance or obstruction to possession of immovable property.
- 87–Resistance or obstruction by judgment-debtor.
- 88–Resistance or obstruction by bona fide claimant.
- 89–Rules not applicable to transfer *pendente lite*.
- 90–Order conclusive subject to regular suit.
- 91–Procedure.

ORDER XXII

Attachment of Debts

- 1–Order for the attachment of debts.
- 1A– Attachment of deposits.
- 2–Effect of garnishee order.
- 3–Execution against garnishee.

[Subsidiary]

Rule

- 4–Trial of liability of garnishee.
- 5–Claim of third person.
- 6–Trial of claim of third person.
- 7–Payment by or execution on the garnishee is a valid discharge.
- 8–Record of proceedings.
- 9–Costs of proceedings.
- 10–Procedure.

ORDER XXIIA

(Deleted by L.N. 119/1975.)

ORDER XXIII

Death, Bankruptcy and Marriage of Parties

- 1–No abatement by party’s death if right survives.
- 2–Procedure where one of several plaintiffs or defendants dies and right to sue survives.
- 3–Procedure in case of death of one of several plaintiffs or of sole plaintiff.
- 4–Procedure in case of death of one of several defendants or of sole defendant.
- 5–Determination of question as to legal representative.
- 6–*(Deleted by L.N. 88/1978.)*
- 7–When plaintiff’s bankruptcy bars suit.
- 8–Effect of abatement or dismissal.
- 9–Procedure in case of assignment before final order in suit.
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- 2–Discontinuance.
- 3–Costs.
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- 6–Compromise of suit.
- 7–Procedure.

[Subsidiary]

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Rule

- 1–Security for costs.
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- 1–Representation of beneficiaries in suits concerning property vested in trustees.
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- 1—Minor to sue by next friend.
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- 1–Power to state case for court’s opinion.
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- 2–Defendant may show cause.
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- 8–Costs.
- 9–Forms.
- 10–Setting aside of judgment.

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- 1 – Who may take out originating summons and in respect of what matters.

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- 3B – Caveats.
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ORDER XXXVII*Selection of Test Suit*

- 1 – Staying several suits against the same defendant.
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- 1 – Where defendant may be called upon to furnish security for appearance.
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- 6 – Attachment where cause not shown or security not furnished.
- 7 – Mode of making attachment.
- 8 – Investigation or claim to property attached before judgment.
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- 10 – Attachment before judgment not to affect rights of strangers nor bar decree-holder from applying for sale.

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Rule

- 11– Property attached before judgment not to be re-attached in execution of decree.
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- 4 – Order for injunction may be discharged, varied, or set aside.
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- 9 – Procedure.

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Appointment of Receivers

- 1 – Appointment of receivers.
- 2 – Remuneration.
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- 1A – Filing of decree or order.
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- 2 – Grounds which may be taken in appeal.
- 3 – One of several plaintiffs or defendants may obtain reversal of whole decree where it proceeds on ground common to all.
- 4 – Stay in case of appeal.
- 5 – Security in case of order for execution of decree appealed from.
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- 7 – Exercise of powers in appeal from order made in execution of decree.
- 8 – Register and filing of appeal.
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Rule

- 10 – Notice to be given where decree appealed from.
- 10A – Filing declaration for presence at appeal.
- 11 – Service of notice of day for hearing appeal.
- 12 – Contents of notice.
- 13 – Right to begin.
- 14 – Dismissal of appeal for appellant's default.
- 15 – (*Deleted by L.N. 88/1978.*)
- 16 – Re-admission of appeal dismissed for default.
- 17 – Power to adjourn hearing and direct persons appearing interested to be made respondents.
- 18 – Re-hearing on application of respondent against whom *ex-parte* decree made.
- 19 – Remand of cases.
- 20 – Where evidence on record sufficient appellate court may determine case finally.
- 21 – Power to order new trial.
- 22 – Production of additional evidence in appellate court.
- 23 – Mode of taking additional evidence.
- 24 – Points to be defined and recorded.
- 25 – Where court consists of two or more judges.
- 26 – What judgment may direct.
- 27 – Power of appellate court on appeal.
- 28 – Preparation and contents of decree.
- 29 – (*Deleted by L.N. 88/1978.*)
- 30 – Certified copy of decree to be sent to court whose decree appealed from.
- 31 – Dismissal for want of prosecution.

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Appeal from Orders

- 1 – Appeals from Orders.
- 2 – Procedure.
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ORDER XLIII

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- 1 – Who may appeal as pauper.
- 2 – Inquiry into pauperism.
- 3 – Procedure.

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ORDER XLIV

*Review**Rule*

- 1 – Application for review of judgment.
- 2 – To whom applications for review may be made.
- 3 – Application where rejected, where granted.
- 4 – Application to same judge.
- 5 – Application where more than one judge hears.
- 6 – Re-hearing upon application granted.
- 7 – Bar of subsequent applications.

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Arbitration Under Order of a Court

- 1 – Parties to a suit may apply for arbitration.
- 2 – Appointment of arbitrator.
- 3 – Form of order.
- 4 – Provisions where two or more arbitrators.
- 5 – Power to appoint arbitrator.
- 6 – Power of arbitrator or umpire appointed by court.
- 7 – Summoning witnesses and default.
- 8 – Extension of time for making award.
- 9 – Where umpire may arbitrate in lieu of arbitrators.
- 10 – Award to be signed and filed.
- 11 – Statement of special case by arbitrators or umpire.
- 12 – Costs of arbitration.
- 13 – Power to modify or correct award.
- 14 – Power to remit to arbitration.
- 15 – Grounds for setting aside award.
- 16 – Time for application.
- 17 – Judgment on award.
- 18 – Forms.
- 19 – Procedure.

ORDER XLVI

District Registries

- 1 – Institution of suits in High Court.
- 2 – Schedule of District Registries and areas.
- 3 – Title of suits filed in a District Registry.
- 4 – Suits filed in a registry remain there when all defendants reside within that area.

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Rule

- 4A – Proceedings against the Government.
- 5 – Place of trial.
- 5A – Place of trial in proceedings by or against the Government.
- 6 – All preliminary steps taken before the District Registrar.
- 7 – Appeal from decision of District Registrar.
- 8 – Taxation in District Registries.
- 9 – Appeals from subordinate courts.

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- 1 – Process to be served at expense of party issuing.
- 2 – Orders and notices, how served.
- 3 – Use of forms.
- 4 – Rules of procedure not contained in these Rules.
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- 1 – Registrar to be ministerial officer.
- 2 – Judgment, when may be entered by Registrar.
- 2A – Consent orders.
- 2B – No judgment against Government in default of pleading without leave of court.
- 3 – Execution may be ordered by Registrar.
- 4 – Registrar a Civil Court.
- 5 – Hearing of applications.

ORDER XLIX

Time

- 1 – Month means calendar month.
- 2 – Exclusion of Sundays, etc.
- 3 – Time expiring on Sunday or close day.
- 3A – When time does not run.
- 4 – Time for giving security for costs, when not to be reckoned.
- 5 – Power to enlarge time.
- 6 – Enlargement of time by consent.
- 7 – Number of days how computed.
- 8 – Time of day of service.

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ORDER L

*Motions and Other Applications**Rule*

- 1 – Procedure.
- 1A – Applications under s.25 (2) of the Government Proceedings Act.
- 2 – Notice to parties.
- 3 – Contents of notice.
- 4 – Dismissal or adjournments for want of notice.
- 5 – Adjournment of hearing.
- 6 – Service of notice on defendant served with summons to enter appearance but not appearing.
- 7 – Summons to be heard in chambers.
- 8 – Transfer from court to chambers.
- 9 – Costs.
- 10 – Transfer from chambers to court.
- 11 – Application in chambers instead of in court.
- 12 – Provision under which application is made to be stated.
- 13 – Costs and other relief.
- 14 – When application made.
- 15 – Signature of motion or summons.
- 16 – Grounds of opposition to application in High Court.
- 17 –
- 18 –

ORDER LI

Summons for Directions

- 1 – Application.
- 2 – Summons for directions.
- 3 – Duty to consider all matters.
- 4 – Matters for consideration.
- 5 – Admissions and agreements to be made.
- 6 – Duty to give all information at hearing.
- 7 – Duty to make all interlocutory applications on summons for directions.
- 8 – Interpretation and forms.

ORDER LII

The Advocates Act

- 1 – Interpretation.
- 2 – Appeals to the Chief Justice.
- 3 – Applications with respect to remuneration.
- 4 – Power to order advocate to deliver cash account, etc.

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Rule

- 5 – Application for taxation by third parties, etc.
- 6 – Application for charging order.
- 6A – Application for order for enforcement of an undertaking.
- 7 – Title, service, etc., of appeal.
- 8 – Discontinuance of appeal.
- 9 – Procedure.

ORDER LIII

Orders of Mandamus, Prohibition and Certiorari

- 1 – Applications for mandamus, etc., not to be made without leave.
- 2 – Time for applying for certiorari in certain cases.
- 3 – Application to be by notice of motion.
- 4 – Statements and affidavits.
- 5 – Applicant to have right to begin.
- 6 – Right to be heard in opposition.
- 7 – Provisions as to orders of certiorari for the purpose of quashing proceedings.

APPENDIX A – *Process*.

APPENDIX B – *Discovery, Inspection and Admission*.

APPENDIX C – *Decrees*.

APPENDIX D – *Execution*.

APPENDIX E – *Supplementary Proceedings*.

APPENDIX F – *Appeal, Reference and Review*.

APPENDIX G – *Miscellaneous*.

These Rules may be cited as the Civil Procedure Rules.

Citation.

ORDER 1

[Subsidiary]

PARTIES TO SUITS

1. All persons may be joined in one suit as plaintiffs in whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative, where, if such persons brought separate suits, any common question of law or fact would arise.
- O. I. r. 1.
Who may be joined as plaintiffs.
2. Where it appears to the court that any joinder of plaintiffs may embarrass or delay the trial of the suit, the court may either on the application of any party or of its own motion put the plaintiffs to their election or order separate trials or make such other order as may be expedient.
- O. I. r. 2.
Power of court to order separate trial.
L.N.119/1975.
3. All persons may be joined as defendants against whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative, where, if separate suits were brought against such persons any common question of law or fact would arise.
- O. I. r. 3.
Who may be joined as defendants.
4. Judgment may be given without amendment -
- O. I. r. 4.
Court may give judgment for or against one or more of joint parties.
- (a) for such one or more of the plaintiffs as may be found to be entitled to relief for such relief as he or they may be entitled to;
- (b) against such one or more of the defendants as may be found to be liable according to their respective liabilities.
5. It shall not be necessary that every defendant shall be interested as to all the relief claimed in any suit against him.
- O. I. r. 5. Defendant need not be interested in all relief claimed.
6. The plaintiff may at his option join as parties to the same suit all or any of the persons severally, or jointly and severally, liable on any one contract, including parties to bills of exchange and promissory notes.
- O. I. r. 6. Joinder of parties liable on same contract.
7. Where the plaintiff is in doubt as to the persons from whom he is entitled to obtain redress, he may join two or more defendants in order that the question as to which of the defendants is liable, and to what extent, may be determined as between all parties.
- O. I. r. 7.
When plaintiff in doubt from whom redress to be sought.

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O. I. r. 8. One person may sue or defend on behalf of all in same interest.

8. (1) Where there are numerous persons having the same interest in one suit, one or more of such persons may sue or be sued, or may be authorized by the court to defend in such suit, on behalf of or for the benefit of all persons so interested.

(2) The court shall in such case direct the plaintiff to give notice of the institution of the suit to all such persons either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, by public advertisement, as the court in each case may direct.

(3) Any person on whose behalf or for whose benefit a suit is instituted or defended under subrule (1) may apply to the court to be made a party to such suit.

O. I. r. 9. Misjoinder and non-joinder.

9. No suit shall be defeated by reason of the misjoinder or non-joinder of parties, and the court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it.

O. I. r. 10. Substitution and addition of parties.

10. (1) Where a suit has been instituted in the name of the wrong persons as plaintiff, or where it is doubtful whether it has been instituted in the name of the right plaintiff, the court may at any stage of the suit, if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute to do so, order any other person to be substituted or added as plaintiff upon such terms as the court thinks fit.

(2) The court may at any stage of the proceedings, either upon or without the application of either party, and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit, be added.

(3) No person shall be added as a plaintiff suing without a next friend or as the next friend of a plaintiff under any disability without his consent in writing thereto.

(4) Where a defendant is added or substituted, the plaint shall, unless the court otherwise directs, be amended in such manner as may be necessary, and amended copies of the summons and of the plaint shall be served on the new defendant and, if the court thinks fit, on the original defendants.

10A. In respect of civil proceedings by or against the Government, this Order shall have effect subject to section 12 of the Government Proceedings Act (which relates to parties to such proceedings).

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O.I. r. 10A
Government
proceedings.
L.N. 299/1957.
Cap. 40.

11. The court may give the conduct of the suit to such person as it deems proper.

O. I. r. 11.
Conduct of suit.

12. (1) Where there are more plaintiffs than one, any one or more of them may be authorized by any other of them to appear, plead or act for such other in any proceeding, and in like manner, where there are more defendants than one, any one or more of them may be authorized by any other of them to appear, plead or act for such other in any proceeding.

O. I. r.12.
Appearance of one or
several plaintiffs or
defendants for others.

(2) The authority shall be in writing signed by the party giving it and shall be filed in the case.

13. Any application to add or strike out or substitute a plaintiff or defendant may be made to the court at any time before trial by summons or at the trial of the suit in a summary manner.

O. I. r 13. Practice.
L.N. 119/1975.

14. (1) Where a defendant claims as against any other person not already a party to the suit (hereinafter called the third party) -

O. I. r. .14. Notice to
third and subsequent
parties.
L.N. 119/1975.

(a) that he is entitled to contribution or indemnity; or

(b) that he is entitled to any relief or remedy relating to or connected with the original subject-matter of the suit and substantially the same as some relief or remedy claimed by the plaintiff; or

(c) that any question or issue relating to or connected with the said subject-matter is substantially the same question or issue arising between the plaintiff and the defendant and should properly be determined not only as between the plaintiff and the defendant but as between the plaintiff and defendant and the third party or between any or either of them,

he may, by leave of the court, issue a notice (hereinafter called a third party notice) to that effect, and such leave shall be applied for by summons in chambers *ex parte* supported by affidavit.

(2) A copy of such notice shall be filed and shall be served on the third party according to the rules relating to the service of a

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summons.

(3) The notice shall state the nature and grounds of the claim, and shall, unless otherwise ordered by the court, be filed within the time limited for filing the defence, and shall be in or to the effect of Form No. 22 of Appendix A with such variations as circumstances require and a copy of the plaint shall be served therewith.

(4) Where a third party makes as against any person not already a party to the action such a claim as is mentioned in subrule (1), the provisions of this Order regulating the rights and procedure as between the defendant and the third party shall apply *mutatis mutandis* as between the third party and such person, and the court may give leave to such third party to issue a third party notice, and the preceding rules of this Order shall apply *mutatis mutandis*, and the expressions “third party notice” and “third party” shall respectively apply to and include every notice so issued and every person served with such notice.

(5) Where a person served with a notice by a third party under subrule (4) makes such a claim as is mentioned in subrule (1) against another person not already a party to the action, such other person and any subsequent person made a party to the action shall comply *mutatis mutandis* with the provisions of this rule.

O. I. r. 14A. Notice to Government as third party. L.N.299/1957.

14A. Notwithstanding anything in rule 14, leave to issue a third party notice for service on the Government shall not be granted unless the court is satisfied that the Government is in possession of all such information as it reasonably requires as to the circumstances in which it is alleged that the liability of the Government has arisen and as to the departments and officers of the Government concerned.

O. I. r. 15. Default of appearance by third party.

15. If a person not a party to the suit who is served as mentioned in rule 14 (hereinafter called the “third party”) desires to dispute the plaintiff’s claim in the suit as against the defendant on whose behalf the notice has been given, or his own liability to the defendant, the third party must enter an appearance in the suit on or before the day specified in the notice; and in default of his so doing he shall be deemed to admit the validity of the decree obtained against such defendant, whether obtained by consent or otherwise, and his own liability to contribute or indemnify, as the case may be, to the extent claimed in the third-party notice:

Provided that a person so served and failing to enter an appearance within the period fixed in the notice may apply to the court for leave to enter an appearance, and for good cause such leave may be given upon such terms, if any, as the court shall think fit.

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15A. In the case of third-party proceedings against the Government, rule 15 shall not apply unless the court so orders; and any application for such an order shall be made by summons served not less than seven days before the return day.

O. I. r.15A Default of appearance by Government as third party.
L.N.299/1957.

16. Where a third party makes default in entering an appearance in the suit, or in delivering any pleading, and the defendant giving the notice suffers judgment by default, such defendant shall be entitled, after causing the satisfaction of the decree against himself to be entered upon the record, to judgment against the third party to the extent claimed in the third-party notice; the court may upon the application of the defendant pass such judgment against the third party before such defendant has satisfied the decree passed against him:

O. I. r.16. Judgment against third party in default.
L.N.119/1975.

Provided that it shall be lawful for the court to set aside or vary any judgment passed under this rule upon such terms as may seem just.

16A. (1) A defendant shall not in any event be entitled to enter judgment against the Government under rule 16 without the leave of the court.

O. I. r.16A.
No judgment against Government without leave of the court.
L.N.299/1957.

(2) Any application for leave to enter judgment against the Government under this rule shall be made by summons served not less than seven days before the return day.

17. (1) Where a third party makes default in entering an appearance in the suit, and the suit is tried and results in favour of the plaintiff, the court may either at or after the trial enter such judgment as the nature of the suit may require for the defendant giving notice against the third party:

O. I. r.17. Judgment after trial against third party in default.

Provided that execution thereof shall not be issued without leave of the court, until after satisfaction by such defendant of the decree against him.

(2) If the suit is finally decided in the plaintiff's favour, otherwise than by trial, the court may, upon application *ex parte* supported by affidavit, order such judgment as the nature of the case may require to be entered for the defendant giving the notice against the third party at any time after satisfaction by the defendant of the decree obtained by the plaintiff against him.

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O. I. r. 18.
Appearance of third
party and directions.
L.N. 119/1975.

18. If a third party enters an appearance pursuant to the third-party notice, the defendant giving the notice may apply to the court by summons in chambers for directions, and the court upon the hearing of such application may, if satisfied that there is a proper question to be tried as to the liability of the third party, order the question of such liability as between the third party and the defendant giving the notice, to be tried in such manner, at or after the trial of the suit, as the court may direct; and, if not so satisfied, may order such judgment as the nature of the case may require to be entered in favour of the defendant giving the notice against the third party.

O. I. r. 19. Costs.

19. The court may decide all questions of costs between a third party and the other parties to the suit, and may make such orders as to costs as the justice of the case may require.

20. (*Deleted by L.N.119/1975.*)

O. I. r. 21.
Defendant claiming
against a co-
defendant.
L.N. 119/1975.

21. (1) Where a defendant desires to claim against another person who is already a party to the suit -

- (a) that he is entitled to contribution or indemnity; or
- (b) that he is entitled to any relief or remedy relating to or connected with the original subject-matter of the action which is substantially the same as some relief or remedy claimed by the plaintiff; or
- (c) that any question or issue relating to or connected with the said subject-matter is substantially the same as some question or issue arising between the plaintiff and the defendant and should properly be determined not only as between the plaintiff and the defendant but as between the plaintiff and the defendant and such other person or between any or either of them,

the defendant may without leave issue and serve on such other person a notice making such claim or specifying such question or issue.

(2) No appearance to such notice shall be necessary but there shall be adopted for the determination of such claim, question or issue the same procedure as if such other person were a third party under this Order.

(3) Nothing contained in this rule shall operate or be construed so as to prejudice the rights of the plaintiff against any defendant to the action.

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22. Applications under rules 2, 8, 15, 17 and 20 shall be by summons in chambers; and applications under rules 10 and 16 may be made orally in court or by summons in chambers.

O. I. r. 22 Procedure.
L.N.119/1975.

ORDER II**FRAME OF SUIT**

1. (1) Every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action; but a plaintiff may relinquish any portion of his claim.

O. II. r. 1. Suit to include the whole claim. L.N.119/1975.

(2) Where a plaintiff omits to sue in respect of or relinquishes any portion of his claim, he shall not afterwards sue in respect of the portion omitted or relinquished.

(3) A person entitled to more than one relief in respect of the same cause of action may sue for all or any of such reliefs; but if he omits, except with the leave of the court, to sue for all such reliefs he shall not afterwards sue for any relief so omitted.

2. (1) Save as otherwise provided, a plaintiff may unite in the same suit several causes of action against the same defendant or the same defendants jointly; and any plaintiffs having causes of action in which they are jointly interested against the same defendant or the same defendants jointly may unite such causes of action in the same suit.

O. II. r. 2. Joinder of causes of action.

(2) Where causes of action are united, the jurisdiction of the court as regards the suit shall depend on the amount or value of the aggregate of the subject-matters at the date of instituting the suit.

3. No cause of action shall, except with the leave of the court, be joined with a suit for the recovery of immovable property, except -

O. II. r. 3. Only certain claims to be joined for recovery of immovable property.

- (a) claims for mesne profits or arrears of rent in respect of the property claimed or any part thereof;
- (b) claims for damages for breach of any contract under which the property or any part thereof is held;
- (c) claims for damages for any wrong or injury to the premises claimed; and
- (d) claims in which the relief sought is based on the same cause of action:

[Subsidiary]

Provided that nothing in this rule shall prevent any party in a suit for foreclosure or redemption from asking to be put into possession of the mortgaged property, and such suit for foreclosure or redemption and for such delivery of possession shall not be deemed a suit for the recovery of immovable property within the meaning of these Rules.

O. II. r. 4. Claims by or against executor, administrator or heir.

4. No claim by or against an executor or administrator, as such, shall be joined with claims by or against him personally, unless the last-mentioned claims are alleged to arise with reference to the estate in respect of which the plaintiff or defendant sues or is sued as executor or administrator, or are such as he was entitled to, or liable for, jointly with the deceased person whom he represents.

O.II.r.5. Power of court to order separate trials.
L.N.119/1975.

5. Where it appears to the court that any causes of action joined in one suit cannot be conveniently tried or disposed of together, the court may either on the application of any party or of its own motion order separate trials or may make such order as may be expedient.

6. (*Deleted by L.N.88/1978.*)

O. II. r. 7.
Declaratory judgment.

7. No suit shall be open to objection on the ground that a merely declaratory judgment or order is sought thereby, and the court may make a binding declaration of right whether any consequential relief is or could be claimed or not.

O. II. r. 8. Procedure.
L.N.119/1975.

8. Applications under rules 1 (3), 3 and 5 shall be by summons in chambers.

ORDER III

RECOGNIZED AGENTS AND ADVOCATES

O. III. r. 1.
Appearances, etc., may be in person, by recognized agent or by advocate.

1. Any application to or appearance or act in any court required or authorized by the law to be made or done by a party in such court may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person, or by his recognized agent, or by an advocate duly appointed to act on his behalf:

Provided that -

- (i) any such appearance shall, if the court so directs, be made by the party in person; and
- (ii) where the party by whom the application, appearance or act is required or authorized to be made or done is the Attorney-General or an officer authorized by law to make

or to do such application, appearance or act for and on behalf of the Government, the Attorney-General or such officer, as the case may be, may by writing under his hand depute an officer in the public service to make or to do any such application, appearance or act.*

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2. The recognized agents of parties by whom such appearances, applications and acts may be made or done are -

O. III.r. 2.
Recognized agents.
L.N.119/1975.

- (a) persons holding powers of attorney authorizing them to make such appearances and applications and do such acts on behalf of parties;
- (b) persons carrying on trade or business for and in the names of parties not resident within the local limits of the jurisdiction of the court within which limits the appearance, application or act is made or done, in matters connected with such trade or business only, where no other agent is expressly authorized to make and do such appearances, applications and acts;
- (c) in respect of a corporation, an officer of the corporation duly authorized under the corporate seal.

3. (1) Processes served on the recognized agent of a party shall be as effectual as if the same had been served on the party in person, unless the court otherwise directs.

O. III. r. 3. Service of process on recognized agent.

(2) The provisions for the service of process on a party to a suit shall apply to the service of process on his recognized agent.

4.(Deleted by L.N.88/1978.)

5. (1) Besides the recognized agents described in rule 2, any person residing within the jurisdiction of the court may be appointed an agent to accept service of process.

O. III. r. 5.
Agent to accept service.

(2) Such appointment may be special or general, and shall be made by an instrument in writing signed by the principal, and such instrument or, if the appointment is general, a certified copy thereof shall be filed in court.

6. A party suing or defending by an advocate shall be at liberty to change his advocate in any cause or matter, without an order for that purpose, but unless and until notice of any change of advocate is filed in the court in which such cause or matter is proceeding and served in

O. III. r. 6.
Change of advocate.
L.N. 96/1957.

*For authorisation under Order III, rule 1, see G.N. 1096 of 1952.

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accordance with rule 7, the former advocate shall, subject to rules 11 and 12, be considered the advocate of the party until the final conclusion of the cause or matter, including any review or appeal.

O. III. r. 7.
Service of notice of
change of advocate.
L.N. 96/1957.

7. The party giving the notice shall serve on every other party to the cause or matter (not being a party in default as to entry of appearance) and on the former advocate a copy of the notice endorsed with a memorandum stating that the notice has been duly filed in the appropriate court (naming it).

O. III. r. 8. Notice
of appointment
of advocate.
L.N. 96/1957.

8. Where a party, after having sued or defended in person, appoints an advocate to act in the cause or matter on his behalf, he shall give notice of the appointment, and the provisions of this Order relating to a notice of change of advocate shall apply to a notice of appointment of an advocate with the necessary modifications.

O. III. r. 9.
Notice of intention
to act in person. L.N.
96/1957,
L.N. 88/1978.

9. (1) Where a party, after having sued or defended by an advocate, intends to act in person in the cause or matter, he shall give a notice stating his intention to act in person and giving an address for service within the jurisdiction of the court in which the cause or matter is proceeding, and the provisions of this Order relating to a notice of change of advocate shall apply to a notice of intention to act in person, with the necessary modifications.

(2) The address for service given under subrule (1) shall comply with Order IX, rule 3.

L.N. 36/ 2000, s.2,
L.N. 128/ 2001, s.2.

9A. When there is a change of advocate, or when a party decides to act in person having previously engaged an advocate, after judgment has been passed, such change or intention to act in person shall not be effected without an order of the court upon an application with notice to the advocate on record.

O. III. r. 10.
Power to act in
person or through
new advocate.
L.N. 96/1957.

10. The party giving any such notice as above may perform the duties prescribed by this Order in person or (except where he intends to act in person) through his new advocate.

O. III. r. 11. Removal
of advocate from
record at instance
of another party.
L.N. 96/1957.

11. (1) Where an advocate who has acted for a party in a cause or matter has died or become bankrupt or cannot be found or has failed to take out a practising certificate or has been struck off the roll of advocates, and the party has not been given notice of change of advocate or notice of intention to act in person in accordance with this Order, any other party to the cause or matter may, on notice to be served on the first-named party personally or by prepaid post letter addressed to his last-known place of address, unless the court otherwise directs, apply to the court by summons in chambers for an order declaring that the

advocate has ceased to be the advocate acting for the first-named party [Subsidiary] in the cause or matter, and the court may make an order accordingly.

(2) Where the order is made, the party applying for the order shall serve on every other party to the cause or matter (not being a party in default as to entry of appearance) a copy of the said order and procure the order to be entered in the appropriate court, and also leave at the appropriate court a certificate signed by the applicant or his advocate that the order has been duly served as aforesaid; and thereafter, unless and until the first-named party either appoints another advocate or else gives such an address for service as is required of a party acting in person, and complies with this Order relating to notice of appointment of an advocate or notice of intention to act in person, any document may be served on the party so in default by being filed in the appropriate court.

(3) Any order made under this rule shall not affect the rights of the advocate and the party for whom he acted as between themselves.

12. (1) Where an advocate who has acted for a party in a cause or matter has ceased so to act and the party has not given notice of change in accordance with this Order, the advocate may on notice to be served on the party personally or by prepaid post letter addressed to his last-known place of address, unless the court otherwise directs, apply to the court by summons in chambers for an order to the effect that the advocate has ceased to be the advocate acting for the party in the cause or matter, and the court may make an order accordingly:

O. III. r. 12.
Withdrawal of
advocate who has
ceased to act for a
party.
L.N. 96/1957.

Provided that, unless and until the advocate has -

- (i) served on every party to the cause or matter (not being a party in default as to entry of appearance) or served on such parties as the court may direct a copy of the said order; and
- (ii) procured the order to be entered in the appropriate court; and
- (iii) left at the said court a certificate signed by him that the order has been duly served as aforesaid;

he shall (subject to this Order) be considered the advocate of the party to the final conclusion of the cause or matter including any review or appeal.

(2) From and after the time when the order has been entered in the appropriate court, any document may be served on the party to whom the order relates by being filed in the appropriate court, unless

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and until that party either appoints another advocate or else gives such an address for service as is required of a party acting in person, and also complies with this Order relating to notice of appointment of an advocate or notice of intention to act in person.

(3) Any order made under this rule shall not affect the rights of the advocate and the party as between themselves.

ORDER IV

INSTITUTION OF SUIT AND ISSUE OF SUMMONS

O. IV. r. 1.
Suit to be
commenced by
plaint.
L.N. 119/1975.

1. Every suit shall be instituted by presenting a plaint to the court, or in such other manner as may be prescribed.

O. IV. r. 2.
Register of civil suits
and filing.
L.N. 119/1975.

2. (1) A register of suits, to be called the register of civil suits, shall be kept at every registry; and the particulars of every suit filed in a registry shall be entered in the register and all such suits shall be numbered in each year according to the order in which they are instituted in that registry.

(2) Every plaint to be filed shall be presented to the registry during office hours together with any fee payable on its filing and each such plaint shall be date-stamped with the date on which it was so presented which shall be the date of filing the suit notwithstanding any dispute as to the amount of the fee payable.

O. IV. r. 3.
Issue of summons.
L.N. 119/1975.
L.N. 5/1996.

3. (1) When a suit has been filed a summons shall issue to the defendant ordering him to appear within the time specified therein.

(2) Every summons shall be signed by the judge or an officer appointed by the judge and shall be sealed with the seal of the court.

(3) Every summons shall be accompanied by a copy of the plaint.

(4) The time for appearance shall be fixed with reference to the place of residence of the defendant so as to allow him sufficient time to appear. Provided the time for appearance shall not be less than 10 days.

(5) Every summons shall be prepared by the plaintiff or his advocate and filed with the plaint to be signed in accordance with subrule (2) of this rule.

ORDER V

[Subsidiary]

SERVICE OF SUMMONS

1. (1) A summons (other than a concurrent summons) shall be valid in the first instance for twelve months beginning with the date of its issue and a concurrent summons shall be valid in the first instance for the period of validity of the original summons which is unexpired at the date of issue of the concurrent summons.

O. V. r. 1.
Duration and renewal
of summons.
L.N. 119/1975,
L.N. 5/1996,
L.N. 84/96.

(2) Where a summons has not been served on a defendant the court may extend the validity of the summons from time to time if satisfied it is just to do so.

(3) Where the validity of a summons has been extended under subrule (2), before it may be served it shall be marked with an official stamp showing the period for which its validity has been extended.

(4) Where the validity of a summons is extended, the order shall operate in relation to any other summons (whether original or concurrent) issued in the same sum which has not been served so as to extend its validity until the period specified in the order.

(5) Application for an order under subrule (2) shall be made by filing an affidavit setting out the attempts made at service and their result, and the order may be made without the advocate or plaintiff in person being heard.

(6) As many attempts to serve the summons as are necessary may be made during the period of validity of the summons.

(7) Where no application has been made under subrule (2) the court may without notice dismiss the suit at the expiry of twenty-four months from the issue of the original summons.

2. Subject to any other written law, where the suit is against a corporation the summons may be served -

O. V. r. 2.
Service on a
corporation.
L.N. 119/1975.
L.N. 5/1996.

(a) on the secretary, director or other principal officer of the corporation; or

(b) if the process server is unable to find any of the officers of the corporation mentioned in rule 2 (a), by leaving it at the registered office of the corporation or sending it by prepaid registered post to the registered postal address of the corporation, or if there is no registered office and no registered postal address of the corporation by leaving it at

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the place where the corporation carries on business or by sending it by registered post to the last known postal address of the corporation.

O. V. r. 3. Concurrent summons.
L.N.119/1975.

3. (1) One or more concurrent summonses may, at the request of the plaintiff, be issued at the time when the original summons is issued or at any time thereafter before the original summons ceases to be valid.

(2) A concurrent summons shall be valid only from the date of its own issue and shall remain valid so long only as the original summons remains in force.

4. (Deleted by L.N.119/1975.)

5. (Deleted by L.N.119/1975.)

O. V. r. 6. Delivery or transmission of summons for service. L.N.32/1970, L.N.88/1978.

6 (1) Where the court has issued a summons to a defendant, it may be delivered for service-

(a) to any person for the time being duly authorized by the court;

(b) to an advocate, or advocate's clerk approved by the court;

(c) to any subordinate court having jurisdiction in the place where the defendant resides; or

Cap. 84.
Cap. 85.

(d) to a police officer appointed under the Police Act or to an officer appointed under the Administration Police Act.

(2) A court to which a summons is sent under subrule (1)(c) shall upon receipt thereof proceed as if it had been issued by such court, and shall then return the summons to the court of issue, together with the record of any of its proceedings with regard thereto.

(3) No objection may be made to the service of a summons on the grounds that the person who served the summons either was not authorized so to do or that he exceeded or failed to comply with his authority in any way.

O. V. r. 7. Mode of service.

7. Service of the summons shall be made by delivering or tendering a duplicate thereof signed by the judge, or such officer as he appoints in this behalf, and sealed with the seal of the court.

O. V. r. 8. Service on several defendants.

8. Save as otherwise prescribed, where there are more defendants than one, service of the summons shall be made on each defendant.

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9. (1) Wherever it is practicable, service shall be made on the defendant in person, unless he has an agent empowered to accept service, in which case service on the agent shall be sufficient.

O. V. r. 9. Service to be on defendant in person or on his agent. L.N.88/1978.

(2) A summons may be delivered to an advocate who has instructions to accept service and to enter an appearance to the summons, but judgment in default of appearance may not be entered after such delivery.

9A (1) The provisions of this Order shall have effect subject to section 13 of the Government Proceedings Act, which provides for the service of documents on the Government for the purpose of or in connexion with civil proceedings by or against the Government.

O. V. r. 9A. Mode of service on the Government. L.N.299/1957. Cap.40.

(2) Service of a document in accordance with the said section 13 shall be effected -

(a) by leaving the document within the prescribed hours at the office of the Attorney-General, or of any agent whom he has nominated for the purpose, but in either case with a person belonging to the office where the document is left; or

(b) by posting it in a prepaid registered envelope addressed to the Attorney-General or any such agent as aforesaid,

and where service under this rule is made by post the time at which the document so posted would be delivered in the ordinary course of post shall be considered as the time of service thereof.

(3) All documents to be served on the Government for the purpose of or in connexion with any civil proceedings shall be treated for the purposes of these Rules as documents in respect of which personal service is not requisite.

(4) In this rule, "document" includes writs, notices, pleadings, orders, summonses, warrants and other documents, proceedings and written communications.

10. (1) In a suit relating to any business or work against a person who does not reside within the local limits of the jurisdiction of the court from which the summons is issued, service on any manager or agent, who at the time of service personally carries on such business or work for such person within such limits, shall be deemed good service.

O. V. r. 10. Service on agent by whom defendant carries on business.

(2) For the purpose of this rule, the master of a ship shall be deemed to be an agent of the owner or charterer.

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O.V.r. 11. Service on agent in charge in suits for immovable property.

11. Where, in a suit to obtain relief respecting, or compensation for wrong to, immovable property, service cannot be made on the defendant in person, it may be made on an agent of the defendant empowered to accept service or on the agent of the defendant in charge of the property.

O. V. r. 12. Service on agent or adult.

12. Where in any suit the defendant cannot be found, service may be made on an agent of the defendant empowered to accept service or on any adult member of the family of the defendant who is residing with him.

O. V. r. 13. Person served to sign acknowledgement.

13. Where a duplicate of the summons is duly delivered or tendered to the defendant personally or to an agent or other person on his behalf, the defendant or such agent or other person shall be required to endorse an acknowledgment of service on the original summons:

Provided that, if the court is satisfied that the defendant or such agent or other person has refused so to endorse, the court may declare the summons to have been duly served.

O. V. r. 14. Procedure when defendant refuses to accept service or cannot be found. L.N.119/1975.

14. Where the serving officer, after using all due and reasonable diligence, cannot find the defendant, or any person on whom service can be made, the serving officer shall affix a copy of the summons on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain, and shall then return the original to the court from which it was issued, together with a return of service.

O. V. r. 15. Return of service. L.N.119/1975. L.N.5/1996.

15. (1) The serving officer in all cases in which summons has been served under any of the foregoing rules of this Order shall swear and annex or cause to be annexed to the original summons an affidavit of service stating the time when and the manner in which the summons was served and the name and address of the person (if any) identifying the person served and witnessing the delivery or tender of summons. The affidavit of service shall be in Form No. 8 of Appendix A with such variations as circumstances may require.

(2) Any person who knowingly makes a false affidavit of service shall be guilty of an offence and liable to a fine not exceeding five thousand shillings or one month's imprisonment or both.

O. V. r. 16. Examination of serving officer. L.N.119/1975.

16. On any allegation that a summons has not been properly served, the court may examine the serving officer on oath, or cause him to be so examined by another court, touching his proceedings, and may make such further inquiry in the matter as it thinks fit; and shall either declare that the summons has been duly served or order such

service as it thinks fit.

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17. (1) Where the court is satisfied that for any reason the summons cannot be served in accordance with any of the preceding rules of this Order, the court may on application order the summons to be served by affixing a copy thereof in some conspicuous place in the court-house, and also upon some conspicuous part of the house, if any, in which the defendant is known to have last resided or carried on business or personally worked for gain, or in such other manner as the court thinks fit.

O. V. r. 17.
Substituted service.
L.N.119/1975.

(2) Substituted service under an order of the court shall be as effectual as if it had been made on the defendant personally.

(3) Where the court makes an order for substituted service it shall fix such time for the appearance of the defendant as the case may require.

(4) Unless otherwise directed, where substituted service of a summons is ordered under this rule to be by advertisement, the advertisement shall be in Form No. 23 of Appendix A with such variations as the circumstances require.

18. Where the defendant is confined in a prison, the summons shall be delivered or sent by post or otherwise to the officer in charge of the prison for service on the defendant.

O. V. r. 18. Service
on defendant in
prison.

19. (1) Where the defendant is a public officer or an officer of a local authority, the court may, if it appears to it that the summons may be most conveniently so served, send it for service on the defendant to the head of the office in which he is employed, together with a copy to be retained by the defendant.

O. V. r. 19. Service
on public officers and
soldiers.

(2) Where the defendant is a soldier (but not an officer), the court shall send the summons for service to his commanding officer, together with a copy to be retained by the defendant.

20. (1) Where a summons is delivered or sent to any person for service under rule 18 or rule 19, such person shall be bound to serve it, if possible, and to return it under his signature with a written acknowledgment of the defendant, and such signature shall be deemed to be evidence of service.

O. V. r. 20. Duty on
person to whom the
summons is sent.

(2) Where from any cause service is impossible, the summons shall be returned to the court with a full statement of such cause and of the steps taken to procure service, and such statement shall be deemed to be evidence of non-service.

[Subsidiary]

O. V. r. 21. In certain cases service of the writ, etc., allowed out of jurisdiction.
G.N.2391/1959.
L.N.216/1985.

21. Service out of Kenya of a summons or notice of a summons may be allowed by the court whenever -

- (a) the whole subject-matter of the suit is immovable property situate in Kenya (with or without rents and profits);
- (b) any act, deed, will, contract, obligation or liability affecting immovable property situate in Kenya is sought to be construed, rectified, set aside, or enforced in the suit;
- (c) any relief is sought against any person domiciled or ordinarily resident in Kenya;
- (d) the suit is for the administration of the personal estate of a deceased person who at the time of his death was domiciled in Kenya, or for the execution (as to property situate in Kenya) of the trusts of any written instrument, of which the person to be served is a trustee, which ought to be executed according to the law of Kenya;
- (e) the suit is one brought to enforce, rectify, rescind, dissolve, annul, or otherwise affect a contract or to recover damages or other relief for or in respect of the breach of a contract -
 - (i) made in Kenya; or
 - (ii) made by or through an agent trading or residing in Kenya on behalf of a principal trading or residing out of Kenya; or
 - (iii) by its terms or by its legislation to be governed by the Kenya law; or
 - (iv) which contains a provision to the effect that any Kenya court has jurisdiction to hear and determine that suit in respect of that contract,

or is brought in respect of a breach committed in Kenya, of a contract, wherever made, even though such a breach was preceded or accompanied by a breach out of Kenya which rendered impossible the performance of the part of the contract which ought to have been performed in Kenya; or

- (f) the suit is founded on a tort committed in Kenya;
- (g) any injunction is sought as to anything to be done in

Kenya, or any nuisance in Kenya is sought to be prevented or removed, whether damages are or are not also sought in respect thereof; or

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- (h) any person out of Kenya is a necessary or proper party to a suit properly brought against some other person duly served in Kenya.

21A. (1) Service out of Kenya of the following process or of notice thereof may be allowed by the court -

O.V.r. 21A.
Service of other
process out of the
jurisdiction.
L.N. 119/1975,
L.N. 216/1985.

- (a) an originating summons, originating notice of motion, petition, or other originating proceedings under any written law under which proceedings can be commenced otherwise than by plaint;
- (b) any summons, order or notice in any interpleader proceedings or for the appointment of an arbitrator or umpire, or to remit, set aside or enforce an award in an arbitration held or to be held within the jurisdiction;
- (c) any summons, order or notice in any proceedings duly instituted whether by plaint or other originating process mentioned in paragraph (a);
- (d) where the person on whom the originating summons, notice of motion, petition or other originating proceedings, or a summons, order or notice, is to be served is neither a Commonwealth citizen nor residing within the Commonwealth, a copy of the originating summons, petition, notice of motion or other originating proceedings, or summons, order or notice shall be served instead of the original together with an intimation in writing that process in the form of the copy has been issued or otherwise launched.

(2) Rules 23, 24, 25, 26, 27 and 28 shall apply *mutatis mutandis* to service of any process under subrule (1).

(3) Nothing in this rule shall affect any practice or power of the court under which, when lands, funds, choses in action, rights or property within the jurisdiction are sought to be dealt with or affected, the court may (without affecting to exercise jurisdiction over any person out of the jurisdiction) cause such person to be informed of the nature or existence of the proceedings with a view to such person having an opportunity of claiming, opposing, or otherwise intervening.

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21B. Without prejudice to the other rules in this Order, where -

- (a) leave to serve a summons or notice of a summons or other process has been under rule 21 or 21A; and
- (b) the contract provides that in the event of any suit in respect of the contract being begun, the process by which it is begun may be served on a defendant, or on such other person on his behalf as is specified in the contract, in such manner or at such place (whether in or outside Kenya) as is specified, then a summon or other process in that suit may be served as provided in the contract.

O. V. r. 22. Probate suits. L.N.525/1958.

22. In probate or Mohammedan or Hindu marriage, divorce and succession suits, service of a summons or notice of a summons may by leave of the court be allowed out of Kenya.

O. V. r.23.
Application to be supported by evidence.

23. Every application for leave to serve such summons or notice on a defendant out of Kenya shall be supported by affidavit or other evidence, stating that in the belief of the deponent the plaintiff has a good cause of action, and showing in what place or country such defendant is or probably may be found, and whether such defendant is a Commonwealth citizen or a British protected person or not, and the grounds on which the application is made; and no such leave shall be granted unless it is made sufficiently to appear to the court that the case is a proper one for service out of Kenya under this Order.

O. V. r. 24. Order to fix time for entering appearance.

24. Any order giving leave to effect such service or give such notice shall limit a time after such service or notice within which such defendant is to enter an appearance; such time to depend on the place or country where or within which the summons is to be served or the notice given.

O. V. r. 25. Service where defendant resides out of Kenya. L.N.358/1968.

25. Where leave to serve a summons or notice of summons out of Kenya has been granted under rule 21, and the defendant is a Commonwealth citizen as defined in subsections (1) and (2) of section 95 of the Constitution or resides in any of the countries for the time being mentioned in subsection (3) of that section, the summons shall be served in such manner as the court may direct.

O. V. r. 26. Notice in lieu of summons. L.N.358/1968, L.N. 119/1975.

26. (1) Where the defendant is neither a Commonwealth citizen as aforesaid nor resides in any of the countries referred to in rule 25, notice of the summons and not the summons itself shall be served upon him.

(2) Notice of summons shall be in Form No. 24 of Appendix A with such variations as the circumstances require.

27. Where leave is given to serve notice of summons in a foreign country to which this rule may by order of the Chief Justice from time to time be applied, the following procedure shall be adopted -

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O. V. r. 27. Service
in a foreign country.
L.N.358/1968.

- (a) the notice to be served shall be sealed with the seal of the High Court for use out of Kenya, and shall be forwarded by the Registrar to the Minister for the time being responsible for Foreign Affairs together with a copy thereof translated into the language of the country in which service is to be effected, and with a request for the further transmission of the same through the diplomatic channel to the Government of the country in which leave to serve notice of the summons has been given; and such request shall be in Form No. 9 of Appendix A with such variations as circumstances may require;
- (b) the party bespeaking a copy notice of summons for service under this rule shall, at the time of bespeaking the same, file a proceipe in Form No.10 of Appendix A;
- (c) an official certificate, or declaration upon oath, or otherwise, transmitted through the diplomatic channel by the government or court of a foreign country to which this rule applies, to the High Court shall, provided that it certifies or declares the notice of the summons to have been personally served, or to have been duly served upon the defendant in accordance with the law of such foreign country, or words to that effect, be deemed to be sufficient proof of such service, and shall be filed of record as, and be equivalent to, an affidavit of service within the requirements of these Rules in that behalf;
- (d) where an official certificate or declaration, transmitted to the High Court in manner provided in paragraph (c), certifies or declares that efforts to serve a notice of summons have been without effect, the court may, upon the *ex parte* application of the plaintiff, order that the plaintiff be at liberty to bespeak a request for substituted service of such notice; and such order shall be in Form 11 of Appendix A, with such variations as circumstances may require;
- (e) a request for substituted service of a notice of summons under this rule may be bespoken by the plaintiff at the department where summonses are issued upon filing a proceipe in Form No. 10 of Appendix A, and the notice of summons and copy of the same, and the order, shall be

For application of rule 27 to Holland see G.N. 302 of 1955.

[Subsidiary]

sealed and transmitted to the Minister in manner aforesaid together with a request in Form No. 12 of Appendix A, with such variations as circumstances may require.

O.V.r. 28.
Extension of
procedure to any
order or notice.

28. The court may direct that any summons, order or notice shall be served on any party or person in a foreign country, and the procedure prescribed by rule 27, with reference to service of notice of a summons, shall apply to service of any summons, order or notice so directed to be served.

O. V. r. 28A.
Application to
Government.
L.N. 299/1957.

28A. Rules 21, 22, 23, 24, 25, 26, 27 and 28 shall apply in the case of civil proceedings by the Government but shall not apply in the case of civil proceedings against the Government.

SERVICE OF FOREIGN LEGAL PROCESS IN KENYA

O. V. r. 29.
Procedure.

29. Where in any civil or commercial matter pending before a court or tribunal of a foreign country a letter of request from such court or tribunal for service on any person in Kenya of any process or citation in such matter is transmitted to the High Court, with an intimation that it is desirable that effect should be given to the same, the following procedure shall be adopted -

- (a) the letter or request for service shall be accompanied by a translation thereof in the English language, and by two copies of the process of citation to be served, and two copies thereof in the English language;
- (b) service shall be effected by delivering to and leaving with the person to be served one copy of the process to be served, and one copy of the translation thereof, in accordance with the rules and practice of the High Court of Kenya regulating service of persons;
- (c) after service has been effected the process server shall return to the Registrar of the High Court one copy of the process together with the evidence of service by affidavit of the person effecting the service verified by a magistrate and particulars of charges for the cost of effecting such service;
- (d) the particulars of charges for the cost of effecting service shall be submitted to the Registrar of the High Court, who shall certify the correctness of the charges, or such other amount as shall be properly payable for the cost of effecting service;

- (e) the Registrar shall return the letter of request for service received from the foreign country, together with the evidence of service with a certificate appended thereto duly sealed with the seal of the High Court for use out of the jurisdiction; and such certificate shall be in Form No. 13 of Appendix A. [Subsidiary]

30. Upon the application of the Attorney-General the court may make all such orders for substituted service or otherwise as may be necessary to give effect to rule 29. O. V. r. 30. General powers of the court.

31. Where in any civil or commercial matter pending before a court or tribunal in any foreign country with which a Convention in that behalf has been or shall be made and applied to Kenya, a request for service of any document on a person in Kenya is received by the Registrar of the High Court from the consular or other authority of such country, the following procedure shall, subject to any special provisions contained in the Convention, be adopted - O.V.r.31. Request for service from foreign country.

- (a) the service shall be effected by the delivery of the original or a copy of the document, as indicated in the request, and the copy of the translation, to the party or person to be served in person by the process server;
- (b) no court fees shall be charged in respect of the service, and the particulars of charges of the officer or agent employed to effect service shall be submitted to the Registrar of the High Court, who shall certify the amount properly payable in respect thereof;
- (c) the Registrar of the High Court shall transmit to the consular or other authority making the request a certificate establishing the fact and the date of the service in person, or indicating the reasons for which it has not been possible to effect it, and at the same time shall notify to the said consular or other authority the amount of the charges certified under paragraph (b).

32. Applications under this Order shall be by summons in chambers. O. V. r. 32. Procedure. L.N.119/1975.

ORDER VI

PLEADINGS GENERALLY

1. (1) Notwithstanding anything in this Order every pleading in civil proceedings against the Government shall contain information as to the circumstances in which it is alleged that the liability of the O. VI. r. 1. Pleadings in proceedings against the Government.

[Subsidiary]

Government has arisen and as to the Government departments and officers concerned.

(2) In such proceedings if the defendant considers that the pleading does not contain sufficient information as aforesaid, the defendant may, at any time before the time limited by the summons for appearance has expired, by notice in writing to the plaintiff, request further information as specified in the notice.

(3) Where such a notice has been given, the time for appearance shall expire four days after the defendant has notified the plaintiff in writing that the defendant is satisfied or four days after the court has, on the application of the plaintiff by summons served on the defendant not less than seven days before the return day, decided that no further information is reasonably required.

O. VI. r. 2. Formal requirements.

2. (1) Every pleading shall be divided into paragraphs numbered consecutively, each allegation being so far as appropriate contained in a separate paragraph.

(2) Dates, sums and other numbers shall be expressed in figures and not words.

O. VI. r. 3. Facts not evidence, to be pleaded.

3. (1) Subject to the provisions of this rule and rules 6,7 and 8, every pleading shall contain, and contain only, a statement in a summary form of the material facts on which the party pleading relies for his claim or defence, but not the evidence by which those facts are to be proved, and the statement shall be as brief as the nature of the case admits.

(2) Without prejudice to subrule (1), the effect of any document or the purport of any conversation referred to in the pleading shall, if material, be briefly stated, and the precise words of the document or conversation shall not be stated, except in so far as those words are themselves material.

(3) A party need not plead any fact if it is presumed by law to be true or the burden of disproving it lies on the other party, unless the other party has specifically denied it in his pleading.

(4) A statement that a thing has been done or that an event has occurred, being a thing or an event the doing or occurrence of which constitutes a condition precedent necessary for the case of a party shall be implied in his pleading.

O. VI. r. 4. Matters which must be specifically pleaded.

4. (1) A party shall in any pleading subsequent to a plaint plead specifically any matter, for example performance, release, payment, fraud, inevitable accident, act of God, any relevant statute of limitation

or any fact showing illegality -

[Subsidiary]

- (a) which he alleges makes any claim or defence of the opposite party not maintainable; or
- (b) which, if not specifically pleaded, might take the opposite party by surprise; or
- (c) which raises issues of fact not arising out of the preceding pleading.

(2) Without prejudice to subrule (1), a defendant to an action for the recovery of land shall plead specifically every ground of defence on which he relies, and a plea that he is in possession of the land by himself or his tenant shall not be sufficient.

(3) In this rule “land” includes land covered with water, all things growing on land, and buildings and other things permanently affixed to land.

5. Subject to rules 3 (1) and 6, a party may in any pleading plead any matter which has arisen at any time, whether before or since the filing of the plaint.

O. VI. r. 5. Matter may be pleaded whenever arising.

6. (1) No party may in any pleading make an allegation of fact, or raise any new ground of claim, inconsistent with a previous pleading of his in the same suit.

O. VI. r. 6. Departure.

(2) Subrule (1) shall not prejudice the right of a party to amend, or apply for leave to amend, his previous pleading so as to plead the allegations or claims in the alternative.

6A. (1) Where in an action for libel or slander the plaintiff alleges that the words or matters complained of were used in a defamatory sense other than their ordinary meaning, he shall give particulars of the facts and matters on which he relies in support of such sense.

O. VI. r. 6A. Particulars in defamation actions. L.N.88/1978.

(2) Where in an action for libel or slander the defendant alleges that, in so far as the words complained of consist of statements of fact, they are true in substance and in fact, and in so far as they consist of expressions of opinion, they are fair comment on a matter of public interest, or pleads to the like effect, he shall give particulars stating which of the words complained of he alleges are statements of fact and of the facts and matters he relies on in support of the allegation that the words are true.

(3) Where in an action for libel or slander the plaintiff alleges that

[Subsidiary]

the defendant maliciously published the words or matters complained of, he need not in his plaint give particulars of the facts on which he relies in support of the allegation of malice; but if the defendant pleads that any of those words or matters are fair comment on a matter of public interest or were published upon a privileged occasion and the plaintiff intends to allege that the defendant was actuated by express malice, he shall file a reply giving particulars of the facts and matters from which the malice is to be inferred.

(4) This rule shall apply in relation to a counterclaim for libel or slander as if the party making the counterclaim were the plaintiff and the party against whom it is made the defendant.

O.VI. r. 6B.
Particulars of
evidence in
mitigation.
L.N.88/1978.

6B. In an action for libel or slander in which the defendant does not by his defence assert the truth of the statement complained of, the defendant shall not be entitled at the trial to give evidence in chief, with a view to mitigation of damages, as to the circumstances under which the libel or slander was published, or as to the character of the plaintiff, without the leave of the court, unless at least 21 days before the trial he has given the plaintiff particulars of the matters on which he intends to give evidence.

O. VI. r. 7. Points
of law.

7. A party may by his pleading raise any point of law.

O. VI. r. 8.
Particulars of
pleading.

8. (1) Subject to subrule (2), every pleading shall contain the necessary particulars of any claim, defence or other matter pleaded including, without prejudice to the generality of the foregoing -

- (a) particulars of any misrepresentation, fraud, breach of trust, wilful default or undue influence on which the party pleading relies; and
- (b) where a party pleading alleges any condition of the mind of any person, whether any disorder or disability of mind or any malice, fraudulent intention or other condition of mind except knowledge, particulars of the facts on which the party relies.

(2) The court may order a party to serve on any other party particulars of any claim, defence or other matter stated in his pleading, or a statement of the nature of the case on which he relies, and the order may be made on such terms as the court thinks just.

(3) Where a party alleges as a fact that a person had knowledge or notice of some fact, matter or thing, then, without prejudice to the generality of subrule (2), the court may, on such terms as it thinks just,

order that party to serve on any other party -

[Subsidiary]

(a) where he alleges knowledge, particulars of the facts on which he relies; and

(b) where he alleges notice, particulars of the notice.

(4) An order under this rule shall not be made before the filing of the defence unless the order is necessary or desirable to enable the defendant to plead or for some other special reason.

(5) No order for costs shall be made in favour of a party applying for an order who has not first applied by notice in Form No. 14 of Appendix B which shall be served in duplicate.

(6) Particulars delivered shall be in Form No. 15 of Appendix B which shall be filed by the party delivering it together with the original notice and shall form part of the pleadings.

9. (1) Subject to subrule (4), any allegation of fact made by a party in his pleading shall be deemed to be admitted by the opposite party unless it is traversed by that party in his pleading or a joinder of issue under rule 10 operates as a denial of it.

O. VI. r. 9.
Admissions and
denials.

(2) A traverse may be made either by denial or by a statement of non-admission and either expressly or by necessary implication.

(3) Subject to subrule (4), every allegation of fact made in a plaint or counterclaim which the party on whom it is served does not intend to admit shall be specifically traversed by him in his defence or defence to counterclaim; and a general denial of such allegations, or a general statement of non-admission of them, shall not be a sufficient traverse of them.

(4) Any allegation that a party has suffered damage and any allegation as to the amount of damages shall be deemed to have been traversed unless specifically admitted.

10. (1) If there is no reply to a defence, there is a joinder of issue on that defence.

O. VI. r.10. Denial by
joinder of issue.

(2) Subject to subrule (3) -

(a) there is at the close of pleadings a joinder of issue on the pleading last filed; and

(b) a party may in his pleading expressly join issue on the

[Subsidiary]

immediately preceding pleading.

(3) There can be no joinder of issue on a plaint or counterclaim.

(4) A joinder of issue operates as a denial of every material allegation of fact made in the pleading on which there is a joinder of issue unless, in the case of an express joinder of issue, any such allegation is excepted from the joinder and is stated to be admitted, in which case the express joinder of issue operates as a denial of every other such allegation.

O. VI. r.11. Close of pleadings.

11. The pleadings in a suit shall be closed fourteen days after service of the reply or defence to counterclaim, or, if neither is served, fourteen days after service of the defence, notwithstanding that any order or request for particulars has been made but not complied with.

O. VI. r.12. Technical objection.

12. No technical objection may be raised to any pleading on the ground of any want of form.

O. VI. r.13. Striking out pleadings.

13. (1) At any stage of the proceedings the court may order to be struck out or amended any pleading on the ground that -

- (a) it discloses no reasonable cause of action or defence; or
- (b) it is scandalous, frivolous or vexatious; or
- (c) it may prejudice, embarrass or delay the fair trial of the action; or
- (d) it is otherwise an abuse of the process of the court,

and may order the suit to be stayed or dismissed or judgment to be entered accordingly, as the case may be.

(2) No evidence shall be admissible on an application under subrule (1) (a) but the application shall state concisely the grounds on which it is made.

(3) So far as applicable this rule shall apply to an originating summons and a petition as if the summons or petition were a pleading.

O. VI. r.14. Pleading to be signed.

14. Every pleading shall be signed by an advocate, or recognized agent (as defined by Order III, rule 2), or by the party if he sues or defends in person.

15. Any application such as is referred to in section 25 (2) of the Government Proceedings Act may be made at any time before trial by motion, or may be made at the trial.

16. Applications under this Order shall be made by summons.

[Subsidiary]

O. VI. r.15.
Proceedings in rem.
Cap.40.
O. VI. r. 16.
Procedure.

ORDER VIA

L.N.119/1975.

AMENDMENT OF PLEADINGS

1. (1) A party may, without the leave of the court, amend any pleading of his once at any time before the pleadings are closed.

O VIA. r. 1.
Amendment of
pleading without
leave.

(2) Where an amended complaint is served on a defendant -

(a) if he has already filed a defence, the defendant may amend his defence; and

(b) the defence or amended defence shall be filed either as provided by these rules for the filing of the defence or fourteen days after the service of the amended complaint whichever is later.

(3) Where an amended defence is served on a plaintiff -

(a) if the plaintiff has already served a reply on that defendant, he may amend his reply; and

(b) the period for service of his reply or amended reply is fourteen days after the service on him of the amended defence.

(4) References in subrules (2) and (3) to a defence and a reply include references to a counterclaim and a defence to counterclaim respectively.

(5) Where an amended counterclaim is served on a party (other than the plaintiff) against whom the counterclaim is made, subrule (2) shall apply as if the counterclaim were a statement of claim and as if the party by whom the counterclaim is made were the plaintiff and the party against whom it is made were a defendant.

(6) Where a party has pleaded to a pleading which is subsequently amended and served on him under subrule (1), then, if that party does not amend his pleading under the foregoing provisions of this rule, he

[Subsidiary]

shall be taken to rely on it in answer to the amended pleading, and Order VI, rule 10 (2) shall have effect at the expiry of the period within which the pleading could have been amended.

O.VIA. r. 2.
Application for
disallowance of
amendment.

2. (1) Within fourteen days after the service on a party of a pleading amended under rule 1 (1), that party may apply to the court to disallow the amendment.

(2) When the court hearing an application under this rule is satisfied that if an application to make the amendment in question had been made under rule 3 at the date when the amendment was made under rule 1 (1) leave to make the amendment or part of the amendment would have been refused, it shall order the amendment or that part of it to be struck out.

(3) Any order made on an application under this rule may include such terms as to costs or otherwise as the court thinks just.

O.VIA. r. 3.
Amendment of
pleading with leave.

3. (1) Subject to Order I, rules 9 and 10, Order XXIII, rules 3, 4, 5 and 7 and the following provisions of this rule, the court may at any stage of the proceedings, on such terms as to costs or otherwise as may be just and in such manner as it may direct, allow any party to amend his pleadings.

(2) Where an application to the court for leave to make an amendment such as is mentioned in subrule (3), (4) or (5) is made after any relevant period of limitation current at the date of filing of the suit has expired, the court may nevertheless grant such leave in the circumstances mentioned in any such subrule if it thinks just so to do.

(3) An amendment to correct the name of a party may be allowed under subrule (2) notwithstanding that it is alleged that the effect of the amendment will be to substitute a new party if the court is satisfied that the mistake sought to be corrected was a genuine mistake and was not misleading or such as to cause any reasonable doubt as to the identity of the person intending to sue or intended to be sued.

(4) An amendment to alter the capacity in which a party sues (whether as plaintiff or as defendant by counterclaim) may be allowed under subrule (2) if the capacity in which the party will sue is one in which at the date of filing of the plaint or counterclaim, he could have sued.

(5) An amendment may be allowed under subrule (2) notwithstanding that its effect will be to add or substitute a new cause of action if the new cause of action arises out of the same facts or

substantially the same facts as a cause of action in respect of which relief has already been claimed in the suit by the party applying for leave to make the amendment. [Subsidiary]

4. Rule 3 shall have effect in relation to an originating summons, a petition and an originating notice of motion as it has effect in relation to a plaint. O.VIA. r. 4. Amendment of originating process.

5. (1) For the purpose of determining the real question in controversy between the parties, or of correcting any defect or error in any proceedings, the court may either of its own motion or on the application of any party order any document to be amended in such manner as it directs and on such terms as to costs or otherwise as are just. O. VIA. r. 5. General power to amend.

(2) This rule shall not have effect in relation to a judgment or order.

6. Where the court has made an order giving any party leave to amend, unless that party amends within the period specified or, if no period is specified, within fourteen days, the order shall cease to have effect, without prejudice to the power of the court to extend the period. O. VIA. r. 6. Failure to amend after order.

7. (1) Every pleading and other document amended under this Order shall be endorsed with the date of the amendment and either the date of the order allowing the amendment or, if no order has been made, the number of the rule in pursuance of which the amendment was made. O.VIA. r.7. Mode of amendment.

(2) All amendments shall be shown by striking out in red ink all deleted words, but in such a manner as to leave them legible, and by underlining in red ink all added words.

(3) Colours other than red shall be used for further amendments to the same document.

8. Applications under this Order shall be made by summons but the court may nevertheless hear and determine an oral application made in court. O. VIA. r. 8. Procedure.

ORDER VII

PLAINT

1. (1) The plaint shall contain the following particulars - O. VII. r. 1. Particulars to be contained in plaint.

[Subsidiary]

(a) the name of the court in which the suit is brought;

L.N. 119/1975.

(b) the name, description and place of residence of the plaintiff, and an address for service;

(c) the name, description and place of residence of the defendant, so far as they can be ascertained;

(d) where the plaintiff or defendant is a minor or person of unsound mind, a statement to that effect;

L.N. 36/2000.

(e) an averment that there is no other suit pending, and that there have been no previous proceedings, in any court between the plaintiff and the defendant over the same subject matter;

L.N. 128/2001.

(2) The plaint shall be accompanied by an affidavit sworn by the plaintiff verifying the correctness of the averments contained in the plaint.

(3) The court may of its own motion or on the application of the defendant order to be struck out any plaint which does not comply with subrule (2) of this rule.

O. VII. r. 2. Money suits. L.N.119/1975.

2. (1) Where the plaintiff seeks the recovery of money, the plaint shall state the precise amount claimed, except where the plaintiff sues for mesne profits, or for an amount which will be found due to him on taking unsettled accounts between him and the defendant.

(2) The provisions of this rule shall apply to counterclaims.

O. VII. r. 3. Where the subject-matter of the suit is immovable property.

3. Where the subject-matter of the suit is immovable property, the plaint shall contain a description of the property sufficient to identify it.

O. VII. r. 4. Capacity of parties. L.N. 119/1975.

4. (1) Where the plaintiff sues in a representative capacity the plaint shall state the capacity in which he sues and where the defendant is sued in a representative capacity the plaint shall state the capacity in which he is sued, and in both cases it shall be stated how that capacity arises.

Cap. 113.

(2) Where in bringing the suit the plaintiff is acting by order or on behalf of a person resident outside the scheduled territories as defined in the Exchange Control Act, the plaint shall contain a statement of the fact together with the name and address of the person so resident.

5. The plaintiff shall show that the defendant is or claims to be interested in the subject-matter, and that he is liable to be called upon to answer the plaintiff's demand.

[Subsidiary]

O.VII. r.5.
Defendant's interest and liability to be shown.

6. Every plaintiff shall state specifically the relief which the plaintiff claims, either simply or in the alternative, and it shall not be necessary to ask for costs, interest or general or other relief which may always be given as the court thinks just, whether or not it could have been asked for or could have been granted when the suit was filed; and this rule shall apply also to a defence.

O. VII. r. 6.
Statement of relief claimed.
L.N. 119/1975.

7. Where the plaintiff seeks relief in respect of several distinct claims or causes of action founded upon separate and distinct grounds, they shall be stated as far as may be separately and distinctly.

O. VII. r. 7. Relief founded on separate grounds.

8. The plaintiff shall present as many copies of the plaint as there are defendants.

O. VII. r.8.
Copies of plaint.
L.N.119/1975.

9. (1) The plaint may at any stage of the suit be returned to be presented to the court in which the suit should have been instituted.

O. VII. r. 9. Return of plaint.

(2) On returning a plaint the judge shall endorse thereon the date of its presentation and return, the name of the party presenting it and a brief statement of the reasons for returning it.

10. Applications under this Order shall be by summons in chambers.

O.VII. r. 10.
Procedure.

ORDER VIII

DEFENCE AND COUNTERCLAIM

1. (1) The defendant may, and if so required by the court at the time of issue of the summons or at any time thereafter shall, at or before the first hearing or within such time as the court may prescribe, file his defence.

O. VIII. r. 1. Defence.
L.N. 119/1975.
L.N. 36/2000.

(2) Where a defendant has been served with a summons to appear he shall, unless some other or further order be made by the court, file his defence within fifteen days after he has entered an appearance in the suit and serve it on the plaintiff within seven days from the date of filing the defence.

[Subsidiary]

O.VIII.r.1A.
Defence of tender.
L.N. 119/1975.

1A. Where in any suit a defence of tender before action is pleaded the defendant shall pay into court, in accordance with Order XXVI, the amount alleged to have been tendered, and the tender shall not be available as a defence unless and until payment into court has been made.

O. VIII. r. 2. Set-off
and counterclaim.
L.N. 119/1975.

2. A defendant in a suit may set off, or set up by way of counterclaim against the claims of the plaintiff, any right or claim, whether such set-off or counterclaim sound in damages or not, and whether it is for a liquidated or unliquidated amount, and such set-off or counterclaim shall have the same effect as a cross-suit, so as to enable the court to pronounce a final judgment in the same suit, both on the original and on the cross-claim; but the court may on the application of the plaintiff before trial, if in the opinion of the court such set-off or counterclaim cannot be conveniently disposed of in the pending suit, or ought not to be allowed, refuse permission to defendant to avail himself thereof.

O.VIII.r.2A.
Set-off or
counterclaim in
proceedings by
Government.
L.N. 299/1957.

2A. Notwithstanding anything contained in rule 2, a person shall not be entitled to avail himself of any set-off or counterclaim in any proceedings by the Government for the recovery of taxes, duties or penalties, or to avail himself in proceedings by the Government of any other nature of any set-off or counterclaim arising out of a right or claim to repayment in respect of any taxes, duties or penalties.

3. (*Deleted by L.N. 88/1978.*)

O.VIII.r.4. Persons
in representative
capacity.

4. If either party wishes to deny the right of any other party to claim as executor, or as trustee whether in bankruptcy or otherwise, or in any representative or other alleged capacity or the alleged constitution of any partnership firm, he shall deny the same specifically.

5. (*Deleted by L.N. 88/1978.*)

O. VIII. r. 6.
Pleading a
counterclaim.

6. Where any defendant seeks to rely upon any grounds as supporting a right of counterclaim, he shall, in his statement of defence, state specifically that he does so by way of counterclaim.

O. VIII. r. 7.
Title of counterclaim.

7. Where a defendant by his defence sets up any counterclaim which raises questions between himself and the plaintiff, together with any other persons, he shall add to the title of his defence a further title similar to the title in a plaint, setting forth the names of all persons who, if such counterclaim were to be enforced by cross action, would be defendants to such cross action, and shall deliver to the court his

defence for service on such of them as are parties to the action together with his defence for service on the plaintiff within the period within which he is required to file his defence. [Subsidiary]

8. Where any such person as is mentioned in rule 7 is not a party to the suit, he shall be summoned to appear by being served with a copy of the defence, which shall be served in accordance with the rules for regulating service of summons. O. VIII. r. 8.
Claim against person not party.

9. Any person not already a party to the suit who is served with a defence and counterclaim as aforesaid must appear thereto as if he had been served with a summons to appear in the suit. O. VIII. r. 9.
Appearance by added parties.

10. Any person named in a defence as a party to a counterclaim thereby made may, unless some other or further order is made by the court, deliver a reply within fifteen days after service upon him of the counterclaim and shall serve a copy thereof on all parties to the suit. O. VIII. r. 10.
Reply to counterclaim.
L.N. 88/1978.

11. Where a defendant sets up a counterclaim, if the plaintiff or any other person named in manner aforesaid as party to such counterclaim contends that the claim thereby raised ought not to be disposed of by way of counterclaim, but in an independent suit, he may at any time before reply, apply to the court for an order that such counterclaim may be excluded, and the court may, on the hearing of such application, make such order as shall be just. O. VIII. r. 11.
Exclusion of counterclaim.

12. If, in any case in which the defendant sets up a counterclaim the suit of the plaintiff is stayed, discontinued or dismissed, the counterclaim may nevertheless be proceeded with. O. VIII. r. 12.
Discontinuance.

13. Where in any suit a set-off or counterclaim is established as a defence against the plaintiff's claim, the court may, if the balance is in favour of the defendant, give judgment for the defendant for such balance, or may otherwise adjudge to the defendant such relief as he may be entitled to upon the merits of the case. O. VIII. r. 13.
Judgment for balance.

14. (*Deleted by L.N. 119/1975.*)

15. Where the defendant relies upon several distinct grounds of defence or set-off founded upon separate and distinct facts, they shall be stated, as far as practicable, separately and distinctly. O. VIII. r. 15.
Defence or set-off founded on separate grounds.

16. (1) Any ground of defence which has arisen after action brought, but before the defendant has delivered his defence and before the time limited for his doing so has expired, may be raised by the defendant in his defence, either alone or together with other grounds of defence; and if, after a defence has been delivered, any ground of O. VIII. r. 16.
New ground of defence.
L.N. 119/1975.

[Subsidiary]

defence arises to any set-off or counterclaim alleged therein by the defendant, it may be raised by the plaintiff in his reply, either alone or together with any other ground of reply.

(2) Where any ground of defence arises after the defendant has delivered a defence, or after the time limited for his doing so has expired, the defendant may, and where any ground of defence to any set-off or counterclaim arises after the time limited for delivering a reply has expired, the plaintiff may, within fourteen days after such ground of defence has arisen or at any subsequent time, by leave of the court, deliver a further reply, as the case may be, setting forth the same.

(3) Whenever any defendant in his defence, or in any further defence as mentioned in subrule (2), alleges any ground of defence which has arisen after the commencement of the suit, the plaintiff may deliver a confession of such defence, and may make application by summons for his costs up to the time of pleading of such defence.

O.VIII.r.17.

Subsequent

pleadings.

L.N. 88/1978.

17. (1) A plaintiff shall be entitled to file a reply within seven days after the defence or the last of the defences has been delivered to him, unless the time is extended.

(2) No pleading subsequent to the reply shall be pleaded without leave of the court, and then shall be pleaded only upon such terms as the court thinks fit.

(3) Where a counterclaim is pleaded, a defence thereto shall be subject to the rules applicable to defences.

(4) and (5) (*Deleted by L.N. 88/1978.*)

O.VIII.r. 18. Filing

subsequent pleadings.

L.N. 119/1975.

18. (1) Subject to rule 7 all pleadings (including amended pleadings) subsequent to the plaint shall be filed in duplicate.

(2) The court may return the duplicate to an advocate who shall deliver it to the address for service of the opposite party within seven days.

(3) Where the duplicate is not returned to an advocate for delivery the court shall deliver it to the address for service or to the opposite party or his advocate or representative if he attends at the registry before its delivery.

(4) Documents may be delivered to an address for service by post.

O.VIII.r. 19. Register

of documents.

L.N. 119/1975.

19. (1) A register of documents shall be kept at every registry in

which the following particulars in respect of each such document shall be entered, namely, the number of the document and of the suit to which it relates, the nature of the document and the date of filing, and each such entry shall be signed by the officer who receives the document. [Subsidiary]

(2) Every such document to be filed shall be presented to the registry during office hours together with any fee payable on its filing and each such document shall be date-stamped with the date on which it was so presented which shall be the date of filing.

20. Applications under this Order shall be made by summons.

O.VIII. r.20.
Procedure.
L.N. 119/1975.

ORDER IX

APPEARANCE OF PARTIES

L.N. 119/1975.

1. A defendant may appear at any time before final judgment, and may file a defence at any time before interlocutory judgment is entered against him, or, if no interlocutory judgment is so entered, at any time before final judgment.

O. IX. r. 1. Time for
appearance. L.N.
88/1978,
L.N. 16/1984.

2. (1) Appearance shall be effected by delivering or sending by post to the proper officer a memorandum of appearance in triplicate in Form No. 25 of Appendix A, with such variation as the circumstances require, signed by the advocate by whom the defendant appears or, if the defendant appears in person, by the defendant or his recognized agent.

O.IX. r. 2.
Mode of appearance.
L.N. 88/1978,
L.N. 36/00

(2) On receipt of the memorandum of appearance as required under subrule (1) the proper officer shall stamp and file the original and stamp the copies thereof with the court stamp showing the date on which they were received and -

(a) if they were delivered to the proper officer, he shall return the stamped copies to the person appearing, or

(b) if they were sent by post, he shall send one copy by post to the plaintiff's address for service and one copy by post to the defendant's address for service.

(3) Where the defendant appears by delivering the memorandum of appearance as required under subrule (1) he shall within seven days from the date on which he appears serve a copy of the memorandum of appearance upon the plaintiff.

(4) Where a defence contains the information required by rule 3

[Subsidiary] it shall where necessary be treated as an appearance.

O. IX. r. 3.
Defendant's address
for service.
L.N. 50/1985.

3. (1) The advocate of defendant appearing, by an advocate shall state in the memorandum of appearance his addresses for service being his place of business within Kenya and his postal address.

(2) A defendant appearing in person shall state in the memorandum of appearance his addresses for service being either his place of residence or his place of business and his postal address, and if he has neither residence nor place of business in Kenya he shall state a place and postal address within Kenya which shall be his addresses for service.

(3) When a corporation appear without an advocate the memorandum of appearance shall state the addresses for service which may be either the registered office or a place of business of the corporation together with its postal address.

O. IX. r.4.
Memorandum
irregular, address
fictitious.

4. If the memorandum of appearance does not contain an address for service within Kenya it shall not be filed; and if any address given is illusory or fictitious the appearance may be set aside on the application of the plaintiff.

O. IX. r. 5. Defendants
appearing by same
advocate.

5. If two or more defendants appear in the same suit by the same advocate and at the same time, the names of all the defendants so appearing shall be inserted in the same memorandum of appearance.

O. IX. r. 6.
Procedure.

6. Applications under this Order shall be made by summons.

O. IX. r. 7. Delivery
of documents to
address for service.
L.N. 119/1975,
L.N. 88/1978
L.N. 16/1984.

7. (1) Documents may either be delivered by hand to the address for service or may be posted to it.

(2) Where delivery is disputed a certificate of posting or other evidence of delivery shall be filed.

ORDER IXA

CONSEQUENCE OF NON-APPEARANCE AND DEFAULT OF DEFENCE

O. IXA. r.1.
Suits against infants
and persons of
unsound mind.

1. (1) Where no appearance has been entered for a defendant who is an infant or person of unsound mind, before proceeding further the plaintiff shall apply to the court for an order that some proper person be assigned guardian of such defendant by whom he may appear and defend the suit.

(2) No order may be made under subrule (1) unless the summons has been served and Order XXXI rule 3 (4) has been complied with,

unless the court otherwise orders.

[Subsidiary]

2. Where any defendant fails to appear and the plaintiff wishes to proceed against such defendant he shall file an affidavit of service or return of service of the summons unless the summons has been served by a process-server appointed by the court.

O.IXA.r.2.
Affidavit of
service upon non-
appearance.
L.N. 88/1978.

3. (1) Where the plaintiff makes a liquidated demand only and the defendant fails to appear on or before the day fixed in the summons or all the defendants fail so to appear, the court shall, on request in Form No. 26 of Appendix C, enter judgment against the defendant or defendants for any sum not exceeding the liquidated demand together with interest thereon from the filing of the suit, at such rate as the court thinks reasonable, to the date of the judgment, and costs.

O.IXA.r.3.
Judgment upon a
liquidated demand.

(2) Where the plaintiff makes a liquidated demand together with some other claim, and the defendant fails, or all the defendants fail, to appear as aforesaid, the court shall, on request in Form No. 26 of Appendix C, enter judgment for the liquidated demand and interest thereon as provided by sub-rule (1) but the award of costs shall await judgment upon such other claim.

4. Where the plaintiff makes a liquidated demand with or without some other claim, and there are several defendants of whom one or more appear and any other fails to appear, the court shall, on request in Form No. 26 of Appendix C, enter judgment against any defendant failing to appear in accordance with rule 3, and execution may issue upon such judgment and decree without prejudice to the plaintiff's right to proceed with the action against such as have appeared.

O.IXA.r.4.
Liquidated demand
against several
defendants.

5. Where the plaintiff is drawn with a claim for pecuniary damages only or for detention of goods with or without a claim for pecuniary damages, and any defendant fails to appear, the court shall, on request in Form No. 26 of Appendix C, enter interlocutory judgment against such defendant, and the plaintiff shall set down the suit for assessment by the court of the damages or the value of the goods and damages as the case may be.

O.IXA.r.5.
Interlocutory
judgment.

6. Where the plaintiff is drawn as mentioned in rule 5 and there are several defendants of whom one or more appear and any other fails to appear, the court shall, on request in Form No 26 of Appendix C, enter interlocutory judgment against the defendant failing to appear, and the damages or the value of the goods and the damages, as the case may be, shall be assessed at the same time as the hearing of the suit against the other defendants, unless the court otherwise orders.

O.IXA.r.6.
Interlocutory
judgment where
several defendants.

[Subsidiary]

O.IXA.r.7.
Judgment in
default against the
Government.

7. No judgment in default of appearance or pleading may be entered against the Government without the leave of the court and any application for leave shall be served not less than seven days before the return day.

O.IXA.r.8. General
rule where no
appearance entered.
L.N. 88/1978.

8. Subject to rule 3, in all suits not otherwise specifically provided for by this Order, where any party served does not appear the plaintiff may set down the suit for hearing under Order IXB, rule 1.

O.IXA.r.9. Default of
defence.

9. The provisions of rules 3 to 8 inclusive shall apply with any necessary modification where any defendant has failed to file a defence.

O.IXA.r.10. Setting
aside judgment.

10. Where judgment has been entered under this Order the court may set aside or vary such judgment and any consequential decree or order upon such terms as are just.

O.IXA.r.11.
Procedure.

11. Applications under this order shall be made by summons.

ORDER IXB

L.N. 119/1975,
L.N. 16/1984.

HEARING AND CONSEQUENCE OF NON-ATTENDANCE

O.IXB.r.1. Setting
down suit for
hearing.
L.N. 5/1996.

1. (1) At any time after the close of pleadings, the plaintiff may, upon giving reasonable notice to every defendant who has appeared, set the suit down for hearing:

[Deleted by L.N.36/2000]

(2) At any time after the entry of interlocutory judgment, the plaintiff may upon giving not less than 14 days notice to every defendant who has appeared, set down the suit for assessment of damages or of the value of goods and damages as the case may be.

O.IXB. r. 2. When
neither party attends.

2. If on the day fixed for hearing, after the suit has been called on for hearing outside the court, neither party attends, the court may dismiss the suit.

O. IXB. r.3.
When only plaintiff
attends.

3. If on the day fixed for hearing, after the suit has been called on for hearing outside the court, only the plaintiff attends, if the court is satisfied -

(a) that notice of hearing was duly served, it may proceed *ex parte*;

[Subsidiary]

(b) that notice of hearing was not duly served, it shall direct a second notice to be served;

(c) that notice was not served in sufficient time for the defendant to attend or that for other sufficient cause the defendant was unable to attend, it shall postpone the hearing.

4. (1) If on the day fixed for hearing, after the suit has been called on for hearing outside the court, only the defendant attends and he admits no part of the claim, the suit shall be dismissed except for good cause to be recorded by the court.

O. IXB. r.4. When only defendant attends.

(2) If the defendant admits any part of the claim, the court shall give judgment against the defendant upon such admission and shall dismiss the suit so far as it relates to the remainder except for good cause to be recorded by the court.

(3) If the defendant has counterclaimed, he may prove his counterclaim so far as the burden of proof lies on him.

5. If some only of the plaintiffs attend, the court may either proceed with the suit or make such other order as is just.

O. IXB. r.5. When some only of plaintiffs attend.

6. If some only of the defendants attend, the court shall proceed with the suit and shall give such judgment as is just in respect of the defendants who have not attended.

O. IXB. r.6. When some only of defendants attend.

7. (1) Subject to subrule (2) and to any law of limitation of actions, where a suit is dismissed under this Order the plaintiff may bring a fresh suit.

O. IXB. r.7. Effect of dismissal.

(2) When a suit has been dismissed under rule 4 no fresh suit may be brought in respect of the same cause of action.

8. Where under this Order judgment has been entered or the suit has been dismissed, the court, on application by summons, may set aside or vary the judgment or order upon such term as is just.

O. IXB. r.8. Setting aside judgment dismissal.

ORDER X

INTERROGATORIES, DISCOVERY AND INSPECTION

1. In any suit the plaintiff or defendant, by leave of the court, may deliver interrogatories in writing for the examination of the opposite parties, or any one or more of such parties, and such interrogatories when delivered shall have a note at the foot thereof stating which of

O. X. r. 1. Discovery by interrogatories.

[Subsidiary]

such interrogatories each of such persons is required to answer:

Provided that -

- (i) no party shall deliver more than one set of interrogatories to the same party without an order for that purpose; and
- (ii) interrogatories which do not relate to any matters in question in the suit shall be deemed irrelevant, notwithstanding that they might be admissible on the oral cross-examination of a witness.

O. X. r. 2.
Particular
interrogatories to be
submitted.

2. On an application for leave to deliver interrogatories, the particular interrogatories proposed to be delivered shall be submitted to the court; and in deciding upon such application the court shall take into account any offer, which may be made by the party sought to be interrogated, to deliver particulars or to make admissions, or to produce documents relating to the matters in question, or any of them, and leave shall be given as to such only of the interrogatories submitted as the court shall consider necessary either for disposing fairly of the suit or for saving costs.

O. X. r. 2A.
Proceeding to which
the Government is a
party. L.N.299/1957.

2A. In civil proceedings to which the Government is a party, if an application is made for leave to deliver interrogatories to be answered by the Government, the application shall state by what officer of the Government the interrogatories are to be answered.

O. X. r. 3.
Interrogatories in
defamation actions.
L.N. 88/1978.

3. In an action for libel or slander where the defendant pleads that the words or matters complained of are fair comment on a matter of public interest or were published on a privileged occasion, no interrogatories as to the defendant's sources of information or grounds of belief shall be allowed.

O. X. r. 4. Form of
interrogatories.

4. Interrogatories shall be in Form No. 2 of Appendix B, with such variations as circumstances may require.

O. X. r. 5.
Corporations.

5. Where any party to a suit is a corporation or a body of persons, empowered by law to sue or be sued, whether in its own name or in the name of any officer or other person, any opposite party may apply for an order allowing him to deliver interrogatories to any member or officer of such corporation or body, and an order may be made accordingly.

6. (*Deleted by L.N.88/1978.*)

O. X. r. 7. Affidavit
in answer, filing.

7. Interrogatories shall be answered by affidavit to be filed within ten days, or within such other time as the court may allow.

[Subsidiary]

8. An affidavit in answer to interrogatories shall be in Form No. 3 of Appendix B, with such variations as circumstances may require.

O. X. r. 8. Form of affidavit in answer.

9. (*Deleted by L.N.88 /1978.*)

10. Where any person interrogated omits to answer, or answers insufficiently, the party interrogating may apply to the court for an order requiring him to answer, or to answer further as the case may be, and an order may be made requiring him to answer or answer further, either by affidavit or by viva voce examination, as the court may direct.

O. X. r. 10. Order to answer or answer further.

11. (1) Any party may request any other party to the suit to make discovery on oath of the documents which are or have been in his possession or power relating to any matter in question in the suit.

O. X. r. 11. Discovery of documents.
L.N. 119/1975,
L.N. 50/1985,
L.N. 216/1985.

(2) If the party so requested refuses or neglects within fourteen days to make discovery as aforesaid, application may be made to the court for an order directing such discovery; and at the hearing the court may either refuse or adjourn the application if satisfied that such discovery is not necessary, or not necessary at that stage of the suit, or make such order, either generally or limited to certain classes of documents, as it thinks fit:

Provided -

- (i) that discovery shall not be ordered when and so far as the court is of the opinion that it is not necessary either for disposing fairly of the suit or for saving costs;
- (ii) that on an application by one party the court may make an order for discovery against that party.

(3) The affidavit to be made by a party either in response to a request under subrule (1), or to an order under subrule (2), shall specify which of the documents therein mentioned he objects to produce, and shall be in Form No. 5 of Appendix B with such variations as the case may require.

11A. (1) Notwithstanding anything contained in rule 11, within one month after the pleadings are closed in a suit in the High Court, every party shall make discovery by filling and serving on the opposite party a list of the documents relating to any matter in question in the suit which are or have been in his possession or power.

O. X. r. 11A.
Discovery in High Court.
L.N. 50/1985.
L.N. 216/1985.

(2) Any party on whom a list of documents is served under

L.N. 36/00
L.N. 128/2001.

[Subsidiary]

subrule (1) may, give notice to the party making discovery requiring the verification on affidavit of the list of documents and the affidavit shall be filed and served within fourteen days of the request.

(3) On the default of a party to comply with subrule (2), application may be made to the court for the fixing of a time limit within which the party must comply with subrule (1).

O. X. r. 12. Affidavit in answer to order for discovery against Government.
L.N. 299/1957,
L.N. 119/1975.

12. In civil proceedings to which the Government is a party, any affidavit to be made in answer to an order for discovery against the Government shall be made by such officer of the Government as the court shall direct.

O. X. r. 13.
Production of documents.

13. It shall be lawful for the court, at any time during the pendency of any suit, to order the production by any party thereto, upon oath, of such of the documents in his possession or power, relating to any matter in question in such suit, as the court shall think right; and the court may deal with such documents, when produced, in such manner as appears just.

O. X. r. 14.
Inspection of documents referred to in pleadings or affidavits.

14. Every party to a suit shall be entitled at any time to give notice to any other party, in whose pleadings or affidavits reference is made to any document, to produce such document for the inspection of the party giving such notice, or of his advocate, and to permit him or them to take copies thereof; and any party not complying with such notice shall not afterwards be at liberty to put any such document in evidence on his behalf in such suit unless he shall satisfy the court that such document relates only to his own title, he being a defendant to the suit, or that he had some other cause or excuse which the court deems sufficient for not complying with such notice, in which case the court may allow the same to be put in evidence on such terms as to costs and otherwise as the court thinks fit.

O. X. r. 15. Notice to produce for inspection.

15. Notice to any party to produce for inspection any documents referred to in his pleading or affidavits shall be in Form No. 7 of Appendix B, with such variations as circumstances may require.

O. X. r. 16. Time for inspection when notice given.

16. The party to whom such notice is given shall within ten days from the receipt thereof, deliver to the party giving it a notice stating a time within three days from the delivery thereof at which the documents, or such of them as he does not object to produce, may be inspected at the office of his advocate, or, in the case of bankers' books or other books of account, or books in constant use for the purposes of any trade or business, at their usual place of custody, and stating which if any of the documents he objects to produce, and on what ground. Such

notice shall be in Form No. 8 of Appendix B, with such variations as [Subsidiary] the case may require.

17. (1) Where the party served with a notice under rule 15 omits to give such notice of a time for inspection, or objects to give inspection, or offers inspection elsewhere than at the office of his advocate, the court may, on the application of the party desiring it, make an order for inspection in such place and in such manner as it may think fit:

O. X. r.17. Order for inspection.

Provided that the order shall not be made when and so far as the court shall be of the opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

(2) Any application to inspect documents, except such as are referred to in the pleadings, particulars, or affidavits of the party against whom the application is made, or disclosed in his affidavit of documents, shall be founded upon an affidavit showing of what documents inspection is sought, that the party applying is entitled to inspect them, and that they are in the possession or power of the other party; and the court shall not make such order for inspection of such documents when and so far as the court shall be of opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

18. (1) Where inspection of any business books is applied for, the court may, if it thinks fit, instead of ordering inspection of the original books, order a copy of any entries therein to be furnished and verified by the affidavit of some person who has examined the copy with the original entries, and such affidavit shall state whether or not there are in the original book any and what erasures, interlineations, or alterations:

O. X. r. 18. Verified copies.

Provided that, notwithstanding that such copy has been supplied, the court may order inspection of the book from which the copy was made.

(2) Where, on an application for an order for inspection, privilege is claimed for any document, it shall be lawful for the court to inspect the document for the purpose of deciding as to the validity of the claim of privilege.

(3) The court may, on the application of any party to a suit, at any time, and whether an affidavit of documents shall or shall not have already been ordered or made, make an order requiring any other party to state by affidavit whether any one or more specific documents, to be specified in the application, is or are, or has or have at any time been, in his possession or power; and, if not then in his possession, when he parted with the same and what has become thereof; and such application

[Subsidiary]

shall be made on an affidavit stating that in the belief of the deponent the party against whom the application is made has, or has at some time had, in his possession or power the document or documents specified in the application, and that they relate to the matters in question in the suit, or to some of them.

O. X. r. 19.
Premature discovery.

19. Where the party from whom discovery of any kind or inspection is sought objects to the same, or any part thereof, the court may, if satisfied that the right to the discovery or inspection sought depends on the determination of any issue or question in dispute in the suit, or that for any other reason it is desirable that any issue or question in dispute in the suit should be determined before deciding upon the right to the discovery or inspection, order that such issue or question be determined first, and reserve the question as to the discovery or inspection.

O. X. r. 20. Non-compliance with order for discovery.

20. Where any party fails to comply with any order to answer interrogatories, or for discovery or inspection of documents he shall, if a plaintiff, be liable to have his suit dismissed for want of prosecution, and, if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he had not defended, and the party interrogating or seeking discovery or inspection may apply to the court for an order to that effect, and an order may be made accordingly.

O. X. r. 21.
Using answers to interrogatories at trial.

21. Any party may, at the trial of a suit, use in evidence any one or more of the answers, or any part of an answer, of the opposite party to interrogatories without putting in the others or the whole of such answer:

Provided always that in such case the court may look at the whole of the answers, and, if it is of the opinion that any others of them are so connected with those put in that the last-mentioned answers ought not to be used without them, it may direct them to be put in.

O. X. r. 22. Order to apply to minors.

22. This Order applies to minor plaintiffs and defendants, and to the next friends and guardians for the suit of persons under disability.

O.X.r.22A. Non-disclosure of certain documents in proceedings to which Government is party.
Cap. 40.
L.N. 299/1957.

22A. In any proceedings to which the Government is a party, any order of the court made under the powers conferred by section 24 (1) of the Government Proceedings Act, shall be construed as not requiring disclosure of the existence of any document, the existence of which it would in the opinion of a Minister be injurious to the public interest to disclose.

O. X. r. 23.
Procedure.

23. Applications under rules 2 and 11 shall be by summons in chambers.

[Subsidiary]

ORDER XI

CONSOLIDATION OF SUITS

1. Where two or more suits are pending in the same court in which the same or similar questions of law or fact are involved the court may either, upon the application of one of the parties, or of its own motion, at its discretion, and upon such terms as may seem fit -

O. XI. r. 1.
Consolidation of
suits.
L.N.119/1975.

(a) order a consolidation of such suits, and

(b) direct that further proceedings in any of such suits be stayed until further order.

2. Applications under this Order may be made by summons in chambers or orally in court.

O. XI. r. 2.
Procedure.
L.N.119/1975.

ORDER XII

ADMISSIONS

1. Any party to a suit may give notice by his pleading, or otherwise in writing, that he admits the truth of the whole or part of the case of any other party.

O. XII. r. 1. Notice of
admission of case.

2. (1) Any party to a suit may by notice in writing call upon any other party to admit any document, saving all just exceptions, and if the other party desires to challenge the authenticity of the document he shall, within fourteen days after service of such notice, serve notice that he does not admit the document and that he requires it to be proved at the hearing.

O. XII. r. 2. Notice
to admit documents.
L.N.119/1975.

(2) If such other party refuses or neglects to serve notice of non-admission within the time prescribed, he shall be deemed to have admitted the document, unless the court otherwise orders.

(3) Where a party serves notice of non-admission and the document is proved at the hearing, the costs of proving the document shall be paid by the party who has challenged the document whatever the result of the suit may be, unless at the hearing the court certifies that there were reasonable grounds for not admitting the authenticity of the document.

(4) Where a party proves a document without having served notice to admit under subrule (1), no costs of proving the document shall be allowed on taxation except where the omission to give notice to admit effected, in the opinion of the taxing officer, a saving of expense.

[Subsidiary]

O. XII. r. 3. Form of notice.

3. A notice to admit documents shall be in Form 9 of Appendix B, with such variations as circumstances may require.

O. XII. r. 4. Notice to admit facts.
L.N. 119/1975.

4. Any party may by notice in writing call upon any other party to admit any specific facts mentioned in such notice, and in case of refusal or neglect to admit the same within twenty-one days after service of such notice, the costs of proving such facts shall be paid by the party so neglecting or refusing whatever the result of the suit may be, unless at the hearing the court certifies that the refusal to admit was reasonable:

Provided -

(i) that an admission made by a party in pursuance of such notice shall be made only for the purposes of the particular suit, and shall not be used in favour of any person other than the party giving the notice;

(ii) that the court may at any time allow any party to amend or withdraw any admission so made on such terms as are just.

O. XII. r. 5. Form of admission.

5. A notice to admit facts shall be in Form No. 10 of Appendix B, and admission of facts shall be in Form No. 11 of Appendix B, with such variations as circumstances may require.

O. XII. r. 6. Judgment on admissions.

6. Any party may at any stage of a suit, where admission of facts has been made, either on the pleadings or otherwise, apply to the court for such judgment or order as upon such admissions he may be entitled to, without waiting for the determination of any other question between the parties; and the court may upon such application make such order, or give such judgment, as the court may think just.

O. XII. r. 7. Affidavit of signature.

7. An affidavit of the advocate or his clerk, of the due signature of any admissions made in pursuance of any notice to admit documents or facts, shall be sufficient evidence of such admissions, if evidence thereof is required.

O. XII. r. 8. Notice to produce documents in court.
L.N. 88/1978.

8. Notice to produce documents shall be in Form No. 12 of Appendix B, with such variations as circumstances may require; and an affidavit or return of the advocate or his clerk, of the service of any notice to produce, and of the time when it was served, with a copy of the notice to produce, shall in all cases be sufficient evidence of the service of the notice, and of the time when it was served.

O. XII. r. 9. Costs.

9. If a notice to admit or produce comprises documents which

are not necessary, the costs occasioned thereby shall be borne by the party giving such notice. [Subsidiary]

ORDER XIII

PRODUCTION, IMPOUNDING AND RETURN OF DOCUMENTS

1. (1) Subject to subrule (2), there shall be endorsed on every document which has been admitted in evidence in the suit the following particulars -

O.XIII.r. 1.
Endorsements on documents admitted in evidence.

- (a) the number and title of the suit;
- (b) the party producing the document;
- (c) the date on which it was produced,

and the endorsement shall be signed or initialled by an officer of the court.

(2) Where a document so admitted is an entry in a book, account or record, and a copy thereof has been substituted for the original under rule 2, the particulars aforesaid shall be endorsed on the copy, and the endorsement thereon shall be signed or initialled by the judge or by an officer of the court under his direction.

2. (1) Save in so far as is otherwise provided by any law relating to the production in evidence of bankers' books, where a document admitted in evidence in the suit is an entry in a letter-book or a shop-book or other account in current use, the party on whose behalf the book or account is produced may furnish a copy of the entry.

O. XIII. r. 2.
Endorsements on copies of admitted entries in books, accounts, and records.

(2) Where such a document is an entry in a public record produced from a public office or by a public officer, or an entry in a book or account belonging to a person other than a party on whose behalf the book or account is produced, the court may require a copy of the entry to be furnished -

- (a) where the record, book, or account is produced on behalf of a party, then by that party; or
- (b) where the record, book, or account is produced in obedience to an order of the court acting of its own motion, then by either or any party.

(3) Where a copy of an entry is furnished under sub rules (1) and (2), the court shall, after causing the copy to be examined, compared

[Subsidiary]

and certified, mark the entry, and cause the book, account, or record in which it occurs to be returned to the person producing it:

Provided that the court may accept, in the case of a copy of a public record, a certificate of correctness from the public officer in whose charge the record is.

O.XIII. r.3.
Recordings of
admitted and
return of rejected
documents.

3. (1) Every document which has been admitted in evidence, or a copy thereof where a copy has been substituted for the original under rule 2, shall form part of the record of the suit.

(2) Documents not admitted in evidence shall not form part of the record, and shall be returned to the persons respectively producing them after they have been endorsed by the judge or officer of the court with the particulars mentioned in rule 1 (1), together with a statement of their having been rejected.

O.XIII. r.4. Court
may order any
document to be
impounded.

4. Notwithstanding anything hereinbefore contained, the court may, if it sees sufficient cause, direct any document or book produced before it in any suit to be impounded and kept in the custody of an officer of the court for such period and subject to such conditions as the court thinks fit.

O.XIII.r.5. Return of
admitted documents.

5. (1) Any person, whether a party to the suit or not, desirous of receiving back any document produced by him in the suit and placed on the record, shall, unless the document is impounded under rule 4, be entitled to receive back the same -

- (a) when the suit has been disposed of, and, if the suit is one in which an appeal is allowed, where the time for filing an appeal has elapsed and no appeal has been filed; and
- (b) if any appeal has been filed, when the appeal has been disposed of:

Provided that -

- (i) a document may be returned at any time earlier than that prescribed by this rule if the person applying therefor delivers to the proper officer a certified copy to be substituted for the original and undertakes in writing to produce the original if required to do so;
- (ii) no document shall be returned which, by force of the decree, has become wholly void or useless.

(2) On the return of a document admitted in evidence a receipt

shall be given by the person receiving it.

[Subsidiary]

6. (1) The court may of its own motion, and may in its discretion upon the application of any of the parties to a suit, send for, either from its own records, or from any other court, the record of any other suit or proceeding and inspect the same.

O.XIII.r.6. Court may send for records of its own or of other Court.

(2) Every application made under this rule shall (unless the court otherwise directs) be supported by an affidavit showing how the record is material to the suit in which the application is made, and that the applicant cannot without unreasonable delay or expense obtain a duly authenticated copy of the record or of such portion thereof as the applicant requires, or that the production of the original is necessary for the purposes of justice.

(3) Nothing contained in this rule shall be deemed to enable the court to use in evidence any document which under the law of evidence would be inadmissible in the suit.

7. The provisions herein contained as to documents shall, so far as may be, apply to all other material objects producible as evidence.

O.XIII.r.7. Provisions as to documents applied to material objects.

8. Applications under rule 6 shall be by summons in chambers.

O.XIII.r.8. Procedure.

ORDER XIV

SETTLEMENT OF ISSUES AND DETERMINATION OF SUIT ON ISSUES OF LAW OR ON ISSUES AGREED UPON

1. (1) Issues arise when a material proposition of fact or law is affirmed by the one party and denied by the other.

O.XIV.r.1. Framing of issues.

(2) Issues are of two kinds -

(a) issues of fact; and

(b) issues of law.

(3) Material propositions are those propositions of law or fact which a plaintiff must allege in order to show a right to sue or a defendant must allege in order to constitute a defence.

(4) Each material proposition affirmed by one party and denied by the other shall form the subject of a distinct issue.

[Subsidiary]

(5) At the hearing of the suit when issues have not already been framed the court shall, after reading the pleadings, if any, and after such examination of the parties or their advocates as may appear necessary, ascertain upon what material propositions of fact or law the parties are at variance, and shall thereupon proceed to frame and record the issues on which the right decision of the case appears to depend.

(6) Nothing in this rule requires the court to frame and record issues where the defendant at the hearing of the suit makes no defence, or where issue has been joined upon the pleadings.

O. XIV. r. 2. Issues of law and of fact. L.N.119/1975.

2. If it appears to the court that there is in any suit a question of law which it would be convenient to have decided before any evidence is given or any question or issue of fact is tried, or before any reference is made to a referee or an arbitrator, the court may make an order accordingly, and may direct such question of law to be raised for the opinion of the court in such manner as the court thinks expedient; and all such further proceedings as the decision on such question of law may render unnecessary may thereupon be stayed.

O. XIV. r. 3. Materials from which issues may be framed.

3. The court may frame the issues from all or any of the following materials -

- (a) allegations made on oath by the parties, or by any persons present on their behalf, or made by the advocates of such parties;
- (b) allegations made in the pleading or in answers to interrogatories delivered in the suit;
- (c) the contents of documents produced by either party.

4. (*Deleted by L.N.88 /1978.*)

O.XIV.r.5. Power to amend and strike out issues.

5. (1) The court may at any time before passing a decree amend the issues or frame additional issues on such terms as it thinks fit, and all such amendments or additional issues as may be necessary for determining the matters in controversy between the parties shall be so made or framed.

(2) The court may also at any time before passing a decree strike out any issues that appear to it to be wrongly framed or introduced.

O. XIV. r. 6. Questions of fact or law may by agreement be stated in form of issues.

6. Where the parties to a suit are agreed as to the question of fact or of law to be decided between them, they may state the same in the form of an issue and enter into an agreement in writing that, upon the finding of the court in the affirmative or the negative of such issue -

[Subsidiary]

- (a) a sum of money specified in the agreement, or to be ascertained by the court or in such manner as the court may direct, shall be paid by one of the parties to the other of them, or that one of them be declared entitled to some right or subject to some liability specified in the agreement; or
- (b) some property specified in the agreement and in dispute in the suit shall be delivered by one of the parties to the other of them, or as that other may direct; or
- (c) one or more of the parties shall do or abstain from doing some particular act in the agreement and relating to the matter in dispute.

7. Where the court is satisfied, after making such inquiry as it deems proper -

- (a) that the agreement was duly executed by the parties;
- (b) that they have a substantial interest in the decision of such question as aforesaid; and
- (c) that the same is fit to be tried and decided, it shall proceed to record and try the issue and state its finding or decision thereon in the same manner as if the issue had been framed by the court; and shall, upon the finding or decision of such issue, pronounce judgment according to the terms of the agreement, and upon the judgment so pronounced a decree shall follow.

O. XIV. r. 7.
Court, if satisfied that agreement was executed in good faith, may pronounce judgment.

ORDER XV

SUMMONING AND ATTENDANCE OF WITNESSES

1. At any time after the suit is instituted the parties may obtain, on application to the court or to such officer as it appoints in this behalf, summonses to persons whose attendance is required either to give evidence or to produce documents.

O. XV.r.1. Summons to attend to give evidence or produce documents.

2. (1) The party applying for a summons shall, before the summons is granted and within a period to be fixed, pay into court such sum of money as appears to the court to be sufficient to defray the travelling and other expenses of the persons summoned in passing to and from the court in which he is required to attend, and for one day's attendance.

O. XV. r. 2. Expenses of witnesses to be paid into court on applying for summons.

(2) In determining the amount payable under this rule regard

[Subsidiary]

shall be had to such scale for expenses of witnesses as may from time to time be approved by the High Court, but the court may, in the case of any person summoned to give evidence as an expert, allow reasonable remuneration for the time occupied both in giving evidence and in performing any work of an expert character necessary for the case.

O. XV. r. 3. Tender of expenses or notification of sum lodged.

3. The sum so paid into court shall be tendered to the person summoned at the time of serving the summons, if it can be served personally; or if the court so directs the person summoned may be notified that the sum so paid into court will be paid out to him on his attendance.

O. XV. r. 4. Procedure where insufficient sum paid in. Expenses of witnesses detained more than one day.

4. (1) Where it appears to the court or to such officer as it appoints in this behalf that the sum so paid into court is not sufficient to cover such expenses or reasonable remuneration, the court may direct such further sum to be paid to the person summoned as appears to be necessary on that account, and, in case of default in payment, may order such sum to be levied by attachment and sale of the movable property of the party obtaining the summons; or the court may discharge the person summoned without requiring him to give evidence; or may both order such levy and discharge such person as aforesaid.

(2) Where it is necessary to detain the person summoned for a longer period than one day, the court may from time to time order the party at whose instance he was summoned to pay into court such sum as is sufficient to defray the expenses of his detention for such further period, and, in default of such deposit being made, may order such sum to be levied by attachment and sale of the movable property of such party; or the court may discharge the person summoned without requiring him to give evidence; or may both order such levy and discharge such person as aforesaid.

O. XV. r. 5. Time, place, and purpose of attendance to be specified in summons.

5. Every summons for the attendance of a person to give evidence or to produce a document shall specify the time and place at which he is required to attend, and whether his attendance is required for the purpose of giving evidence or to produce a document, or for both purposes; and any particular document, which the person summoned is called on to produce, shall be described in the summons with reasonable accuracy.

O. XV. r. 6. Summons to produce documents.

6. Any person may be summoned to produce a document without being summoned to give evidence; and any person summoned merely to produce a document shall be deemed to have complied with the summons if he causes such document to be produced instead of attending personally to produce the same.

7. Any person present in court may be required by the court to give evidence or to produce any document then and there in his possession or power.

[Subsidiary]

O. XV. r. 7. Power to require persons present in court to give evidence or produce document.

8. Every summons under this Order shall be served as nearly as may be in the same manner as a summons to a defendant, and the rules in Order V as to proof of service shall apply in the case of all summonses served under this rule.

O. XV. r. 8.

Summons, how served.

9. (1) Service shall in all cases be made a sufficient time before the time specified in the summons for the attendance of the person summoned to allow him a reasonable time for preparation and for travelling to the place at which his attendance is required.

O. XV. r. 9. Time for serving summonses.

(2) If, in the opinion of the court or officer by whom summonses are issued, a party applying for a summons has not allowed sufficient time as aforesaid, the court or officer may refuse to issue the summons.

10. (1) Where a person to whom a summons has been issued, either to attend to give evidence or to produce a document, fails to attend or to produce the document in compliance with such summons, the court shall, if the certificate of the serving officer has not been verified by affidavit, and may, if it has been so verified, examine the serving officer on oath, or cause him to be so examined by another court, touching the service or non-service of the summons.

O. XV. r. 10.

Procedure where witness fails to comply with summons.

(2) Where the court sees reason to believe that such evidence or production is material, and that such person has, without lawful excuse, failed to attend or to produce the document in compliance with the summons or has intentionally avoided service, it may issue a proclamation requiring him to attend to give evidence or to produce the document at a time and place to be named therein; and a copy of such proclamation shall be affixed on the outer door or other conspicuous part of the house in which he ordinarily resides.

(3) In lieu of or at the time of issuing such proclamation, or at any time afterwards, the court may, in its discretion, issue a warrant, either with or without bail, for the arrest of such person, and may make an order for the attachment of his property to such amount as it thinks fit, not exceeding the amount of the costs of attachment and of any fine which may be imposed under rule 12.

11. Where, at any time after the attachment of his property, such person appears and satisfies the court -

O. XV. r. 11. If witness appears, attachment may be withdrawn.

[Subsidiary]

(a) that he did not, without lawful excuse, fail to comply with the summons or intentionally avoid service; and

(b) where he has failed to attend at the time and place named in a proclamation issued under rule 10, that he had no notice of such proclamation in time to attend,

the court shall direct that the property be released from attachment, and shall make such order as to the costs of the attachment as it thinks fit.

O.XV. r. 12.
Procedure if witness
fails to appear.

12. The court may, where such person does not appear, or appears but fails so to satisfy the court, impose upon him such fine, not exceeding fifty pounds, as it thinks fit, having regard to his condition in life and all the circumstances of the case, and may order his property, or any part thereof, to be attached and sold, or, if already attached under rule 10, to be sold for the purpose of satisfying all costs of such attachment, together with the amount of the said fine, if any :

Provided that, if the person whose attendance is required pays into the court the costs and fine aforesaid, the court shall order the property to be released from attachment.

O.XV. r. 13. Mode of
attachment.

13. The provisions with regard to the attachment and sale of property in the execution of a decree shall, so far as they are applicable, be deemed to apply to any attachment and sale under this Order as if the person whose property is so attached were a judgment-debtor.

O.XV. r. 14. Duty of
persons
summoned to give
evidence or produce
document.

14. Whoever is summoned to appear and give evidence in a suit shall attend at the time and place named in the summons for that purpose, and whoever is summoned to produce a document shall either attend to produce it or cause it to be produced at such time and place.

O.XV. r. 15. When
they may depart.

15. (1) A person so summoned and attending shall, unless the court otherwise directs, attend at each hearing until the suit has been disposed of.

(2) The court may upon the oral application of either party in court or upon application by summons in chambers and upon payment through the court of all necessary expenses require any person so summoned to furnish security for his attendance at the next hearing or any further hearing or until the suit is disposed of and in default of his furnishing such security may order him to be detained in prison.

O.XV. r. 16.
Application of rules
10 to 13.

16. The provisions of rules 10 to 13 shall, so far as they are applicable, be deemed to apply to any person, who having attended in compliance with a summons, departs without lawful excuse in

contravention of rule 15.

[Subsidiary]

17. Where any person arrested under a warrant is brought before the court in custody, and cannot, owing to the absence of the parties or any of them, give the evidence or produce the document which he has been summoned to give or produce, the court may require him to give reasonable bail or other security for his appearance at such time and place as it thinks fit, and on such bail or security being given may release him, and in default of his giving such bail or security may order him to be detained in prison.

O.XV.r.17. Procedure where witness apprehended cannot give evidence or produce document.

18. (*Deleted by L.N.88/1978.*)

19. Where any party to a suit present in court refuses, without lawful excuse, when required by the court, to give evidence or produce any document then and there in his possession or power, the court may pronounce judgment against him or make such order in relation to the suit as it thinks fit.

O. XV. r.19. Consequence of refusal of a party to give evidence when called on by the court.

20. Where any party to a suit is required to give evidence, or to produce a document, the provisions as to witnesses shall apply to him so far as they are applicable.

O.XV. r. 20. Rules as to witnesses to apply to parties summoned.

ORDER XVI

PROSECUTION OF SUITS AND ADJOURNMENTS

1. In any suit in which the hearing of evidence has once begun, the hearing of such suit shall be continued from day to day until all the witnesses in attendance have been examined, unless the court find the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded.

O. XVI. r.1. Hearing to be from day to day.

2. (1) In any suit in which no application has been made or step taken by either party for one year, the court may give notice in writing to the parties to show cause why the suit should not be dismissed, and if cause is not shown to its satisfaction, may dismiss the suit.

O.XVI. r. 2. Notice to show cause why suit be not dismissed. L.N.16/1984. L.N. 36/00

(2) If cause is shown to the satisfaction of the court it may make such orders as it thinks fit to obtain expeditious hearing of the suit.

(3) The court may dismiss the suit for non-compliance with any direction given under this rule.

3. Where, on any day to which the hearing of the suit is adjourned, the parties or any of them fail to appear, the court may proceed to dispose of the suit in one of the modes directed in that behalf by Order IXB, or

O.XVI. r. 3. Procedure if parties fail to appear on day fixed.

[Subsidiary]

make such other order as it thinks fit.

O.XVI. r. 4. Court may proceed notwithstanding either party fails to produce evidence.

4. Where any party to a suit to whom time has been granted fails to produce his evidence, or to cause the attendance of his witnesses, or to perform any other act necessary to the further progress of the suit, for which time has been allowed, the court may, notwithstanding such default, proceed to decide the suit forthwith.

O.XVI. r. 5.
Dismissal of suit for want of prosecution.
L.N.88/1978,
L.N. 50/1985.

5. If, within three months after -

(a) the close of pleadings; or

(b) (*Deleted by L.N. 36/00.*)

(c) the removal of the suit from the hearing list; or

(d) the adjournment of the suit generally, the plaintiff, or the court of its own motion on notice to the parties, does not set down the suit for hearing, the defendant may either set the suit down for hearing or apply for its dismissal.

O XVI. r. 6. Suit may be dismissed if no step taken for three years.

6. In any case not otherwise provided for in which no application is made or step taken for a period of three years by either party with a view to proceeding with the suit, the court may order the suit to be dismissed; and in such case the plaintiff may, subject to the law of limitation, bring a fresh suit.

ORDER XVII

HEARING OF THE SUIT AND EXAMINATION OF WITNESSES

O.XVII.r.1. Right to begin.

1. The plaintiff shall have the right to begin unless the defendant admits the facts alleged by the plaintiff and contends that either in point of law or on some additional facts alleged by the defendant the plaintiff is not entitled to any part of the relief which he seeks, in which case the defendant shall have the right to begin.

O.XVII.r.2.
Statement and production of evidence. L.N. 36/00

2. (1) On the day fixed for the hearing of the suit, or on any other day to which the hearing is adjourned, the party having the right to begin shall state his case and produce his evidence in support of the issues which he is bound to prove.

(2) The other party shall then state his case and produce his evidence, and may then address the court generally on the case. The party beginning may then reply.

[Subsidiary]

(3) After the party beginning has produced his evidence then, if the other party has not produced and announces that he does not propose to produce evidence, the party beginning shall have the right to address the court generally on the case; the other party shall then have the right to address the court in reply, but if in the course of his address he cites a case or cases the party beginning shall have the right to address the court at the conclusion of the address of the other party for the purpose of observing on the case or cases cited.

L.N 128/ 2001.

(4) The High Court may in its discretion limit the time allowed for addresses by the parties or their advocates.

L.N. 36/00.

3. (1) Where there are on the pleadings several issues the burden of proving some of which lies on one party and the burden of proving some of which lies on another, and there is a dispute as to who is to begin, the judge shall give directions as to the party who is to begin, and the judge shall ordinarily direct that the party on whom the major burden of proof lies shall begin.

O.XVII.r.3. Evidence where several issues.
L.N. 119/1975.

(2) No party beginning may reserve his evidence on the issues on which the burden of proof does not lie on him unless the court so orders.

4. The evidence of the witnesses in attendance shall be taken orally in open court in the presence of and under the personal direction and superintendence of the judge.

O.XVII.r.4.
Witnesses to be examined in open court.

5. The evidence of each witness shall be taken down in writing by or in the presence and under the personal direction and superintendence of the judge, not ordinarily in the form of question and answer but in that of a narrative, and when completed shall be signed by the judge:

O.XVII r.5. How evidence to be recorded. L.N. 119/1975.

Provided that -

- (i) in all suits tried in the High Court any person desiring that the evidence in a trial shall be recorded by a shorthand writer or palantypist may apply orally in court or by summons in chambers to the court for an order that the evidence be so recorded and the court, if satisfied that it is expedient, may approve a shorthand writer or palantypist whose name shall be recorded in such order;
- (ii) the court may, if expedient, of its own motion, order that evidence be recorded by a shorthand writer or palantypist; and

[Subsidiary]

(iii) the transcript of such shorthand or palantypist notes when checked and amended if necessary together with the judge's notes shall constitute the official record of the evidence, provided that in the event of any contradiction existing between the judge's notes and the shorthand notes, the former shall prevail.

6. (*Deleted by L.N. 119 /1975.*)

O.XVII.r. 7.
Any particular
question and answer
may be taken down.

7. The court may, of its own motion or on the application of any party or his advocate, take down any particular question and answer, or any objection to any question, if there appears to be any special reason for so doing.

O.XVII. r.8.
Questions objected to
and allowed by court.

8. Where any question put to a witness is objected to by a party or his advocate, and the court allows the same to be put, the judge shall take down the question, the answer, the objection, and the name of the person making it.

O.XVII. r.9. Remarks
on demeanour of
witness.

9. The court may record such remarks as it thinks material respecting the demeanour of any witness while under examination.

O.XVII.r.10.
Power to deal with
evidence taken before
another judge.
L.N. 119/1975.

10. (1) Where a judge is prevented by death, transfer, or other cause from concluding the trial of a suit or the hearing of any application, his successor may deal with any evidence taken down under the foregoing rules as if such evidence had been taken down by him or under his direction under the said rules, and may proceed with the suit or application from the stage at which his predecessor left it.

(2) The provisions of subrule (1) shall, so far as they are applicable, be deemed to apply to evidence taken in a suit transferred under section 18 of the Act.

O.XVII.r.11. Power
to examine witness
immediately.
L.N. 119/1975.

11. (1) Where a witness is about to leave the jurisdiction of the court, or other sufficient cause is shown to the satisfaction of the court why his evidence should be taken immediately, the court may, upon the application of any party or of the witness, at any time after the institution of the suit, take the evidence of such witness in manner hereinbefore provided.

(2) Where such evidence is not taken forthwith and in the presence of the parties, such notice as the court thinks sufficient, of the day fixed for the examination, shall be given to the parties.

(3) The evidence so taken shall be signed by the judge and shall be evidence in the suit.

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| 12. The court may at any stage of the suit recall any witness who has been examined, and may, subject to the law of evidence for the time being in force, put such questions to him as the court thinks fit. | [Subsidiary]
O.XVII.r.12. Court may recall and examine witness. |
| 13. The court may at any stage of a suit inspect any property or thing concerning which any question may arise. | O.XVII.r.13. Power of court to inspect. |
| 14. Applications under rule 11 (1) shall be by summons in chambers. | O.XVII.r.14. Procedure. |

ORDER XVIII

AFFIDAVITS

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| 1. Any court may at any time for sufficient reason order that any particular fact or facts may be proved by affidavit, or that the affidavit of any witness may be read at the hearing, on such conditions as the court thinks reasonable: | O.XVIII.r.1. Power to order any point to be proved by affidavit. |
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Provided that, where it appears to the court that either party bona fide desires the production of a witness for cross-examination and that such witness can be produced, an order shall not be made authorizing the evidence of such witness to be given by affidavit.

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| 2. (1) Upon any application, evidence may be given by affidavit, but the court may, at the instance of either party, order the attendance for cross-examination of the deponent. | O.XVIII.r.2. Power to order attendance of deponent for cross-examination. |
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(2) Such attendance shall be in court, unless the deponent is exempted from personal appearance in court, or the court otherwise directs.

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| 3. (1) Affidavits shall be confined to such facts as the deponent is able of his own knowledge to prove: | O.XVIII.r.3. Matters to which affidavits shall be confined.
L.N. 119/1975. |
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Provided that in interlocutory proceedings, or by leave of the court, an affidavit may contain statements of information and belief showing the sources and grounds thereof.

(2) The costs of every affidavit which shall unnecessarily set forth matters of hearsay or argumentative matter or copies of or extracts from documents, shall (unless the court otherwise directs) be paid by the party filing the same.

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| 4. Every affidavit shall state the description, true place of abode and postal address of the deponent, and if the deponent is a minor shall state his age. | O.XVIII.r.4. Deponent's description, etc.
L.N. 119/1975. |
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[Subsidiary]

- O.XVIII.r.5. Manner of drawing affidavit. L.N. 119/1975.
5. Every affidavit shall be drawn in the first person and divided into paragraphs numbered consecutively which shall be confined as nearly as may be to a distinct portion of the subject.
- O.XVIII.r.6. Striking out matter. L.N.119/1975.
6. The court may order to be struck out from any affidavit any matter which is scandalous, irrelevant or oppressive.
- O.XVIII.r.7. Irregularity in form of affidavit. L.N. 119/1975.
7. The court may receive any affidavit sworn for the purpose of being used in any suit notwithstanding any defect by misdescription of the parties or otherwise in the title or other irregularity in the form thereof.
- O.XVIII.r.8. Procedure. L.N.119/1975.
8. Applications under this Order shall be by summons or orally in court.
- O.XVIII.r.9. Affidavit sworn before suit filed. L.N.119/1975.
9. Unless otherwise directed by the court an affidavit shall not be rejected solely because it was sworn before the filing of the suit concerned.

ORDER XIX**APPLICATION FOR AN ACCOUNT**

- O.XIX.r.1. Order for accounts.
1. Where a plaintiff prays for an account, or where the relief sought or the claim involves the taking of an account, if the defendant either fails to appear or does not after appearance by affidavit or otherwise satisfy the court that there is some preliminary question to be tried, an order for the proper accounts with all necessary inquiries and directions usual in similar cases shall forthwith be made.
- O.XIX.r.2. Procedure.
2. An application for such order as is mentioned in rule 1 shall be made by summons in chambers and be supported by an affidavit when necessary filed on behalf of the plaintiff stating concisely the grounds of his claim to an account; and such application may be made at any time after the time for entering an appearance has expired.

ORDER XX**JUDGMENT AND DECREE**

- O.XX.r.1. Judgment when pronounced. L.N. 36/2000.
1. In suits where a hearing is necessary, the court, after the case has been heard, shall pronounce judgment in open court, either at once or within 42 days from the conclusion of the trial of which due notice

shall be given to the parties or their advocates.

[Subsidiary]

2. (1) A judge may pronounce a judgment written and signed but not pronounced by his predecessor.

O.XX.r.2. Power to pronounce judgment written by another judge.

(2) A judge of the High Court may pronounce a judgment written and signed but not pronounced by another judge of the High Court.

3. (1) A judgment pronounced by the judge who wrote it shall be dated and signed by him in open court at the time of pronouncing it.

O.XX.r.3. Judgment to be signed.

(2) A judgment pronounced by a judge other than the judge by whom it was written shall be dated and counter-signed by him in open court at the time of pronouncing it.

(3) A judgment once signed shall not afterwards be altered or added to save as provided by section 99 of the Act or on review.

4. Judgments in defended suits shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision.

O. XX. r. 4. Contents of judgment.

5. In suits in which issues have been framed, the court shall state its finding or decision, with the reasons therefor, upon each separate issue.

O. XX. r. 5. Court to state its decision on each issue. L.N. 88/1978.

5A. Where there is a prayer for a judgment the grant of which would result in some alteration to the title of land registered under any written law concerning the registration of title to land, a certified copy of the title shall be produced to the court before any such judgment is delivered.

O.XX.r. 5A Judgment affecting registered title to land. L.N. 119/1975.

6. (1) The decree shall agree with the judgment; it shall contain the number of the suit, the names and descriptions of the parties, and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit.

O. XX. r. 6. Contents of decree. L.N. 96/1957.

(2) The decree shall also state by whom or out of what property or in what proportion the costs incurred in the suit are to be paid.

(3) The court may direct that the costs payable to one party by the other shall be set-off against any sum which is admitted or found to be due from the former to the latter.

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O. XX. r. 7.
Preparation and
dating of decrees and
orders.
L.N. 119/1975.

7. (1) A decree shall bear the date of the day on which the judgment was delivered.

(2) Any party in a suit in the High Court may prepare a draft decree and submit it for the approval of the other parties to the suit, who shall approve it with or without amendment, or reject it, without undue delay; and if the draft is approved by the parties, it shall be submitted to the registrar who, if he is satisfied that it is drawn up in accordance with the judgment, shall sign and seal the decree accordingly.

(3) If no approval of or disagreement with the draft decree is received within seven days after delivery thereof to the other parties, the registrar, on receipt of notice in writing to that effect, if he is satisfied that the draft decree is drawn up in accordance with the judgment, shall sign and seal the decree accordingly.

(4) On any disagreement with the draft decree any party may file the draft decree marked as for settlement and the registrar shall thereupon list the same in chambers before the judge who heard the case or, if he is not available, before any other judge, and shall give notice thereof to the parties.

(5) In a subordinate court the decree shall be drawn up and signed by the magistrate who pronounced it or by his successor.

(6) Any order, whether in the High Court or in a subordinate court, which is required to be drawn up, shall be prepared and signed in like manner as a decree.

(7) Nothing in this rule shall limit the power of the court to approve a draft decree at the time of pronouncing judgment in the suit, or the power of the court to approve a draft order at the time of making the order.

O. XX. r. 8 Costs.
L.N. 119/1975.

8. (1) Where the amount of costs has been-

- (a) agreed between the parties; or
- (b) fixed by the judge or magistrate before the decree is drawn;
or
- (c) certified by the registrar under paragraph 68A of the Advocates (Remuneration) Order; or
- (d) taxed by the court,

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the amount of costs may be stated in the decree or order.

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(2) In all other cases, and where the costs have not in fact been stated in the decree or order in accordance with subrule (1), after the amount of the costs has been taxed or otherwise ascertained, it shall be stated in a separate certificate to be signed by the taxing officer, or, in a subordinate court, by the magistrate.

(3) In this rule, “taxing officer” means a taxing officer qualified under paragraph 10 of the Advocates (Remuneration) Order.

9. Where the subject-matter of the suit is immovable property, the decree shall contain a description of such property sufficient to identify the same, and, where such property can be identified by boundaries or by numbers in a government record or survey, the decree shall specify such boundaries or numbers.

O. XX. r. 9. Decree for recovery of immovable property.

10. Where the suit is in respect of movable property, and the decree is for the delivery of such property, the decree shall also state the amount of money to be paid as an alternative if delivery cannot be had.

O. XX. r. 10. Decree for delivery of movable property.

11. (1) Where and in so far as a decree is for the payment of money, the court may for any sufficient reason at the time of passing the decree order that payment of the amount decreed shall be postponed or shall be made by installments, with or without interest, notwithstanding anything contained in the contract under which the money is payable.

O. XX. r. 11. Decree may direct payment by installments. L.N. 5/1996.

(2) After passing of any such decree, the court may on the application of the judgment-debtor and with the consent of the decree-holder or without the consent of the decree-holder for sufficient cause shown order that the payment of the amount decreed be postponed or be made by installments on such terms as to the payment of interest, the attachment of the property of the judgment debtor or the taking of security from him, or otherwise, as it thinks fit.

12. (1) Where a suit is for the recovery of possession of immovable property and for rent or mesne profits, the court may pass a decree-

O. XX. r. 12. Decree for possession and mesne profits.

(a) for the possession of the property;

(b) for the rent or mesne profits which have accrued on the property during a period prior to the institution of the suit or directing an inquiry as to such rent or mesne profits;

(c) directing an inquiry as to rent or mesne profits from the institution of such suit until -

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- (i) the delivery of possession to the decree-holder,
- (ii) the relinquishment of possession by the judgment-debtor with notice to the decree-holder through the court, or
- (iii) the expiration of three years from the date of the decree, whichever event first occurs.

(2) Where an inquiry is directed under subrule (1) (b) or (1) (c), a final decree in respect of the rent and mesne profits shall be passed in accordance with the result of such inquiry.

O.XX.r. 13. Decree in administration suit.

13. (1) Where a suit is for an account in respect of any property or for its due administration under the decree of the court, the court shall, before passing the final decree, pass a preliminary decree ordering such accounts and inquiries to be taken and made, and giving such other directions as it thinks fit.

(2) In the administration by the court of the property of any deceased person, if such property proves to be insufficient for the payment in full of his debts and liabilities, the same rules shall be observed as to the respective rights of secured and unsecured creditors, and as to debts and liabilities provable, and as to the valuation of annuities and future and contingent liabilities, respectively, as may be in force for the time being with respect to the estates of persons adjudged or declared insolvent; and all persons, who in any such case would be entitled to be paid out of such property, may come in under the preliminary decree, and make such claims against the same as they may respectively be entitled to by virtue of this Act.

O.XX.r.14. Decree in suit for dissolution of partnership.

14. Where a suit is for the dissolution of a partnership, or the taking of partnership accounts, the court, before passing a final decree, may pass a preliminary decree, declaring the proportionate shares of the parties, fixing the day on which the partnership shall stand dissolved, or be deemed to have been dissolved, and directing such accounts to be taken, and other acts to be done, as it thinks fit.

O.XX.r.15. Decree in suit for account between principal and agent.

15. In a suit for an account of pecuniary transactions between a principal and an agent, and in any other suit not hereinbefore provided for, where it is necessary, in order to ascertain the amount of money due to or from any party, that an account should be taken, the court shall, before passing its final decree, pass a preliminary decree directing such accounts to be taken as it thinks fit.

O.XX.r.16. Special directions as to accounts.

16. The court may, either by the decree directing an account to be taken or by any subsequent order, give special directions with regard

to the mode in which the account is to be taken or vouched, and in particular may direct that in taking the account the books of account in which the accounts in question have been kept shall be taken as prima facie evidence of the truth of the matter therein contained with liberty to the parties interested to take such objection thereto as they may be advised. [Subsidiary]

17. Where a court passes a decree for the partition of property, or for the separate possession of a share therein, the court may, if the partition or separation cannot be conveniently made without further inquiry, pass a preliminary decree declaring the rights of the parties interested in the property and giving such further directions as may be required.

O.XX.r.17. Decree in suit for partition of property or separate possession of a share.

18. (1) Where the defendant has been allowed a set-off against the claim of the plaintiff, the decree shall state what amount is due to the plaintiff and what amount is due to the defendant, and shall be for the recovery of any sum which appears to be due to either party.

O.XX.r.18. Decree where set-off is allowed.

(2) Any decree passed in a suit in which a set-off is claimed shall be subject to the same provisions in respect of appeal to which it would have been subject if no set-off had been claimed.

(3) The provisions of this rule shall apply whether the set-off is admissible under rule 2 of Order VIII, or otherwise.

19. Certified copies of the judgment and decree shall be furnished to the parties on application to the Registrar and at their expense.

O.XX.r. 19. Certified copies of judgment and decree to be furnished.

20. Applications under rule 11 shall be by summons in chambers.

O.XX. r.20. Procedure.

ORDER XXI

EXECUTION OF DECREES AND ORDERS

1. (1) All money payable under a decree or order shall be paid as follows, namely -

O. XXI.r. 1. Modes of paying money under decree. L.N. 88/1978.

- (a) into the court whose duty it is to execute the decree;
- (b) direct to the decree-holder; or
- (c) otherwise as the court which made the decree directs.

(2) Where any payment is made under subrule (1) (a), notice

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of such payment shall be sent by the court to the decree-holder or his advocate.

O.XXI.r.2. Payment
out of court to
decree-holder.

2. (1) Where any money payable under a decree of any kind is paid direct to the decree-holder or the decree is otherwise adjusted in whole or in part to the satisfaction of the decree-holder, the decree-holder may certify such payment or adjustment to the court whose duty it is to execute the decree, and the court shall record the same accordingly.

(2) The judgment-debtor also may inform the court of such payment or adjustment, and apply to the court to issue a notice to the decree-holder to show cause, on a day to be fixed by the court, why such payment or adjustment should not be recorded as certified; and if, after service of such notice, the decree-holder fails to show cause why the payment or adjustment should not be recorded as certified, the court shall record the same accordingly.

O.XXI. r. 3. Lands
situate in more than
one jurisdiction.

3. Where immovable property forms one estate or tenure situate within the local limits of the jurisdiction of two or more courts, any one of such courts may attach and sell the entire estate or tenure.

O.XXI. r. 4.
Procedure where
court desires that its
own decree shall be
executed by another
court.

4. The court sending a decree for execution by another court shall send -

(a) a copy of the decree;

(b) a certificate setting forth that satisfaction of the decree has not been obtained by execution within the jurisdiction of the court by which it was passed, or, where the decree has been executed in part, the extent to which satisfaction has been obtained and what part of the decree remains unexecuted; and

(c) a copy of any order for the execution of the decree, or, if no such order has been made, a certificate to that effect.

O.XXI.r.5. Court
receiving copies of
decree to file same
without proof.

5. The court to which a decree is so sent shall cause such copies and certificates to be filed, without any further proof of the decree or order for execution, or of the copies thereof, unless the court, for any special reasons to be recorded under the hand of the judge, requires such proof.

O.XXI.r.6.
Application
for execution.
L.N.16/1984,
L.N.5/1996.

6. Where the holder of a decree desires to execute it, he shall apply to the court which passed the decree, or, if the decree has been sent under the provisions hereinbefore contained to another court, then to such court or to the proper officer thereof; and applications under this rule shall be in accordance with Form No. 5 of Appendix D:

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Provided that, where judgment in default of appearance or defence has been entered against a defendant, no execution by payment, attachment or eviction shall issue unless not less than ten days notice of the entry of judgment has been given to him either at his address for service or served on him personally, and a copy of that notice shall be filed with the first application for execution.

7. (1) Where a decree is for the payment of money the court may, on the oral application of the decree-holder at the time of the passing of the decree, order immediate execution thereof by the arrest of the judgment-debtor, prior to the preparation of a warrant, if he is within the precincts of the court.

O.XXI.r.7 Oral and written applications. L.N.50/1985, L.N.5/1996.

(2) Save as otherwise provided by subrule (1) or by any other enactment or rule, every application for the execution of a decree shall be in writing, signed by the applicant or his advocate or by some other person proved to the satisfaction of the court to be acquainted with the facts of the case, and shall contain in a tabular form the following particulars, namely -

- (a) the number of the suit;
- (b) the names of the parties;
- (c) the date of the decree;
- (d) whether any appeal has been preferred from the decree;
- (e) whether any, and, if any, what payment or other adjustment of the matter in controversy has been made between the parties subsequently to the decree;
- (f) whether any, and if any, what previous applications have been made for the execution of the decree, the dates of such applications, and their results;
- (g) the amount with interest, if any, due upon the decree, or other relief granted thereby, together with particulars of any cross decree, whether passed before or after the date of the decree sought to be executed;
- (h) the amount of the costs, if any, awarded;
- (i) the name of the person against whom execution of the decree is sought; and
- (j) the mode in which the assistance of the court is required,

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whether -

- (i) by the delivery of any property specifically decreed;
- (ii) by the attachment and sale, or by the sale without attachment, of any property;
- (iii) by the arrest and detention in prison of any person;
- (iv) by the appointment of a receiver;
- (v) otherwise, as the nature of the relief granted may require.

- (3) The court to which an application is made under subrule (2) may require the applicant to produce a certified copy of the decree.

(4) *Deleted by 5 of 1996.*

O.XXI. r. 8.
Application for
attachment of
movable property not
in judgment-debtor's
possession.

8. Where an application is made for the attachment of any movable property belonging to a judgment-debtor, but not in his possession, the decree-holder shall annex to the application an inventory of the property to be attached, containing a reasonably accurate description of the same.

O.XXI. r. 9.
Application for
attachment of
immovable
property to contain
certain particulars.

9. Where an application is made for the attachment of any immovable property belonging to a judgment-debtor, it shall contain at the foot -

- (a) a description of such property sufficient to identify the same, and, in case such property can be identified by boundaries, or numbers in Government records or surveys, a specification of such boundaries or numbers; and
- (b) a specification of the judgment-debtor's share or interest in such property to the best of the belief of the applicant, and so far as he has been able to ascertain the same.

O.XXI.r.10. Power
to require certified
extract from Land
Registries in certain
cases.

10. Where an application is made for the attachment of any land which is registered in the Land Registries, the court may require the applicant to produce a certified extract from the register of such office, specifying the persons registered as proprietors of, or as possessing, any transferable interest in the land or its revenue, or as liable to pay revenue for the land, and the shares of the registered proprietors.

11. (1) Where a decree has been passed jointly in favour of more persons than one, any one or more of such persons may, unless the decree imposes any condition to the contrary, apply for the execution of the whole decree for the benefit of them all, or where any of them has died, for the benefit of the survivors and the legal representatives of the deceased.

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O.XXI.r.11.
Application for
execution by joint
decree-holder.

(2) Where the court sees sufficient cause for allowing the decree to be executed on an application made under this rule it shall make such order as it deems necessary for protecting the interests of the persons who have not joined in the application.

12. Where a decree or, if a decree has been passed jointly in favour of two or more persons, the interest of any decree-holder in the decree is transferred by assignment in writing or by operation of law, the transferee may apply for execution of the decree to the court which passed it; and the decree may be executed in the same manner and subject to the same conditions as if the application were made by such decree-holder:

O.XXI.r.12.
Application for
execution by
transferee of decree.

Provided that -

- (i) where the decree, or such interest as aforesaid, has been transferred by assignment, notice of such application shall be given to the transferor and the judgment-debtor, and the decree shall not be executed until the court has heard their objections, if any, to its execution;
- (ii) where a decree for the payment of money against two or more persons has been transferred to one of them, it shall not be executed against the others.

13.(1) On receiving an application for the execution of a decree as provided by rule 7(2), the court shall ascertain whether such of the requirements of rules 7 to 9 as may be applicable to the case have been complied with; and, if they have not been complied with, the court may reject the application, or may allow the defect to be remedied then and there or within a time to be fixed by it.

O.XXI.r.13.
Procedure on
receiving an
application for
execution of decree.
L.N. 119/1975.

(2) Where an application is amended under subrule (1), it shall be deemed to have been an application in accordance with law and presented on the date when it was first presented.

(3) Every amendment made under this rule shall be signed and dated by a judge or registrar.

(4) When the application is admitted, the court shall, subject to

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the provisions hereinafter contained, order execution of the decree according to the nature of the application:

Provided that in the case of a decree for the payment of money the value of the property attached shall, as nearly as may be, correspond with the amount due under the decree.

O.XXI.r.14.

Execution in case of
cross- decrees.

14. (1) Where applications are made to a court for the execution of cross-decrees in separate suits for the payment of two sums of money passed between the same parties and capable of execution at the same time by such court, then -

- (a) if the two sums are equal, satisfaction shall be entered upon both decrees; and
- (b) if the two sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction on the decree for the smaller sum.

(2) This rule shall be deemed to apply where either party is an assignee of one of the decrees and as well in respect of judgment-debts due by the original assignor as in respect of judgment-debts due by the assignee himself.

(3) This rule shall not be deemed to apply, unless -

- (a) the decree-holder in one of the suits in which the decrees have been made is the judgment-debtor in the other and each party fills the same character in both suits; and
- (b) the sums under the decree are definite.

(4) The holder of a decree passed against several persons jointly and severally may treat it as a cross-decree in relation to a decree passed against him singly in favour or one or more of such persons.

O.XXI.r.15.

Execution in case of
cross-claims under
same decree.

15. Where application is made to a court for the execution of a decree under which two parties are entitled to recover sums of money from each other, then -

- (a) if the two sums are equal, satisfaction for both shall be entered upon the decree; and

- (b) if the two sums are unequal, execution may be taken out only by the party entitled to the larger sum, and for so much only as remains after deducting the smaller sum, and satisfaction of the smaller sum shall be entered upon the decree.

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16. The provisions of rules 14 and 15 shall apply when one or both of the decrees for sale is in enforcement of a mortgage or charge.

O.XXI.r. 16. Cross-decrees and cross-claims in mortgage suits.
L.N. 88/1978.

17. The court may, in its discretion, refuse execution at the same time against the person and property of the judgment-debtor.

O.XXI.r.17. Simultaneous execution.

18. (1) Where an application for execution is made -

O.XXI.r.18. Notice to show cause against execution in certain cases.
G.N. 383/1953,
L.N. 119/1975,
L.N. 16/1984.

- (a) more than one year after the date of the decree; or
- (b) against the legal representative of a party to the decree; or
- (c) for attachment of salary or allowance of any person under rule 43,

the court executing the decree shall issue a notice to the person against whom execution is applied for requiring him to show cause, on a date to be fixed, why the decree should not be executed against him:

Provided that no such notice shall be necessary in consequence of more than one year having elapsed between the date of the decree and the application for execution if the application is made within one year from the date of the last order against the party against whom the execution is applied for, made on any previous application for execution, or in consequence of the application being made against the legal representative of the judgment-debtor, if upon a previous application for execution against the same person the court has ordered execution to issue against him:

Provided further that no such notice shall be necessary on any application for the attachment of salary or allowance which is caused solely by reason of the judgment-debtor having changed his employment since a previous order for attachment.

(2) Nothing in subrule (1) shall be deemed to preclude the court from issuing any process in execution of a decree without issuing the notice thereby prescribed, if, for reasons to be recorded, it considers that the issue of such notice would cause unreasonable delay or would defeat the ends of justice.

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(3) Except as provided in rule 6 and in this rule, no notice is required to be served on a judgment debtor before execution is issued against him.

O.XXI.r. 19
Procedure after issue
of notice.

19. (1) Where the person to whom notice is issued under rule 18 does not appear or does not show cause to the satisfaction of the court why the decree should not be executed, the court shall order the decree to be executed.

(2) Where such person offers any objection to the execution of the decree, the court shall consider such objection and make such order as it thinks fit.

O.XXI.r.20. Process
for execution.

20. (1) When the preliminary measures (if any) required by the foregoing rules have been taken, the court shall, unless it sees cause to the contrary, issue its process for the execution of the decree.

(2) Every such process shall bear date the day on which it is issued, and shall be signed by the judge or such officer as the court may appoint in this behalf, and shall be sealed with the seal of the court and delivered to the proper officer to be executed.

O.XXI.r.21.
Endorsement on
process.

21. (1) The officer entrusted with the execution of the process shall endorse thereon the day on, and the manner in, which it was executed, and, if the latest day specified in the process for the return thereof has been exceeded, the reason for the delay, or, if it was not executed, the reason why it was not executed, and shall return the process with such endorsement to the court.

(2) Where the endorsement is to the effect that such officer is unable to execute the process, the court may examine him touching his alleged inability, and may, if it thinks fit, summon and examine witnesses as to such inability, and shall record the result.

O.XXI.r.22. When
court may stay
execution.

22. (1) The court to which a decree has been sent for execution shall, upon sufficient cause being shown, stay the execution of such decree for a reasonable time to enable the judgment-debtor to apply to the court by which the decree was passed, or to any court having appellate jurisdiction in respect of the decree or the execution thereof, for an order to stay the execution, or for any other order relating to the decree or execution which might have been made by the court of first instance, or appellate court if execution has been issued thereby, or if application for execution has been made thereto.

(2) Where the property or person of the judgment-debtor has been seized under an execution, the court which issued the execution may

order the restitution of such property or the discharge of such person [Subsidiary]
pending the results of the application.

(3) Before making an order to stay execution or for the restitution of property or the discharge of the judgment-debtor the court may require such security from, or impose such conditions upon, the judgment-debtor as it thinks fit.

23. No order of restitution or discharge under rule 22 shall prevent the property or person of a judgment-debtor from being retaken in execution of the decree sent for execution. O.XXI.r. 23 Liability of judgment- debtor discharged.

24. Any order of the court by which a decree is passed, or of such appellate court as aforesaid, in relation to the execution of such decree, shall be binding upon the court to which the decree is sent for execution. O.XXI.r.24. Order of court which passed decree or of appellate court to be binding upon court applied to. L.N. 119/1975.

25. Where a suit is pending in any court against the holder of a decree of such court in the name of the person against whom the decree was passed, the court may, on such terms as to security or otherwise, as it thinks fit, stay execution of the decree until the pending suit has been decided. O.XXI.r.25. Stay of execution pending suit between decree-holder and judgment-debtor.

26. Subject to the provisions of section 38 of the Act, every decree for the payment of money, including a decree for the payment of money as an alternative to some other relief, may be executed by the detention in prison of the judgment-debtor, or by the attachment and sale of his property, or by both. O XXI. r.26 Decree for payment of money. L.N. 119/1975.

27. (1) Where the decree is for any specific movable, or for any share in a specific movable, it may be executed by the seizure, if practicable, of the movable or share, and by the delivery thereof to the party to whom it has been adjudged, or to such person as he appoints to receive delivery on his behalf, or by the detention in prison of the judgment-debtor, or by the attachment of his property, or by both. O.XXI.r.27. Decree for specific movable property.

(2) Where any attachment under subrule (1) has remained in force for six months, if the judgment-debtor has not obeyed the decree and the decree-holder has applied to have the attached property sold, such property may be sold, and out of the proceeds the court may award to the decree-holder, in cases where any amount has been fixed by the decree to be paid as an alternative to delivery of movable property, such amount and, in other cases, such compensation as it thinks fit, and shall pay the balance (if any) to the judgment-debtor on his application.

(3) Where the judgment-debtor has obeyed the decree and paid

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all costs of executing the same which he is bound to pay, or where, at the end of six months from the date of the attachment, no application to have the property sold has been made, or, if made, has been refused, the attachment shall cease.

O.XXI.r.28.

Decree for specific performance, for restitution of conjugal rights, or for an injunction. L.N. 119/1975, L.N. 88/1978.

28. (1) Where any party against whom a decree for the specific performance of a contract, or for an injunction, has been passed, has had an opportunity of obeying the decree, and has wilfully failed to obey it, the decree may be enforced by his detention in prison, or by the attachment of his property, or by both.

(2) Where the party against whom a decree for specific performance or for an injunction has been passed is a corporation the decree may be enforced by the attachment of the property of the corporation.

(3) Where any attachment under subrule (1) or (2) has remained in force for six months, if the judgment-debtor has not obeyed the decree and the decree-holder has applied to have the attached property sold, such property may be sold; and out of the proceeds the court may award to the decree-holder such compensation as it thinks fit, and shall pay the balance (if any) to the judgment-debtor on his application.

(4) Where the judgment-debtor has obeyed the decree and paid all costs of executing the same which he is bound to pay, or where at the end of six months from the date of the attachment, no application to have the property sold has been made, or, if made, has been refused, the attachment shall cease.

(5) Where a decree for the specific performance of a contract or for an injunction has not been obeyed, the court may, in lieu of or in addition to all or any of the processes aforesaid, direct that the act required to be done may be done so far as practicable by the decree-holder, or some other person appointed by the court, at the cost of the judgment-debtor, and upon the act being done the expenses incurred may be ascertained in such manner as the court may direct and may be recovered as if they were included in the decree.

29. (*Deleted by L.N. 119/1975.*)

O.XXI.r.30.

Decree for immovable property.

30. (1) Where a decree is for the delivery of any immovable property, possession thereof shall be delivered to the party to whom it has been adjudged, or to such person as he may appoint to receive delivery on his behalf, and, if necessary, by removing any person bound by the decree who refuses to vacate the property.

(2) Where a decree is for the joint possession of immovable

property, such possession shall be delivered by affixing a copy of the [Subsidiary] warrant in some conspicuous place on the property.

(3) Where possession of any building or enclosure is to be delivered, and the person in possession being bound by the decree does not afford free access, the court, through its officers, may, after giving reasonable warning and facility to any woman not appearing in public according to the customs of her community to withdraw, remove or open any lock or bolt or break open any door or do any other act necessary for putting the decree-holder in possession.

31. Where a decree is for the delivery of any immovable property in the occupancy of a tenant or other person entitled to occupy the same and not bound by the decree to relinquish such occupancy, the court shall order delivery to be made by affixing a copy of the warrant in some conspicuous place on the property and notifying the occupant in such manner as may be suitable the substance of the decree in regard to the property.

O.XXI.r.31. Decree for delivery of immovable property when in occupancy of tenant.

32. (1) Notwithstanding anything in these Rules, where an application is for the execution of a decree for the payment of money by the arrest and detention in prison of a judgment-debtor who is liable to be arrested in pursuance of the application, the court may, instead of issuing a warrant for his arrest, issue a notice calling upon him to appear before the court on a day to be specified in the notice and show cause why he should not be committed to prison.

O.XXI.r.32. Discretionary power to permit judgment-debtor to show cause against detention in prison.

(2) Where appearance is not made in obedience to the notice, the court shall, if the decree-holder so requires, issue a warrant for the arrest of the judgment-debtor.

33. Every warrant for the arrest of a judgment-debtor shall direct the officer entrusted with its execution to bring him before the court with all convenient speed, unless the amount which he has been ordered to pay, together with the interest thereon and the costs (if any) to which he is liable, be sooner paid.

O.XXI.r.33. Warrant for arrest to direct judgment-debtor to be brought up.

34. (1) No judgment-debtor shall be arrested in execution of a decree unless and until the decree-holder pays into court such sum as may be sufficient for the subsistence of the judgment-debtor from the time of his arrest until he can be brought before the court.

O.XXI.r. 34 Subsistence allowance.

(2) Where a judgment-debtor is committed to prison in execution of a decree the court shall fix for his subsistence such monthly allowance as he may be entitled to according to the scales fixed under section 41 of the Act, or, where no such scales have been fixed, as it considers sufficient with reference to the class to which he belongs.

[Subsidiary]

(3) The monthly allowance fixed by the court shall be supplied by the party on whose application the judgment-debtor has been arrested by monthly payments to the officer of the court appointed in this behalf in advance before the first day of each month.

(4) Sums disbursed by the decree-holder for the subsistence of the judgment-debtor in prison shall be deemed to be costs in the suit:

Provided that the judgment-debtor shall not be detained in prison or arrested on account of any sum so disbursed.

O.XXI.r.35.
Proceedings on
appearance of
judgment- debtor in
obedience to notice
or after arrest.
L.N. 119/1975

35. (1) Where a judgment-debtor appears before the court in obedience to a notice issued under rule 32, or is brought before the court after being arrested in execution of a decree for the payment of money, and it appears to the court that the judgment-debtor is unable, from poverty or other sufficient cause, to pay the amount of the decree, or, if that amount is payable by installments, the amount of any installment thereof, the court may, upon such terms as it thinks fit, make an order disallowing the application for his arrest and detention or directing his release, as the case may be.

(2) Before making an order for the committal of the judgment-debtor to prison, the court, for reasons to be recorded in writing, shall be satisfied -

- (a) that the judgment-debtor, with the object or effect of obstructing or delaying the execution of the decree -
 - (i) is likely to abscond or leave the local limits of the jurisdiction of the court; or
 - (ii) has, after the institution of the suit in which the decree was passed, dishonestly transferred, concealed or removed any part of his property, or committed any other act of bad faith in relation to his property; or
- (b) that the judgment-debtor has, or has had since the date of the decree, the means to pay the amount of the decree, or some substantial part thereof, and refuses or neglects, or has refused or neglected, to pay the same, but in calculating such means there shall be left out of account any property which is exempt from attachment in execution of the decree; or
- (c) that the decree is for a sum for which the judgment-debtor was bound in a fiduciary capacity to account.

(3) While any of the matters mentioned in subrule (2) are being considered, the court may, in its discretion, order the judgment-debtor to be detained in prison, or leave him in the custody of an officer of the court, or release him on his furnishing security, to the satisfaction of the court, for his appearance when required by the court. [Subsidiary]

(4) A judgment-debtor released under this rule may be re-arrested.

(5) Where the court does not make an order under sub-rule (1), it shall cause the judgment-debtor to be arrested, if he has not already been arrested, and, subject to the provisions of this Act, commit him to prison.

36. Where a decree is for the payment of money, the decree-holder may apply to the court for an order that -

(a) the judgment-debtor; or

(b) in the case of a corporation, any officer thereof; or

(c) any other person,

O.XXI.r.36.
Examination of
judgment-debtor to
his property.

be orally examined as to whether any or what debts are owing to the judgment-debtor, and whether the judgment-debtor has any and what property or means of satisfying the decree, and the court may make an order for the attendance and examination of such judgment-debtor or officer, or other person, and for the production of any books or documents.

37. Where a decree directs an inquiry as to rent or mesne profits, or any other matter, the property of the judgment-debtor may, before the amount due from him has been ascertained, be attached, as in the case of an ordinary decree for the payment of money.

O.XXI.r.37.
Attachment in case
of decree for rent,
or mesne profits,
or other matter,
amount of which
to be subsequently
determined.

38. Where the property to be attached is movable property, other than agricultural produce, in the possession of the judgment-debtor, the attachment shall be made by actual seizure, and the attaching officer shall keep the property in his own custody, or in the custody of one of his subordinates, and shall be responsible for the due custody thereof:

O.XXI.r.38.
Attachment of
movable property
other than
agricultural produce,
in possession of
judgment-debtor.

Provided that, when the property seized is subject to speedy and natural decay, or when the expense of keeping it in custody is likely to

[Subsidiary]

exceed its value, the attaching officer may sell it at once; and further that when the property seized is livestock the court may make such arrangement for the custody and maintenance thereof as it may deem sufficient.

O.XXI.r.39.
Attachment of
agricultural produce.

39. Where the property to be attached is agricultural produce, the attachment shall be made by affixing a copy of the warrant of attachment -

- (a) where such produce is a growing crop, on the land on which such crop is growing; or
- (b) where such produce has been cut or gathered, on the barn, stock, or place in which it is deposited;

and another copy on the outer door or on some other conspicuous part of the house in which the judgment-debtor ordinarily resides, or, with the leave of the court, on the outer door or on some other conspicuous part of the house in which he carries on business or personally works for gain, or in which he is known to have last resided or carried on business or personally worked for gain; and the produce shall thereupon be deemed to have passed into the possession of the court.

O.XXI.r.40.
Provisions as to
agricultural produce
under attachment

40. (1) Where agricultural produce is attached, the court shall make such arrangements for the custody thereof as it may deem sufficient, and, for the purpose of enabling the court to make such arrangements, every application for the attachment of a growing crop shall specify the time at which it is likely to be fit to be cut or gathered.

(2) Subject to such conditions as may be imposed by the court in this behalf, either in the order of attachment or in any subsequent order, the judgment-debtor may tend, cut, gather and store the produce and do any other act necessary for maturing or preserving it; and if the judgment-debtor fails to do all or any of such acts the decree-holder may, with the permission of the court and subject to the like conditions, do all or any of them either by himself or by any person appointed by him in this behalf, and the costs incurred by the decree-holder shall be recoverable from the judgment-debtor as if they were included in, or formed part of, the decree.

(3) Agricultural produce attached as a growing crop shall not be deemed to have ceased to be under attachment or to require re-attachment merely because it has been severed from the soil.

(4) Where an order for the attachment of a growing crop has been made at a considerable time before the crop is likely to be fit to be cut or gathered, the court may suspend the execution of the order

for such time as it thinks fit, and may in its discretion, make a further order prohibiting the removal of the crop pending the execution of the order of attachment. [Subsidiary]

(5) A growing crop which from its nature does not admit of being stored shall not be attached under this rule at any time less than twenty days before the time at which it is likely to be fit to be cut or gathered.

41. (1) In the case of -

- (a) a share in the capital of a corporation;
- (b) other movable property not in the possession of the judgment-debtor,

O.XXI.r.41.

Attachment of share and other property not in possession of judgment-debtor.

for the attachment of which specific provision is not made by these rules the attachment shall be made by a written order prohibiting -

- (i) in the case of the share, the person in whose name the share may be standing from transferring the same or receiving any dividend thereon;
- (ii) in the case of the other movable property except as aforesaid, the person in possession of the same from giving it over to the judgment-debtor.

(2) A copy of such order shall be affixed on some conspicuous part of the precincts of the court, and another copy shall be sent, in the case of the share, to the proper officer of the corporation, and, in the case of the other movable property (except as aforesaid to the person in possession of the same.

(3) If the person in possession of the movable property does not lay claim to such property under rule 53, the court may make an order for actual seizure of the property as if it were in the possession of the judgment-debtor.

42. Where the property to be attached consists of the share or interest of the judgment-debtor in movable property belonging to him and another as co-owners, the attachment shall be made by a notice to the judgment-debtor prohibiting him from transferring the share or interest or charging it in any way.

O.XXI.r.42.

Attachment of share in movables.

43. (1) Where the property to be attached is any salary or periodical allowance payable to the judgment-debtor by any person, the court, whether the judgment-debtor or the person by whom such

O.XXI.r.43.

Attachment of salary or allowance. L.N.119/1975.

[Subsidiary]

salary or allowance is payable is or is not within the local limits of the court's jurisdiction, may order that the amount shall, subject to the provisions of section 44 of the Act, be withheld from such salary or allowance either in one payment or by monthly installments as the court may direct; and upon notice of the order to the person by whom such salary or allowance is payable such person shall withhold and remit to the court or, if the court by the order so directs, to the advocate for the judgment- creditor, the amount due under the order or each or any monthly installment, as the case may be.

(2) Where the attachable proportion of such salary or allowance is already being withheld and remitted in pursuance of a previous and unsatisfied order of attachment the person by whom such salary or allowance is payable shall retain every subsequent order and, upon satisfaction of such previous and unsatisfied order, shall withhold and remit the attachable proportion of the salary or allowance in accordance with the terms of the order next received by him.

(3) Subject to subrule (2), every order made under this rule shall, without further notice or other process, be binding on the person by whom such salary or allowance is payable while the judgment-debtor is in Kenya and also while the judgment-debtor is outside Kenya if he is in receipt of any such salary or allowance payable by such person; and the person by whom such salary or allowance is payable shall be liable for any sum paid in contravention of this rule.

O.XXI.r.44
Attachment of
partnership property.

44. (1) Save as otherwise provided by this rule, property belonging to a partnership shall not be attached or sold in execution of a decree other than a decree passed against the firm or against the partners in the firm as such.

Cap.29.

(2) The court may, on the application of the holder of a decree against a partner, make an order charging the interest of such partner in the partnership property and profits with payment of the amount due under the decree, and may, by the same or a subsequent order, appoint a receiver of the share of such partner in the profits (whether already declared or accruing), and of any other money which may be coming to him in respect of the partnership, and direct accounts and inquiries and make an order for the sale of such interest or other orders as might have been directed or made if a charge had been made in favour of the decree-holder by such partner, or as the circumstances of the case may require. Applications under this paragraph shall be in accordance with the provisions of section 27 of the Partnership Act.

(3) The other partner or partners shall be at liberty at any time to redeem the interest charged, or, in the case of a sale being directed, to purchase the same.

[Subsidiary]

(4) Every application for an order under subrule (2) shall be served on the judgment-debtor and on his partners or such of them as are within Kenya.

(5) Every application made by any partner of the judgment-debtor under subrule (3) shall be served on the decree-holder and on the judgment-debtor, and on such of the other partners as do not join in the application and as are within Kenya.

(6) Service under subrule (4) or (5) shall be deemed to be service on all the partners, and all orders made on such applications shall be similarly served.

45. (1) Where a decree has been passed against a firm, execution may be granted-

O.XXI.r.45.
Execution
of decree against
firm.

- (a) against any property of the partnership;
- (b) against any person who has appeared in his own name under rule 5 or rule 6 of Order XXIX or who has admitted on the pleadings, that he is, or who has been adjudged to be, a partner;
- (c) against any person other than an infant who has been individually served as a partner with the summons and has failed to appear:

Provided that nothing in this paragraph shall be deemed to limit or otherwise affect the provisions of section 247 of the Indian Contract Act, 1872, or any law substituted therefor.

(2) Where the decree-holder claims to be entitled to cause the decree to be executed against any person other than such a person as is referred to in subrules (1) (b) and (1) (c) as being a partner in the firm, he may apply to the court which passed the decree for leave, and, where the liability is not disputed, such court may grant such leave, or, where such liability is disputed, may order that the liability of such person be tried and determined in any manner in which any issue in a suit may be tried and determined.

(3) Where the liability of any person has been tried and determined under subrule (2), the order made thereon shall have the same force and be subject to the same conditions as to appeal or otherwise as if it were a decree.

(4) Save as against any property of the partnership, a decree against a firm shall not release, render liable, or otherwise affect any

[Subsidiary]

partner therein unless he has been served with a summons to appear.

O.XXI.r.46.
Attachment
of negotiable
instrument.

46. Where the property to be attached is a negotiable instrument not deposited in a court nor in the custody of a public officer, the attachment shall be made by actual seizure, and the instrument shall be brought into court and held subject to further orders of the court.

O.XXI.r.47.
Attachment of
property in custody
of court.

47. Where the property to be attached is in the custody of any court, the attachment shall be made by a notice to such court requesting that such property, and any interest or dividend becoming payable thereon, may be held subject to the further orders of the court from which the notice is issued:

Provided that, where such property is in the custody of a court, any question of title or priority arising between the decree-holder and any other person, not being the judgment-debtor, claiming to be interested in such property by virtue of any assignment or otherwise, shall be determined by such court.

O.XXI.r.48.
Attachment of
decree.

48. (1) Where the property to be attached is a decree, either for the payment of money or for sale in enforcement of a mortgage or charge, the attachment shall be made -

- (a) if the decrees were passed by the same court, then by order of such court; and
- (b) if the decree sought to be attached was passed by another court, then by the issue to such other court of a notice by the court which passed the decree sought to be executed, requesting such other court to stay the execution of its decree unless and until -
 - (i) the court which passed the decree sought to be executed cancels the notice, or
 - (ii) the holder of the decree sought to be executed or his judgment-debtor applies to the court receiving such notice to execute its own decree.

(2) Where a court makes an order under subrule (1) (a), or receives an application under subrule (1) (b) (ii), it shall, on the application of the creditor who has attached the decree of his judgment-debtor proceed to execute the attached decree and apply the net proceeds in satisfaction of the decree sought to be executed.

(3) The holder of a decree sought to be executed by the attachment of another decree of the nature specified in subrule (1) shall be deemed

to be the representative of the holder of the attached decree and to be entitled to execute such attached decree in any manner lawful for the holder thereof. [Subsidiary]

(4) Where the property to be attached in the execution of a decree is a decree other than a decree of the nature referred to in subrule (1), the attachment shall be made by a notice, by the court which passed the decree sought to be executed to the holder of the decree sought to be attached, prohibiting him from transferring or charging the same in any way; and, where such decree has been passed by any other court, also by sending to such other court a notice to abstain from executing the decree sought to be attached until such notice is cancelled by the court from which it was sent.

(5) The holder of a decree attached under this rule shall give to the court executing the decree such information and aid as may be required.

(6) On the application of the holder of a decree sought to be executed by the attachment of another decree, the court making an order of attachment under this rule shall give notice of such order to the judgment-debtor bound by the decree attached; and no payment or adjustment of the attached decree made by the judgment-debtor in contravention of such order after receipt of notice thereof, either through the court or otherwise, shall be recognized by any court so long as the attachment remains in force.

49. (1) Where the property to be attached is immovable, the attachment shall be made by an order prohibiting the judgment-debtor from transferring or charging the property in any way, and all persons from taking any benefit from such purported transfer or charge, and the attachment shall be complete and effective upon registration of a copy of the prohibitory order or inhibition against the title to the property.

O.XXI.r.49.
Attachment of
immovable property.
L.N.119/1975.

(2) A copy of the order shall be affixed on a conspicuous part of the property.

50. Where -

(a) the amount decreed with costs and all charges and expenses resulting from the attachment of any property are paid into court, or satisfaction of the decree is otherwise made through the court or is certified by the court; or

O.XXI.r.50.
Removal of
attachment after
satisfaction of decree.

(b) the decree is set aside or reversed;

the attachment shall be deemed to be withdrawn, and, in the case

[Subsidiary]

of immovable property the withdrawal shall, if the judgment-debtor so desires, be proclaimed at his expense, and a copy of the proclamation shall be affixed in the manner prescribed by rule 49 of this Order.

51. (*Deleted by L.N. 88/1978.*)

O.XXI.r.52.

Determination of attachment.

52. Where any property has been attached in execution of a decree, but by reason of the decree-holder's default the court is unable to proceed further with the application for execution, it shall either dismiss the application or for any sufficient reason adjourn the proceedings to a future date. Upon the dismissal of such application the attachment shall cease.

O.XXI.r.53.

Objection to attachment.

L.N. 88/1978,

L.N. 5/1996.

53. (1) Any person claiming to be entitled to or to have a legal or equitable interest in the whole of or part of any property attached in execution of a decree may at any time prior to payment out of the proceeds of sale of such property give notice in writing to the court and to the decree-holder of his objection to the attachment of such property.

(2) Such notice shall contain the objector's address for service and shall set out shortly the nature of the claim which such objector or person makes to the whole or portion of the property attached.

O.XXI.r.54. Stay of execution.

54. Upon receipt of a valid notice given under rule 53, the court shall order a stay of the execution proceedings and shall call upon the attaching creditor by notice in writing within 15 days or such other period as the said notice may prescribe to intimate to the court and the objector in writing whether he proposes to proceed with the attachment and execution thereunder wholly or in part.

O.XXI.r.55. Raising of attachment.

L.N. 88/1978.

L.N. 50/1985.

L.N. 5/1996.

55. Should the attaching creditor in pursuance of a notice issued under rule 54 either fail to reply to the court and the objector within the period prescribed by the notice or intimate in writing to the court and the objector within the period prescribed by such notice that he does not propose to proceed with the execution of the attachment of the whole or of portion of the property subject to the attachment, the court shall make an order raising the attachment as to the whole or portion of the property subject to the attachment in accordance with the intimation received from the attaching creditor and shall make such order as to costs as it shall deem fit.

O.XXI.r.56. Notice of intention to proceed.

L.N. 119/1975.

L.N. 5/1996.

56. Should the attaching creditor, in pursuance of a notice issued under rule 54 intimate to the court and the objector that he proposes to proceed with the attachment, the objector shall take proceedings to establish his claim within 10 days of service upon him of such intimation.

57. (1) Proceedings in pursuance of rule 56 shall be by summons in chambers supported by affidavit in the suit in which the application for attachment was made.

[Subsidiary]
O.XXI.r.57.
Procedure.
L.N. 119/1975.

(2) Such summons shall be served on the attaching creditor and, unless the court otherwise directs, on the judgment-debtor.

(3) A summons under this rule shall operate as a stay of attachment unless the court otherwise orders.

58. (1) Should the objector fail to file proceedings to establish his claim within the time specified in the notice issued under rule 56, his objections shall be deemed to be waived and the attachment and consequential execution shall proceed.

O.XXI.r.58. Objector failing to proceed.
L.N. 119/1975.

(2) Unless the court otherwise orders the judgment-creditor may enter judgment against the objector for the costs occasioned by the objection.

59. Any court executing a decree may order that any property attached by it and liable to sale, or such portion thereof as may seem necessary to satisfy the decree, shall be sold, and that the proceeds of such sale, or a sufficient portion thereof, shall be paid to the party entitled under the decree to receive the same.

O.XXI.r.59.
Power to order property attached to be sold and proceeds to be paid to person entitled.

60. (1) Save as otherwise prescribed, every sale in execution of a decree shall be conducted by an officer of the court or by such other person as the court may appoint in this behalf, and shall be made by public auction in manner prescribed.

O.XXI.r.60. Sales, by whom conducted and how made
L.N. 50/1985.

(2) Any court executing a decree may make orders relating to the payment of the charges for attaching the property or conducting the sale of the property and for the enforcement of such payment.

61. (1) Where any property is ordered to be sold by publication in execution of a decree, the court shall cause public notice and advertisement of the intended sale to be given in such manner as the court may direct.

O.XXI.r.61.
Notification of sales by public auction
L.N. 119/1975.

(2) Such public notice shall be drawn up after notice to the decree-holder and the judgment-debtor, and shall state the time and place of sale, and specify as fairly and accurately as possible -

(a) the property to be sold;

(b) any encumbrance to which the property is liable;

[Subsidiary]

(c) the amount for the recovery of which the sale is ordered;
and

(d) every other thing which the court considers material for a purchaser to know in order to judge of the nature and value of the property:

Provided that notice to the judgment-debtor may be dispensed with, or substituted service thereof ordered, for reasons to be recorded by the court.

(3) Every application for an order for sale under this rule shall be accompanied by a statement signed in the manner hereinbefore prescribed for the signing of pleadings and containing, so far as they are known to or can be ascertained by the person so signing, the matters required by subrule (2) to be specified in the public notice.

(4) For the purpose of ascertaining the matters to be specified in the public notice, the court may summon any person whom it thinks necessary to summon and may examine him in respect to any such matters and require him to produce any document in his possession or power relating thereto.

(5) Directions shall be given as to the mode and expense of advertising the sale, which expense shall be costs of the sale.

(6) The advertisement shall be in Form No. 38 of Appendix D.

O.XXI.r. 62
Time of sale.

62. Save in the case of property of the kind described in the proviso to rule 38, no sale hereunder shall without the consent in writing of the judgment-debtor, take place until after the expiration of at least 30 days in the case of immovable property, and of at least 15 days in the case of movable property, calculated from the date on which the copy of the public notice has been affixed in the precincts of the court of the judge ordering the sale.

O.XXI.r. 63
Adjournment or
stoppage of sale.

63. (1) The court may, in its discretion, adjourn any sale hereunder to a specified day and hour, and the officer conducting any such sale may in his discretion adjourn the sale, recording his reasons for such adjournment:

Provided that where the sale is made in, or within the precincts of, the court no such adjournment shall be made without leave of the court.

(2) Where a sale is adjourned under subrule (1) for a longer period than seven days, fresh public notice shall be given, unless the

judgment-debtor consents to waive it.

[Subsidiary]

(3) Every sale shall be stopped if, before the lot is knocked down, the debt and costs (including the costs of the sale) are tendered to the officer conducting the sale, or proof is given to his satisfaction that the amount of such debt and costs has been paid into the court which ordered the sale.

64. Any deficiency of price which may happen on a re-sale by reason of the purchaser's default, and all expenses attending such re-sale, shall be certified to the court by the officer or other person holding the sale, and shall, at the instance of either the decree-holder or the judgment-debtor, be recoverable from the defaulting purchaser under the provisions relating to the execution of a decree for the payment of money.

O.XXI.r.64.
Defaulting purchaser
answerable for loss
on re-sale.

65. (1) No holder of a decree in execution of which property is sold shall, without the express permission of the court, bid for or purchase the property.

O.XXI.r.65. Decree-
holder not to bid
for or buy property
without permission.

(2) Where a decree-holder purchases with such permission, the purchase money and the amount due on the decree may, subject to section 50 of the Act be set off against one another, and the court executing the decree shall enter up satisfaction of the decree in whole or in part accordingly.

(3) Where a decree-holder purchases, by himself or through another person, without such permission, the court may, if it thinks fit, on the application of the judgment-debtor or any other person whose interests are affected by the sale, by order set aside the sale; and the costs of such application and order, and any deficiency of price which may happen on the re-sale, and all expenses attending it, shall be paid by the decree-holder.

66. No officer, or other person having any duty to perform in connexion with any sale shall, either directly or indirectly bid for, acquire or attempt to acquire, any interest in the property sold.

O.XXI.r.66.
Restriction on
bidding or purchase
by officers.

67. Where the property to be sold is a negotiable instrument or a share in a corporation, the court may, instead of directing the sale to be by public auction, authorize the sale of such instrument or share through a broker.

O.XXI.r.67
Negotiable
instruments
and shares in
corporations.

68. (1) Where movable property is sold by public auction, the price of each lot shall be paid at the time of sale, or as soon after as the officer or other person holding the sale directs, and in default of

O.XXI.r.68. Sales by
public auction.

[Subsidiary]

payment the property shall forthwith be re-sold.

(2) On payment of the purchase money, the officer or other person holding the sale shall grant a receipt for the same, and the sale shall become absolute.

(3) Where the movable property to be sold is a share in goods belonging to the judgment-debtor and a co-owner, and two or more persons, of whom one is such co-owner, respectively bid the same sum for such property or for any lot, the bidding shall be deemed to be the bidding of the co-owner.

O.XXI.r.69.

Irregularity not to vitiate sale, but any person injured may sue.

69. No irregularity in publishing or conducting the sale of movable property shall vitiate the sale; but any person sustaining any injury by reason of such irregularity at the hand of any other person may institute a suit against him for compensation, or (if such person is the purchaser) for the recovery of the specific property and for compensation in default of such recovery.

O.XXI.r.70. Delivery of movable property, debts and shares.

L.N. 119/1975.

70. (1) Where the property sold is movable property of which actual seizure has been made, it shall be delivered to the purchaser.

(2) Where the property sold is movable property in the possession of some person other than the judgment-debtor, the delivery thereof to the purchaser shall be made by giving notice to the person in possession ordering him to deliver possession of the property to the purchaser.

(3) Where the property sold is a share in a company, the delivery thereof shall be made by a written order of the court prohibiting the person in whose name the share may be standing from making any transfer of the share to any person except the purchaser, or receiving payment of any dividend or interest thereon, and the manager, secretary or other proper officer of the company from permitting any such transfer or making any such payment to any person except the purchaser.

(4) Where the execution of a document or the endorsement of the party in whose name a negotiable instrument or share in a company is standing is requisite to transfer such negotiable instrument or share, the judge or registrar may execute such document or make such endorsement as may be necessary, and such execution or endorsement shall have the same effect as an execution or endorsement by that party.

(5) An execution or endorsement under subrule (4) may adopt the following forms of words -

A.B. by C.D. judge of the court of (*or as the case may be*) in suit No. of 19..... by E.F. against A.B.

[Subsidiary]

(6) Until the transfer of such negotiable instrument or share, the court may appoint in writing some person to receive any interest or dividend due thereon and to sign a receipt therefor, and any receipt so signed shall be valid and effective for all purposes.

71. In the case of any movable property not herein- before provided for, the court may make an order vesting such property in the purchaser, or as he may direct; and such property shall vest accordingly.

O.XXI.r.71. Vesting order in case of other property.

72. Sale of immovable property in execution of decrees may be ordered by any court.

O.XXI.r.72. Sale of immovable property.

73. (1) On every sale of immovable property the person declared to be the purchaser shall pay immediately after such declaration a deposit of 25 per cent on the amount of his purchase-money to the officer or other person conducting the sale, and, in default of such deposit, the property shall forthwith be re-sold.

O.XXI.r.73. Deposit by purchaser and re-sale on default.

(2) Where the decree-holder is the purchaser, and is entitled to set off the purchase-money under rule 65, the court may dispense with the requirements of this rule.

74. (1) Except as provided by rule 65, the full amount of the purchase-money shall be paid upon the delivery to the purchaser of an executed conveyance or transfer of the property.

O.XXI.r.74. Payment of purchase-money. L.N.88/1978.

(2) The purchase money shall be paid into court unless the court otherwise orders.

75. In default of payment within the period mentioned in the last preceding rule, the deposit may, if the court thinks fit, after defraying the expenses of the sale, be forfeited and shall if forfeited be allocated towards satisfaction of the decree, and the property shall be re-sold, and the defaulting purchaser shall forfeit all claim to the property or to any part of the sum for which it may subsequently be sold.

O.XXI.r.75. Procedure in default of payment.

76. Every re-sale of immovable property, in default of payment of the purchase-money within the period allowed for such payment, shall be made after the issue of a fresh public notification in the manner and for the period hereinbefore prescribed for the sale.

O.XXI.r.76. Notification on re-sale.

77. Where the property sold is a share of undivided immovable property, and two or more persons, of whom one is a co-sharer, respectively bid the same sum for such property or for any lot, the bid

O.XXI.r.77. Bid of co-sharer to have preference.

[Subsidiary]

shall be deemed to be the bid of the co-sharer.

O.XXI.r.78.

Application to set
aside sale on deposit
L.N. 5/1996.

78. (1) Where immovable property has been sold in execution of a decree, any person, either owning such property or holding an interest therein by virtue of a title acquired before such sale, may apply to have the sale set aside on his depositing in court -

(a) for payment to the purchaser, a sum equal to ten per cent of the purchase-money, and

(b) for payment to the decree-holder, the amount specified in the public notification of sale as that for the recovery of which the sale was ordered, less any amount which may since the date of such public notification of sale have been received by the decree-holder.

(2) Where a person applies under rule 79 to set aside the sale of his immovable property, he shall not, unless he withdraws his application, be entitled to make or prosecute an application under this rule.

(3) Nothing in this rule shall relieve the judgment-debtor from any liability he may be under in respect of costs and interest not covered by the public notification of sale.

O.XXI.r.79.

Application to set
aside sale on ground
of irregularity or
fraud.

79. Where any immovable property has been sold in execution of a decree, the decree-holder, or any person whose interests are affected by the sale, may apply to the court to set aside the sale on the ground of a material irregularity or fraud in publishing or conducting it:

Provided that no sale shall be set aside on the ground of irregularity or fraud unless upon the facts proved the court is satisfied that the applicant has sustained substantial injury by reason of such irregularity or fraud.

O.XXI.r.80.

Application by
purchaser to set
aside sale on ground
of judgment-debtor
having no saleable
interest.

80. The purchaser at any such sale in execution of decree may apply to the court to set aside the sale on the ground that the judgment-debtor had no saleable interest in the property sold.

O.XXI.r.81. Sale,
when to become
absolute or be set
aside.

L.N. 96/1957.

81. (1) Where no application is made under rule 78, rule 79 or rule 80, or where such application is made and disallowed, the court shall make an order confirming the sale, and thereupon the sale shall become absolute in so far as the interest of the judgment-debtor in the property sold is concerned.

[Subsidiary]

(2) Where such application is made and allowed and where, in the case of an application under rule 78, the deposit required by that rule is made within thirty days from the date of sale, the court shall make an order setting aside the sale;

Provided that no order shall be made unless notice of the application has been given to all persons affected thereby.

(3) No suit to set aside an order made under this rule shall be brought by any person against whom such order is made.

82. Where a sale of immovable property is set aside under rule 81, the purchaser shall be entitled to an order for payment of his purchase-money, with or without interest as the court may direct, against any person to whom it has been paid.

O.XXI.r.82. Return of purchase-money in certain cases.

83. Where a sale of immovable property has become absolute, the court shall grant a certificate specifying the property sold and the name of the person who at the time of sale is declared to be the purchaser, and such certificate shall bear date the day on which the sale became absolute.

O.XXI.r.83
Certificate to purchaser.

84. Where the immovable property sold is in the occupancy of the judgment-debtor, or of some person on his behalf, or of some person claiming under a title created by the judgment-debtor subsequently to the attachment of such property, and a certificate in respect thereof has been granted under rule 83, the court shall, on the application of the purchaser, order delivery to be made by putting such purchaser, or any person whom he may appoint to receive delivery on his behalf, in possession of the property, and, if need be, by removing any person who refuses to vacate the same.

O.XXI.r.84. Delivery of property in occupancy of judgment-debtor.

85. Where the property sold is in the occupancy of a tenant or other person entitled to occupy the same, and a certificate in respect thereof has been granted under rule 83, the court shall, on the application of the purchaser, order delivery to be made by affixing a copy of the certificate of sale in some conspicuous place on the property and notifying the occupant in such manner as the court may direct that the interest of the judgment-debtor has been transferred to the purchaser.

O.XXI.r.85. Delivery of property in occupancy of tenant.

86. (1) Where the holder of a decree for the possession of immovable property or the purchaser of any such property sold in execution of a decree is resisted or obstructed by any person in obtaining possession of the property, he may make an application to the court complaining of such resistance or obstruction.

O.XXI.r.86.
Resistance or obstruction to possession of immovable property.

[Subsidiary]

(2) The court shall fix a day for investigating the matter and shall summon the party against whom the application is made to appear and answer the same.

O.XXI.r.87.
Resistance or
obstruction by
judgment-debtor.

87. Where the court is satisfied that the resistance or obstruction was occasioned without any just cause by the judgment-debtor, or by some other person at his instigation, it shall direct that the applicant be put into possession of the property, and, where the applicant is still resisted or obstructed in obtaining possession, the court may also, at the instance of the applicant, order the judgment-debtor, or any person acting at his instigation, to be detained in prison for a term which may extend to thirty days.

O.XXI.r.88.
Resistance or
obstruction by bona
fide claimant.

88. Where the court is satisfied that the resistance or obstruction was occasioned by any person (other than the judgment-debtor) claiming in good faith to be in possession of the property on his own account or on account of some person other than the judgment-debtor, the court shall make such order as it may deem to be just.

O.XXI.r.89. Rules
not applicable
to transferee *lite*
pendente.

89. Nothing in rule 88 shall apply to resistance or obstruction in execution of a decree for the possession of immovable property by a person to whom the judgment-debtor has transferred the property after the institution of the suit in which the decree was passed or to the dispossession of any such person.

O.XXI.r.90. Order
conclusive subject to
regular suit.

90. Any party not being a judgment-debtor against whom an order is made under rule 87 or rule 88, may institute a suit to establish the right which he claims to the present possession of the property; but, subject to the result of such suit, if any, the order shall be conclusive.

O.XXI.r.91.
Procedure.
L.N.119/1975

91. Applications under rules 2 (2), 4, 11, 12, 22 (1), 25, 36, 44 (2) (3), 65 (1), 65 (3), 84, 85 and 86 (1) shall be by summons in chambers.

ORDER XXII

ATTACHMENT OF DEBTS

O.XXII.r.1. Order
for the attachment of
debts. L.N. 119/1975,
L.N. 88/1978.

1. (1) A court may, upon the *ex parte* application of a decree-holder, and either before or after an oral examination of the judgment-debtor, and upon affidavit by the decree-holder or his advocate, stating that a decree has been issued and that it is still unsatisfied and to what amount, and that another person is indebted to the judgment-debtor and is within the jurisdiction, order that all debts (other than the salary or allowance coming within the provisions of Order XXI, rule 43) owing from such third person (hereinafter called the “garnishee”) to the judgment-debtor shall be attached to answer the decree together with the

costs of the garnishee proceedings; and by the same or any subsequent order it may be ordered that the garnishee shall appear before the court to show cause why he should not pay to the decree-holder the debt due from him to the judgment-debtor or so much thereof as may be sufficient to satisfy the decree together with the costs aforesaid. [Subsidiary]

(2) At least seven days before the day of hearing the order *nisi* shall be served on the garnishee, and, unless otherwise ordered, on the judgment-debtor.

(3) Service on the judgment-debtor may be made either at the address for service if the judgment-debtor has appeared in the suit and given an address for service, or on his advocate if he has appeared by advocate, or if there has been no appearance then by leaving the order at his usual residence or place of business or in such manner as the court may direct.

(4) An order *nisi* shall be in Form No. 15 of Appendix D.

IA. (1) A credit in a deposit account with a bank or a building society shall for the purposes of this Order be a sum due or accruing and shall be attachable accordingly notwithstanding that any of the following requirements is applicable to the account and has not been complied with -

O.XXII.r.1A.
Attachment of
deposits. L.N.
119/1975.

- (a) that notice is required before any money is withdrawn;
- (b) that a personal application must be made before any money is withdrawn;
- (c) that a deposit book must be produced before any money is withdrawn; or
- (d) that a receipt for money deposited in the account must be produced before any money is withdrawn.

(2) This rule shall not apply to any account in the Kenya Post Office Savings Bank nor to any account in any bank or building society with two or more places of business if the terms applicable to that account permit withdrawals on demand on production of a deposit book at more than one of those places of business with or without restrictions as to the amount which may be withdrawn.

2. Service of an order that debts due to a judgment-debtor liable under a decree shall be attached, or notice thereof to the garnishee in such manner, as the court may direct, shall bind such debts in his hands.

O.XXII.r.2. Effect of
garnishee order.

[Subsidiary]

O.XXII.r.3.

Execution against
garnishee.

3. If the garnishee does not dispute the debt due or claimed to be due from him to the judgment-debtor, or, if he does not appear upon the day of hearing named in an order *nisi*, then the court may order execution against the person and goods of the garnishee to levy the amount due from him, or so much thereof as may be sufficient to satisfy the decree, together with the costs of the garnishee proceedings; and the order absolute shall be in Form No. 15 (a) or 15 (b) of Appendix D, as the case may require.

O.XXII.r.4. Trial of
liability of garnishee.

4. If the garnishee disputes his liability, the court, instead of making an order that execution be levied, may order that any issue or question necessary for determining his indebtedness be tried and determined in the manner in which an issue or question in a suit is tried or determined.

O.XXII.r.5. Claim of
third person.

5. Whenever in any proceedings to obtain an attachment of debts it is suggested by the garnishee that the debt sought to be attached belongs to some third person, or that any third person has a lien or charge upon it, the court may order such third person to appear, and state the nature and particulars of his claim upon such debt.

O.XXII.r.6. Trial of
claim of third person.

6. After hearing the allegations of any third person under such order, as in rule 5 mentioned, or of any other person who by the same or any subsequent order the court may order to appear, or in case of such third person not appearing when ordered, the court may order execution for levying the amount due from the garnishee, together with the costs of the garnishee proceedings, or order any issue or question to be tried or determined according to the preceding rules of this Order, and may bar the claim of such third person or make such other order as the court shall think fit.

O.XXII.r.7. Payment
by or execution on
the garnishee is a
valid discharge.

7. Payment made by or execution levied upon the garnishee under any such proceeding as aforesaid shall be a valid discharge to him as against the judgment-debtor to the amount paid or levied, although such proceeding or order may be set aside or the decree reversed.

O.XXII. r.8. Record
of proceedings.

8. Proceedings under this Order shall be filed upon the record of the suit in which the decree sought to be enforced was obtained.

O.XXII.r.9. Costs of
proceedings.

9. The costs of any application for an attachment of debts and of any proceedings arising from or incidental to such application, shall be in the discretion of the court, and the costs of the decree-holder shall, unless otherwise directed, be retained out of the money recovered by him under the garnishee order, and in priority to the amount due under the decree.

10. An application under this Order may be heard in chambers and shall be by summons.

[Subsidiary]
OXXII.r.10
Procedure.

ORDER XXIIA

(Deleted by L.N. 119/1975.)

ORDER XXIII

DEATH, BANKRUPTCY AND MARRIAGE OF PARTIES

1. The death of a plaintiff or defendant shall not cause the suit to abate if the cause of action survives or continues.

O.XXIII.r.1. No abatement by party's death if right survives.

2. Where there are more plaintiffs or defendants than one, and any one of them dies, and where the cause of action survives or continues to the surviving plaintiff or plaintiffs alone or against the surviving defendant or defendants alone, the court shall cause an entry to that effect to be made on the record, and the suit shall proceed at the instance of the surviving plaintiff or plaintiffs, or against the surviving defendant or defendants.

O.XXIII.r.2. Procedure where one of several plaintiffs or defendants dies and right to sue survives.

3. (1) Where one of two or more plaintiffs dies and the cause of action does not survive or continue to the surviving plaintiff or plaintiffs alone, or a sole plaintiff or sole surviving plaintiff dies and the cause of action survives or continues, the court, on an application made in that behalf, shall cause the legal representative of the deceased plaintiff to be made a party and shall proceed with the suit.

O.XXIII.r.3. Procedure in case of death of one of several plaintiffs or of sole plaintiff. L.N. 88/1978.

(2) Where within one year no application is made under subrule (1), the suit shall abate so far as the deceased plaintiff is concerned, and, on the application of the defendant, the court may award to him the costs which he may have incurred in defending the suit to be recovered from the estate of the deceased plaintiff.

4. (1) Where one of two or more defendants dies and the cause of action does not survive or continue against the surviving defendant or defendants alone, or a sole defendant or sole surviving defendant dies and the cause of action survives or continues, the court, on an application made in that behalf, shall cause the legal representative of the deceased defendant to be made a party and shall proceed with the suit.

O.XXIII.r.4. Procedure in case of death of one of several defendants or of sole defendant.

(2) Any person so made a party may make any defence appropriate to his character as legal representative of the deceased defendant.

(3) Where within one year no application is made under subrule

[Subsidiary]

(1), the suit shall abate as against the deceased defendant.

OXXIII.r. 5.
Determination of
question as to legal
representative.

5. Where a question arises as to whether any person is or is not the legal representative of a deceased plaintiff, or a deceased defendant, such question shall be determined by the court.

6. (*Deleted by L.N. 88/1978.*)

OXXIII.r.7. When
plaintiff's bankruptcy
bars suit

7. (1) The bankruptcy of a plaintiff in any suit which the trustee or official receiver might maintain for the benefit of his creditors shall not cause the suit to abate, unless such trustee or official receiver declines to continue the suit or (unless for any special reason the court otherwise directs) to give security for the costs thereof within such time as the court may direct.

(2) Where the trustee or official receiver neglects or refuses to continue the suit, and to give such security within the time so ordered, the defendant may apply for the dismissal of the suit on the ground of the plaintiff's bankruptcy, and the court may make an order dismissing the suit and awarding to the defendant the costs which he has incurred in defending the same to be proved as a debt against the plaintiff's estate.

OXXIII.r.8. Effect of
abatement or
dismissal.
L.N. 88/1978,
L.N. 5/1996.

8. (1) Where a suit abates or is dismissed under this Order, no fresh suit shall be brought on the same cause of action.

(2) The plaintiff or the person claiming to be the legal representative of a deceased plaintiff or the trustee or official receiver in the case of a bankrupt plaintiff may apply for an order to revive a suit which has abated or to set aside an order of dismissal; and, if it is proved that he was prevented by any sufficient cause from continuing the suit, the court shall revive the suit or set aside such dismissal upon such terms as to costs or otherwise as it thinks fit.

OXXIII.r.9.
Procedure in case of
assignment before
final order in suit.

9. (1) In other cases of an assignment, creation, or devolution of any interest during the pendency of a suit, the suit may, by leave of the court; be continued by or against the person to or upon whom such interest has come or devolved.

(2) The attachment of a decree pending an appeal therefrom shall be deemed to be an interest entitling the person who procured such attachment to the benefit of subrule (1).

OXXIII.r.10.
Application of Order
to appeals.

10. In the application of this Order to appeals, so far as may be, the word "plaintiff" shall be held to include an appellant, the word "defendant" a respondent, and the word "suit" an appeal.

11. Nothing in rules 3, 4 and 8 shall apply to proceedings in execution of a decree or order.

[Subsidiary]
O.XXIII.r.11.
Application of order
to proceedings.

12. An application under this Order may be heard in chambers and shall be by summons.

O.XXIII.r.12.
Procedure.

ORDER XXIV

WITHDRAWAL, DISCONTINUANCE AND ADJUSTMENT OF SUITS

1. At any time before the setting down of the suit for hearing the plaintiff may by notice in writing wholly discontinue his suit against all or any of the defendants or may withdraw any part of his claim, and such discontinuance or withdrawal shall not be a defence to any subsequent action.

O.XXIV.r.1.
Withdrawal by
plaintiff. L.N.
88/1978.

2. (1) Where a suit has been set down for hearing it may be discontinued, or any part of the claim withdrawn, upon the filing of a written consent signed by all the parties.

O.XXIV.r.2.
Discontinuance.
L.N.88/1978.

(2) Where a suit has been set down for hearing the court may grant the plaintiff leave to discontinue his suit or to withdraw any part of his claim upon such terms as to costs, the filing of any other suit, and otherwise, as are just.

(3) The provisions of this rule and rule 1 shall apply to counterclaims.

3. Upon request in writing by any defendant the registrar shall sign judgment for the costs of a suit which has been wholly discontinued, and any defendant may apply at the hearing for the costs of any part of the claim against him which has been withdrawn.

O.XXIV.r.3. Costs.
L.N.88/1978,
L.N.16/1984.

4. If any subsequent suit shall be brought before payment of the costs of a discontinued suit, upon the same, or substantially the same, cause of action, the court may order a stay of such subsequent suit until such costs shall have been paid.

O.XXIV.r.4. Stay of
subsequent suit.

5. (*Deleted by L.N.88 /1978.*)

6. (1) Where it is proved to the satisfaction of the court, and the court after hearing the parties directs, that a suit has been adjusted wholly or in part by any lawful agreement or compromise, or where the defendant satisfies the plaintiff in respect of the whole or any part of the subject-matter of the suit, the court shall, on the application of any party, order that such agreement, compromise or satisfaction be

O.XXIV.r.6.
Compromise of a
suit. L.N.119/1975

[Subsidiary]

recorded and enter judgment in accordance therewith.

(2) The court, on the application of any party, may make any further order necessary for the implementation and execution of the terms of the decree.

7. (*Deleted by L.N. 16/1984.*)

ORDER XXV

SECURITY FOR COSTS

O.XXV.r.1.
Security for costs.

1. In any suit the court may order that security for the whole or any part of the costs of any defendant or third or subsequent party be given by any other party.

O.XXV.r.2.
Application before
defence.

2. If an application for security for costs is made before a defence is filed, there shall be filed with the application an affidavit setting out the grounds of the defence together with a statement of the deponent's belief in the truth of the facts alleged.

O.XXV.r. 3. Where
two or more
defendants.

3. Where it appears to the court that the substantial issue is which of two or more defendants is liable or what proportion of liability two or more defendants should bear no order for security for costs may be made.

O.XXV.r. 4. Claims
by non-resident
plaintiff.

4. In any suit brought by a person not residing in Kenya, if the claim is founded on a bill of exchange or other negotiable instrument or on a judgment or order of a foreign court, any order for security for costs shall be in the discretion of the court.

O.XXV.r.5. Effect
of failure to give
security.

5. (1) If security for costs is not given within the time ordered and if the plaintiff is not permitted to withdraw the suit, the court shall, upon application, dismiss the suit.

(2) If a suit is dismissed under subrule (1) and the plaintiff proves that he was prevented by sufficient cause from giving the required security for costs the court may set aside the order dismissing the suit and extend the time for giving the required security.

O.XXV.r.6.
Procedure.

6. An application under this Order may be heard in chambers and shall be by summons.

O.XXV.r.7.
Investment of
security. L.N.
16/1984.

7. (1) Where security by payment has been ordered, the party ordered to pay may make payment to a bank or a building society in the joint names of himself and the defendant or in the names of their respective advocates when advocates are acting.

[Subsidiary]

(2) The court may make orders for the disposal of security so invested.

ORDER XXVI

PAYMENT INTO COURT AND TENDER

1. (1) In any suit for a debt or damages any defendant may at any time after appearance upon notice to the plaintiff pay into court a sum of money in satisfaction of the claim or (where several causes of action are joined in one suit) in satisfaction of one or more of the causes of action.

O.XXVI.r.1. Payment into court.L.N. 119/1975, L.N. 88/1978.

(2) Where money is paid into court in satisfaction of one or more of several causes of action the notice shall specify the causes of action in respect of which payment is made and the sum paid in respect of each such cause of action unless the registrar or, in a subordinate court, the executive officer, otherwise orders.

(3) The notice shall be in Form No. 29 of Appendix A but may be modified or withdrawn or delivered in an amended form by leave of the registrar or, in a subordinate court, the executive officer, upon such terms as are just except that the defendant may, without leave deliver a notice increasing the amount of any sum paid into court, which shall be in Form No. 29A of Appendix A.

2. (1) Where money is paid into court under rule 1 the plaintiff may, within fourteen days of the receipt of notice thereof, or where more than one payment has been made, within fourteen days of the receipt of notice of the last payment, accept the whole sum or any one or more of any sums specified to be in satisfaction of different causes of action by giving notice to the defendant in Form No. 30 of Appendix A and thereupon he shall be entitled to receive payment accordingly.

O.XXVI.r.2. Acceptance of payment. L.N. 119/1975.

(2) Payment shall be made to the plaintiff or to his advocate, and thereupon proceedings in the suit or in respect of the cause or causes of action to which the payment relates shall be stayed.

(3) The registrar shall, if so requested in writing not less than fourteen days after delivery to the defendant of the notice in Form No. 30 of Appendix A, give judgment for the plaintiff's costs incurred up to the time of payment into court unless the defendant has applied by summons for an order disallowing the plaintiff's costs or any part thereof.

(4) A plaintiff in an action for libel or slander who has accepted a payment into court may apply by summons for leave to make in open

[Subsidiary]

court a statement the terms of which shall have been approved by the court.

O.XXVI.r.3. Money
remaining in court.
L.N. 119/1975.

3. If money paid into court is not accepted in accordance with rule 2 (1) the money remaining in court shall not be paid out except by consent or in pursuance of an order of the court, which may be made at any time before, at or after the hearing of the suit; and where such an order is made the money shall not be paid out except in satisfaction of the claim or cause or causes of action in respect of which it was paid in.

O.XXVI.r.4. Payment
in where several
defendants.
L.N. 119/1975.

4. (1) Money may be paid into court under rule 1 by any of several defendants sued jointly or in the alternative upon notice to the other defendants.

(2) If within fourteen days after receipt of notice of payment into court the plaintiff elects to accept the sum or sums paid into court, he shall give notice in Form No. 30 of Appendix A to each defendant.

(3) Upon acceptance under subrule (2) all further proceedings in the suit or in respect of the cause of action to which the payment relates, as the case may be, shall be stayed, and the money shall not be paid out except in pursuance of an order of the court dealing with the whole costs of the suit or cause of action, as the case may be.

(4) If in an action for libel or slander against several defendants sued jointly any defendant pays money into court, the plaintiff may within fourteen days elect to accept the payment in satisfaction of his claim against the defendant making the payment and shall give notice to all defendants in Form No. 30 of Appendix A; and the plaintiff may proceed to judgment under rule 2(3) against the defendant who has made such payment, and the action shall thereupon be stayed against that defendant.

(5) The plaintiff may continue with the suit against any other defendant, but the sum paid into court shall be set off against any damages ordered to be paid to the plaintiff by such defendant

O.XXVI.r.5.
Payment in on a
counterclaim.
L.N. 119/1975.

5. A plaintiff or other person made a defendant to a counterclaim may pay money into court in accordance with the provisions of this Order subject to any necessary modification.

O.XXVI.r.6.
Confidentiality of
payments into court.
Cap. 36.
L.N. 119/1975.

6. (1) Unless a defence of tender before action or a plea under section 12 of the Defamation Act is pleaded, the fact that a payment into court has been made under this Order shall not be mentioned in any pleading.

(2) Subject to rule 3, no communication of such fact may be

made to the judge until all questions of liability and the amount of the debt or damages shall have been decided, whereupon the fact shall be mentioned to the judge who shall take into account the amount of such payment in exercising his discretion as to costs. [Subsidiary]

7. The registrar of every court shall maintain a register containing details of every payment into court made under this Order. O.XXVI.r.7. Register of payments to be kept. L.N. 119/1975.

8. (1) In place of payment into court as provided by the foregoing rules the defendant may make payment to a bank or building society in the joint names of himself and the plaintiff or in the names of their respective advocates when advocates are acting. O.XXVI.r.8. Investment of payment. L.N. 88/1978.

(2) Such payment shall in all respects be as effective as payment into court and the court may make orders for its disposal.

9. (*Deleted by L.N. 119/1975.*)

10. Money paid into court under an order of the court shall not be paid out except in pursuance of an order of the court: O.XXVI.r.10. Money paid in under order.

Provided that, where before the filing of defence money has been paid into court by the defendant pursuant to an order under the provisions of Order XXXV, he may (unless the court shall order otherwise) by his pleading appropriate the whole or any part of such money, and any additional payment if necessary to the whole or any specified portion of the plaintiff's claim, or if he pleads a tender, may appropriate the whole or any part of the money in court as payment into court of the money alleged to have been tendered; and the money so appropriated shall thereupon be deemed to be money paid into court pursuant to the preceding rules of this Order relating to money paid into court with a plea of tender, as the case may be, and shall be subject in all respects thereto.

11. In any cause or matter in the High Court in which money or damages is or are claimed by or on behalf of an infant or a person of unsound mind but not found upon inquiry to be incapable of managing his own affairs, suing either alone or in conjunction with other parties, no settlement or compromise or acceptance of money paid into court, whether before or at or after the hearing, shall, as regards the claims of any such infant or person of unsound mind, be valid without the sanction of the court, and no money or damages recovered or awarded in any such cause or matter in respect of the claims of any such infant or person of unsound mind, whether by judgment or by settlement, compromise, payment into court or otherwise, before or at or after the hearing, shall be paid to the next friend of the plaintiff or to the plaintiff's advocate, unless the court shall so direct; and all money or damages so recovered O.XXVI.r.11. Moneys recovered by infant or person of unsound mind.

[Subsidiary]

or awarded shall, unless the court shall otherwise direct, be paid to the Public Trustee, and shall, subject to any general or special directions of the court, be held and applied by him in such manner as he shall think fit for the maintenance and education or otherwise for the benefit of such infant or person of unsound mind:

Provided always that the Public Trustee may pay out of the decretal amount such costs as the plaintiff may have incurred in the institution and conduct of the cause or matter in which the decree shall have been issued.

O.XXVI.r.12.
Procedure.
L.N. 88/1978.

12. An application under this Order may be heard in chambers and shall be by summons.

ORDER XXVII

COMMISSIONS AND REFERENCES

O.XXVII.r.1. Cases
in which court may
issue commission to
examine witnesses.

1. Any court may in any suit issue a commission for the examination on interrogatories or otherwise of any person resident within the limits of its jurisdiction who is exempted under the Act from attending the court or who is from sickness or infirmity unable to attend it.

2. (*Deleted by L.N. 119/1975.*)

O.XXVII.r.3. Where
witness resides
within court's
jurisdiction.

3. A commission for the examination of a person who resides within the local limits of the jurisdiction of the court issuing the same may be issued to any person whom the court thinks fit.

O.XXVII.r.4.
Persons for whose
examination
commission may
issue.

4. (1) Any court may in any suit issue a commission for the examination of -

- (a) any person resident beyond the local limits of its jurisdiction;
- (b) any person who is about to leave such limits before the date on which he is required to be examined in court; and
- (c) any civil or military officer of the Government who cannot in the opinion of the court attend without detriment to the public service.

(2) Such commission may be issued to any court, other than the High Court, within the local limits of whose jurisdiction such person

resides, or to any advocate or other person whom the court issuing the commission may appoint. [Subsidiary]

5. Where any court to which application is made for the issue of a commission for the examination of a person residing at any place not in Kenya is satisfied that the evidence of such person is necessary, the court may issue such commission or a letter of request. O.XXVII.r.5.
Request to examine witness abroad.

6. Every court in Kenya receiving a commission for the examination of any person shall examine him or cause him to be examined pursuant thereto. O.XXVII.r.6.
Court to examine witness pursuant to commission.

7. Where a commission has been duly executed, it shall be returned, together with the evidence taken under it, to the court from which it was issued, unless the order for issuing the commission has otherwise directed, in which case the commission shall be returned in terms of such order; and the commission and the return thereto and the evidence taken under it shall form part of the record of the suit. O. XXVII.
r.7. Return of commission with deposition of witness.
L.N. 88/1978.

8. (*Deleted by L.N. 88 /1978.*)

9. On the application of any party or of its own motion in any suit, the court may issue a commission to any person to make an investigation and report to the court for the purpose - O.XXVII.r.9.
Commissions to make investigations.
L.N.88/1978.

(a) of ascertaining any matter in dispute in the suit, whether or not the matter is substantially the whole matter in dispute between the parties; or

(b) of ascertaining the value of any property or the extent of any damage thereto, or the amount of returns, profits, damages or mesne profits.

10. (1) The commissioner, after such local inspection as he deems necessary and after reducing to writing the evidence taken by him, shall return such evidence, together with his report in writing signed by him, to the court. O.XXVII.r.10.
Procedure of commissioner.

(2) The report of the commissioner and the evidence taken by him (but not the evidence without the report) shall be evidence in the suit and shall form part of the record; but the court, or, with the permission of the court, any of the parties to the suit, may examine the commissioner personally in open court touching any of the matters referred to him or mentioned in his report, or as to his report, or as to the manner in which he has made the investigation. Report and depositions to be evidence.

[Subsidiary]

(3) Where the court is for any reason dissatisfied with the proceeding of the commissioner, it may direct such further inquiry to be made as it shall think fit.

O.XXVII.r.11.
Referee to examine
accounts. L.N.
88/1978.

11. On the application of any party or of its own motion in any suit in which the examination of accounts is necessary or desirable, the court may refer the accounts for examination to such person as it thinks fit.

O.XXVII.r.12.
Court to give
referee necessary
instructions.
Proceedings and
report to be evidence.

12. (1) The court shall furnish a referee appointed under rule 11 with such part of the proceedings and such instructions as appear necessary, and the instructions shall distinctly specify whether the referee is merely to transmit the proceedings which he may hold on the inquiry, or also to report his own opinion on the point referred for his examination.

(2) The proceedings and report (if any) of the referee shall be evidence in the suit, but where the court has reason to be dissatisfied with them it may direct such further inquiry as it shall think fit.

O.XXVII.r.13.
Partition of
immovable property.

13. Where a preliminary decree for partition has been passed, the court may appoint such person as it thinks fit to make the partition or separation according to the rights as declared in such decree.

O.XXVII.r.14.
Procedure upon
partition.

14.(1) The person appointed shall, after such inquiry as may be necessary, divide the property into as many shares as may be directed by the order under which he was appointed, and shall allot such shares to the parties, and may, if authorized thereto by the said order, award sums to be paid for the purpose of equalizing the value of the shares.

(2) He shall then prepare and sign a report, or, where more than one person was appointed, and they cannot agree, they shall prepare and sign separate reports, appointing the share of each party and distinguishing each share (if so directed by the said order) by measurements and boundaries. Such report or reports shall be annexed to the appointments and transmitted to the court; and the court, after hearing any objections which the parties may make to the report or reports, shall confirm, vary, or set aside the same.

(3) Where the court confirms or varies the report or reports it shall pass a decree in accordance with the same as confirmed or varied; but where the court sets aside the report or reports it shall make such order as it thinks fit.

O.XXVII.r.15.
Expenses of
commission to be
paid into court.

15. Before issuing any commission, reference or appointment under this Order, the court may order such sum (if any) as it thinks

reasonable for the expenses of the commission, reference or inquiry, to be, within a time to be fixed, paid into court by the party at whose instance or for whose benefit the commission, reference or appointment is issued. [Subsidiary]

16. Any person appointed under this Order may, unless otherwise directed by the order of appointment -

O.XXVII.r.16.
Powers of
commissioner.

- (a) examine the parties themselves and any witness whom they or any of them may produce, and any other person whom the person appointed thinks proper to call upon to give evidence in the matter referred to him;
- (b) call for and examine documents and other things relevant to the subject of the inquiry;
- (c) at any reasonable time enter upon or into any land or building mentioned in the order.

17. (1) The provisions of the Act and these Rules relating to the summoning, attendance and examination of witnesses, and to the remuneration of, and penalties to be imposed upon witnesses, shall apply to persons required to give evidence or to produce documents under this Order, and for the purposes of this rule any person appointed under this Order shall be deemed to be a judge.

O.XXVII.r.17.
Attendance and
examination of
witnesses before
commissioner.

(2) A commissioner appointed under the Act may apply to the court which has appointed him for the issue of any process which he may find it necessary to issue to or against any witness who resides within the local limits of the jurisdiction of such court, and such court may in its discretion issue such process as it considers reasonable and proper.

18. (1) Where a commission is issued under the preceding rules, the court shall direct that the parties to the suit shall appear before the commissioner in person or by their agents or advocates.

O.XXVII.r.18.
Parties to appear
before commissioner.

(2) Where all or any of the parties do not so appear, the person executing the commission may proceed in their absence.

19. The provisions as to the execution and return of commissions for the examination of witnesses shall apply to commissions issued by-

O.XXVII.r.19.
Commissions issued
by foreign courts.

- (a) courts situated in any part of the Commonwealth other than Kenya;
- (b) courts of any foreign country for the time being in alliance

[Subsidiary]

with Kenya.

O.XXVII.r.20.
Procedure.
L.N. 119/1975.

20. An application under this Order may be heard in chambers and shall be by summons.

O.XXVII.r.21.
Evidence in
proceedings by
or against the
Government.
L.N.299/1957.

21. For the avoidance of doubt it is hereby declared that any powers exercisable by the court in regard to the taking of evidence are exercisable in civil proceedings by or against the Government as they are exercisable in proceedings between subjects.

ORDER XXVIII

L.N.119/1975.

PROCEEDINGS BY OR AGAINST THE GOVERNMENT

O.XXVIII.r.1.
Interpretation.
Cap. 40.

1. (1) The expressions “civil proceedings by the Government”, “civil proceedings against the Government” and “civil proceedings by or against the Government” have the same respective meanings as in Part III of the Government Proceedings Act and do not include any of the proceedings specified in subsection (3) of section 19 of that Act; “civil proceedings to which the Government is a party” has the same meaning as it has for the purposes of Parts IV and V of the Government Proceedings Act by virtue of subsection (3) of section 2 of that Act;

“order against the Government” means any order (including a judgment, decree, rule, award, declaration and an order for costs) made in civil proceedings brought by or against the Government, or in connexion with any arbitration to which the Government is a party, in favour of any person against the Government or against a Government department or against a public officer as such.

(2) Except where the context otherwise requires, references to suits where the subject-matter is immovable or movable property shall be construed as including proceedings against the Government for an order declaring that the plaintiff is entitled as against the Government to such property or to the possession thereof.

O.XXVIII.r.2.
Rules to apply
to proceedings
by or against the
Government.

2. (1) Except as provided by the Government Proceedings Act or by these Rules -

(a) these Rules shall apply to all civil proceedings by or against the Government;

(b) civil proceedings by or against the Government shall take the same form as civil proceedings between subjects and shall, if no special form is applicable, take the form of a suit

instituted by a plaintiff.

[Subsidiary]

(2) No order against the Government may be made under -

Order XIII, rule 4 (impounding of documents);
Order XXI (execution of decrees and orders);
Order XXII (attachment of debts);
Order XL (appointment of receiver).

3. Any application for a certificate under section 21 of the Government Proceedings Act (which relates to satisfaction of orders against the Government) shall be made to a registrar or, in the case of a subordinate court, to the court; and any application under that section for a direction that a separate certificate be issued with respect to costs ordered to be paid to the applicant shall be made to the court and may be made *ex parte* without a summons, and such certificate shall be in one of Forms Nos. 24 and 25 of Appendix C with such variations as circumstances may require.

O.XXVIII.r.3.
Application for a certificate under s. 21 of the Government Proceedings Act.

4. (1) No order for the attachment of debts under Order XXII or for the appointment of a receiver under Order XL shall be made or have effect in respect of any money due or accruing or alleged to be due or accruing from the Government.

O.XXVIII.r.4.
No order for attachment of debts or appointment of a receiver to be made in respect of moneys due by Government.

(2) In a case where it is alleged that such an order could have been obtained and would have had effect in respect of such money if it had been due or accruing from a subject the court may on the application by summons of the judgment-creditor make an order restraining the judgment-debtor from receiving such money and directing payment by the Government to the judgment-creditor or receiver; and the court may appoint a receiver for that purpose.

(3) No such order shall be made in respect of -

- (a) (*Deleted by L.N. 130/1979.*);
- (b) money which is subject to the provisions of any enactment prohibiting or restricting assigning or charging or taking in execution; or
- (c) money payable by the Government to any person on account of a deposit in the Kenya Post Office Savings Bank.

(4) Any such summons shall be served at least four days before the return day on the Government and, unless otherwise ordered, on the judgment-debtor or his advocate; service on the judgment-debtor or his advocate shall be in the manner provided for such service by Order

[Subsidiary]

XXII, rule 1, and service on the Government shall be effected by service on the Attorney-General in accordance with Order V, rule 9A.

(5) If the Government disputes liability the court may order that any issue or question necessary for determining the liability of the Government shall be tried or determined in any manner in which any issue or question in a suit may be tried or determined; and where it is suggested by the Government that the debt with reference to which the proceedings are taken belongs to some third person, or that any third person has a claim upon it, the court may order such third person to appear and state the nature and particulars of his claim upon such debt; and after hearing any such third person as aforesaid, and any other person whom by the same or any subsequent order the court may require to appear, the court may bar the claim of the third person or make such order with regard to his claim as it thinks fit upon such terms, in all cases, with regard to the third person's claim (if any) and to costs as it thinks just and reasonable, and if the third person does not appear when ordered, the court may exercise any powers which it might have exercised if he had appeared.

(6) In this rule the expression "judgment-debtor" means the person against whom the order for the attachment of debts or for the appointment of a receiver could have been obtained as aforesaid, and the expression "judgment-creditor" means the person in whose favour it could have been obtained.

ORDER XXIX

SUITS BY OR AGAINST FIRMS AND PERSONS CARRYING ON BUSINESS IN NAMES OTHER THAN THEIR OWN

O.XXIX.r.1.
Suing of partners in
name of firm.

1. Any two or more persons claiming or being liable as partners and carrying on business in Kenya may sue or be sued in the name of the firm (if any) of which such persons were partners at the time of the accruing of the cause of action, and any party to a suit may in such case apply to the court for a statement of the names and addresses of the persons who were, at the time of the accruing of the cause of action, partners in such firm, to be furnished and verified in such manner as the court may direct.

O.XXIX.r.2.
Disclosure of
partners' names.
L.N. 119/1975.

2.(1) Where a suit is instituted by partners in the name of their firm, the plaintiffs or their advocate shall, on demand in writing by or on behalf of any defendant, within seven days declare in writing the names and places of residence of all the persons constituting the firm on whose behalf the suit is instituted.

(2) Where the plaintiffs or their advocate fail to comply with any

demand made under subrule (1), all proceedings in the suit may, upon an application for that purpose, be stayed upon such terms as the court may direct. [Subsidiary]

(3) Where the names of the partners are declared in the manner referred to in subrule (1), the suit shall proceed in the same manner, and the same consequences in all respects shall follow, as if they had been named as plaintiffs in the plaint:

Provided that all the proceedings shall nevertheless continue in the name of the firm.

3. (1) Where persons are sued as partners in the name of their firm, the service of the summons shall be effected either - O.XXIX.r.3.
Service.

(a) upon any one or more of the partners; or

(b) at the principal place at which the partnership business is carried on within Kenya upon any person having, at the time of service, the control or management of the partnership business there; or

(c) as the Court may direct.

(2) Such service shall be deemed good service upon the firm so sued, whether all or any of the partners are within or without Kenya:

Provided that, in the case of a partnership which has been dissolved to the knowledge of the plaintiff before the institution of the suit, the summons shall be served upon every person within Kenya whom it is sought to make liable.

4. Where a summons is issued to a firm, and is served in the manner provided by rule 3, every person upon whom it is served shall be informed by notice in writing given at the time of such service, whether he is served as a partner or as a person having the control or management of the partnership business, or in both characters, and, in default of such notice, the person served shall be deemed to be served as a partner. O.XXIX.r.4.
Notice in what capacity served.

5. Where persons are sued as partners in the name of their firm, they shall appear individually in their own names, but all subsequent proceedings shall, nevertheless, continue in the name of the firm. O.XXIX.r.5.
Appearance of partners.

6. Where a summons is served in the manner provided by rule 3, upon a person having the control or management of the partnership business, no appearance by him shall be necessary unless he is a partner O.XXIX.r.6. No appearance except by partners.

[Subsidiary]

of the firm sued.

O.XXIX.r.7.
Appearance in action
against firms.

7. (1) Any person served as a partner under rule 3 but who denies that he was a partner or liable as such at any material time may enter an appearance stating therein that he does so as “a person served as a partner in the defendant firm, but who denies that he was a partner at any material time”; and such appearance as long as it stands shall be treated as an appearance for the firm.

(2) If an appearance is so entered -

(a) the plaintiff may apply to set it aside on the ground that the person entering it was a partner or liable as such, or may leave that question to be determined at a later stage of the proceedings; or

(b) the person entering the appearance may apply to set aside the service on him on the ground that he was not a partner or liable as such; or he may at the proper time deliver a defence denying either or both -

(i) his liability as a partner;

(ii) the liability of the defendant firm in respect of plaintiff's claim.

(3) An order may on the application of either party at any time be made that the questions as to the liability of the person served and the liability of the defendant firm may be tried in such manner and at such time or times as the court may think fit.

O.XXIX.r.8. Suits
between firms and
partners.

8. This Order shall apply to suits between a firm and one or more of the partners therein, and to suits between firms having one or more partners in common; but no execution shall be issued in such suits except by leave of the court, and, on an application for leave to issue such execution, all such accounts and inquiries may be directed to be taken and made and such directions given as may be just.

O.XXIX.r.9. Suit
against persons
carrying on business
in name other than
his own.

9. Any person carrying on business in a name or style other than his own name, may be sued in such name or style as if it were a firm name; and, so far as the nature of the case will permit, all rules under this Order shall apply.

O.XXIX.r.10
Procedure.

10. An application under this Order may be heard in chambers and shall be by summons.

ORDER XXX

[Subsidiary]

SUITS BY OR AGAINST TRUSTEES, EXECUTORS, AND ADMINISTRATORS

1. In all suits concerning property vested in a trustee, executor or administrator, where the contention is between the persons beneficially interested in such property and a third person, the trustee, executor or administrator shall represent the persons so interested, and it shall not ordinarily be necessary to make them parties to the suit, but the court may, if it thinks fit, order them or any of them to be made parties.

O.XXX.r.1.
Representation of
beneficiaries in suits
concerning property
vested in trustees.

2. Where there are several trustees, executors or administrators, they shall all be made parties to a suit against one or more of them:

O.XXX.r.2. Joinder
of trustees ,executors
and administrators.

Provided that the executors who have not proved their testator's will, and trustees, executors, and administrators outside Kenya, need not be made parties.

3. (*Deleted by L.N. 88 /1978.*)

4. An application under this Order may be heard in chambers and shall be by summons.

O.XXX.r.4.
Procedure.

ORDER XXXI

SUITS BY OR AGAINST MINORS AND PERSONS OF UNSOUND MIND

1. (1) Every suit by a minor shall be instituted in his name by a person who in such suit shall be called the next friend of the minor.

O.XXXI.r.1. Minor
to sue by next friend.
L.N. 88/1978.

(2) Before the name of any person shall be used in any action as next friend of any infant where the suit is instituted by an advocate, such person shall sign a written authority to the advocate for that purpose, and the authority shall be filed.

2. (1) Where a suit is instituted by or on behalf of a minor without a next friend the defendant may apply to have the suit dismissed with costs to be paid by the advocate or other person by whom it was presented.

O.XXXI.r.2. Where
suit is instituted
without next friend,
plaint may be
dismissed.

(2) Notice of such application shall be given to such person, and the court, after hearing his objections (if any), may make such order in the matter as it thinks fit.

3. (1) Where the defendant is a minor, the court, on being satisfied of the fact of his minority, shall appoint a proper person to be guardian *ad litem* of such minor.

O.XXXI.r.3.
Guardian for the
suit to be appointed
by court for minor
defendant.

[Subsidiary]

(2) An order for the appointment of guardian *ad litem* may be obtained upon application in the name and on behalf of the minor or by the plaintiff.

(3) Such application shall be supported by an affidavit verifying the fact that the proposed guardian has no interest in the matters in controversy in suit adverse to that of the minor and that he is a fit person to be so appointed.

(4) No order shall be made on any application under this rule except upon notice to the minor and to any guardian of the minor appointed or declared by an authority competent in that behalf, or, where there is no such guardian, upon notice to the father or other natural guardian of the minor, or, where there is no father or other natural guardian, to the person in whose care the minor is, and, after hearing any objections which may be urged on behalf of any person served with notice under this paragraph.

O.XXXI.r.4.

Who may act as next friend or be appointed guardian for the suit.

4. (1) Any person who is of sound mind and has attained majority may act as next friend of a minor or as his guardian *ad litem*:

Provided that the interest of such person is not adverse to that of the minor, and that he is not, in the case of a next friend, a defendant, or, in the case of a guardian *ad litem* a plaintiff.

(2) Where a minor has a guardian appointed or declared by competent authority, no person other than such guardian shall act as the next friend of the minor or be appointed his guardian *ad litem*, unless the court considers, for reasons to be recorded, that it is for the minor's welfare that another person be permitted to act, or be appointed, as the case may be.

(3) No person shall without his consent be appointed a guardian *ad litem*.

(4) Where there is no other person fit and willing to act as guardian *ad litem*, the court may appoint any of its officers to be such guardian, and may direct that the costs to be incurred by such officer in the performance of his duties as such guardian shall be borne either by the parties or by any one or more of the parties to the suit, or out of any fund in court in which the minor is interested, and may give directions for the payment or allowance of such costs as justice and the circumstances of the case may require.

O.XXXI.r.5.

Representation of minor by next friend or guardian for the suit.

5. (1) Every application to the Court on behalf of a minor, other than an application under rule 10 (2), shall be made by his next friend or by his guardian *ad litem*.

[Subsidiary]

(2) Every order made in a suit or on any application before the Court in or by which a minor is in any way concerned or affected, without such minor being represented by a next friend or guardian *ad litem*, as the case may be, may be discharged, and, where the advocate of the party at whose instance such order was obtained, knew, or might reasonably have known, the fact of such minority, with costs to be paid by such advocate.

6.(1) A next friend or guardian *ad litem* shall not, without the leave of the court, receive any money or other movable property on behalf of a minor, either -

O.XXIX.r.6. Receipt by next friend or guardian for the suit of property under decree for minor.

(a) by way of compromise before decree or order; or

(b) under a decree or order in favour of the minor.

(2) Where the next friend or guardian *ad litem* has not been appointed or declared by competent authority to be guardian of the property of the minor, or, having been so appointed or declared, is under any disability known to the court to receive the money or other movable property, the court shall, if it grants him leave to receive the property, require such security and give such directions as will, in its opinion, sufficiently protect the property from waste and ensure its proper application.

7. (1) No next friend or guardian *ad litem* shall, without the leave of the court expressly recorded in the proceedings, enter into any agreement or compromise on behalf of a minor with reference to the suit in which he acts as next friend or guardian.

O.XXXI.r.7. Agreement or Compromise by next friend or guardian for the suit

(2) Any such agreement or compromise entered into without the leave of the court so recorded shall be voidable against all parties other than the minor.

8. (1) Unless otherwise ordered by the court, a next friend shall not retire without first procuring a fit person to be put in his place and giving security for the costs already incurred.

O.XXXI.r.8. Retirement of next friend.

(2) The application for the appointment of a new next friend shall be supported by an affidavit showing the fitness of the person proposed and also that he has no interest adverse to that of the minor.

9. (1) Where the interest of the next friend of a minor is adverse to that of the minor, or where he is so connected with a defendant whose interest is adverse to that of the minor as to make it unlikely that the minor's interest will be properly protected by him, or where he does not

O.XXXI.r.9. Removal of next friend.

[Subsidiary]

do his duty, or during the pendency of the suit ceases to reside within Kenya, or for any other sufficient cause, application may be made on behalf of the minor or by a defendant for his removal; and the court, if satisfied of the sufficiency of the cause assigned, may order the next friend to be removed accordingly, and make such other order as to the costs as it thinks fit.

(2) Where the next friend is not a guardian appointed or declared by an authority competent in this behalf, and an application is made by a guardian so appointed or declared who desires to be himself appointed in the place of the next friend, the court shall remove the next friend unless it considers, for reasons to be recorded by it, that the guardian ought not to be appointed the next friend of the minor, and shall thereupon appoint the applicant to be next friend in his place upon such terms as to the costs already incurred in the suit as it thinks fit.

O.XXXI.r.10. Stay of proceedings on removal, etc., of next friend.

10. (1) On the retirement, removal or death of the next friend of a minor, further proceedings shall be stayed until the appointment of a next friend in his place.

(2) Where the advocate of such a minor omits, within a reasonable time, to get a new next friend appointed, any person interested in the minor or in the matter in issue may apply to the court for the appointment of one, and the court may appoint such person as it thinks fit.

O.XXXI.r.11. Retirement, removal, or death of guardian for the suit.

11. (1) Where the guardian *ad litem* desires to retire or does not do his duty, or where other sufficient ground is made to appear, the court may permit such guardian to retire or may remove him, and may make such order as to costs as it thinks fit.

(2) Where the guardian *ad litem* retires, dies, or is removed by the court during the pendency of the suit, the court shall appoint a new guardian in his place.

O.XXXI.r.12. Course to be followed by minor plaintiff or applicant on attaining majority.

12. (1) A minor plaintiff or a minor not a party to a suit on whose behalf an application is pending shall, on attaining majority, elect whether he will proceed with the suit or application.

(2) Where he elects to proceed with the suit or application he shall apply for an order discharging the next friend and for leave to proceed in his own name.

(3) The title of the suit or application shall in such case be corrected so as to read thenceforth thus -

“A.B., late a minor, by C.D., his next friend, but now having attained majority.”

[Subsidiary]

(4) Where he elects to abandon the suit or application he shall, if a sole plaintiff or sole applicant, apply for an order to dismiss the suit or application on repayment of the costs incurred by the defendant or opposite party, or which may have been paid by his next friend.

(5) Any application under this rule may be made *ex parte* by summons in chambers; but no order discharging a next friend and permitting a minor plaintiff to proceed in his own name shall be made without notice to the next friend.

13. (1) Where a minor co-plaintiff on attaining majority desires to repudiate the suit, he shall apply to have his name struck out as co-plaintiff; and the court, if it finds that he is not a necessary party, shall dismiss him from the suit on such terms as to costs or otherwise as it thinks fit.

O.XXXI.r.13. Where minor co-plaintiff attaining majority desires to repudiate suit.

(2) Notice of the application shall be served on the next friend, on any co-plaintiff, and on the defendant.

(3) The costs of all parties to such application, and of all or any proceedings theretofore had in the suit, shall be paid by such persons as the court directs.

(4) Where the applicant is a necessary party to the suit, the court may direct him to be made a defendant.

14. (1) A minor on attaining majority may, if a sole plaintiff, apply that a suit instituted in his name by a next friend be dismissed on the ground that it was unreasonable or improper.

O.XXXI.r.14. Unreasonable or improper suit.

(2) Notice of the application shall be served on all the parties concerned; and the court, upon being satisfied of such unreasonableness or impropriety, may grant the application and order the next friend to pay the costs of all parties in respect of the application and of anything done in the suit, or make such other order as it thinks fit.

15. The provisions contained in rules 1 to 14, so far as they are applicable, shall extend to persons adjudged to be of unsound mind, and to persons who though not so adjudged are found by the court on inquiry, by reason of unsoundness of mind or mental infirmity, to be incapable of protecting their interests when suing or being sued.

O.XXXI.r.15. Application of rules to persons of unsound mind.

[Subsidiary]

ORDER XXXII

SUITS BY PAUPERS

O.XXXII.r.1. Suits
may be instituted in
forma pauperis.

1. (1) Subject to the following rules, any suit may be instituted by a pauper.

(2) For the purposes of this Order a person is a “pauper” when he is not possessed of sufficient means to enable him to pay the fee prescribed by law for the plaint in such suit.

O.XXXII.r.2.
Contents of
application.

2. Every application for permission to sue as a pauper shall contain the particulars required in regard to plaints in suits, together with a statement that the pauper is unable to pay the fee prescribed in such suit, and the whole shall be signed in the manner prescribed for the signing of pleadings.

O.XXXII.r.3.
Presentation of
application.

3. Notwithstanding anything contained in these Rules, the application shall be presented to the court by the applicant in person unless the applicant is exempted from appearance in court by section 82 of the Act, in which case the application may be presented by authorized agent who can answer all material questions relating to the application, and who may be examined in the same manner as the party represented by him might have been examined had such party attended in person.

O.XXXII.r.4.
Examination of
applicant.

4. Where the application is in proper form and duly presented the court may, if it thinks fit, examine the applicant or his agent, when the applicant is allowed to appear by agent, regarding the merits of the claim and the property of the applicant.

O.XXXII.r.5.
Rejection of
application.

5. The court shall reject an application for permission to sue as a pauper -

(a) where it is not framed and presented in the manner prescribed in rules 2 and 3; or

(b) where the applicant is not a pauper; or

(c) where he has, within two months next before the presentation of the application, disposed of any property fraudulently or in order to be able to apply for permission to sue as a pauper; or

(d) where his allegations do not show a cause of action; or

(e) where he has entered into any agreement with reference to

the subject-matter of the proposed suit under which any other person has obtained an interest in such subject-matter.

[Subsidiary]

6. Where the court sees no reason to reject the application on any of the grounds stated in rule 5, it shall fix a day (of which at least ten days' clear notice shall be given to the opposite party) for receiving such evidence as the applicant may adduce in proof of his pauperism and for hearing any evidence which may be adduced in disproof thereof.

O.XXXII.r.6. Notice of day for receiving evidence of applicant pauperism.

7. (1) On the day so fixed or as soon thereafter as may be convenient, the court shall examine the witnesses (if any) produced by either party, and may examine the applicant or his agent, and shall make a memorandum of the substance of their evidence.

O.XXXII.r.7. Procedure at hearing.

(2) The court shall also hear any argument which the parties may desire to offer on the question whether, on the face of the application and of the evidence (if any) taken by the court as herein provided, the applicant is or is not subject to any of the prohibitions specified in rule 5.

(3) The court shall then either allow or refuse to allow the applicant to sue as a pauper.

8. Where the application is granted, it shall be deemed the plaint in the suit, and the suit shall proceed in all other respects as a suit instituted in the ordinary manner except that the plaintiff shall not be liable to pay any court fee.

O.XXXII.r.8. Procedure of application admitted.

9. The court may, on the application of the defendant, of which seven days' clear notice in writing has been given to the plaintiff, order the plaintiff to be dispaupered -

O.XXXII.r.9. Dispaupering.

- (a) if he is guilty of vexatious or improper conduct in the course of the suit;
- (b) if it appears that his means are such that he ought not to continue to sue as a pauper; or
- (c) if he has entered into any agreement, with reference to the subject-matter of the suit, under which any other person has obtained an interest in such subject-matter.

10. Where the plaintiff succeeds in the suit, the court shall calculate the amount of the court fees which would have been paid by the plaintiff if he had not been permitted to sue as a pauper; such amount shall be recoverable by the court from any party ordered by the decree to pay the same, and shall be a first charge on the subject-

O.XXXII.r.10. Costs where pauper succeeds.

[Subsidiary]

matter of the suit.

O.XXXII.r.11.
Procedure where
pauper fails.

11. Where the plaintiff fails in the suit or is dispaupered or where the suit is withdrawn or dismissed because the plaintiff does not appear when the suit is called on for hearing, the court shall order the plaintiff, or any person added as a co-plaintiff to the suit, to pay the court fees which would have been paid by the plaintiff if he had not been permitted to sue as a pauper.

O.XXXII.r.12.
Government may
apply for payment of
court fees.

12. The Government shall have the right at any time to apply to the court to make an order for the payment of court fees under rule 10 or rule 11.

O.XXXII.r.13.
Government to be
deemed a party.

13. All matters arising between the Government and any party to the suit under rule 10, rule 11 or rule 12 shall be deemed to be questions arising between the parties to the suit within the meaning of section 34 of the Act.

O.XXXII.r.14.
Refusal to allow
applicant to sue
as pauper to
bar subsequent
application of like
nature.

14. An order refusing to allow the applicant to sue as a pauper shall be a bar to any subsequent application of the like nature by him in respect of the same right to sue; but the applicant shall be at liberty to institute a suit in the ordinary manner in respect of such right provided that he first pays the costs (if any) incurred by the Government and by the opposite party in opposing his application for leave to sue as a pauper.

O.XXXII.r.15. Costs.

15. The costs of an application for permission to sue as a pauper and of an inquiry into pauperism shall be costs in the suit.

O.XXXII.r.16. Court
fees.

16.(1) If any defendant alleges that he is unable to pay court fees to the Registrar, upon application being made for that purpose, shall inquire into the question of his poverty and, if he is satisfied on oath that the allegation of poverty is true, shall record on the record the result of his investigation and a statement of the proportion of the fees (if any) which the defendant is able to pay; and no fees other than the amount which the Registrar is satisfied that the defendant is able to pay shall be payable.

(2) If the Registrar is not so satisfied as aforesaid as to the inability of the defendant to pay court fees, he shall so certify and advise the defendant as to the fees payable by him.

(3) An appeal shall lie from the decision of the Registrar to a judge in chambers.

O.XXXII.r.17.
Recovery of court
fees from pauper.

17. In the event of a pauper plaintiff or defendant succeeding in any suit which results in a decree or order for payment to him of any sum

of money from the other side, whether by way of costs or otherwise, the court may order that the court fees remitted as aforesaid or otherwise under this Order shall be a first charge on any moneys recovered or to be recovered under such decree or order. [Subsidiary]

18. Applications under this Order shall be in writing addressed to the court. O.XXXII.r.18.
Procedure.

ORDER XXXIII

INTERPLEADER

1. An application for relief under this Order shall be made by originating summons unless made in a pending suit in which case it shall be made by summons in the suit. O.XXXIII.r.1
Practice under this
Order.
L.N.50/1985.

2. In every suit of or application by way of interpleader the applicant shall satisfy the court by way of affidavit or otherwise - O. XXXIII.r.2.
Averments to be
proved by applicant.

(a) that the applicant claims no interest in the subject matter in dispute other than for charges or costs;

(b) that there is no collusion between the applicant and any of the claimants;

(c) that the applicant is willing to pay or transfer the subject-matter into court or to dispose of it as the court may direct.

3. If the application is made by a defendant in a suit the court may stay all further proceedings in the suit. O. XXXIII.r.3
Stay of suit.

4. If the claimants appear in pursuance of the summons, the court may order either that any claimant be made a defendant in any suit already commenced in respect of the subject-matter in dispute in lieu of or in addition to the applicant, or that an issue between the claimants be stated and tried, and in the latter case may direct which of the claimants is to be plaintiff and which defendant. O.XXXIII.r.4.
Order upon
summons.

5. The court may, with the consent of both claimants, or on the request of any claimant, if, having regard to the value of the subject-matter in dispute, it seems desirable to do so, dispose of the merits of their claims, and decide the same in a summary manner and on such terms as may be just. O.XXXIII.r.5.
Summary procedure.

6. The court may make all such orders as are just and reasonable as to costs and all other matters including, where appropriate, orders O.XXXIII.r.6
Costs and other
orders,

[Subsidiary]
L.N.88/1978.

for the sale or disposal of the subject-matter of the dispute, and where an order for costs is in favour of the applicant the court may give him a charge over the subject-matter.

O.XXXIII.r.7.
Order upon a
claimant's failure to
appear.
L.N.299/1957.

7. If a claimant, having been duly served with a summons calling him to appear and maintain or relinquish his claim, does not appear in pursuance of the summons, or having appeared neglects or refuses to comply with any order made after his appearance, the court may make an order declaring him and all persons claiming under him for ever barred against the applicant, and persons claiming under him, but the order shall not affect the rights of the claimants as between themselves:

Provided that no order shall be made against the Government under this rule except upon an application by summons served not less than seven days before the return day.

O.XXXIII.r.8.
Questions of law.
L.N. 88/1978.

8. Where the question in issue is a question of law and no facts are disputed the court may decide the question without the trial of an issue.

O.XXXIII.r.9.
Adverse title
of claimants.
L.N.88/1978.

9. The applicant may be granted relief notwithstanding the fact that the titles of the claimants have not a common origin but are adverse to and independent of one another.

ORDER XXXIV

PROCEEDINGS BY AGREEMENT OF PARTIES

O.XXXIV.r.1. Power
to state case for
court's opinion.

1. (1) Parties claiming to be interested in the decision of any question of fact or law may enter into an agreement in writing stating such question in the form of a case for the opinion of the court, and providing that, upon the finding of the court with respect to such question -

(a) a sum of money fixed by the parties or to be determined by the court shall be paid by one of the parties to the other of them; or

(b) some property, movable or immovable, specified in the agreement, shall be delivered by one of the parties to the other of them; or

(c) one or more of the parties shall do, or refrain from doing, some other particular act specified in the agreement.

(2) Every case stated under this rule shall be divided into consecutively numbered paragraphs, and shall concisely state such facts and specify such documents as may be necessary to enable the court to

decide the question raised thereby.

[Subsidiary]

2. Where the agreement is for the delivery of any property, or for the doing or the refraining from doing, any particular act, the estimated value of the property to be delivered, or to which the specified act has reference, shall be stated in the agreement.

O.XXXIV.r.2. Where value of subject-matter must be stated.

3. (1) The agreement, if framed in accordance with the rules hereinbefore contained, may be filed in the court which would have jurisdiction to entertain a suit, the amount or value of the subject-matter of which is the same as the amount or value of the subject-matter of the agreement.

O.XXXIV.r.3. Agreement to be filed and registered as suit.

(2) The agreement, when so filed, shall be numbered and registered as a suit between one or more of the parties claiming to be interested as plaintiff or plaintiffs, and the other or the others of them as defendants; and notice shall be given to all the parties to the agreement, other than the party or parties by whom it is presented.

4. Where the agreement has been filed, the parties to it shall be subject to the jurisdiction of the court and shall be bound by the statements contained therein.

O.XXXIV.r.4. Parties to be subject to court's jurisdiction.

5. (1) The case shall be set down for hearing as a suit instituted in the ordinary manner, and the provisions of the Act shall apply to such suit so far as the same are applicable.

O.XXXIV.r.5. Hearing and disposal of case.

(2) Where the court is satisfied, after examination of the parties, or after taking such evidence as it thinks fit -

(a) that the agreement was duly executed by them;

(b) that they have a bona fide interest in the question stated therein; and

(c) that the same is fit to be decided,

it shall proceed to pronounce judgment thereon, in the same way as in an ordinary suit, and upon the judgment so pronounced a decree shall follow.

[Subsidiary]

ORDER XXXV

SUMMARY PROCEDURE

O.XXXV.r.1.

Summary judgment.

L.N. 119/1975, L.N.

88/1978,

L.N. 50/1985.

1. (1) In all suits where a plaintiff seeks judgment for -

(a) a liquidated demand with or without interest; or

(b) the recovery of land, with or without a claim for rent or mesne profits, by a landlord from a tenant whose term has expired or been determined by notice to quit or been forfeited for non-payment of rent or for breach of covenant, or against persons claiming under such tenant or against a trespasser,

where the defendant has appeared the plaintiff may apply for judgment for the amount claimed, or part thereof, and interest, or for recovery of the land and rent or mesne profits.

(2) The application shall be made by motion supported by an affidavit either of the plaintiff or of some other person who can swear positively to the facts verifying the cause of action and any amount claimed.

(3) Sufficient notice of the motion shall be given to the defendant which notice shall in no case be less than seven days.

O.XXXV.r.2.

Defendant may show
cause. L.N.119/1975.

2. (1) The defendant may show either by affidavit, or by oral evidence, or otherwise that he should have leave to defend the suit.

(2) Any set-off or counterclaim may entitle a defendant to defend to the extent of such set-off or counterclaim.

O.XXXV.r.3.

Application by
Government.

L.N.119/1975.

3. (1) An application under rule 1 by the Government may be verified by an affidavit of the Attorney-General stating that to the best of his knowledge and belief the plaintiff is entitled to the relief claimed and there is no defence to the action.

(2) No application under rule 1 shall be made against the Government.

O.XXXV.r.4.

Time for defence.
L.N.119/1975.

4. If a defendant who has not already filed his defence is granted leave to defend he shall file his defence within fourteen days of the grant of leave unless the court otherwise orders.

O.XXXV.r.5.

Judgment
for part of claim.

5. If it appears that the defence set up by the defendant applies only to a part of the plaintiff's claim, or that any part of his claim is admitted, the plaintiff shall have judgment forthwith for such part of

his claim as the defence does not apply to, or as is admitted, subject to such terms, if any, as to suspending execution, or the payment of the amount realized or any part thereof into court, the taxation of costs, or otherwise as the court thinks fit, and the defendant may be allowed to defend as to the residue of the plaintiff's claim. [Subsidiary]

6. If it appears to the court that any defendant has a good defence to, or ought to be permitted to defend the suit, and that any other defendant has not a good defence and ought not to be permitted to defend, the former may be permitted to defend, and the plaintiff shall be entitled to judgment against the latter and may obtain execution of the decree thereon, without prejudice to his right to proceed with his suit against the former. O.XXXV.r.6. Procedure where more than one defendant.

7. Leave to defend may be given unconditionally, or subject to such terms as to giving security or time of trial or otherwise, as the court thinks fit. O.XXXV.r.7. Leave to defend.

8. (1) The costs of and incidental to all applications under this Order shall be dealt with by the court on the hearing of the application, and the court shall order by and to whom, and when the same shall be paid, or may reserve them to be dealt with at the trial: O.XXXV.r.8. Costs.

Provided that in case no trial afterwards takes place, or no order as to costs is made, the costs are to be costs in the cause.

(2) If the plaintiff makes an application under this Order where the case is not within the Order, or where the plaintiff in the opinion of the court, knew that the defendant relied on a contention which would entitle him to unconditional leave to defend, the application may be dismissed with costs to be paid forthwith by the plaintiff.

9. Forms Nos. 3A and 3B of Appendix A, adapted to circumstances, shall be utilized for the respective purposes for which they are designed. O.XXXV.r.9. Forms.

10. Any judgment, given against any party who did not attend at the hearing of an application under this Order, may, on application be set aside or varied on such terms as are just. O.XXXV.r.10. Setting aside of judgment. L.N. 119/1975.

ORDER XXXVI

ORIGINATING SUMMONS

1. The executors or administrators of a deceased person, or any of them, and the trustees under any deed or instrument, or any of them, and any person claiming to be interested in the relief sought as creditor, O.XXXVI.r.1 Who may take out originating summons and in respect of what matters.

[Subsidiary]

devisee, legatee, heir, or legal representative of a deceased person, or as *cestui que trust* under the terms of any deed or instrument, or as claiming by assignment, or otherwise, under any such creditor or other person as aforesaid, may take out as of course, an originating summons, returnable before a judge sitting in chambers for such relief of the nature or kind following, as may by the summons be specified, and the circumstances of the case may require, that is to say, the determination, without the administration of the estate or trust, of any of the following questions -

- (a) any question affecting the rights or interest of the person claiming to be creditor, devisee, legatee, heir or *cestui que trust*;
- (b) the ascertainment of any class of creditors, devisees, legatees, heirs, or others;
- (c) the furnishing of any particular accounts by the executors, administrators or trustees, and the vouching, when necessary, of such accounts;
- (d) the payment into court of any money in the hands of the executors, administrators or trustees;
- (e) directing the executors, administrators or trustees to do, or abstain from doing, any particular act in their character as executors, administrators or trustees;
- (f) the approval of a sale, purchase, compromise or other transaction;
- (g) the determination of any question arising directly out of the administration of the estate or trust.

O.XXXVI.r.2.
Order for
administration of
estate or trust.

2. Any of the persons named in rule 1 may in like manner apply for and obtain an order for -

- (a) the administration of the personal estate of the deceased;
- (b) the administration of the real estate of the deceased;
- (c) the administration of the trust.

O.XXXVI.r.3.
Summons by vendor
or purchaser of land.

3. A vendor or purchaser of immovable property or their representatives respectively may, at any time or times, take out an originating summons returnable before the judge sitting in chambers, for the determination of any question which may arise in respect of any

requisitions or objections, or any claim for compensation; or any other question arising out of or connected with the contract of sale (not being a question affecting the existence or validity of the contract). [Subsidiary]

3A. Any mortgagee or mortgagor, whether legal or equitable, or any person entitled to or having property subject to a legal or equitable charge, or any person having the right to foreclose or redeem any mortgage, whether legal or equitable, may take out as of course an originating summons, returnable before the judge in chambers, for such relief of the nature or kind following as may be by the summons specified, and as the circumstances of the case may require; that is to say, sale, foreclosure, delivery of possession by the mortgagor, redemption, reconveyance, delivery of possession by the mortgagee. O.XXXVI.r.3A
Summons by mortgagee or mortgagor, etc.

3B. An application under section 116 of the Government Lands Act or section 57 of the Registration of Titles Act shall be made by originating summons unless there is pending a suit involving the same lands when the application may be made by summons in that suit. O.XXXVI.r.3B
Caveats.
Cap. 280.
Cap. 281.
L.N.119/1975,
L.N.216/1985.

3C. (1) An application under section 27 of the Limitation of Actions Act made before filing a suit shall be made *ex parte* by originating summons supported by affidavit. O.XXXVI.r.3C.
Extension of limitation period. Cap. 22.
L.N.119/1975.

(2) Any such application made after the filing of a suit shall be made *ex parte* by summons in that suit supported by affidavit.

3D. (1) An application under section 38 of the Limitation of Actions Act shall be made by originating summons. O.XXXVI.r.3D
Registration of title to land. Cap. 22.
L.N.119/1975.

(2) The summons shall be supported by an affidavit to which a certified extract of the title to the land in question has been annexed.

(3) The court shall direct on whom and in what manner the summons shall be served.

3E. An application for permission to marry under age shall be made by originating summons and shall, where appropriate, be served on the person refusing to give consent. O.XXXVI.r.3E
Application for permission to marry under age.
L.N.119/1975.

3F. An application under the Registered Land Act other than under sections 120, 128, 133, 138, 143 and 150 thereof shall be made by originating summons unless there is pending a suit involving the same lands when the application may be made by summons in chambers in that suit. O.XXXVI.r.3F.
Application under the Registered Land Act. Cap. 300.
L.N.119/1975.

[Subsidiary]

O.XXXVI.r.3G.
Application under
Chattels Transfer
Act. Cap. 28.
L.N.16/1984.

3G. An application under section 9 of the Chattels Transfer Act shall be made by originating summons *ex parte* supported by an affidavit setting out the grounds relied upon.

O.XXXVI.r.4.
Summons by
a member of a
partnership.

4. When the existence of a partnership, or the right to a partnership, or the fact of the dissolution thereof, is not in dispute, any partner in a firm or his representatives may take out an originating summons returnable before the judge sitting in chambers against his partners or former partners or their representatives (if any) for the purpose of having the partnership dissolved (if it be still subsisting) and for the purpose of taking the accounts of and winding up such partnership.

O.XXXVI.r.5
Summons by persons
interested in deeds
or wills.

5. Any person claiming to be interested under a deed, will, or other written instrument, may apply in chambers by originating summons for the determination of any question of construction arising under the instrument, and for a declaration of the rights of the person interested.

O.XXXVI.r.5A.
Variation of trusts.
L.N.551/1959.
Cap. 167.

5A. An application for an order under the Trustee Act shall be made by originating summons returnable before the judge sitting in chambers; and the settlor and any other person who provided property for the purposes of the trusts in question shall, if still alive and not an applicant and unless a judge for special reasons otherwise directs, be made a respondent to summons in addition to any other persons who are necessary and proper respondents thereto.

O.XXXVI.r.6.
Discretion upon
summons for
construction of
document.

6. The judge shall not be bound to determine any such question of construction if, in his opinion, it ought not to be determined on originating summons.

O.XXXVI.r.7. Forms.

7. An originating summons shall be in Form No. 13 or No. 13A of Appendix B with such variations as circumstances may require, and shall be prepared by the applicant or his advocate and shall be filed in court; service where necessary shall be effected in accordance with Order V.

O.XXXVI.r.8.
Summons to be filed
and registered.

8. The originating summons when filed shall be filed and entered in the register of suits, but after the serial number the letters "O.S." shall be placed to distinguish it from complaints filed in ordinary suits.

O.XXXVI.r.8A.
Directions. L.N.
119/1975.

8A. Any party to a suit commenced by originating summons may apply to a judge in chambers for directions.

O.XXXVI.r.8B.
Procedure.

8B. The day and hour of attendance under an originating summons

to which an appearance is required to be entered shall after appearance be fixed by notice sealed with the seal of the court for hearing in chambers of the judge to whom such summons is assigned, such notice shall be in Form No. 13B of Appendix B. [Subsidiary]

9. On the hearing of the summons, if the parties do not agree to the correctness and sufficiency of the facts set forth in the summons and affidavit, the judge may order the summons to be supported by such further evidence as he may deem necessary, and may give such directions as he may think just for the trial of any issues arising thereupon, and may make any amendments necessary to make the summons accord with existing facts, and to raise the matters in issue between the parties. O.XXXVI.r.9. Evidence and directions upon hearing of summons.

10. (1) Where, on an originating summons under this Order, it appears to the court at any stage of the proceedings that the proceedings should for any reason be continued as if the cause had been begun by filing a plaint, it may order the proceedings to continue as if the cause had been so begun and may, in particular, order that any affidavits filed shall stand as pleadings, with or without liberty to any of the parties to add to, or to apply for particulars of, those affidavits. O.XXXVI.r.10 Power of court upon hearing of summons L.N.216/1985.

(2) Where the court makes an order under subrule (1), Order LI applies as if a summon for directions had been taken out and such orders as are appropriate under Order LI may be made.

(3) This rule applies notwithstanding that the cause could not have been begun by filing a plaint.

(4) Any reference in these Rules to proceedings begun by a plaint shall, unless the context otherwise requires, be construed as including a reference to a cause proceeding under an order made under subrule (1).

11. If an originating summons be adjourned into court, the judge may, if he thinks the question to be determined is of sufficient importance, order that the costs be taxed on the scale applicable to suits. In all other cases the judge may make such orders as to the costs of the parties as he considers to be just. O.XXXVI.r.11 Court may make orders as to costs incurred by any party.

12. Every application in a suit which has been commenced by originating summons shall be made by summons in chambers. O.XXXVI.r.12. Applications generally. L.N.119/1975.

[Subsidiary]

ORDER XXXVII

SELECTION OF TEST SUIT

O.XXXVII.r.1.

Staying several suits
against the same
defendant.

1. Where two or more persons have instituted suits against the same defendant and such persons under rule 1 of Order I could have been joined as co-plaintiffs in one suit, upon the application of any of the parties the court may, if satisfied that the issues to be tried in each suit are precisely similar, make an order directing that one of the suits be tried as a test case, and staying all steps in the other suits until the selected suit shall have been determined, or shall have failed to be a real trial of the issues.

O.XXXVII.r.2.

Staying similar suits
upon application by
defendant.

2. Where a plaintiff has instituted two or more suits, and under rule 3 of Order I the several dependants could properly have been joined as co-defendants in one suit, the court, if satisfied upon the application of a defendant that the issues to be tried in the suit to which he is a party are precisely similar to the issues to be determined in another of such suits, may order that the suit to which such defendant is a party be stayed until such other suit shall have determined or shall have failed to be a real trial of the issues.

ORDER XXXVIII

ARREST AND ATTACHMENT BEFORE JUDGMENT

O.XXXVIII.r.1.

Where defendant
may be called upon
to furnish security for
appearance.

1. Where at any stage of a suit, other than a suit of the nature referred to in paragraphs (a) to (d) of section 12 of the Act, the court is satisfied by affidavit or otherwise -

(a) that the defendant with intent to delay the plaintiff, or to avoid any process of the court, or to obstruct or delay the execution of any decree that may be passed against him -

(i) has absconded or left the local limits of the jurisdiction of the court; or

(ii) is about to abscond or leave the local limits of the jurisdiction of the court; or

(iii) has disposed of or removed from the local limits of the jurisdiction of the court his property or any part thereof;
or

(b) that the defendant is about to leave Kenya under

circumstances affording reasonable probability that the plaintiff will or may thereby be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit,

[Subsidiary]

the court may issue a warrant to arrest the defendant and bring him before the court to show cause why he should not furnish security for his appearance:

Provided that the defendant shall not be arrested if he pays to the officer entrusted with the execution of the warrant any sum specified in the warrant as sufficient to satisfy the plaintiff's claim; and such sum shall be held in deposit by the court until the suit is disposed of or until the further order of the court.

2. (1) Where the defendant fails to show such cause the court shall order him either to deposit in court money or other property sufficient to answer the claim against him, or to furnish security for his appearance at any time when called upon while the suit is pending and until satisfaction of the decree that may be passed against him in the suit, or make such order as it thinks fit in regard to the sum which may have been paid by the defendant under the proviso to rule 1.

O.XXXVIII.r.2.
Security.

(2) Every surety for the appearance of a defendant shall bind himself, in default of such appearance, to pay any sum of money which the defendant may be ordered to pay in the suit.

3. (1) A surety for the appearance of a defendant may at any time apply to the court in which he became a surety to be discharged from his obligation.

O.XXXVIII.r.3.
Procedure on
application by surety
to be discharged.

(2) On such application being made the court shall summon the defendant to appear, or, if it thinks fit, may issue a warrant for his arrest in the first instance.

(3) On the appearance of the defendant in pursuance of the summons or warrant, or on his voluntary surrender, the court shall direct the surety to be discharged from his obligation and shall call upon the defendant to find fresh security.

O.XXXVIII.r.4.
Procedure where
defendant fails to
furnish security or
find fresh security.

4. Where the defendant fails to comply with any order under rule 2 or rule 3, the court may commit him to prison until the decision of the suit, or, where a decree is passed against the defendant, until the decree has been satisfied:

Provided that -

[Subsidiary]

- (i) no person shall be detained in prison under this rule in any case for a longer period than six months, nor for a longer period than six weeks when the amount or value of the subject-matter of the suit does not exceed five pounds; and
- (ii) no person shall be detained in prison under this rule after he has complied with such order.

O.XXXVIII.r.5.
Where defendant may be called upon to furnish security for production of property.

5. (1) Where at any stage of a suit the court is satisfied, by affidavit or otherwise, that the defendant, with intent to obstruct or delay the execution of any decree that may be passed against him -

- (a) is about to dispose of the whole or any part of his property;
- or

- (b) is about to remove the whole or any part of his property from the local limits of the jurisdiction of the court,

the court may direct the defendant, within a time to be fixed by it, either to furnish security, in such sum as may be specified in the order, to produce and place at the disposal of the court, when required, the said property or the value of the same, or such portion thereof as may be sufficient to satisfy the decree, or to appear and show cause why he should not furnish security.

(2) The plaintiff shall, unless the court otherwise directs, specify the property required to be attached and the estimated value thereof.

(3) The court may also in the order direct the conditional attachment of the whole or any portion of the property so specified.

O.XXXVIII.r.6
Attachment where cause not shown or security not furnished.

6. (1) Where the defendant fails to show cause why he should not furnish security, or fails to furnish the security required, within the time fixed by the court, the court may order that the property specified, or such portion thereof as appears sufficient to satisfy any decree which may be passed in the suit, be attached.

(2) Where the defendant shows such cause or furnishes the required security, and the property specified or any portion of it has been attached, the court shall order the attachment to be withdrawn, or make such other order as it thinks fit.

O.XXXVIII.r.7
Mode of making attachment.

7. Save as otherwise expressly provided, the attachment shall be made in the manner provided for the attachment of property in execution of a decree.

8. Where any claim is preferred to property attached before judgment, such claim shall be investigated in the manner hereinbefore provided for the investigation of claims to property attached in execution of a decree for the payment of money.

[Subsidiary]

O.XXXVIII.r.8

Investigation or claim to property attached before judgment.

9. Where an order is made for attachment before judgment, the court shall order the attachment to be withdrawn when the defendant furnishes the security required, together with security for the costs of the attachment, or when the suit is dismissed.

O.XXXVIII.r.9

Removal of attachment when security furnished or suit dismissed.

10. Attachment before judgment shall not affect the rights, existing prior to the attachment, of persons not parties to the suit, nor bar any person holding a decree against the defendant from applying for the sale of the property under attachment in execution of such decree.

O.XXXVIII.r.10

Attachment before judgment not to affect rights of strangers nor bar decree-holder from applying for sale.

11. Where property is under attachment by virtue of this Order, and a decree is subsequently passed in favour of the plaintiff, it shall not be necessary, upon an application for execution of such decree, to apply for a re-attachment of the property.

O.XXXVIII.r.11

Property attached before judgment not to be reattached in execution of decree.

12. Applications under this Order, other than under rule 3(1), shall be by summons in chambers.

O.XXXVIII.r.12

Procedure.

ORDER XXXIX

TEMPORARY INJUNCTIONS AND INTERLOCUTORY ORDERS

1. Where in any suit it is proved by affidavit or otherwise -

(a) that any property in dispute in a suit is in danger of being wasted, damaged, or alienated by any party to the suit, or wrongfully sold in execution of a decree; or

(b) that the defendant threatens or intends to remove or dispose of his property in circumstances affording reasonable probability that the plaintiff will or may be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit,

the court may by order grant a temporary injunction to restrain such

O.XXXIX.r.1. Cases in which temporary injunction may be granted. L.N. 16/1984.

[Subsidiary]

act, or make such other order for the purpose of staying and preventing the wasting, damaging, alienation, sale, removal, or disposition of the property as the court thinks fit until the disposal of the suit or until further orders.

O.XXXIX.r.2.

Injunction to
restrain repetition
or continuance of
breach. L.N.36/2000.

2. In any suit for restraining the defendant from committing a breach of contract or other injury of any kind, whether compensation is claimed in the suit or not, the plaintiff may, at any time after the commencement of the suit, and either before or after judgment, apply to the court for a temporary injunction to restrain the defendant from committing the breach of contract or injury complained of, or any injury of a like kind arising out of the same contract or relating to the same property or right.

2A.(1) The court may by order grant such injunction, on such terms as to an inquiry as to damages, the duration of the injunction, keeping an account, giving security or otherwise, as the court thinks fit.

(2) In cases of disobedience, or of breach of any such terms, the court granting an injunction may order the property of the person guilty of such disobedience or breach to be attached, and may also order such person to be detained in prison for a term not exceeding six months unless in the meantime the court directs his release.

(3) No attachment under this rule shall remain in force for more than one year, at the end of which time, if the disobedience or breach continues, the property attached may be sold, and out of the proceeds the court may award such compensation as it thinks fit, and shall pay the balance if any, to the party entitled thereto.

O.XXXIX.r.3. Notice
of application.
L.N. 16/1984,
L.N. 36/2000,
L.N.128/2001.

3 (1) Where the court is satisfied for reasons to be recorded that the object of granting the injunction would be defeated by the delay, it may hear the application *ex parte*.

(2) An *ex parte* injunction may be granted only once for not more than fourteen days and shall not be extended thereafter.

(3) In any case where the court grants an *ex parte* injunction the applicant shall within three days from the date of the order, serve the order, the application and the pleading on the party sought to be restrained.

O.XXXIX.r.4. Order
for injunction may be
discharged, varied, or
set aside.

4. Any order for an injunction may be discharged, or varied, or set aside by the court on application made thereto by any party dissatisfied with such order.

5. An injunction directed to a corporation is binding not only on the corporation itself but also on all members and officers of the corporation whose personal action it seeks to restrain.

[Subsidiary]
O.XXXIX.r.5.
Injunction to
corporation binding
on its officers.
O.XXXIX.r.6. Power
to order interim sale.

6. The court may, on the application of any party to a suit, order the sale, by any person named in such order, and in such manner and on such terms as it thinks fit, of any movable property, being the subject-matter of such suit, or attached before judgment in such suit, which is subject to speedy and natural decay, or which for other just and sufficient cause it may be desirable to have sold at once.

7. (1) The court may, on the application of any party to a suit, and on such terms as it thinks fit -

O.XXXIX.r.7.
Detention,
preservation,
inspection, etc., of
suit.

(a) make an order for the detention, preservation, or inspection of any property which is the subject-matter of such suit, or as to which any question may arise therein;

(b) for all or any of the purposes aforesaid authorize any person to enter upon or into any land or building in the possession of any other party to such suit; and

(c) for all or any of the purposes aforesaid authorize any samples to be taken, or any observation to be made or experiment to be tried, which may seem necessary or expedient for the purpose of obtaining full information or evidence.

(2) The provisions as to execution of process shall apply *mutatis mutandis* to persons authorized to enter under this rule.

8. Where the subject-matter of a suit is money or some other thing capable of delivery, and any party thereto admits that he holds such money or other thing as a trustee for another party, or that it belongs or is due to another party, the court may order the same to be deposited in court or delivered to such last-named party, with or without security, subject to the further direction of the court.

O.XXXIX.r.8.
Deposit of money,
etc., in court.

9. Applications under rules 1 and 2 shall be by summons in chambers.

O.XXXIX.r.9.
Procedure.

ORDER XL

APPOINTMENT OF RECEIVERS

1.(1) Where it appears to the court to be just and convenient, the court may by order -

O. XL. r. 1.
Appointment of
receivers.

[Subsidiary]

- (a) appoint a receiver of any property, whether before or after decree;
- (b) remove any person from the possession or custody of the property;
- (c) commit the same to the possession, custody or management of the receiver; and
- (d) confer upon the receiver all such powers as to bringing and defending suits and for the realization, management protection, preservation, and improvement of the property, the collection of the rents and profits thereof, the application and disposal of such rents and profits, and the execution of such documents as the owner himself has, or such of those powers as the court thinks fit.

(2) Nothing in this rule shall authorize the court to remove from the possession or custody of property any person whom any party to the suit has not a present right so to remove.

O. XL. r. 2.
Remuneration.

2. The court may, by general or special order, fix the amount to be paid as remuneration for the services of the receiver.

O. XL. r. 3 Duties.

3. Every receiver so appointed shall -

- (a) furnish such security (if any) as the court thinks fit, duly to account for what he shall receive in respect of the property;
- (b) submit his accounts at such periods and in such form as the court directs;
- (c) pay the amount due from him as the court directs; and
- (d) be responsible for any loss occasioned to the property by his wilful default or gross negligence.

O. XL. r. 4.
Enforcement of
receiver's duties.

4. Where a receiver -

- (a) fails to submit his accounts at such periods and in such form as the court directs; or
- (b) fails to pay the amount due from him as the court directs;
or
- (c) occasions loss to the property by his wilful default or gross

negligence,

[Subsidiary]

the court may direct his property to be attached, and may sell such property, and may apply the proceeds to make good any amount found to be due from him, or any loss occasioned by him, and shall pay the balance (if any) to the receiver.

ORDER XLI

APPEALS

1. (1) Every appeal to the High Court shall be in the form of a memorandum of appeal signed in the same manner as a pleading.

O.XLI.r. 1. Form of appeal.
L.N. 119/1975.

(2) The memorandum of appeal shall set forth concisely and under distinct heads the grounds of objection to the decree or order appealed against, without any argument or narrative, and such grounds shall be numbered consecutively.

1A. Where no certified copy of the decree or order appealed against is filed with the memorandum of appeal, the appellant shall file such certified copy as soon as possible and in any event within such time as the court may order, and the court need not consider whether to reject the appeal summarily under section 79B of the Act until such certified copy is filed.

O.XLI.r. 1A. Filing of decree or order.
L.N. 119/1975.

1B. (1) The appellant may amend his memorandum of appeal without leave at any time before the court gives directions under rule 8B.

O.XLI.r.1B.
Amendment of memorandum of appeal.
L.N. 119/1975.

(2) After the time limited by subrule (1) the court may, on application by summons, permit the appellant to amend his memorandum of appeal.

2. The appellant shall not, except by leave of the court, urge or be heard in support of any ground of objection not set forth in the memorandum of appeal; but the High Court in deciding the appeal shall not be confined to the grounds of objection set forth in the memorandum of appeal or taken by leave of the court under this rule:

O.XLI.r.2. Grounds which may be taken in appeal.

Provided that the High Court shall not rest its decision on any other ground unless the party who may be affected thereby has had a sufficient opportunity of contesting the case on that ground.

3. Where there are more plaintiffs or more defendants than one in a suit, and the decree appealed from proceeds on any ground common to all the plaintiffs or to all the defendants, any one of the plaintiffs or

O.XLI.r.3. One of several plaintiffs or defendants may

[Subsidiary]
obtain reversal of
whole decree where
it proceeds on ground
common to all.

of the defendants may appeal from the whole decree, and thereupon the High Court may reverse or vary the decree in favour of all the plaintiffs or defendants, as the case may be.

O.XLI. r.4. Stay in
case of appeal.
L.N. 119/1975,
L.N. 88/1978.
L.N. 36/2000,

4. (1) No appeal or second appeal shall operate as a stay of execution or proceedings under a decree or order appealed from except in so far as the court appealed from may order but, the court appealed from may for sufficient cause order stay of execution of such decree or order, and whether the application for such stay shall have been granted or refused by the court appealed from, the court to which such appeal is preferred shall be at liberty, on application being made, to consider such application and to make such order thereon as may to it seem just, and any person aggrieved by an order of stay made by the court from whose decision the appeal is preferred may apply to the appellate court to have such order set aside.

(2) No order for stay of execution shall be made under subrule (1) unless-

- (a) the court is satisfied that substantial loss may result to the applicant unless the order is made and that the application has been made without unreasonable delay; and
- (b) such security as the court orders for the due performance of such decree or order as may ultimately be binding on him has been given by the applicant.

(3) Notwithstanding anything contained in subrule (2), the court shall have power, without formal application made, to order upon such terms as it may deem fit a stay of execution pending the hearing of a formal application.

(4) For the purposes of this rule an appeal to the Court of Appeal shall be deemed to have been filed when under the rules of that court notice of appeal has been given.

(5) An application for stay of execution may be made informally immediately following the delivery of judgement or ruling.

(6) Notwithstanding anything contained in subrule (1) of this rule the High Court shall have power in the exercise of its appellate jurisdiction to grant a temporary injunction on such terms as it thinks just provided the procedure for instituting an appeal from a subordinate court or tribunal has been complied with.

L.N. 128/2001

5. (1) Where an order is made for the execution of a decree from which an appeal is pending, the court which passed the decree or the court to which an appeal is pending in terms of rule 4 shall, on sufficient cause being shown by the appellant, require security to be taken for the restitution of any property which may be or has been taken in execution of the decree or for the payment of the value of such property and for the due performance of the decree or order of the court from whose decree or order such appeal shall have been brought.

[Subsidiary]
O.XLI.r.5. Security in case of order for execution of decree appealed from.

(2) Where an order has been made for the sale of immovable property in execution of a decree and an appeal is pending from such decree, the sale shall, on the application of the judgment-debtor to the court which made the order, or to any court to which such appeal or second appeal shall have been made, be stayed on such terms as to giving security or otherwise as the court thinks fit until the appeal is disposed of.

6. No such security as is mentioned in rules 4 and 5 shall be required from the Government or where the Government has undertaken the defence of the suit or from any public officer sued in respect of an act alleged to be done by him in his official capacity.

O. XLI. r. 6. No security to be required from the Government.

7. The powers conferred by rules 4 and 5 shall be exercisable where an appeal may be or has been preferred not from the decree but from an order made in execution of such decree.

O.XLI.r.7. Exercise of powers in appeal from order made in execution of decree.

8. (1) A register of appeals, to be called the register of appeals, shall be kept at every registry at which appeals are filed, and the particulars of every appeal shall be entered in such register and all appeals shall be numbered in each year according to the order in which the appeals are filed.

O. XLI. r. 8. Register and filing of appeals. L.N. 119/1975.

(2) Every memorandum of appeal to be filed shall be presented to the registry during office hours together with any fee payable on its filing and each such memorandum shall be date-stamped with the date on which it was so presented, which shall be the date of filing the appeal notwithstanding any dispute as to the amount of the fee payable.

8A. After the refusal of a judge to reject the appeal under section 79B of the Act, the registrar shall notify the appellant who shall serve the memorandum of appeal on every respondent.

O.XLI.r.8A. Service of memorandum. L.N.119/1975. L.N. 50/1985.

8B. (1) On notice to the parties delivered not less than twenty-one days after the date of service of the memorandum of appeal the registrar shall list the appeal for the giving of directions by a judge in chambers.

O.XLI.r.8B Directions. L.N. 119/1975, L.N. 50/1985.

[Subsidiary]

(2) Any objection to the jurisdiction of the appellate court shall be raised before the judge before he gives directions under this rule.

(3) The judge in chambers may give directions concerning the appeal generally and in particular directions as to the manner in which the evidence and exhibits presented to the court below shall be put before the appellate court and as to the typing of any record or part thereof and any exhibits or other necessary documents and the payment of the costs of such typing whether in advance or otherwise.

(4) Before allowing the appeal to go for hearing the judge shall be satisfied that the following documents are on the court record, and that such of them as are not in the possession of either party have been served on that party, that is to say -

- (a) the memorandum of appeal;
- (b) the pleadings;
- (c) the notes of the trial magistrate made at the hearing;
- (d) the transcript of any official shorthand or palantypist notes made at the hearing;
- (e) all affidavits, maps and other documents whatsoever put in evidence before the magistrate;
- (f) the judgement, order or decree appealed from, and, where appropriate, the order (if any) giving leave to appeal;
- (g) where the appeal is from a decision of a subordinate court given in the exercise of its appellate jurisdiction, the documents corresponding to those specified in paragraphs (a) to (f) inclusive so far as they relate to the appeal to such subordinate court:

Provided that -

- (i) a translation into English shall be provided of any document not in that language;
- (ii) the judge may dispense with the production of any document or part of a document which is not relevant, other than those specified in paragraphs (a), (b) and (f).

O. XLI. r. 9.
Security for costs.
L.N.119/1975.

9. (1) At any time after the memorandum of appeal has been served the court, in its discretion, may order the appellant to give security for

the whole or any part of the costs of such appeal.

[Subsidiary]

(2) If the appellant is not ordinarily resident in Kenya and has no sufficient property in Kenya (other than property to which the appeal relates) the court shall order the giving of security for the whole or part of the costs of the appeal within a time to be limited in the order.

(3) If security for costs is not given within the time ordered the court may dismiss the appeal.

10. (1) When a memorandum of appeal is lodged the court to which such appeal is preferred shall send notice of the appeal to the court from whose decree the appeal is preferred.

O.XLI.r. 10. Notice to be given where decree appealed from.

(2) The court receiving such notice shall send with all practicable despatch all material papers in the suit, or such papers as may be specially called for by the court to which such appeal is preferred.

(3) Either party may on application and upon payment of the requisite charges obtain copies of any such papers as aforesaid.

10A. (1) The appellant may, with his memorandum of appeal, file a declaration in writing that he does not wish to be present in person or by advocate on the hearing of the appeal, together with two copies of such arguments as he desires to submit.

O.XLI.r.10A. Filing declaration for presence at appeal. G.N.118/1932.

(2) The Registrar shall, where such declaration and arguments are filed, cause a copy thereof to be served upon the respondent or his advocate.

(3) The respondent may file a declaration in writing stating that he does not wish to be present in person or by advocate on the hearing of the appeal, together with two copies of such arguments as he desires to submit.

11. Notice of the day fixed for hearing of the appeal shall be served on the respondent or on his advocate in the manner provided for the service on a defendant of a summons to enter appearance; and all the provisions applicable to such summons, and to proceedings with reference to the service thereof, shall apply to the service of such notice.

O.XLI.r.11. Service of notice of day for hearing appeal.

12. The notice to the respondent shall declare that, if he does not appear in the court to which such appeal is preferred on the day so fixed, the appeal may be heard *ex parte*.

O.XLI.r. 12. Contents of notice.

[Subsidiary]

O.XLI.r. 13. Right to begin.

13. (1) On the day fixed, or on any other day to which the hearing may be adjourned, the appellant shall be heard in support of the appeal.

(2) The court shall then, if it does not dismiss the appeal at once, hear the respondent against the appeal, and in such case the appellant shall be entitled to reply.

O.XLI.r. 14.
Dismissal of appeal for appellant's default.

14. (1) Where on the day fixed, or on any other day to which the hearing may be adjourned, the appellant does not appear when the appeal is called on for hearing, and has not filed a declaration under rule 10A (1), the court may make an order that the appeal be dismissed.

(2) Where the appellant appears, and the respondent does not appear and has not filed a declaration under rule 10A (3), the appeal may be heard *ex parte*.

15. (*Deleted by L.N. 88/1978.*)

O.XLI.r. 16. Re-admission of appeal dismissed for default.
L.N. 88/1978.

16. Where an appeal is dismissed under rule 14, the appellant may apply to the court to which such appeal is preferred for the re-admission of the appeal; and, where it is proved that he was prevented by any sufficient cause from appearing when the appeal was called on for hearing, the court shall re-admit the appeal on such terms as to costs or otherwise as it thinks fit.

O.XLI. r.17. Power to adjourn hearing and direct persons appearing interested to be made respondents.

17. Where it appears to the court at the hearing that any person who was a party to the suit in the court from whose decree the appeal is preferred, but who has not been made a party to the appeal, is interested in the result of the appeal, the court may adjourn the hearing to a future day to be fixed by the court and direct that such person be made a respondent.

O.XLI.r.18.
Re-hearing on application of respondent against whom *ex parte* decree made.

18. Where an appeal is heard *ex parte* and judgment is pronounced against the respondent, he may apply to the court to which the appeal is preferred to re-hear the appeal; and if he satisfies the court that the notice was not duly served or that he was prevented by sufficient cause from appearing when the appeal was called on for hearing, the court shall re-hear the appeal on such terms as to costs or otherwise as it thinks fit to impose upon him.

O.XLI.r. 19. Remand of cases.

19. Where the court from whose decree an appeal is preferred has disposed of the suit upon a preliminary point, and the decree is reversed on appeal, the court to which the appeal is preferred may, if it thinks fit, by order remand the case, and may further direct what issue or issues shall be tried in the case so remanded, and shall send a copy

of its judgment and order to the court from whose decree the appeal is preferred, with directions to re-admit the suit under its original number in the register of civil suits, and proceed to determine the suit; and the evidence, if any, recorded during the original trial shall, subject to all just exceptions, be evidence during the trial after remand. [Subsidiary]

20. Where the evidence upon the record is sufficient to enable the court to which the appeal is preferred to pronounce judgment, the court to which the appeal is preferred may, after resettling the issues, if necessary, finally determine the suit, notwithstanding that the judgment of the court from whose decree the appeal is preferred has proceeded wholly upon some ground other than that on which the court to which the appeal is preferred proceeds. O.XLI.r. 20. Where evidence on record sufficient appellate court may determine case finally.

21. If upon the hearing of an appeal it shall appear to the court to which the appeal is preferred that a new trial ought to be had, it shall be lawful for the said court, if it shall think fit, to order that the judgment and decree shall be set aside, and that a new trial shall be had. O.XLI.r.21. Power to order new trial.

22. (1) The parties to an appeal shall not be entitled to produce additional evidence, whether oral or documentary, in the court to which the appeal is preferred; but if - O.XLI.r. 22, Production of additional evidence in appellate court.

(a) the court from whose decree the appeal is preferred has refused to admit evidence which ought to have been admitted; or

(b) the court to which the appeal is preferred requires any document to be produced or any witness to be examined to enable it to pronounce judgment, or for any other substantial cause,

the court to which the appeal is preferred may allow such evidence or document to be produced, or witness to be examined.

(2) Wherever additional evidence is allowed to be produced by the court to which the appeal is preferred the court shall record the reason for its admission.

23. Wherever additional evidence is allowed to be produced, the court to which the appeal is preferred may either take such evidence or direct the court from whose decree the appeal is preferred or any other subordinate court to take such evidence and to send it when taken to the court to which the appeal is preferred. O.XLI.r. 23. Mode of taking additional evidence.

24. Where additional evidence is directed or allowed to be taken the court to which the appeal is preferred shall specify the points to O.XLI.r. 24. Points to be defined and recorded.

[Subsidiary]

which the evidence is to be confined and record on its proceedings the points so specified.

O.XLI.r.25. Where court consists of two.

25. (1) When the court consists of more judges than one, the decree of the court shall be drawn in accordance with the findings of the majority.

(2) When the court is equally divided in opinion the appeal shall be dismissed.

O.XLI.r. 26. What judgment may direct.

26. The judgment may be for confirming, varying or reversing the decree from which the appeal is preferred, or, if the parties to the appeal agree as to the form which the decree in appeal shall take, or as to the order to be made in appeal, the court to which the appeal is preferred may pass a decree or make an order accordingly.

O.XLI.r. 27. Power of appellate court on appeal.

27. The court to which the appeal is preferred shall have power to pass any decree and make any order which ought to have been passed or made and to pass or make such further or other decree or order as the case may require, and this power may be exercised by the court notwithstanding that the appeal is as to part only of the decree and may be exercised in favour of all or any of the respondents although such respondents may not have filed any appeal or cross-appeal.

O.XLI.r. 28.
Preparation and contents of decree.
L.N. 96/1957.

28. The decree of the court to which the appeal is preferred shall be dated, drawn up, sealed and signed as directed by rules 6, 7 and 8 of Order XX with any necessary modifications.

29. (*Deleted by L.N. 88/1978.*)

O.XLI.r. 30. Certified copy of decree to be sent to court whose decree appealed from.

30. A copy of the judgment and of the decree, certified by the High Court, or such officer as it appoints in this behalf, shall be sent to the court which passed the decree appealed from, and shall be filed with the original proceedings in the suit, and an entry of the judgment of the court to which the appeal is preferred shall be made in the register of civil suits.

O.XLI.r.31.
Dismissal for want of prosecution.
L.N. 119/1975.

31. (1) Unless within three months after the giving of directions under rule 8B the appeal shall have been set down for hearing by the appellant, the respondent shall be at liberty either to set down the appeal for hearing or to apply by summons for its dismissal for want of prosecution.

(2) If, within one year after the service of the memorandum of appeal, the appeal shall not have been set down for hearing, the registrar shall on notice to the parties list the appeal before a judge in chambers for dismissal.

32. An application under rule 9 may be heard in chambers and shall be by summons.

[Subsidiary]
O.XLI, r. 32
procedure.

ORDER XLII

APPEAL FROM ORDERS

1. (1) An appeal shall lie as of right from the following Orders and rules under the provisions of section 75 (1) (h) of the Act -

O.XLII.r.1.
Appeals from Orders.
L.N. 119/1975,
L.N. 88/1978,
L.N. 36/2000.

- (a) Order I (parties to suits);
- (b) Order II (frame of suit);
- (c) Order VI (pleadings generally);
- (d) Order VIA (amendment of pleadings);
- (e) Order VII, rule 9 (return of plaint);
- (f) Order VIII, rule 11 (exclusion of counterclaim);
- (g) Order IXA, rule 10 (setting aside judgment in default of appearance or pleading);
- (h) Order IXB, rule 8 (setting aside judgment in consequence of non-attendance);
- (i) Order X, rule 20 (non-compliance with order for discovery);
- (j) Order XI (consolidation of suits);
- (k) Order XV, rules 10, 12 and 19 (sanctions against witnesses and parties in certain cases);
- (l) Order XVI, rule 5 (dismissal for want of prosecution);
- (m) Order XIX (affidavits);
- (n) Order XXI, rules 25, 57, 65 (3) and 81 (orders in execution);
- (o) Order XXII, rule 6 (trial of claim of third person in attachment of debts case);

[Subsidiary]

- (p) Order XXIII, rules 5, 8 and 9 (legal representatives, etc.);
 - (q) Order XXIV, rule 6 (compromise of suit);
 - (r) Order XXV, rules 1 and 5 (2) (security for costs);
 - (s) Order XXVI, rules 3 and 11 (payment out of money paid into court, etc.);
 - (t) Order XXVIII, rule 4 (orders in proceedings against the Government);
 - (u) Order XXXIII (interpleader);
 - (v) Order XXXV, rules 5, 7 and 10 (summary procedure cases);
 - (w) Order XXXVIII, rules 2, 3 and 6 (furnishing security, etc.);
 - (x) Order XXXIX, rules 1, 2, 4 and 8 (temporary injunctions, etc.);
 - (y) Order XL, rules 1 and 4 (receivers);
 - (z) Order XLI, rules IB, 9, 16, 18 and 31 (appeals);
 - (aa) Order XLIV, rule 3 (application for review);
 - (bb) (*Deleted by L.N. 128/2001.*)
 - (cc) Order XLIX, rule 5 (enlargement of time);
 - (dd) Order LII, rules 4, 5, 6 and 6A (advocates);
 - (ee) Order LIII (prerogative orders).
- (2) An appeal shall lie with the leave of the court from any other order made under these Rules.

(3) Applications for leave to appeal under section 75 of the Act shall in the first instance be made to the court making the order sought to be appealed from, either informally at the time when the order is made, or within 14 days from the date of such order.

(4) Application for leave to appeal shall be by summons or orally at the time of the making of the order.

[Subsidiary]

(5) Save where otherwise expressly provided in this rule, “order” includes both an order granting the relief applied for and an order refusing such relief.

2. The rules of Order XLI shall apply, so far as may be, to appeals from orders.

O.XLII.r.2
Procedure.

3. Nothing in this Order shall apply to any adjudication which, as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit.

O.XLII.r.3. Saving.
L.N. 88/1978.

ORDER XLIII

PAUPER APPEALS

1. Any person entitled to prefer an appeal, who is unable to pay the fee required for the memorandum of appeal, may present an application accompanied by a memorandum of appeal, and may be allowed to appeal as a pauper, subject in all matters, including the presentation of such application, to the provisions relating to suits by paupers in so far as those provisions are applicable:

O.XLIII.r.1 Who may
appeal as pauper.

Provided that the court shall dismiss the application unless upon a perusal of the memorandum of appeal and of the record of the lower court, it sees reason to think that the decree is contrary to law, or against the weight of the evidence.

2. The inquiry into the pauperism of the applicant may be made either by the High Court or under the orders of the High Court by the court from whose decision the appeal is preferred:

O.XLIII.r.2. Inquiry
into pauperism.

Provided that, if the applicant was allowed to sue or appeal as a pauper in the court from whose decree the appeal is preferred, no further inquiry in respect of his pauperism shall be necessary, unless the High Court sees cause to direct such inquiry.

3. Applications under this Order shall be made *ex parte* by summons in chambers.

O.XLIII.r.3.
Procedure.

[Subsidiary]

ORDER XLIV

REVIEW

O.XLIV.r.1.
Application for
review of judgment.
L.N.119/1975,
L.N. 5/1996.
L.N. 84/1996.

1. (1) Any person considering himself aggrieved -

- (a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred; or
- (b) by a decree or order from which no appeal is hereby allowed,

and who from the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or the order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree or order, may apply for a review of judgment to the court which passed the decree or made the order without unreasonable delay.

“(2) A party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and the appellant, or when, being respondent, he can present to the appellate court the case on which he applies for the review.”

O.XLIV.r.2.
To whom
applications for
review may be made

2. An application for review of a decree or order of a court, upon some ground other than the discovery of such new and important matter or evidence as is referred to in rule 1, or the existence of a clerical or arithmetical mistake or error apparent on the face of the decree, shall be made only to the judge who passed the decree, or made the order sought to be reviewed.

O.XLIV.r.3.
Application where
rejected, where
granted.

3. (1) Where it appears to the court that there is not sufficient ground for a review, it shall dismiss the application.

(2) Where the court is of opinion that the application for review should be granted, it shall grant the same:

Provided that no such application shall be granted on the ground of discovery of new matter or evidence which the applicant alleges was not within his knowledge, or could not be adduced by him when the decree or order was passed or made without strict proof of such allegation.

4. (1) If the judge who passed the decree or made the order is no longer attached to the court, the application may be heard by any other judge who is attached to the court at the time the application comes for hearing. [Subsidiary] O.XLIV.r.4. Application to same judge. L.N. 119/1975, L.N. 5/1996.
- (2) If the judge who passed the decree or made the order is still attached to the court but is precluded by absence or other cause for a period of three (3) months next after the application for review is lodged, the application may be heard by such other judge as the Chief Justice may designate.
5. (1) Where the application for a review is heard by more than one judge and the court is equally divided the application shall be dismissed. O.XLIV.r. 5 Application where more than one judge hears.
- (2) Where there is a majority, the decision shall be according to the opinion of the majority.
6. When an application for review is granted, a note thereof shall be made in the register, and the court may at once re-hear the case or make such order in regard to the re-hearing as it thinks fit. O.XLIV.r.6. Re-hearing upon application granted.
7. No application to review an order made on an application for a review of a decree or order passed or made on a review shall be entertained. O.XLIV.r.7. Bar of subsequent applications.

ORDER XLV

ARBITRATION UNDER ORDER OF A COURT

1. Where in any suit all the parties interested who are not under disability agree that any matter in difference between them in such suit shall be referred to arbitration, they may, at any time before judgment is pronounced, apply to the court for an order of reference. O.XLV.r.1. Parties to a suit may apply for arbitration. L.N. 119/1975.
2. The arbitrator shall be appointed in such manner as may be agreed upon between the parties. O.XLV. r. 2. Appointment of arbitrator.
3. (1) The court shall, by order, refer to the arbitrator the matter in difference which he is required to determine, and shall fix such time as it thinks reasonable for the making of the award, and shall specify such time in the order. O.XLV. r. 3. Form of order.
- (2) Where a matter is referred to arbitration, the Court shall not, save in the manner and to the extent provided in this Order, deal with

[Subsidiary]

such matter in the suit.

O.XLV.r.4.
Provisions where two
or more arbitrators.

4.(1) Where the reference is to two or more arbitrators provision shall be made in the order for a difference of opinion among the arbitrators-

- (a) by the appointment of an umpire; or
- (b) by declaring that, if the majority of arbitrators agree, the decision of the majority shall prevail; or
- (c) by empowering the arbitrators to appoint an umpire; or
- (d) otherwise as may be agreed between the parties, or, if they cannot agree, as the court may determine.

(2) Where an umpire is appointed, the court shall fix such time as it thinks reasonable for the making of his award in case he is required to act.

O.XLV.r.5
Power to appoint
arbitrator.

5. (1) In any of the following cases, namely -

- (a) where the parties cannot agree within a reasonable time with respect to the appointment of an arbitrator, or the person appointed refuses to accept the office of arbitrator; or
- (b) where the arbitrator or umpire -
 - (i) dies, or
 - (ii) refuses or neglects to act or becomes incapable of acting, or
 - (iii) leaves Kenya in circumstances showing that he will probably not return at an early date; or
- (c) where the arbitrators are empowered by the order of reference to appoint an umpire and fail to do so,

any party may serve the other or the arbitrators as the case may be with a written notice to appoint an arbitrator or umpire.

(2) If, within seven clear days after such notice has been served or such further time as the court may in each case allow, no arbitrator or no umpire is appointed, as the case may be, the court may, on application by the party who gave the notice, and after giving the other party an opportunity of being heard, appoint an arbitrator or umpire, or make

an order superseding the arbitration, and in such case shall proceed with the suit. [Subsidiary]

6. Every arbitrator or umpire appointed under rule 4 or rule 5 shall have the like powers as if his name had been inserted in the order of reference.

O.XLV. r. 6. Power of arbitrator or umpire appointed by court.

7. (1) The court shall issue the same processes to the parties and witnesses whom the arbitrator or umpire desires to examine as the court may issue in suits tried before it.

O.XLV. r. 7. Summoning witnesses and default.

(2) Persons not attending in accordance with such process or making any other default, or refusing to give their evidence, or guilty of any contempt to the arbitrator or umpire during the investigation of the matters referred, shall be subject to the like disadvantages, penalties, and punishments, by order of the court on the representation of the arbitrator or umpire, as they would incur for the like offences in suits tried before the court.

8. (1) The parties may, by filing an agreement in writing, extend the time for the making of the award, whether or not at the date of the agreement time has expired, and whether or not an award has been made since the expiry of the time allowed.

O.XLV. r. 8. Extension of time for making award. L.N.119/1975.

(2) On application made by a party, arbitrator or umpire on notice, the court may either extend the time for the making of the award, whether or not at the date of the application time has expired, and whether or not an award has been made since the expiry of the time allowed, or make an order superseding the arbitration in which case it shall proceed with the suit.

9. Where an umpire has been appointed he may enter on the reference in the place of the arbitrators -

O.XLV. r. 9. Where umpire may arbitrate in lieu of arbitrators.

(a) if they have allowed the appointed time to expire without making an award, or

(b) if they have delivered to the court or to the umpire a notice in writing stating that they cannot agree.

10. Where an award in a suit has been made, the persons who made it shall sign it and cause it to be filed in court, together with any depositions and documents which have been taken and proved before them; and notice of the filing shall be given to the parties.

O.XLV.r.10. Award to be signed and filed. L.N.50/1985.

10A. (1) Where one or more of the parties are not represented by an advocate notice of the filing of the award given under rule 10 shall

O.XLV.r.10A. Time for reading award

[Subsidiary]
may be fixed.

specify a date and time for reading the award giving not less than thirty days' notice of the reading.

(2) On the date and at the time fixed by the notice the award shall be read by the registrar to such of the parties as are present.

O.XLV.r.11.
Statement of special
case by arbitrators or
umpire.

11. Upon any reference by an order of the court, the arbitrator or umpire may, and shall if so directed by the court, state the award as to the whole or any part thereof in the form of a special case for the opinion of the court, and the court shall deliver its opinion thereon, and shall order such opinion to be added to and form part of the award.

O.XLV.r.12. Costs of
arbitration.
L.N.119/1975.

12. The court may make such order as it thinks fit in respect of the costs of an arbitration save to the extent to which an award of costs has been properly made by the arbitrator.

O.XLV.r.13. Power
to modify or correct
award. L.N.119/1975.

13. The court may modify or correct an award -

- (a) where it appears that a part of the award is upon a matter not referred to arbitration and such part can be separated from the other part and does not affect the decision on the matter referred; or
- (b) where the award is imperfect in form, or contains an obvious error which can be amended without affecting such decision; or
- (c) where the award contains a clerical mistake or an error arising from an accidental slip or omission.

O.XLV.r.14. Power to
remit to arbitration.
L.N.119/1975.

14. (1) The court may remit an award, or any other matter referred to arbitration, to the reconsideration of the same arbitrator or umpire upon such terms as it thinks fit -

- (a) where the award has left undetermined any of the matters referred to arbitration, or where it determines any matter not referred to arbitration, unless such matter can be separated without affecting the determination of the matters referred;
- (b) where the award is so indefinite as to be incapable of taking effect;
- (c) where an objection to the legality of the award is apparent on the face of it.

(2) The order remitting the award shall state the time within which it shall be reconsidered, and rule 8 shall apply to such reconsideration

as it applies to an award.

[Subsidiary]

15. (1) The court may set aside an award on the following grounds only -

O.XLV.r.15. Grounds for setting aside award. L.N.119/1975.

(a) corruption or misconduct of the arbitrator or umpire;

(b) that either party has fraudulently concealed any matter which he ought to have disclosed, or has wilfully misled or deceived the arbitrator or umpire.

(2) Where an award is set aside under this rule the court shall supersede the arbitration and shall proceed with the suit.

16. Application may be made under rules 12, 13, 14 and 15 within thirty days of receipt by the applicant of notice of the filing of the award under rule 10 or, where a date for reading the award has been fixed by the court under rule 10A within thirty days of that date.

O.XLV.r.16. Time for application. L.N.119/1975. L.N.50/1985.

17. (1) The court shall on request enter judgment according to the award-

O.XLV.r.17. Judgment on award. L.N.119/1975. L.N. 36/2000.

(a) when no application has been made within the time allowed by rule 16; or

(b) when an application under rules 12, 13 or 15 has been heard and determined and no other application has been made within the time allowed by rule 16; or

(c) when an application under rules 13, 14, and 15 has been heard and refused and no leave to appeal against any such refusal has been granted within fourteen days of that refusal.

L.N.128/2001.

(2) Upon the judgment so entered a decree shall follow and no appeal shall lie from such decree except in so far as the decree is in excess of, or not in accordance with, the award.

(3) Order XLVIII rule 2 shall apply to the entry of judgment under subrule (1).

18. Forms Nos. 12 to 16 of Appendix G shall be used for the respective purposes therein mentioned.

O.XLV.r.18. Forms. L.N.119/1975.

19. Applications under this Order other than under rule 15 shall be made by summons, and an application under rule 15 shall be served on the arbitrator or umpire.

O.XLV.r.19. Procedure. L.N.119/1975.

[Subsidiary]

ORDER XLVI

DISTRICT REGISTRIES

O.XLVI.r.1.
Institution of suits in
High Court.

1. Every suit in the High Court may be instituted at the Central Office of that court situate in Nairobi or in a District Registry.

O.XLVI.r.2. Schedule
of District Registries
and areas. L.N.
119/1975.

2. (1) There shall be District Registries and District Registrars of the High Court at the places and for the areas set out in the Schedule to this subrule.

GAZETTE NOTICE NO. 299

THE CIVIL PROCEDURE ACT

(Cap. 21)

HIGH COURT DISTRICT REGISTRIES

IN EXERCISE of the powers conferred by Rule 2(2) of Order XLVI of the Civil Procedure Rules made under the Civil Procedure Act, Chapter 21 of the Laws of Kenya, the Chief Justice makes amendments to the Schedule of Areas, Registries and District Registrars of the High Court set out in Rule 2(1) thereof by deleting the said Schedule and substituting therefore the following new Schedule.

SCHEDULE

[Subsidiary]

HIGH COURT DISTRICT REGISTRIES, AREAS OF JURISDICTION
AND DISTRICT REGISTRARS

Area/District	High Court District Registry	District Registrar
Mombasa, Kwale, Kilifi, Taita-Taveta.	Mombasa High Court	Deputy Registrar
Malindi, Kilifi, Lamu, Tana River.	Malindi High Court	Deputy Registrar
Nakuru, Narok, Nyandarua, Samburu, Trans Mara.	Nakuru High Court	Deputy Registrar
Kericho, Bureti, Bomet.	Kericho Sub-registry	Deputy Registrar
Uasin Gishu, Elgeyo Marakwet, Nandi North, Nandi Sough, Baringo, Koibatek, Keiyo.	Eldoret High Court	Deputy Registrar
Trans Nzoia, West Pokot, Turkana.	Kitale High Court	Deputy Registrar
Nyeri, Thika, Kiambu, Maragwa, Murang'a, Kirinyaga, Laikipia	Nyeri High Court	Deputy Registrar
Machakos, Kitui, Makueni, Mwingi, Kajiado.	Machakos High Court	Deputy Registrar
Meru Central, Nyambene, Nithi, Tharaka, Isiolo, Marasabit, Moyale	Meru High Court	Deputy Registrar
Nyeri, Thika, Kiambu, Maragwa, Kirinyag'a, Kirinyaga, Laikipia	Embu High Court	Deputy Registrar
Kakamega, Lugari, Butere- Mumias, Vihiga.	Kakamega High Court	Deputy Registrar
Bungoma, Teso, Mt. Elgon.	Bungoma High Court	Deputy Registrar
Busia, Mt. Elgon.	Busia Sub-registry	Deputy Registrar
Kisumu, Nyando, Siaya, Bondo, Rachuyonyo.	Kisumu	Deputy Registrar
Gucha, Kisii Central, Homa Bay, Nyamira, Trans Mara Migori, Suba, Kuria.	Kisii High Court	Deputy Registrar
Mandera, Wajir, Ijara, Garissa.	Garissa Sub-registry	Deputy Registrar

Dated the 10th January, 2007J.E. GICHERU
Chief Justice.

(2) The Chief Justice may by notice in the Gazette amend the Schedule to subrule (1) by the addition or deletion of any area, place of Registry or District Registrar or by the variation of any area.

[Subsidiary]

- O.XLVI.r.3. Title of suits filed in a District Registry.
3. Suits filed in a District Registry shall be intitled as suits in “The High Court of Kenya* District Registry”, and shall be serially numbered in that Registry.
- O.XLVI.r.4. Suits filed in a registry remain there when all defendants reside within that area.
4. Where the defendant resides or carries on business or all the defendants (if more than one) reside or carry on business within the area in the District Registry whereof a suit has been instituted, all proceedings shall be taken in such registry subject to any order fixing the place of trial made by the court under rule 8.
- O.XLVI.r.4A. Proceedings against the Government. L.N. 299/1957.
- 4A. Notwithstanding anything in rule 4, in any civil proceedings against the Government the defendant shall for the purposes of this Order be deemed neither to reside nor to carry on business within the district of any District Registry.
- O.XLVI.r.5. Place of trial.
- 5.(1) Every suit whether instituted in the Central Office or in a District Registry of the High Court shall be tried in such place as the court may direct; and in the absence of any such direction a suit instituted in the Central Office shall be tried by the High Court sitting in the area of such Central Office and a suit instituted in a District Registry shall be tried by the High Court sitting in the area of such District Registry.
- (2) The court may of its own motion or on the application of any party to a suit and for cause shown order that a case be tried in a particular place to be appointed by the court:
- Provided always that in appointing such particular place for trial the court shall have regard to the convenience of the parties and of their witnesses and to the date on which such trial is to take place, and all the other circumstances of the case.
- O.XLVI.r.5A. Place of trial in proceedings by or against the Government. L.N. 299/1957.
- 5A. Notwithstanding anything in rule 5 or in any other provisions of these Rules, civil proceedings by or against the Government in the High Court shall not, except with the consent of the Government, be directed to be tried elsewhere than at the High Court sitting in the area of the Central Office.
- O.XLVI.r.6. All preliminary steps taken before the District Registrar.
6. In a suit proceeding in a District Registry all formal steps preliminary to the trial and all interlocutory applications shall, in the absence of a judge, be made and taken before the District Registrar; and when such suit is ready for trial it may be set down for hearing before a judge sitting at the place of the Registry.
- O.XLVI.r.7. Appeal from decision of District Registrar.
7. (1) Any person affected by any order or decision of a District Registrar made in any preliminary step or upon an interlocutory application may appeal to a judge; and such appeal may be made

notwithstanding that the order or decision was in respect of a proceeding or matter as to which the District Registrar had jurisdiction only by consent. [Subsidiary]

(2) Such appeal shall be by way of endorsement upon the record by the District Registrar at the request of any party within fourteen days from the making of such order or decision, and the record bearing such endorsement shall forthwith be sent to the Registrar of the High Court who shall give such directions for the hearing of the appeal as he may consider reasonable.

(3) The hearing of an appeal under this rule shall be before a judge in chambers.

8. A District Registrar with regard to suits tried in his area shall have the same power of taxing costs as the Registrar has as a taxing officer under any Rules of Court, and all such rules shall apply to the taxation of costs by a District Registrar. O.XLVI.r. 8. Taxations in District Registries.

9. (1) An appeal from a decree or order of a subordinate court to the High Court may be filed in the District Registry within the area of which such subordinate court is situate; and the District Registrar shall, upon the payment to him of all fees, endorse the date of filing upon the memorandum of appeal, and send forward the papers to the Registrar of the High Court. O.XLVI.r.9. Appeals from subordinate courts.

(2) The Registrar shall give such directions for the hearing and disposal of such appeal as he may consider reasonable, having regard to the convenience of the parties and the date at which a hearing can take place.

ORDER XLVII

MISCELLANEOUS

1. (1) Every process issued under these Rules shall be served at the expense of the party on whose behalf it is issued unless the court otherwise directs. O.XLVII.r.1. Process to be served at expense of party issuing.

(2) The court fee chargeable for such service shall be paid within a time to be fixed before the process is issued.

2. All orders, notices and documents required by these Rules to be given to or served on any person shall, save where other provision is made, be served in the manner provided for the service of summons. O.XLVII.r.2. Orders and notices, how served.

3. The forms used for the purposes of this Act shall, with such variation as the circumstances of each case may require, be those to be O.XLVII.r.3. Use of forms.

[Subsidiary]

found in the Appendices to these Rules, and such other forms as may be from time to time approved by the High Court.

O.XLVII.r.4. Rules of procedure not contained in these Rules.

4. Any special rules of procedure not contained in these Rules which may have been or may be made by the High Court shall, where they conflict with these Rules, prevail and be deemed to govern the procedure in the matter therein mentioned.

ORDER XLVIII

SPECIAL POWERS OF REGISTRARS

O.XLVIII.r.1.
Registrar to be ministerial officer.
LN.96/1957,
L.N. 367/1957,
L.N.216/1985.

1. Wherever in these Rules it is provided that any ministerial act or thing may be done by the court, that act or thing may be done by the Registrar or by an executive officer generally or specially thereunto empowered by the Chief Justice by writing under his hand.

O.XLVIII.r.2.
Judgment, when may be entered by Registrar.
L.N. 367/1957,
L.N. 88/1978.

2. Judgment may, on application in writing, be entered by the Registrar or, in a subordinate court, by an executive officer generally or specially thereunto empowered by the Chief Justice by writing under his hand, in the following cases -

(a) under Order IXA;

(b) in all other cases in which the parties consent to judgment being entered in agreed terms;

(c) under Order XXIV, rule 3 (costs, where suit withdrawn or discontinued).

O.XLVIII.r.2A.
Consent orders.
L.N. 119/1975.

2A. Any order may, by consent of the parties evidenced in writing, be entered by the registrar or, in a subordinate court, by an executive officer so authorized in writing by the Chief Justice.

O.XLVIII.r.2B.
No judgment against Government in default of pleading without leave of court.
L.N. 299/1957.
L.N. 119/1975.

2B. Notwithstanding anything contained in rule 2, in any proceedings against the Government no judgment for the plaintiff shall be entered in default of appearance or pleading without the leave of the court, and any application for such leave shall be made by notice of motion served not less than seven days before the return day.

O.XLVIII.r.3.
Execution may be ordered by Registrar.
L.N. 367/1957.

3. Formal orders for attachment and sale of property and for the issue of notices to show cause on applications for arrest and imprisonment in execution of a decree of the High Court may be made by the registrar or, in a subordinate court, by an executive officer

generally or specially thereunto empowered by the Chief Justice by writing under his hand, but in the event of any objection being taken to the proceedings thereunder, all further proceedings shall be before a judge. Such objection shall be taken by motion on notice. [Subsidiary]

4. For the purposes of rules 2, 2A and 3 a registrar or, in a subordinate court, an executive officer empowered as aforesaid, shall be deemed to be a Civil Court.

O.XLVIII.r.4
Registrar a Civil
Court.
L.N. 367/1957,
L.N. 88/1978.

5. (1) The Registrar may -

O.XLVIII.r.5.
Hearing of
applications.
L.N. 50/1985,
L.N. 36/2000.

(a) give directions under Order XLI rule 8B and Order L rule 8;

(b) hear and determine an application made under the following Orders and rules-

(i) Order I, rules 2, 8, 10, 15 and 18;

(ii) Orders II, III and V;

(iii) Order VI, rules 1 and 8;

(iv) Order VI A;

(v) Order VIII, rules 16 and 17 (2);

(vi) Order IX;

(vii) Order IXA, rules 1 and 7;

(vii) Order X other than rule 20;

(ix) Orders XI, XII (except rule 6), XIX and XX rule 11;

(x) Orders XXI other than under rules 28, 57 and 79;

(xi) Orders XXII, XXIII, XXIV, XXV, XXVI, XXVII, XXIX, XXX and XXXII;

(xii) XL1, rule 9.

(2) An appeal shall be from a decision of the Registrar under the Orders referred to in sub-rule(1) to a judge in chambers.

(3) The memorandum of the appeal, setting out the grounds

[Subsidiary]

of the appeal shall be filed within seven days of the decision of the Registrar.

ORDER XLIX

TIME

O.XLIX.r.1. Month
means calendar
month.

1. Where by these Rules or by any judgment or order given or made, time for doing any act or taking any proceedings is limited by months, and where the word “month” occurs in any document which is part of any legal procedure under these Rules, such time shall be computed by calendar months unless otherwise expressed.

O.XLIX.r.2.
Exclusion of
Sundays, etc.

2. Where any limited time less than six days from or after any date or event is appointed or allowed for doing any act or taking any proceedings, Sunday, Christmas Day and Good Friday, and any other day appointed as a public holiday shall not be reckoned in the computation of such limited time.

O.XLIX.r.3. Time
expiring on Sunday
or close day.

3. Where the time for doing any act or taking any proceeding expires on a Sunday or other day on which the offices are closed, and by reason thereof, such act or proceeding cannot be done, or taken on that day, such act or proceeding shall so far as regards the time of doing or taking the same, be held to be duly done or taken if done or taken on the day on which the offices shall next be open.

O.XLIX.r.3A When
time does not run.
L.N. 119/1975.

3A. Except where otherwise directed by a judge for reasons to be recorded in writing, the period between the twenty-first day of December in any year and the sixth day of January in the year next following, both days included, shall be omitted from any computation of time (whether under these Rules or any order of the court) for the amending, delivering or filing of any pleading or the doing of any other act:

Provided that this rule shall not apply to any application in respect of a temporary injunction.

O.XLIX.r.4. Time for
giving security for
costs. When not to be
reckoned.

4. The day on which an order for security for costs is served, and the time thenceforward until and including the day on which such security is given shall not be reckoned in the computation of time allowed to plead, answer interrogatories, or take any other proceeding in the cause or matter.

O.XLIX.r.5. Power to
enlarge time.

5. Where a limited time has been fixed for doing any act or taking any proceedings under these Rules, or by summary notice or by order of the court, the court shall have power to enlarge such time upon such terms (if any) as the justice of the case may require, and such enlargement may be ordered although the application for the same is not made until after the expiration of the time appointed or allowed:

[Subsidiary]

Provided that the costs of any application to extend such time and of any order made thereon shall be borne by the parties making such application, unless the court orders otherwise.

6. The time for delivering, amending, or filing any pleading, answer or other document of any kind whatsoever may be enlarged by consent in writing of the parties or their advocates without application to the court.

O.XLIX.r.6.
Enlargement of time
by consent.
L.N. 119/1975.

7. In any case in which any particular number of days not expressed to be clear days is prescribed under these Rules or by an order or direction of the court, the same shall be reckoned exclusively of the first day and inclusively of the last day.

O.XLIX.r.7.
Number of days how
computed.

8. (1) The rule applies to pleadings, notices, summonses (other than summonses on complaints), orders, rules and other proceedings.

O.XLIX.r.8. Time of
day of service.
L.N. 216/1985.

(2) Service shall normally be effected on a weekday other than Saturday and before the hour of five in the afternoon.

(3) For the purpose of computing any period of time subsequent to service outside the times specified in subrule (2) -

(a) service effected after five in the afternoon on a weekday other than Friday or Saturday is deemed to have been effected on the following day;

(b) service effected after five in the afternoon on Friday is deemed to have been effected on the following Monday.

ORDER L

MOTIONS AND OTHER APPLICATIONS

1. All applications to the court, save where otherwise expressly provided for under these Rules, shall be by motion and shall be heard in open court.

O.L.r.1. Procedure.

1A. Any application such as is referred to in section 25 (2) of the Government Proceedings Act, shall be made in the manner prescribed in rule 1.

O. L. r.1A
Applications under
section 25 (2) of
Cap. 40.
L.N. 299/1957.

2. No motion shall be made without notice to the parties affected thereby:

O.L.r.2 Notice to
parties.

[Subsidiary]

Provided, however, that the court, if satisfied that the delay caused by proceeding in the ordinary way would or might entail irreparable or serious mischief, may make any order *ex parte* upon such terms as to costs or otherwise, and subject to such undertaking, if any, as to the court seems just, and any party affected by such order may move to set it aside.

O.L.r.3 Contents of notice.

L.N. 119/1975.

3. Every notice of motion shall state in general terms the grounds of the application, and where any motion is grounded on evidence by affidavit, a copy of any affidavit intended to be used shall be served.

O.L.r.4. Dismissal or adjournments for want of notice.

L.N. 119/1975.

4. If upon the hearing of any motion or other application, the court is of opinion that sufficient notice has not been given or that any person to whom notice has not been given ought to have had such notice, the court may adjourn the hearing thereof in order that such notice may be given upon such terms, if any, as the court may think fit to impose.

O.L.r.5. Adjournment of hearing.

5. The hearing of any motion or application may from time to time be adjourned upon such terms as the court thinks fit.

O.L.r.6.

Service of notice on defendant served with summons to enter appearance but not appearing.

6. A plaintiff may, without special leave, cause to be served any notice of motion or notice of any petition or summons upon any defendant who, having been duly served with a summons to enter an appearance, has failed to appear within the time limited for that purpose.

O.L.r.7. Summons to be heard in chambers.

L.N. 119/1975.

7. Every summons shall state in general terms the grounds of the application being made and shall be heard in chambers and, where any summons is based on evidence by affidavit, a copy of the affidavit shall be served.

O. L. r. 8. Transfer from court to chambers.

8. Notwithstanding anything contained in these Rules, the court may in any case direct that any business be disposed of at chambers which it thinks may be more conveniently disposed of at chambers than in court.

O. L. r. 9. Costs.

9. Where any application authorized by these Rules to be made at chambers is made in court, any additional cost occasioned thereby shall be borne and paid by the party making the same, unless the court shall order otherwise.

O.L.r.10. Transfer from chambers to court.

10. Any judge or magistrate may adjourn into court any application made to him at chambers which he deems more convenient to be considered in court.

11. Where any application which is authorized to be made in court is made in chambers the judge may either adjourn the application into court or hear it in chambers.

[Subsidiary]
O.L.r.11. Application in chambers instead of in court. L.N. 119/1975.

12. Every order, rule or other statutory provision under or by virtue of which any application is made must ordinarily be stated, but no objection shall be made and no application shall be refused merely by reason of a failure to comply with this rule.

O.L.r.12. Provision under which application is made to be stated. L.N. 119/1975. Costs and other relief.

13. (1) It shall not be necessary in an originating summons, motion, chambers summons or other process to ask for costs, or for general or other relief, which may be granted by the court as it thinks just.

(2) Unless the court otherwise orders for special reasons to be recorded, costs awarded upon an originating summons, motion, chambers summons or other process shall be taxed only at the conclusion of the suit.

14. All applications, whether by motion, summons or other process, shall be deemed to have been made when the motion, summons or other process was filed in court.

When application made.

15. (1) A motion or summons taken out in any proceedings need only be signed by the advocate representing the applicant, or the applicant himself if acting in person, and need not be signed by or on behalf of the court.

Signature of motion or summons. L.N. 128/2001.

(2) Every motion and summons shall bear at the foot the words-

“If any party served does not appear at the time and place above-mentioned such order will be made and proceedings taken as the court may think just and expedient.”

16. (1) Any respondent who wishes to oppose any motion or other application shall file and serve on the applicant a replying affidavit or a statement of grounds of opposition, if any, not less than three clear days before the date of hearing.

O. L.r.16. Grounds of opposition to application in High Court. L.N. 50/1985, L.N. 5/1996, L.N. 128/2001.

(2) Any applicant upon whom a replying affidavit or statement of grounds of opposition has been served under subrule (1) may, with the leave of the court, file a supplementary affidavit.

(3) If a respondent fails to file a replying affidavit or a statement of grounds of opposition, the application may be heard *ex parte*.

[Subsidiary]

17. The court may set aside an order made *ex parte*.

18. The High Court may, in its discretion, limit the time allowed for submissions by the parties or their advocates.

ORDER LI

SUMMONS FOR DIRECTIONS

(Repealed by L.N. 36 of 2000.)

ORDER LII

THE ADVOCATES ACT

O.LII.r.1.

Interpretation.

Cap.16. L.N.5/1996.

1. In this Order -

“the Act” means the Advocates Act;

“the Disciplinary Committee” means the Disciplinary Committee established under section 57 of the Advocates Act;

“the Society” means the Society established and incorporated by section 3 of the Law Society of Kenya Act;

O. LII. r. 2. Appeals
to the Chief Justice.

2. (1) A petition of appeal to the Chief Justice under section 26 (2) of the Act shall have annexed to it a copy of the decision of the registrar appealed from.

(2) Every petition of appeal shall be served on the Society which shall have the right to be heard.

(3) A petition of appeal to the Chief Justice under section 28 (6) or 41 (2) of the Act shall be presented within one month after the applicant has been notified of the decision, and subrules (1) and (2) shall apply to such an appeal.

O. LII. r. 3.
Applications
with respect to
remuneration.

3. (1) Any application under section 45 of the Act shall be intitled in the matter of the Act and shall be supported by affidavit.

(2) An application under section 45 (2) of the Act shall be served on the advocate.

(3) An application under section 45 (4) of the Act shall be served on the guardian, committee or trustee as the case may be.

[Subsidiary]

(4) An application under section 45 (5) of the Act shall be served on the party and on the advocate or the advocate's legal personal representatives as the case may be.

(5) Any person served with an application under this rule may file an affidavit in reply but no further affidavit may be filed without leave.

4. (1) Where the relationship of advocate and client exists or has existed the court may, on the application of the client or his legal personal representative, make an order for -

O. LII. r. 4. Power to order advocate to deliver cash account, etc.

(a) the delivery by the advocate of a cash account;

(b) the payment or delivery up by the advocate of money or securities;

(c) the delivery to the applicant of a list of the money or securities which the advocate has in his possession or control on behalf of the applicant;

(d) the payment into or lodging in court of any such money or securities;

(e) the delivery up of papers and documents to which the client is entitled.

(2) Applications under this rule shall be by originating summons, supported by affidavit, and shall be served on the advocate.

(3) If the advocate alleges that he has a claim for costs the court may make such order for the taxation and payment, or securing the payment, thereof and the protection of the advocate's lien, if any, as the court thinks fit.

5. (1) An application under section 50 (1) of the Act shall be by originating summons supported by affidavit.

O. LII. r. 5. Application for taxation by third parties, etc.

(2) The summons shall be served on the advocate and on the party chargeable with the bill.

6. (1) An application for a charging order under section 52 of the Act shall be made in the suit or matter by summons in chambers supported by affidavit.

O. LII. r. 6. Application for charging order.

(2) The application shall be served on the client.

[Subsidiary]

O. LII. r. 7.

Application for order
of enforcement of an
undertaking.

7.(1) An application for an order for the enforcement of an undertaking given by an advocate shall be made -

(a) if the undertaking was given in a suit in the High Court, by summons in chambers in that suit; or

(b) in any other case, by originating summons in the High Court.

(2) Save for special reasons to be recorded by the judge, the order shall in the first instance be that the advocate honour his undertaking within a time fixed by the order, and only thereafter may an order in enforcement be made.

O. LII. r. 8. Title,
service, etc., of
appeal.

8. (1) A memorandum of appeal under section 62 (1) or section 73 (1) of the Act shall be intituled in the matter of the Act, and in the matter of an advocate, or, as the case may be, an advocate's clerk, without naming him.

(2) Unless the court otherwise orders, the persons to be served with the memorandum of appeal shall be the society and every party to the proceedings before the Disciplinary Committee.

(3) A person who has not been served with the memorandum of appeal but who desires to be heard in opposition to the appeal may be heard if the court considers him a proper person to be heard.

O. LII. r. 9.

Procedure.

Discontinuance of
appeal.

9. (1) An appellant under section 62(1) or section 73(1) of the Act may at any time discontinue his appeal by filing a notice of discontinuance and serving it on every party to the appeal and on the society.

(2) Where an appeal has been discontinued under sub-rule (1) it shall be treated as having been dismissed with an order for the payment by the appellant of the costs of and incidental to the appeal.

O. LII. r. 10.

Procedure.

10. (1) An originating summons under this Order shall be made returnable for a fixed date before a judge in chambers and, unless otherwise directed, shall be served on all parties at least seven clear days before the return date.

(2) No appearance need be entered to the summons and no affidavit in reply need be filed and all parties may be heard without entering an appearance.

ORDER LIII

[Subsidiary]

APPLICATIONS FOR JUDICIAL REVIEW

1. (1) No application for an order of mandamus, prohibition or certiorari shall be made unless leave therefor has been granted in accordance with this rule.

(2) An application for such leave as aforesaid shall be made *ex parte* to a judge in chambers, and shall be accompanied by a statement setting out the name and description of the applicant, the relief sought, and the grounds on which it is sought, and by affidavits verifying the facts relied on. The judge may, in granting leave, impose such terms as to costs and as to giving security as he thinks fit.

(3) The applicant shall give notice of the application for leave not later than the preceding day to the registrar and shall at the same time lodge with the registrar copies of the statement and affidavits:

Provided the court may extend this period or excuse the failure to file the notice of the application for good cause shown.

(4) The grant of leave under this rule to apply for an order of prohibition or an order of certiorari shall, if the judge so directs, operate as a stay of the proceedings in question until the determination of the application, or until the judge orders otherwise.

2. Leave shall not be granted to apply for an order of certiorari to remove any judgment, order, decree, conviction or other proceeding for the purpose of its being quashed, unless the application for leave is made not later than six months after the date of the proceeding or such shorter period as may be prescribed by any Act; and where the proceeding is subject to appeal and a time is limited by law for the bringing of the appeal, the judge may adjourn the application for leave until the appeal is determined or the time for appealing has expired.

3. (1) When leave has been granted to apply for an order of mandamus, prohibition or certiorari, the application shall be made within 21 days by notice of motion to the High Court, and there shall, unless the judge granting leave has otherwise directed, be at least eight clear days between the service of the notice of motion and the day named therein for the hearing.

(2) The notice shall be served on all persons directly affected, and where it relates to any proceedings in or before a court, and the object is either to compel the court or an officer thereof to do any action in relation to the proceedings or to quash them or any order made therein,

O.LIII. r.1.

Applications for mandamus, etc., not to be made without leave.

L.N. 299/1957,

L.N. 525/1958,

L.N. 164/1992,

L.N. 5/1996.

O. LIII. r. 2. Time for applying for certiorari in certain cases.

L.N. 299/1957,

L.N.5/1996.

O.LIII. r. 3.

Application to be by notice of motion.

L.N. 299/1957,

L.N. 88/1978,

L.N. 5/1996.

[Subsidiary]

the notice of motion shall be served on the presiding officer of the court and on all parties to the proceedings.

(3) An affidavit giving the names and addresses of, and the place and date of service on, all persons who have been served with the notice of motion shall be filed before the notice is set down for hearing, and, if any person who ought to be served under the provisions of this rule has not been served, the affidavit shall state that fact and the reason why service has not been effected, and the affidavit shall be before the High Court on the hearing of the motion.

(4) If on the hearing of the motion the High Court is of the opinion that any person who ought to have been served therewith has not been served, whether or not he is a person who ought to have been served under the foregoing provisions of this rule, the High Court may adjourn the hearing, in order that the notice may be served on that person, upon such terms (if any) as the court may direct.

O.L.III. r. 4.
Statements and
affidavits.
L.N. 299/1957.

4. (1) Copies of the statement accompanying the application for leave shall be served with the notice of motion, and copies of any affidavits accompanying the application for leave shall be supplied on demand and no grounds shall, subject as hereafter in this rule provided, be relied upon or any relief sought at the hearing of the motion except the grounds and relief set out in the said statement.

(2) The High Court may on the hearing of the motion allow the said statement to be amended, and may allow further affidavits to be used if they deal with new matter arising out of the affidavits of any other party to the application, and where the applicant intends to ask to be allowed to amend his statement or use further affidavits, he shall give notice of his intention and of any proposed amendment of his statement, and shall supply on demand copies of any such further affidavits.

(3) Every party to the proceedings shall supply to any other party, on demand, copies of the affidavits which he proposes to use at the hearing.

O.L.III. r. 5.
Applicant to have
right to begin.
L.N. 299/1957.

5. On the hearing of any such motion as aforesaid, the applicant shall have the right to begin.

O.L.III. r. 6.
Right to be heard in
opposition.
L.N. 299/1957.

6. On the hearing of any such motion as aforesaid, any person who desires to be heard in opposition to the motion and appears to the High Court to be a proper person to be heard shall be heard, notwithstanding that he has not been served with the notice or summons, and shall be liable to costs in the discretion of the court if the order should be made.

[Subsidiary]

7. (1) In the case of an application for an order of certiorari to remove any proceedings for the purpose of their being quashed, the applicant shall not question the validity of any order, warrant, commitment, conviction, inquisition or record, unless before the hearing of the motion he has lodged a copy thereof verified by affidavit with the Registrar, or accounts for his failure to do so to the satisfaction of the High Court.

O.LIII. r. 7.
Provisions as to
orders of certiorari
for the purpose
of quashing
proceedings.
L.N. 299/1957.

(2) Where an order of certiorari is made in any such case as aforesaid, the order shall direct that the proceedings shall be quashed forthwith on their removal into the High Court.

[Subsidiary]
App. A

APPENDIX A

PROCESS

NO. 3

NOTICE OF MOTION

(O.XXXV, rr. 2, 3)

(Title)

Take notice that this court will be moved on the..... day of,
19....., atin thenoon by (counsel for) the plaintiff that judgment
be entered against the defendant.....for

Dated atthis..... day of, 19.....

....., *Plaintiff/Advocate for the Plaintiff.*

This notice of motion was taken out by:-

To.....

No. 3A

AFFIDAVIT

(O. XXXV, r. 2)

(Title)

I,..... of make oath and say as follows:-

1. The defendant(s) is (are jointly) and truly indebted to
..... in the sum of Sh. for and was (were) so indebted at
the commencement of this suit. The particulars of the said claim are set out in the plaint
filed herein.

2. I verily believe that there is no defence to this suit.

3. The facts herein deposed to are within my own knowledge and I am duly authorized
by the plaintiff to make this affidavit.

(Strike out paragraph 3 if affidavit made by plaintiff)

Sworn, etc.

No. 3B

ORDER FOR LEAVE TO DEFEND

(O. XXXV, r. 7)

(Title)

Upon hearing and upon reading is ordered that
the defendant be at liberty to defend this suit (state conditions, if any)
..... and that the costs of this application be

Dated this day of, 19.....

No. 4

NOTICE TO PERSON WHOM, THE COURT CONSIDERS, SHOULD BE ADDED AS CO-PLAINTIFF

(O. I, r. 10)

(Title)

[Subsidiary]

App. A

To (Name, description and place of residence).

Whereas has instituted the above suit against for..... and whereas it appears necessary that you should be added as a plaintiff in the said suit in order to enable the court effectually and completely to adjudicate upon and settle all the questions involved.

Take notice that you should on or before the day of,19...., signify to this court whether you consent to be so added.

Given under my hand and the seal of the court, this day of, 19

....., Judge.

No. 5

SUMMONS TO LEGAL REPRESENTATIVE OF A DECEASED DEFENDANT

(O. XXIII, r. 4)

(Title)

To

Whereas the plaintiff instituted a suit in this court on the day of, 19...., against the defendant who has since died, and whereas the said plaintiff has made an application to this court alleging that you are the legal representative of the said, deceased, and desiring that you be made the defendant in his stead.

You are hereby summoned to attend in this court on the day of, 19...., at a.m. to defend the said suit and, in default of your appearance on the day specified, the said suit will be heard and determined in your absence.

Given under my hand and the seal of the court this day of, 19

....., Judge.

No. 6

ORDER FOR TRANSMISSION OF SUMMONS TO BE SERVED ON A PRISONER

(O. V, r. 18)

(Title)

To the Superintendent of the G.K. Prison at

Under the provisions of Order V, rule 18, of the Civil Procedure Rules a summons in duplicate is herewith forwarded for service on the defendant who is a prisoner in jail. You are requested to cause a copy of the said summons to be served upon the said defendant and to return the original to this court signed by the said defendant, with a statement of service endorsed thereon by you.

[Subsidiary]

App.A

.....

Judge.

No. 7

ORDER FOR TRANSMISSION OF SUMMONS TO BE SERVED ON A PUBLIC SERVANT OR SOLDIER

(O. V, r. 19)

(Title)

To

Under the provisions of Order V, rule 19 (.....) of the Civil Procedure Rules, a summons in duplicate is herewith forwarded for service on the defendant,, who is stated to be serving under you. You are requested to cause a copy of the said summons to be served upon the said defendant and to return the original to this court signed by the said defendant, with a statement of service endorsed thereon by you.

....., Judge.

FORM No. 8

AFFIDAVIT OF SERVICE

(O. V. r. 15 (1) TITLE

I.....of.....an advocate/a police officer/a process server of the court make oath and say as follows;

- (1) On, 19..... at(time) I served the summons in this case on..... at (place) by tendering a copy thereof to him/her and requiring a signature on the original. He/she signed/ refused to sign the summons. He/She was personally known to me/ was identified to me by and admitted that he/she was the defendant.
- (2) Not being able to find the defendant on....., 19..... at.....(time) I served the summons on(name) an adult member of the family of the defendant who is residing with him/her.
- (3) Not being able to find..... the defendant or any person on whom service could be made, on....., 19..... at..... (time), I affixed a copy of the summons to the outer door of..... being the house in which he/she ordinarily resides/carries on business/personally works for gain. I was accompanied by who identified the house to me.
- (4) (Otherwise specify the manner in which the summons was served).

SWORN by the said..... this day of....., 19.....

[Subsidiary]

App. A

Before me

A Commissioner of Oaths/Magistrate.

No. 9

LETTER FORWARDING REQUEST FOR SERVICE ABROAD

(O. V, r. 27 (a))

The Chief Justice of the High Court of Kenya presents his compliments to the Minister for Foreign Affairs and begs to enclose a notice of a writ of summons issued in an action *versus* pursuant to order, out of the High Court for transmission to the Ministry of Foreign Affairs in (name of country) with the request that the same may be served personally upon (name of defendant to be served) against whom proceedings have been taken in the High Court of Kenya, and with the further request that such evidence of the service of the same upon the defendant may be officially certified to the High Court, or declared upon oath, or otherwise, in such manner as is consistent with the usage or practice of the courts of (name of country) in proving service of legal process.

The Chief Justice begs further to request that in the event of efforts to effect personal service of the said notice of writ proving ineffectual the government or court of the said country be requested to certify the same to the High Court of Kenya.

No. 10

REQUEST FOR SERVICE ABROAD

(O. V, r. 27 (b))

(Title of Action)

I (or we) hereby request that a notice of writ of summons in this action be transmitted through the proper channel to (name of country) for service (or substituted service) on the defendant (naming him) at (address of defendant) or elsewhere in (name of country).

And I (or we) hereby personally undertake to be responsible for all expenses incurred in respect of the service hereby requested, and on receiving due notification of the amount of such expenses, I (or we) undertake to pay the same to the and to produce the receipt of such payment to the proper officer of the High Court of Kenya.

Dated this.....day of19.....

.....
(Signature of Advocate)

No. 11

ORDER TO BESPEAK REQUEST FOR SUBSTITUTED SERVICE ABROAD

(O. V, r. 27 (d))

[Subsidiary]

(Title of Action)

App.A

Upon reading the (certificate, declaration, or as the case may be, describing the same).

It is ordered that the plaintiff be at liberty to bespeak a request for substituted service of notice of the writ of summons herein on the defendant at or elsewhere in (name of country) and that the said defendant have days after such substituted service within which to file a written statement.

Dated this day of, 19.....

No. 12

LETTER FORWARDING REQUEST FOR SUBSTITUTED SERVICE
(O. V, r. 27 (e))

The Chief Justice of the High Court of Kenya presents his compliments to and begs to enclose a notice of a writ of summons in the case of *versus* in which the plaintiff has obtained an order of the High Court of Kenya (which is also enclosed) giving leave to bespeak a request that the said notice of writ may be served by substituted service on the defendant at in (name of country).

The Chief Justice requests that the said notice of writ and order may be forwarded to the proper authority in (name of country) with the request that the same may be transmitted by post addressed to the defendant at (the last known place of abode or the place of business) of the said defendant, or there delivered in such manner as may be consistent with the usage or practice of the courts of (name of country) for service of legal process where personal service cannot be effected; and with the further request that the same may be officially certified to the High Court of Kenya, or declared upon oath, or otherwise, in such manner as is consistent with the practice of the courts of (name of country) in proving service of legal process.

No. 13

CERTIFICATE OF SERVICE OF FOREIGN PROCESS
(O.V, r. 29(e))

I,, Registrar of the High Court of Kenya, hereby certify that the documents annexed hereto are as follows-

(1) The original letter of request for service of process received from the court or tribunal at in the of in the matter of *versus* and;

(2) The process received with such letter of request; and

(3) The evidence of service upon, the person named in such letter of request, together with the verification of a magistrate.

[Subsidiary]
App. A

And I certify that such service so proved, and the proof thereof, are such as are required by the law and practice of the High Court of Kenya regulating the service of legal process in Kenya and the proof thereof.

And I certify that the costs of effecting such service amounts to the sum of £
Dated this..... day of....., 19

No. 14
HEARING NOTICE
(O. IXB, rr. 1, 3)
(Title)

To.....

Take notice that the hearing of this suit has been fixed for
the.....day of....., 19....., ato'clock in the
.....noon.

If you do not attend by yourself, your advocate or by someone authorized by law to act for you, the case may be heard and decided in your absence.

Dated, 19... (Signed)

Advocate for the plaintiff/Defendant

No. 15
SUMMONS TO WITNESS
(O. XV, rr. 1, 5)
(Title)

To

Whereas your attendance is required to on behalf of thein
the above suit you are hereby required (personally) to appear before this court on the
..... day of, 19....., at o'clock in the forenoon and to bring with
you (or send to this court).

A sum of shillings being your travelling and other expenses and subsistence allowance for one day, is herewith sent. If you fail to comply with this order without lawful excuse, you will be subject to the consequences of non-attendance laid down in rule 12 of Order XV of the Civil Procedure Rules.

Given under my hand and the seal of the court, this day
of....., 19.....

[Subsidiary]

App. A

....., Judge.

NOTICE: - (1) If you are summoned only to produce a document and not to give evidence, you shall be deemed to have complied with the summons if you cause such document to be produced in this court on the day and hour aforesaid.

(2) If you are detained beyond the day aforesaid a sum of shillings will be tendered to you for each day's attendance beyond the day specified.

No. 16

PROCLAMATION REQUIRING ATTENDANCE OF WITNESS

(O. XV, r. 10)

(Title)

To

Whereas it appears from the examination on oath of the serving officer that the summons could not be served upon the witness in the manner prescribed by law; and whereas it appears that the evidence of the witness is material, and he absconds and keeps out of the way for the purpose of evading the service of the summons: This proclamation is therefore under rule 10 of Order XV of the Civil Procedure Rules issued requiring the attendance of the witness in this court on the day of, 19....., at o'clock in the forenoon and from day to day until he shall have leave to depart; and if the witness fails to attend on the day and hour aforesaid he will be dealt with according to law.

Given under my hand and the seal of the court this day of, 19.....
.....

....., Judge.

No. 17

PROCLAMATION REQUIRING ATTENDANCE OF WITNESS

(O. XV, r. 10)

(Title)

To

Whereas it appears from the examination on oath of the serving officer that the summons has been duly served upon the witness, and whereas it appears that the evidence of the witness is material and he has failed to attend in compliance with such summons: This proclamation is therefore under rule 10 of Order XV of the Civil Procedure Rules issued requiring the attendance of the witness in this court on the day of, 19....., at o'clock in the forenoon and from day to day until he shall have leave to depart; and if the witness fails to attend on the day and hour aforesaid he will be dealt with according to law.

[Subsidiary]

App. A

Given under my hand and the seal of the court this day of.....,
19....

....., *Judge.*

No. 18

WARRANT OF ATTACHMENT OF PROPERTY OF WITNESS

(O. XV, r. 10)

(Title)

To

The Bailiff of the Court.

Whereas the witness,, cited by, has not, after the expiration of the period limited in the proclamation issued for his attendance, appeared in court: You are hereby directed to hold under attachment, property belonging to the said witness to the value of, and to submit a return accompanied with an inventory thereof, within days.

Given under my hand and the seal of the court this day of
....., 19.....

....., *Judge.*

No. 19

WARRANT OF ARREST OF WITNESS

(O. XV, r. 10)

(Title)

To

The Bailiff of the Court.

Whereas has been duly served with a summons but has failed to attend (absconds and keeps out of the way for the purpose of avoiding service of a summons): You are hereby ordered to arrest and bring the saidbefore the court.

You are further ordered to return this warrant on or before the day of
....., 19.. . ., with an endorsement certifying the day on and the manner in which it has been executed, or the reason why it has not been executed.

Given under my hand and the seal of the court this day of.....,
19.....

....., *Judge.*

No. 20

WARRANT OF COMMITTAL

[Subsidiary]

App. A

(O. XV, r. 17)

(Title)

To

The Officer in Charge of the G.K. Prison at

Whereas the plaintiff (or defendant) in the above-named suit has made application to this court that security be taken for the appearance of to give evidence (or to produce a document) on the day of....., 19...., and whereas the court has called upon the said to furnish such security, which he has failed to do: This is to require you to receive the said into your custody in the civil prison and to produce him before this court at on the said day and on such other day or days as may be hereafter ordered.

Given under my hand and the seal of the court this day of 19.....

....., Judge.

No. 21

WARRANT OF COMMITTAL

(O. XV, r. 17)

(Title)

To

The Officer in Charge of the G.K. Prison at

Whereas....., whose attendance is required before this court in the above-named case to give evidence (or to produce a document) has been arrested and brought before the court in custody, and whereas owing to the absence of the plaintiff (or defendant) the said cannot give such evidence (or produce such document), and whereas the court has called upon the said to give security for his appearance on the day of....., 19...., at, which he has failed to do: This is to require you to receive the said into your custody in the civil prison and to produce him before this court at on the day of....., 19....

Given under my hand and the seal of the court thisday of....., 19....

....., Judge.

No. 22

THIRD PARTY NOTICE

(O. I, r. 14)

In the Court

CIVIL CASE No. OF 19....

Between A.B., Plaintiff

[Subsidiary]

App. A

and C.D., *Defendant*
 and E.F., *Third Party*

THIRD PARTY NOTICE

(Issued pursuant to the order of the court dated.....,19...)

To: E.F of.....(*address*)

Take notice that this action has been brought by the plaintiff against the defendant.
 In it the plaintiff claims against the defendant in accordance with the attached plaint.

The defendant claims against you (*here state nature of claim against third party, for instance “for indemnity”, “contribution” or “the following relief or remedy namely”*) on the grounds that (*state the grounds of the claim*).

(*) And take notice that if you wish to dispute the plaintiff’s claim against the defendant, or the defendant’s claim against you, you must appear within
days after the service of this notice on you, inclusive of the day of service, otherwise you will be taken to admit the plaintiff’s claim against the defendant and the defendant’s claim against you and you will be bound by any judgment given in the suit.

Dated theday of, 19

(Signed) G.H.,

Advocate for the Defendant C.D.

*Note.-** Delete this paragraph if the notice is served on a party who has already appeared in the suit.

No. 23

SUBSTITUTED SERVICE BY ADVERTISEMENT

(O.V, rr. 17, 26)

To:

of

Take notice that a plaint has been filed in theCourt at
 in Civil Suit No.of 19, in which you are named as defendant. Service of the summons on you has been ordered by means of this advertisement. A copy of the summons and the plaint may be obtained from the court at
 (*insert postal address of registry*).

And further take notice that, unless you enter an appearance within days, the case will be heard in your absence.

No. 24

NOTICE OF SUMMONS

(O.V, r. 26 (2))

[Subsidiary]

App.A

To(name)
 of.....(address)

Take notice that a plaint has been filed in theCourt at
 in Civil Case No.of 19 in which you are named as defendant. Service of
 the summons on you was ordered to be by this notice.

A copy of the summons and the plaint may be obtained from the court at (*insert
 postal address of registry*).

Unless you enter an appearance withindays , the case will be heard in
 your absence.

 No. 25
 MEMORANDUM OF APPEARANCE
 (O. IX, r. 2 (1))
 (Title)

Please enter an appearance for¹
 sued as ².....
 Dated this day of, 19.....
 Signed³.....
 Whose address for service is⁴
 and whose postal address is ⁵.....

Notes

¹Give the full name of the defendant appearing.

²Give the name by which the defendant is described in the summons if this differs
 from the defendant's full name.

³To be signed by the advocate, or by the defendant or his recognized agent if he
 appears in person.

⁴Give the physical address which is either the place of business of the advocate
 within Kenya, or if the defendant appears in person his residence or place of
 business in Kenya, or if he does not reside or carry on business in Kenya, some
 other place in Kenya at which communications for him may be left.

⁵Give the postal address either of the advocate within Kenya or of the defendant
 within Kenya if he appears in person.

N.B. - Additional notes for the guidance of defendants appearing are given on the

[Subsidiary]

App. A

back of this form. Please read them carefully. The form may have to be returned if any of the information required is omitted or given incorrectly. The delay may result in judgment being entered against the defendant. If judgment is entered, the defendant or his advocate may have to pay the costs of applying to set it aside.

ADDITIONAL NOTES

(Back of form)

- ¹Where the defendant is a firm, the appearance must list the individual partners by name with the description "Partners in the firm of".
- ²Where the defendant is an individual trading in a name other than his own, he must appear in his own name with the addition of the description "trading as".
- ³Where the defendant is a corporation the appearance must be either by an advocate or by an officer of the corporation duly authorized so to do under the corporate seal.
- ⁴If the defendant has no defence or admits the plaintiff's claim, appearance will delay judgment and may increase the costs payable by the defendant. Any proposal for the payment of a debt by installments or otherwise must be made direct to the plaintiff or his advocate and not to the court.
- ⁵Where appearance is to be entered for a third party substitute, for references to the defendant, references to the third party.

No. 26

SUMMONS FOR DIRECTIONS

(O. LI, rr. 2, 8 (2))

(Title and formal parts as in ordinary summons)

Take notice that on the hearing of an application for directions in this suit that:

PART I

1. This suit be consolidated with Civil Case No. of 19....., in the Court.
2. The plaintiff do have leave to amend his plaint within 14 days with leave to the defendant to amend his defence within 14 days of service of the amended plaint and that the costs of the amendment be the defendant's in any event.
3. The defendant do have leave to amend his defence within 14 days as shown in

[Subsidiary]

App. A

the defendant's notice under this summons with leave to the plaintiff to amend his reply within days of service of the amended defence and that the costs of the amendments be the plaintiff's in any event.

4. The plaintiff do within days file and serve on the defendant the further and better particulars of the plaint specified in the defendant's notice under this summons.
5. The defendant do within days file and serve on the plaintiff the further and better particulars of the defence specified in the document served herewith.
6. The plaintiff do within days file and serve on the defendant the further and better particulars of the reply specified in the defendant's notice under this summons.
7. The plaintiff do give security for the defendant's costs in the sum of Sh..... on the ground that and that in the meanwhile all proceedings be stayed.
8. The plaintiff do within days file and serve on the defendant a list [an affidavit] of documents [limited to the documents relating to the - (special damages claimed); (period from to); (issues raised in the)].
9. The defendant do within days file and serve on the plaintiff a list [an affidavit] of documents [limited to the documents relating to the- (period from to); (issues raised in)].
10. There be inspection of documents within days of the service of the lists [affidavits].
11. The plaintiff [defendant] do have leave to serve on the defendant [plaintiff] the interrogatories specified in the document served herewith and that the defendant [plaintiff] answer the interrogatories on affidavit within days.
12. The plaintiff (defendant) on days notice do give inspection of [the subject matter of the suit] to the defendant (plaintiff) and his advocates [and experts].
13. The statements in be admissible in evidence at the trial without calling as a witness the maker of the statements [and if a copy of that document certified by to be a true copy is produced, without production of the original document].
14. An affidavit of [in the form of the draft affidavit (served

[Subsidiary]

App. A

herewith) (served with the defendant's notice under this summons)] [to be served within days] be admissible in evidence at the trial.

15. It be recorded that the parties [(plaintiff) (defendant) refuses to] admit for the purposes of this suit that [the truth of the statements in the documents served herewith (with the defendant's [plaintiff's] notice under this summons)].
16., a witness for the plaintiff (defendant), may be examined before an examiner agreed or appointed and that the said witness need not attend the trial.
17. A commission [letter of request] do issue to examine a witness for the plaintiff (defendant), in (*name of country*) and that the evidence returned be admissible in evidence at the trial.
18. A medical report be agreed, alternatively that medical reports be exchanged, and that any such report be admissible in evidence at the trial without calling the maker.
19. A report by engineers [surveyors] [experts on] be agreed, alternatively that such report(s) be exchanged and that such report(s) be admissible in evidence at the trial without calling the maker(s).
20. (a) A plan, other than a sketch plan, be receivable in evidence at the trial.

(b) Photographs and a plan be agreed, alternatively be exchanged.
21. (*Insert any other directions that may be sought.*)
22. Trial-
Place
Estimated length
23. The costs of this application be costs in the cause.

PART II

(*All questions to be completed by the Court*)

1. What are the issues arising on the pleadings?
2. How many witnesses does the plaintiff propose to call and to which issues does their evidence relate?
3. How many witnesses does the defendant propose to call and to which issues does their evidence relate?

[Subsidiary]

App. A

4. Have medical or technical reports been exchanged and are they agreed?
5. What agreements and admissions have been made?
6. What information requires to be disclosed, by whom and in what time?
7. Have discovery and inspection be completed, if not by when should they be completed?
8. Who is to prepare the bundles of documents to be produced for the hearing and in what time?
9. Should any part or the whole of the suit be referred to arbitration or to a referee?
10. Has everything reasonably necessary been done for the proper preparation for this suit for hearing?
11. May the suit now be fixed for hearing and what is the court's estimate of the time required for hearing?

Dated, etc.,

No. 27

NOTICE UNDER SUMMONS FOR DIRECTIONS

(O. LI, r. 8 (2))

(Title)

Take notice that the defendant [plaintiff] intends to apply at the hearing of the summons for directions for an order that (*insert directions required* - see *Form No. 26*).

Dated, etc.,

(Signed)

Advocate for the Defendant [Plaintiff]

No. 28

NOTICE FOR DIRECTIONS

(O. LI, r. 8)

(Title)

Take notice that the plaintiff (defendant) intends to apply on day the day of, 19...., at a.m. for further directions in this suit as follows -

[Subsidiary]

(Set out further directions required.)

App. A

Dated, etc.,

(Signed)

Advocate for the Plaintiff [Defendant]

No. 29

NOTICE OF PAYMENT INTO COURT

(O. XXVI, r. 1 (3))

(Title)

Take notice that the defendant (*name*) has paid the sum of Sh. into court.

The said sum is in satisfaction of the cause of action (or all the causes or action) in respect of which the plaintiff claims (after taking into account and satisfying the above-named defendant's cause of action for in respect of which he counterclaims).

(or)

The said sum is in satisfaction of the following causes of action in respect of which the plaintiff claims, namely (after taking into account and satisfying the above-named defendant's cause of action for and in respect of which he counterclaims).

(or)

Of the said sum, Sh. is in satisfaction of the plaintiff's cause(s) of action for (after taking into account and satisfying the above-named defendant's cause of action for in respect of which he counterclaims) and Sh. is in satisfaction of the plaintiff's cause(s) of action for (after taking into account, etc.,).

(and where appropriate)

And take notice that the said sum of Sh. has been paid into court pursuant to the Exchange Control Act being the amount of Sh. due to (*name*) being a person resident outside the Scheduled Territories (or a person acting by order of (or on behalf of) a person resident outside the Scheduled Territories) together with (or less) Sh. costs.

Dated, etc.,

[Subsidiary]

App. A

(Signed)

Advocate for

No. 29A

NOTICE OF INCREASE OF PAYMENT INTO COURT

(O. XXVI, r. 1 (3))

(Title)

Take notice that the defendant (*name*) has paid a further sum of Sh. into court.

This sum increases the amount paid into court with a notice of payment dated the day of, 19...., in satisfaction of the cause of action (or all the causes of action or the following causes of action, namely.....).

Dated, etc.,

(Signed)

Advocate for

No. 30

NOTICE OF ACCEPTANCE OF PAYMENT INTO COURT

(O. XXVI, rr. 2, 4)

(Title)

Take notice that the plaintiff accepts the sum of Sh. paid into court by the defendant (*name*) in satisfaction of the cause of action (or all the causes of action (or the following causes of action) (*specify them*)) -

At any time after fourteen days after receipt of this notice the court may give judgment for the plaintiff's costs incurred up to the time of payment into court unless you apply to the court by summons for an order disallowing the whole or any part thereof.

Dated, etc.,

(Signed).....

Advocate for the Plaintiff

APPENDIX B

DISCOVERY, INSPECTION AND ADMISSION

No. 1

ORDER FOR DELIVERY OF INTERROGATORIES

(O.X, r. 1)

In the Court of

Civil Suit No., of, 19....

A.B., Plaintiff

against

C.D., E.F., G.H.,, Defendants

Upon hearing and upon reading the affidavit filed the..... day of, 19....: It is ordered that the..... be at liberty to deliver to the interrogatories in writing, and that the said do answer the interrogatories as prescribed by Order X, rule 8, and that the cost of this application be

No. 2

INTERROGATORIES

(O. X, r. 4)

(Title as in No. 1, *supra*.)

Interrogatories on behalf of the above-named (*plaintiff or defendant, C.D.*) for the examination of the above-named (*defendants E.F. and G.H., or plaintiff*).

1. Did not, etc.

2. Has not, etc.

etc.,

etc.,

etc.,

(*The defendant E.F. is required to answer the interrogatories numbered*)

(*The defendant G.H. is required to answer the interrogatories numbered*)

No. 3

ANSWER TO INTERROGATORIES

(O. X, r. 8)

(Title as in No. 1, *supra*.)

[Subsidiary]

App. B

The answer by the above-named defendant *E.F.* to the interrogatories for his examination by the above-named plaintiff.

In answer to the said interrogatories, I, the above-named *E.F.*, make oath and say as follows: -

1. Enter answer to interrogatories in paragraphs
2. numbered consecutively.
3. I object to answer to the interrogatories numbered on the ground that (*state grounds of objection*).

No. 4

ORDER FOR AFFIDAVIT AS TO DOCUMENTS

(O. X, r. II)

(Title as in No. 1, *supra*)

Upon hearing: It is ordered that the do within..... days from the date of this order answer on affidavit stating which documents are or have been in his possession or power relating to the matter in question in this suit, and that the costs of this application be.....

No. 5

AFFIDAVIT AS TO DOCUMENTS

(O. X, r. 12)

(Title as in No. 1, *supra*)

I, the above-named defendant *C.D.*, make oath and say as follows -

1. I have in my possession or power the documents relating to the matters in question in this suit set forth in the first and second parts of the First Schedule hereto.

2. I object to produce the said documents set forth in the second part of the First Schedule hereto (*state grounds of objection*).

3. I have had, but have not now, in my possession or power the documents relating to the matters in question in this suit set forth in the Second Schedule hereto.

4. The last-mentioned documents were last in my possession or power on (*state when and what has become of them, and in whose possession they now are*).

5. According to the best of my knowledge, information and belief I have not now, and never had, in my possession, custody or power, or in the possession, custody or power of my pleader or agent, or in the possession, custody or power of any other person on my behalf, any account, book of account, voucher, receipt, letter, memorandum, paper or writing, or any copy of or extract from any document, or any other document whatsoever,

[Subsidiary]

App. B

relating to the matters in question in this suit or any of them, or wherein any entry has been made relative to such matters or any of them other than and except the documents set forth in the said First and Second Schedules hereto.

No. 6

ORDER TO PRODUCE DOCUMENTS FOR INSPECTION

(O. X, r. 13)

(Title as in No. 1, *supra*)

Upon hearing and upon reading the affidavit of.....
..... filed the day of, 19. it is ordered that the
..... do, at all reasonable times, on reasonable notice, produce at
situate atthe following documents, namely,, and
that thebe at liberty to inspect and peruse the documents so produced and
to make notes of their contents. In the meantime it is ordered that all further proceedings
be stayed and that the costs of this application be

No. 7

NOTICE TO PRODUCE DOCUMENTS

(O. X, r. 15)

(Title as in No. 1, *supra*)

Take notice that the (plaintiff or defendant) requires you to produce for his inspection
the following documents referred to in your (plaint or written statement or affidavit dated
the day of, 19.....).

(Describe documents required).

X.Y., Advocate for the

To Z., Advocate for the

No. 8

NOTICE TO INSPECT DOCUMENTS

(O. X, r. 16)

(Title as in No. 1, *supra*)

Take notice that you can inspect the documents mentioned in your notice of the
..... day of, 19.... (except the documents numbered
in that notice) at (*insert place of inspection*) on Thursday next, the instant, between the
hours of 12 and 4 o'clock

Or, that the (plaintiff or defendant) objects to give you inspection of document
mentioned in your notice of the day of, 19....., on the ground
that (*state the ground*).

[Subsidiary]

App. B

No. 9

NOTICE TO ADMIT DOCUMENTS

(O. XII, r. 3)

(Title as in No. I, *supra*)

Take notice that the plaintiff (or defendant) in the suit proposes to adduce in evidence the several documents hereunder specified, and that the same may be inspected by the defendant (or plaintiff), his pleader or agent, at on.....
..... between the hours of; and the defendant (or plaintiff) is hereby required within fourteen days from the service of this notice, to admit that such of the said documents as are specified to be originals were respectively written, signed or executed, as they purport respectively to have been; that such as are specified as copies are true copies; and such documents as are stated to have been served, sent or delivered, were so served, sent or delivered respectively, saving all just exceptions to the admissibility of all such documents as evidence in this suit.

And further take notice that if you do not within fourteen days serve notice specifying the documents which you do not admit, you will be deemed to have admitted the authenticity of all the documents listed, unless the Court otherwise orders.

G.H., Advocate (or agent) for plaintiff (or defendant).

To E.F. Advocate (or agent) for defendant (or plaintiff).

(Here describe, the documents and specify as to each document whether it is original or a copy.)

No. 10

NOTICE TO ADMIT FACTS

(O. XII, r. 5)

(Title as in No. 1, *supra*)

Take notice that the plaintiff (or defendant) in this suit requires the defendant (or plaintiff) to admit, for the purposes of this suit only, the several facts respectively hereunder specified; and the defendant (or plaintiff) is hereby required, within twenty-one days from the service of this notice, to admit the said several facts, saving all just exceptions to the admissibility of such facts as evidence in this suit.

G.H., Advocate (or agent) for plaintiff (or defendant).

To E.F., Advocate (or agent) for defendant (or plaintiff).

The facts, the admission of which is required, are -

1. That M. died on 1st January, 1970.
2. That he died intestate.
3. That N. was his only lawful son.

4. That O. died on 1st April, 1976.

[Subsidiary]

5. That O. was never married.

App. B

No. 11

ADMISSION OF FACTS PURSUANT TO NOTICE

(O. XII. r 5)

(Title as in No. 1, *supra*)

The defendant (or plaintiff) in this suit, for the purposes of this suit only, hereby admits the several facts respectively hereunder specified, subject to the qualifications or limitations, if any, hereunder specified, saving all just exceptions to the admissibility of any such facts, or any of them, as evidence in this suit.

Provided that this admission is made for the purposes of this suit only, and is not an admission to be used against the defendant (or plaintiff) on any other occasion or by any one other than the plaintiff (or defendant, or party requiring the admission).

E.F., Advocate (or agent) for defendant (or plaintiff).

~~To G.H., Advocate (or agent) for plaintiff (or defendant).~~

Facts Admitted

*Qualifications or limitations, if any,
subject to which they are admitted*

1. That M. died on 1st January, 1970

1.

2. That he died intestate

2.

3. That N. was his lawful son

3. But not that he was his only lawful son.

4. That O. died

4. But not that he died on 1st April, 1976.

~~5. That O. was never married~~

~~5.~~

No. 12

NOTICE TO PRODUCE (GENERAL FORM)

(O. XII, r. 8)

(Title as in No. 1, *supra*)

Take notice that you are hereby required to produce and show to the court at the first hearing of this suit all books, papers, letters, copies of letters and other writings and documents in your custody, possession or power, containing any entry, memorandum or minute relating to the matters in question in this suit, and particularly.....

G.H., Advocate (or agent) for plaintiff (or defendant).

To E.F., Advocate (or agent) for defendant (or plaintiff).

No. 13

[Subsidiary]

GENERAL FORM OF ORIGINATING SUMMONS

App. B

(O. XXXVI, r.7)

In the Court
at

In the matter of

Between

A.B. Plaintiff

and

C.D. Defendant

Let of within days after service of this summons on him enter an appearance to this summons which is issued on the application of who claims to be (state the nature of the claim) for the determination of the following questions (state the questions).

Dated the day of, 19....

This summons was taken out by advocate for the above-named
.....

Appearance may be effected personally or by advocate.

NOTE. - If the defendant does not enter an appearance within the time above-mentioned such order may be made and proceedings taken as the court may think just and expedient.

No. 13A

GENERAL FORM OF ORIGINATING SUMMONS NOT INTER PARTIES

(O. XXXVI, r. 7)

19.... (Here put the year and number)

In the High Court of Kenya,

.....

In the matter of the Trusts of the Will of A.B. and in the matter of
(or as the case may be).

Let of within days after service of this summons on him, inclusive of the day of such service, cause an appearance to be entered for him to this summons, which is issued upon the application of of for an order that (state the object of the application).

Dated the

This summons was taken out by of
advocate for the above-named

The respondent may appear thereto by entering appearance either personally or by

advocate at the High Court of Kenya, Court or District Registry in which the originating summons is filed.

Subsidiary
App. B

NOTE. - If the respondent does not enter appearance within the time and at the place above mentioned, such order will be made and the proceedings taken as the judge may think just and expedient.

No. 13B

NOTICE OF APPOINTMENT TO HEAR ORIGINATING SUMMONS
(O. XXXVI, r. 8B)

19.....

(Here put the year and number.)

In the High Court of Kenya,

.....

To

(Insert the name of the defendant or respondent)

Take notice that you are required to attend the judge in chambers, Room No. at the High Court of Kenya on the day of, 19....., at o'clock in the noon, for the hearing of the originating summons issued herein on the day of, 19....., and that if you do not attend in person or by advocate at the time and place mentioned, such order will be made and proceedings taken as the judge may think just and expedient.

Dated the day of, 19....., at

Advocate for the Plaintiff.

No. 14

REQUEST FOR PARTICULARS
(O. VI, r. 8)
(Title)

The plaintiff (or defendant) in this suit requires the following particulars of the defence (plaint, or other pleading) dated the day of, 19.....

1. Of paragraph - (specify particulars required)
2. Of paragraph - (specify particulars required)
3. Of paragraph - (specify particulars required)
- etc.

This notice is delivered in duplicate, and you are required to file the original with the particulars supplied.

G.H., Advocate for the plaintiff (or defendant).

To E.F., Advocate for the defendant (or plaintiff).

[Subsidiary]

App. B

No. 15

PARTICULARS

(O. VI, r. 8)

(Title)

The defendant (or plaintiff) in answer to the Request for Particulars dated the day of, 19...., gives particulars as follows -

1. Of paragraph - (*specify particulars given*)
2. Of paragraph - (*specify particulars given*)
3. Of paragraph - (*specify particulars given*)
- etc.

E.F., Advocate for the defendant (or plaintiff).

To *G.H.*, Advocate for the plaintiff (or defendant).

APPENDIX C

DECREEES

No. 1

DECREE IN ORIGINAL SUIT

(O. XX, rr. 6, 7)

(Title)

Claim for

This suit coming on this day for final disposal before in the presence of for the plaintiff and of for the defendant it is ordered and decreed that and that the sum of shillings..... be paid by the to the on account of the costs of this suit with interest thereon at the rate of per cent per annum from this date to date of realization.

Given under my hand and the seal of the court, this day of, 19....

Particulars

1. Principal.
2. Interest.
3. Court fees.
4. Other disbursements.
5. Party and party costs.

No. 2

SIMPLE MONEY DECREE

(Section 26 of the Act)

(Title)

Claim for

This suit coming on this day for final disposal before in the presence of..... for the plaintiff and of for the defendant it is ordered that the do pay to the the sum of shillings with interest thereon at the rate of per cent per annum from to the date of realization of the said sum, and do also pay shillings the costs of this suit, with interest thereon at the rate of per cent per annum from this date to the date of realization.

Given under my hand and the seal of the court, thisday of, 19.....

....., Judge.

[Subsidiary]

App. C

Particulars

1. Principal.
2. Interest.
3. Court fees.
4. Other disbursements.
5. Party and party costs.

Forms 3 to 11 - (*Deleted by L.N. 119/1975.*)

No. 12

DECREE FOR RECTIFICATION OF INSTRUMENT

(Title)

It is hereby declared that the, dated the day of, 19...., does not truly express the intention of the parties to such
.....

And it is decreed that the said be rectified by
.....

No. 13

DECREE TO SET ASIDE A TRANSFER IN FRAUD OF CREDITORS

(Title)

It is hereby declared that the, dated the day of, 19...., and made between and is void as against the plaintiff and all other the creditors, if any, of the defendant.

No. 14

INJUNCTION AGAINST PRIVATE NUISANCE

(Title)

Let the defendant,, his agents, servants and workmen, be perpetually restrained from on the defendant's plot of land marked B in the annexed plan, so as to occasion a nuisance to the plaintiff as the owner or occupier of the dwelling-house and garden mentioned in the plaint as belonging to and being occupied by the plaintiff.

No. 15 [Subsidiary]
INJUNCTION AGAINST BUILDING HIGHER THAN OLD LEVEL App. C
(Title)

Let the defendant,, his contractors, agents and workmen, be perpetually restrained from continuing to erect upon his premises in, any house or building of a greater height than the buildings which formerly stood upon his said premises and which have been recently pulled down, so or in such manner as to darken, injure or obstruct such of the plaintiff's windows in his said premises as are ancient lights.

No. 16
INJUNCTION RESTRAINING USE OF PRIVATE ROAD

Let the defendant,, his agents, servants and workmen, be perpetually restrained from using or permitting to be used any part of the lane at, the soil of which belongs to the plaintiff, as a carriage way for the passage of carts, carriages or other vehicles, either going to or from the land marked B in the annexed plan or for any purpose whatsoever.

No. 17
PRELIMINARY DECREE IN AN ADMINISTRATION SUIT
(Title)

It is ordered that the following accounts and inquiries be taken and made; that is to say -

In a creditor's suit -

1. That an account be taken of what is due to the plaintiff and all the other creditors of the deceased.

In suits by legatees -

2. That an account be taken of the legacies given by the testator's will.

In suits by next-of-kin -

3. That an inquiry be made and account taken of what or of what share, if any, the plaintiff is entitled to as next-of-kin (or one of the next-of-kin) of the intestate.

(After the first paragraph, the decree will, where necessary, order, in a creditor's suit, inquiry and accounts for legatees, heirs-at-law and next-of-kin. In suits by claimants other than creditors, after the first paragraph, in all cases, an order to inquire and take an account of creditors will follow the first paragraph and such of the others as may be necessary will follow, omitting the first formal words. The form is continued as in a creditor's suit.)

[Subsidiary]

App. C

4. An account of the funeral and testamentary expenses.

5. An account of the movable property of the deceased come to the hands of the defendants, or to the hands of any other person by his order or for his use.

6. An inquiry what part (if any) of the movable property of the deceased is outstanding and undisposed of.

7. And it is further ordered that the defendant do, on or before the day of next, pay into court all sums of money which shall be found to have come to his hands, or to the hands of any person by his order or for his use.

8. And that if the* shall find it necessary for carrying out the objects of the suit to sell any part of the movable property of the deceased, the same be sold accordingly, and the proceeds paid into court.

9. And that Mr. E.F. be receiver in the suit (or proceeding) and receive and get in all outstanding debts and outstanding movable property of the deceased, and pay the same into the hands of the (and shall give security by bond for the due performance of his duties to the amount of shillings).

10. And it is further ordered that if the movable property of the deceased be found insufficient for carrying out the objects of the suit, then the following further inquiries be made, and accounts taken, that is to say -

- (a) an inquiry what immovable property the deceased was seized of or entitled to at the time of his death;
- (b) an inquiry what are the encumbrances (if any) affecting the immovable property of the deceased or any part thereof;
- (c) an account, so far as possible, of what is due to the several encumbrances, in addition to a statement of the priorities of such of the encumbrances as shall consent to the sale hereinafter directed.

11. And that the immovable property of the deceased, or so much thereof as shall be necessary to make up the fund in court sufficient to carry out the object of the suit, be sold with the approbation of the judge free from encumbrances (if any) of such encumbrancers as shall consent to the sale and subject to the encumbrances of such of them as shall not consent.

12. And it is ordered that G.H. shall have the conduct of the sale of the immovable property, and shall prepare the conditions and contracts of sale subject to the approval

* Here insert name of proper officer.

[Subsidiary]

App. C

of the* and that in case any doubt or difficulty shall arise the papers shall be submitted to the judge to settle.

13. And it is further ordered that, for the purpose of the inquiries hereinbefore directed, the* shall advertise in the newspapers according to the practice of the court, or shall make such inquiries in any other way which and that the* give the most useful publicity to such inquiries.

14. And it is ordered that the above inquiries and accounts be made and taken, and that all other acts ordered to be done be completed before the day of and that the* do certify the result of the inquiries, and the accounts, and that all other acts ordered are completed, and have his certificate in that behalf ready for the inspection of the parties on the day of

15. And, lastly, it is ordered that this suit (or proceeding) stand adjourned for making the final decree to the day of, 19....

(Such part only of this decree is to be used as is applicable to the particular case.)

No. 18

FINAL DECREE IN AN ADMINISTRATION SUIT BY A LEGATEE

(Title)

1. It is ordered that the defendant do, on or before the day of, 19...., pay into court the sum of shillings the balance by the said certificate found to be due from the said defendant on account of the estate of, the testator, and also the sum of shillings for interest, at the rate of shillings per cent per annum from the day of, 19...., to the day of, 19...., amounting together to the sum of shillings

2. Let the* of the said court tax the costs of the plaintiff and defendant in this suit, and let the amount of the said costs, when so taxed, be paid out of the said sum of shillings ordered to be paid into court as aforesaid, as follows -

(a) The costs of the plaintiff to Mr., his attorney (or pleader).

Or

(b) And (if any debts are due) with the residue of the said sum of shillings after payment of the plaintiff's and defendant's costs as aforesaid, let the sums, found to be owing to the several creditors in the Schedule to the certificate of the*, together with subsequent interest on such of the debts as bear interest, be paid; and after making such payments, let the amount coming to the several legatees mentioned in the Schedule together

* Here insert name of proper officer.

[Subsidiary]

App. C

with subsequent interest (to be verified as aforesaid), be paid to them.

3. And if there should then be any residue, let the same be paid to the residuary legatee.

No. 19

PRELIMINARY DECREE IN AN ADMINISTRATION SUIT BY A LEGATEE, WHERE AN EXECUTOR IS
HELD PERSONALLY LIABLE FOR THE PAYMENT OF LEGACIES
(Title)

1. It is declared that the defendant is personally liable to pay the legacy of shillings bequeathed to the plaintiff.

2. And it is ordered that an account be taken of what is due for principal and interest on the said legacy.

3. And it is also ordered that the defendant do, within weeks after the date of the certificate of the* pay to the plaintiff the amount of what the
* shall certify to be due for principal and interest.

4. And it is ordered that the defendant do pay the plaintiff his costs of suit, the same to be taxed in case the parties differ.

No. 20

FINAL DECREE IN AN ADMINISTRATION SUIT BY NEXT-OF-KIN
(Title)

1. Let the* of the said court tax the costs of the plaintiff and defendant in this suit and let the amount of the said plaintiff's costs, when so taxed, be paid by the defendant to the plaintiff out of the sum of shillings the balance by the said certificate found to be due from the said defendant on account of the personal estate of E.F., the intestate, within one week after the taxation of the said costs by the said*, and let the defendant retain for her own use out of such sum her costs, when taxed.

2. And it is ordered that the residue of the said sum of shillings after payment of the plaintiff's and defendant's costs as aforesaid, be paid and applied by defendant as follows -

- (a) Let the defendant, within one week after the taxation of the said costs by the* as aforesaid, pay one-third share of the said residue to the plaintiffs A.B. and C.D., his wife, in her right as the sister and one of the next-

* Here insert name of proper officer.

[Subsidiary]
App. C

of-kin of the said E.F., the intestate.

- (b) Let the defendant retain for her own use one other third share of the said residue, as the mother and one of the next-of-kin of the said E.F., the intestate.
- (c) And let the defendant within one week after the taxation of the said costs by the* as aforesaid, pay the remaining one-third share of the said residue to G.H., as the brother and the other next-of-kin of the said E.F., the intestate.

No. 21

PRELIMINARY DECREE IN A SUIT FOR DISSOLUTION OF PARTNERSHIP AND THE TAKING OF PARTNERSHIP ACCOUNTS
(Title)

It is declared that the proportionate shares of the parties in the partnership are as follows -

It is declared that this partnership shall stand dissolved (or shall be deemed to have been dissolved) as from the day of, 19..... and it is ordered that the dissolution thereof as from that day be advertised in the Gazette, etc.

And it is ordered that be the receiver of the partnership- estate and effects in this suit and do get in all the outstanding book-debts and claims of the partnership.

And it is ordered that the following accounts be taken -

1. An account of the credits, property and effects now belonging to the said partnership.
2. An account of the debts and liabilities of the said partnership.
3. An account of all dealings and transactions between the plaintiff and defendant from the foot of the settled account exhibited in this suit and marked (A), and not disturbing any subsequent settled accounts.

And it is ordered that the goodwill of the business heretofore carried on by the plaintiff and defendant as in the plaint mentioned, and the stock-in-trade, be sold on the premises, and that the* may, on the application of any of the parties, fix a reserved bidding for all or any of the lots at such sale, and that either of the parties is to be at liberty to bid at the sale.

And it is ordered that the above accounts be taken and all other acts required to be

* Here insert name of proper officer.

[Subsidiary]

App. C

done be completed, before the day of, 19.... and that the* do certify the result of the accounts, and that all other acts are completed, and have his certificate in that behalf ready for the inspection of the parties on the day of, 19....

And lastly, it is ordered that this suit stand adjourned for making a final decree to the day of, 19.....

No. 22

FINAL DECREE IN A SUIT FOR DISSOLUTION OF PARTNERSHIP AND THE TAXING OF PARTNERSHIP ACCOUNTS (Title)

It is ordered that the fund now in court, amounting to the sum of shillingsbe applied as follows -

1. In payment of the debts due by the partnership set forth in the certificate of the* amounting in the whole to shillings

2. In payment of the costs of all parties in this suit amounting to shillings (These costs must be ascertained before the decree is drawn up.)

3. In payment of the sum of shillings to the plaintiff as his share of the partnership-assets, of the sum of shillings....., being the residue of the said sum of shillings now in court, to the defendant as his share of the partnership-assets.

(Or, And that the remainder of the said sum of shillings..... be paid to the said plaintiff (or defendant) in part payment of the sum of shillings..... certified to be due to him in respect of the partnership-accounts.)

4. And that the defendant (or plaintiff) do on or before the day of, 19....., pay to the plaintiff (or defendant) the sum of shillings being the balance of the said sum of shillings due to him, which will then remain due.

No. 23

DECREE FOR RECOVERY OF LAND AND MESNE PROFITS

It is hereby declared as follows -

1. That the defendant do put the plaintiff in possession of the property specified in the Schedule hereunto annexed.

2. That the defendant do pay to the plaintiff the sum of shillings with interest

* Here insert name of proper officer.

[Subsidiary]

App. C

thereon at the rate of per cent per annum to the date of realization on account of mesne profits which have accrued due prior to the institution of the suit.

Or

2. That an inquiry be made as to the amount of mesne profits which have accrued due prior to the institution of the suit.

3 That an inquiry be made as to the amount of mesne profits from the institution of the suit until (the delivery of possession to the decree-holder) (the relinquishment of possession by the judgment-debtor with notice to the decree-holder through the Court) (the expiration of three years from the date of the decree).

Schedule

No. 24

L.N. 299/1957

CERTIFICATE OF ORDER AGAINST THE GOVERNMENT

(O. XXVIII, r. 3)

(Title)

By a judgment (decree) (order) of this court dated the day of, 19.., it was adjudged (decree) (ordered) -

(Give particulars of the judgment, decree or order.)

I hereby certify that the amount payable to by in pursuance of the said judgment (decree) (order) is (*together with interest thereon from the day of until the date of payment, and together with costs which have been taxed and certified by the Registrar at..... Interest is payable on the said costs from the day of, 19...., until the date of payment).

(+This certificate does not include the amount payable under the said judgment (decree) (order) in respect of costs.)

* Omit so far as not required.

+To be included where a separate certificate has been directed to be issued as to costs.

No. 25

L.N. 299/1957

CERTIFICATE OF ORDER FOR COSTS AGAINST THE GOVERNMENT

(O. XXVIII, r. 3)

(Title)

By a judgment (decree) (order) of this court dated the day of, 19...., it was adjudged (decree) (ordered) -

(Give particulars of the judgment, decree or order.)

* Here insert name of proper officer.

[Subsidiary]

App. C

I hereby certify that the costs payable to byin pursuance of the said judgment (decree) (order) have been taxed and certified by the Registrar at (*Interest is payable on the said costs from the day of, 19...., until the date of payment.)

*Omit where not required.

No. 26
REQUEST FOR JUDGMENT
(O. IXA, rr. 3, 4, 5, 6)
(Title)

The plaintiff requests judgment against the defendant(s)¹
.... who has (have) failed to appear (*or as the case may be*).

This request is for interlocutory judgment for Sh. (*with or without interest as the case may be*) and costs².

Dated, etc.,

(Signed).....
Advocate for the Plaintiff

Notes

¹Insert names of defendants who have failed to appear or file a defence.

²Delete “and costs” if a further claim in the suit remains to be dealt with.

[Subsidiary]
App. D

APPENDIX D

EXECUTION

No. 1

NOTICE TO SHOW CAUSE WHY A PAYMENT OR ADJUSTMENT SHOULD NOT BE RECORDED AS

CERTIFIED

(O. XXI, r. 2)

(Title)

To

Whereas in execution of the decree in the above-named suit has applied to this court that the sum of shillings recoverable under the decree has been paid/adjusted and should be recorded as certified, this is to give you notice that you are to appear before this court on the day of 19.., to show cause why the payment/adjustment aforesaid should not be recorded as certified.

Given under my hand and the seal of the court thisday
of19.....

....., Judge.

No. 2

ORDER SENDING DECREE FOR EXECUTION TO ANOTHER COURT

(O. XXI, r. 4)

(Title)

Whereas the decree-holder in the above suit has applied to this court for a certificate to be sent to the court ofatfor execution of the decree in the above suit for the said court, alleging that the judgment-debtor resides or has property within the local limits of the jurisdiction of the said court and it is deemed necessary and proper to send a certificate to the said court under Order XXI, rule 4, of the Civil Procedure Rules.

Ordered

That a copy of this order be sent towith a copy of the decree and of any order which may have been made for execution of the same and a certificate of non-satisfaction.

Dated the day of19....

....., Judge.

[Subsidiary]

App. D

No. 3

CERTIFICATE OF NON-SATISFACTION OF DECREE

(O. XXI, r. 4)

(Title)

Certified that no* satisfaction of the decree of this court in suit No.
of 19....., a copy of which is hereunto attached, has been obtained by execution within
the jurisdiction of this court.

Dated the day of19....

....., *Judge*.

*If partial, strike out “No” and state to what extent.

CERTIFICATE OF EXECUTION OF DECREE TRANSFERRED TO ANOTHER COURT
(O.XXI. R.4)
(Title)

1	Number of suit and the court by which the decree was passed.	
2	Names of parties.	
3	Date of application for execution.	
4	Number of the execution case.	
5	Processes issued and dates of service thereof.	
6	Costs of execution.	Sh. cts.
7	Amount realised.	Sh. cts.
8	How the case is disposed of.	
9	Remarks.	

Signature of Judge

[Subsidiary]
App. D

No. 5 - APPLICATION FOR EXECUTION OF DECREE
(O.XXI, r.7)

In the Court

I,, decree-holder, hereby apply for execution of the decree herein below set forth:-

1	Name of suit						789 of 1916
2	Names of parties	A.B. - Plaintiff C.D. - Defendant					
3	Date of decree	October 11 th , 1916					
4	Whether any appeal preferred, from decree						No.
5	Payment or adjustment made, if any	None					
6	Previous application, if any, with date and result	Shillings recorded on application, dated the 4 th March, 1927					
7	Amount with interest due upon the decree or other relief granted thereby together with particulars of any cross-decree	Shillings principal (interest at 6 per cent per annum from date of decree till payment)					
8	Amount of costs, if any, awarded	As awarded in the decree Subsequently incurred..... Total					
9	Against whom to be executed.	Against the defendant, C.D.					
10	Mode in which the assistance of the court is required.	(When attachment and sale of movable property is sought.) I pray that the total amount of shillings (together with interest on the principal sum up to date of payment) and the costs of taking out this execution, be realized by attachment and sale of defendant's movable property as per annexed list and paid to me. (When attachment and sale of immovable property is sought.) I pray that the total amount of shillings (together with interest on the principal sum up to date of payment) and the costs of taking out this execution, be realized by attachment and sale of defendant's immovable property specified at the foot of this application and paid					

[Subsidiary]

App. D

I,, declare that what is stated herein is true to the best of my knowledge and belief.

(Signed) Decree-holder.

Dated the day of, 19...

(When attachment and sale of immovable property is sought.)

Description and Specification of Property:

The undivided one-third share of the judgment-debtor in a house situated in the village of value shillings 80 and bounded as follows -

East by *G*'s house; west by *H*'s house, south by public road, north by private lane and *J*'s house.

I,, declare that what is stated in the above description is true to the best of my knowledge and belief, and so far as I have been able to ascertain the interest of the defendant in the property therein specified.

(Signed) Decree-holder.

No. 6

NOTICE TO SHOW CAUSE WHY EXECUTION SHOULD NOT ISSUE

(O. XXI, r. 18)

(Title)

To

Whereas had made application to this court for execution of decree in Suit No. of 19... on the allegation that the said decree has been transferred to him by assignment, this is to give you notice that you are to appear before this court on the day of....., 19.., to show cause why execution should not be granted.

Given under my hand and the seal of the court thisday of, 19.....

No. 7

WARRANT OF ATTACHMENT OF MOVABLE PROPERTY IN EXECUTION OF A DECREE FOR MONEY

(O. XXI, rr. 26, 39)

[Subsidiary]

App. D

(Title)

To.....

The Bailiff of the Court.

Whereas was ordered by decree of this court passed on the day of, 19., in Suit No. of.....

....., 19., to pay the plaintiff the sum of shillings as noted in the margin; and whereas the said sum of shillings has not been paid: These are to command you to attach the movable property of the said as set forth in the Schedule hereunto annexed, or which shall be pointed out to you by the said....., and unless the said..... shall pay to you the said sum of shillings together with shillings, the costs of this attachment, to hold the same until further orders from this court.

You are further commanded to return this warrant on or before the

day of 19., with an endorsement certifying the day on which and manner in which it has been executed, or why it has not been executed.

Given under my hand and the seal of the court thisday of, 19.....

....., Judge.

Schedule

No. 8

WARRANT FOR SEIZURE OF SPECIFIC MOVABLE PROPERTY ADJUDGED BY DECREE

(O. XXI, r. 27)

To.....

The Bailiff of the Court.

Whereas was ordered by decree of this court passed on.....the..... day of, 19....., in Suit No. of 19....., to deliver to the plaintiff the movable property (or a share in the movable property) specified in the Schedule hereunto annexed, and whereas the said property (or share) has not been delivered:

These are to command you to seize the said movable property (or a share of the said movable property) and to deliver it to the plaintiff or to such person as he may

appoint in his behalf.

[Subsidiary]

App. D

Given under my hand and the seal of the court this day of, 19....
....., *Judge*.

Schedule

No. 9

WARRANT TO THE BAILIFF TO GIVE POSSESSION OF LAND, ETC.

(O.XXI, r. 30)

(Title)

To.....

Decree.....	Sh.	cts.
Principal.....		
Interest.....		
Costs.....		
Costs of execution.....		
Further interest.....		
Total.....		

The Bailiff of the Court.

Whereas the undermentioned property in the occupancy ofhas been decreed to, the plaintiff in this suit, you are hereby directed to put the said.....in possession of the same, and you are hereby authorized to remove any

person bound by the decree who may refuse to vacate the same.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No. 10

NOTICE TO SHOW CAUSE WHY WARRANT OF ARREST SHOULD NOT ISSUE

(O.XXI, r. 32)

(Title)

To.....

Whereas.....has made application to this court for execution of decree in Suit No.of, 19...., by arrest and imprisonment of your person, you are hereby required to appear before this court on theday of, 19, to show cause why you should not be committed to prison in execution of the said decree.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No.11

[Subsidiary]

App. D

WARRANT OF ARREST IN EXECUTION

(O.XXI, r.33)

REPUBLIC OF KENYA

In theCourt

at

Civil Suit No. of 19.....

.....Plaintiff *against*

.....Defendant

To.....

Whereas was adjudged by a decree of this court in the above-mentioned suit, dated the day of, 19....., to pay to the decree-holder the sum of shillings ; and whereas the sum of shillings remains unpaid in respect of the said decree:

These are to command you to arrest the said and unless he shall pay to you the sum of shillings as noted in the margin, together with police expenses and fees, if any, to bring the said judgment-debtor before the court with all convenient speed. You are further commanded to return this warrant on or before the day of, 19....., with an endorsement certifying the day on which and manner in which it has been executed, or the reason why it has not been executed.

Given under my hand and the seal of the court this day of, 19.....

....., *Judge.*

Note. - The police officer who executes this warrant is entitled to 2nd/3rd class railway fare or if motor car is used to 50 cents per mile for the distance travelled in connexion with the execution of this warrant plus police service fee.

No. 12

WARRANT OF COMMITTAL OF JUDGMENT-DEBTOR TO JAIL

(O. XXI, r. 35)

(Title)

To.....

The Officer in Charge of the G.K. Prison at

Whereas, who has been brought before this court this day of, 19....., under a warrant in execution of a decree which was made and pronounced by the said court on the day of, 19....., and by which decree it was ordered that the said should pay: And whereas the said has neither obeyed the decree nor satisfied the court that he is entitled to be

discharged from custody; you are hereby commanded and required to (Subsidiary) receive the said..... into prison and keep him imprisoned therein for a period of or until the said decree shall be fully satisfied or the said shall be otherwise entitled to be released according to the terms and provisions of section 42 of the Civil Procedure Act, and the court does hereby fix cents per diem as the rate of the monthly allowance for the subsistence of the said during his confinement under this warrant of committal.

Given under my hand and the seal of the court this day of, 19.....
....., *Judge*.

	Sh.	cts.
Decretal amount.....		
Less paid on a/c		
Interest on decretal amount		
Further costs		
Court collection fee ...		
Total.....		

No. 13

ORDER FOR THE RELEASE OF A PERSON IMPRI -
ONED IN EXECUTION OF A DECREE
(Sections 42 and 43 of the Act)
(Title)

To

The Officer in Charge of the G.K.
Prison at

Under orders passed this day, you are hereby directed to set free,
judgment-debtor, now in your custody.

Dated

....., *Judge*.

No. 14

ATTACHMENT IN EXECUTION. - PROHIBITORY ORDER WHERE THE PROPERTY TO BE ATTACHED
CONSISTS OF MOVABLE PROPERTY TO WHICH THE DEFENDANT IS ENTITLED SUBJECT TO A LIEN
OR RIGHT OF SOME OTHER PERSON TO THE IMMEDIATE POSSESSION THEREOF

[Subsidiary]

(O. XXI, r. 41)

App. D

(Title)

To

Whereas has failed to satisfy a decree passed againston the day of, 19.., in Suit No. of 19.., in favour of for shillings: It is ordered that the defendant be, and is hereby, prohibited and restrained until the further order of this court, from receiving from the following property in the possession of the said, that is to say, to which the defendant is entitled, subject to any claim of the said, and the said is hereby prohibited and restrained, until the further order of the court, from delivering the said property to any person or persons whomsoever.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No. 15
ATTACHMENT OF DEBT
(O.XXII. r. 1)
REPUBLIC OF KENYA

In the Court
at
Civil Suit No. of 19.... .

Between

..... Decree-holder

and

..... Judgment-debtor

and

.....Garnishee

To,

The above-named Judgment-debtor.

and

To,

The above-namedGarnishee.

Whereas the judgment-debtor has failed to satisfy a decree passed against him on the day of, 19.., in the above-mentioned suit in favour of the decree-holder.

[Subsidiary]
App. D

It is ordered that all debts owing or accruing due from the garnishee to the judgment-debtor be attached to answer the said decree for the sum of shillings debt and shillings costs (together with the costs of these garnishee proceedings), on which decree the sum of shillings remains due and unpaid.

And it is further ordered that the garnishee do within seven days after the service of this order upon him inform this court what sum is due from him to the judgment-debtor.

And it is further ordered that if the garnishee disputes the debt claimed to be due from him to the judgment-debtor he (the said garnishee) shall appear before this court on the..... day of, 19..., on an application by the decree-holder that the garnishee do pay to the decree-holder the debt due from the garnishee to the judgment-debtor or so much thereof as may be sufficient to satisfy the decree together with the costs of the garnishee proceedings.

Given under my hand and the seal of the court thisday of,19...
....., Judge.

Note. -If the garnishee does not dispute the debt claimed to be due from him to the judgment-debtor and informs the court of the amount thereof it is not necessary for him to appear before the court.

Order XXII, Rule 2, of the Civil Procedure Rules

Service of an order that debts due to a judgment-debtor liable under a decree shall be attached, or notice thereof to the garnishee in such manner, as the court may direct, shall bind such debts in his hands.

Order XXII, Rule 7 -

Payment made by or execution levied upon the garnishee under any such proceedings as aforesaid shall be a valid discharge to him as against the judgment-debtor to the amount paid or levied, although such proceedings or order may be set aside or the decree reversed.

No. 15 (a)

GARNISHEE ORDER (ABSOLUTE) WHERE GARNISHEE OWES MORE THAN JUDGMENT-DEBT
(O. XXII, r. 3)
REPUBLIC OF KENYA

[Subsidiary]
App.D

In the Court
at
Civil Suit No. of 19....

Between

..... Decree-holder
and
..... Judgment-debtor
and
..... Garnishee

To,

The above-named Judgment-debtor.
and

To,

The above-namedGarnishee.

Upon hearing (advocate for judgment-creditor) and upon reading the order nisi made herein dated the day of, 19....., whereby it was ordered that all debts owing or accruing due from the garnishee to the judgment-debtor should be attached to answer a decree passed against the judgment-debtor in favour of the decree-holder in the Courton the day of, 19.., in the above-named suit for the sum of shillings debt and shillings costs (together with the costs of the garnishee proceedings) on which decree the sum of shillings remained due and unpaid: And it appearing that the garnishee is indebted to the judgment-debtor in the sum of shillings It is ordered that the garnishee do forthwith pay the decree-holder shillings being so much of the debt due from the garnishee to the judgment-debtor as is sufficient to satisfy the said decree and costs together with the costs of the garnishee proceedings, and that in default thereof execution may issue for the same.

And that the garnishee be at liberty to retain shillingsfor his costs of this application out of the balance of the debt due from him to the judgment-debtor.

Given under my hand and the seal of the court this day of, 19....
....., *Judge*.

No. 15 (b)

GARNISHEE ORDER (ABSOLUTE) WHERE GARNISHEE OWES LESS THAN
JUDGMENT-DEBT
(O. XXII, r. 3)
REPUBLIC OF KENYA

In the Court
at
Civil Suit No. of 19..

[Subsidiary]
App. D*Between*

..... Decree-holder
and
 Judgment-debtor
and
 Garnishee

To,

The above-named Judgment-debtor.

and

To,

The above-named Garnishee.

Upon hearing (advocate for judgment-creditor) and upon reading the order nisi made herein dated the day of, 19...whereby it was ordered that all debts owing or accruing due from the garnishee to the judgment-debtor should be attached to answer a decree passed against the judgment-debtor in favour of the decree-holder in the Court.....on the day of, 19., in the above-named suit for the sum of shillings debt and shillings costs (together with the costs of the garnishee proceedings) on which decree the sum of shillings remained due and unpaid: And it appearing that the garnishee is indebted to the judgment-debtor in the sum of shillings

It is ordered that the garnishee (after deducting therefrom shillingsfor his costs of this application) do forthwith pay to the decree-holder shillings..... the debt due from the garnishee to the judgment-debtor, and that in default thereof execution may issue for the same:

And that the sum of shillings, the costs of the decree-holder of this application be added to the amount of the decree and be retained out of the money recovered by the decree-holder under this order and in priority to the amount of the decree.

Given under my hand and the seal of the court this day of, 19.....

....., *Judge.*

No. 16

ATTACHMENT IN EXECUTION. - PROHIBITORY ORDER WHERE THE PROPERTY CONSISTS OF SHARES
 IN THE CAPITAL OF A CORPORATION

(O. XXI, r. 41)

(Title)

To:

....., defendant, and to Secretary of
 .Corporation.

Whereas has failed to satisfy a decree passed againston

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the day of, 19.., in Suit No. of 19....., in favour of, for shillings: It is ordered that you, the defendant, be, and you are hereby, prohibited and restrained, until the further order of this court, from making any transfer of shares in the aforesaid Corporation, namely, or from receiving payment of any dividends thereon; and you, the Secretary of the said Corporation, are hereby prohibited and restrained from permitting any such transfer or making any such payment.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No. 17

ORDER TO ATTACH SALARY

(O. XXI r. 43)

(*Title*)

To:

Whereas judgment-debtor in the above case receives salary or allowances from you, and whereas the decree-holder in this case has obtained an order for the attachment of the salary or allowances paid to the judgment-debtor to the extent of Sh. due under the decree.

You are hereby required to withhold the said sum from the salary or allowances of the judgment-debtor in monthly installments equally one third of the judgment-debtor's net salary and allowances after deducting therefrom only payments required to be made for P.A.Y.E., N.S.S.F. and N.H.I.F.

Should you already be making payments under a previous order, you must retain this order and start deducting one-third in accordance with its terms as soon as the earlier order is paid. Payments under this order should be made to this court/to advocates for the decree-holder.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No. 18

ORDER OF ATTACHMENT OF NEGOTIABLE INSTRUMENT

(O. XXI, r. 46)

(*Title*)

To

The Bailiff of the Court.

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Whereas an order has been passed by this court on the day of, 19.., for the attachment of: You are hereby directed to seize the said and bring the same into court.

Given under my hand and the seal of the court this day of, 19.....

..

....., *Judge*.

No. 19

ATTACHMENT - PROHIBITION ORDER, WHERE THE PROPERTY CONSISTS OF MONEY OR OF ANY SECURITY IN THE CUSTODY OF A COURT OF JUSTICE OR OFFICER OF GOVERNMENT

(O. XXI, r. 47)

(*Title*)

To

Sir,

The plaintiff having applied, under rule 7 of Order XXI of the Civil Procedure Rules for an attachment of certain money now in your hands (*here state how the money is supposed to be in the hands of the person addressed, on what account, etc.*), I request that you will hold the said money subject to the further order of this court.

I have the honour to be,

Sir,

Your most obedient servant,

....., *Judge*.

Dated the.....day of, 19.....

No. 20

NOTICE OF ATTACHMENT OF A DECREE TO THE COURT WHICH PASSED IT

(O. XXI, r. 48)

(*Title*)

To

The Judge of the Court of

Sir,

I have the honour to inform you that the decree obtained in your court on the..... day of, 19.. by in Suit No. of 19.., in which

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he was and was has been attached by this court on the application of, the in the suit specified above. You are therefore requested to stay the execution of the decree of your court until you receive an intimation from this court that the present notice has been cancelled or until execution of the said decree is applied for by the holder of the decree now sought to be executed or by his judgment-debtor.

I have the honour, etc.,

....., *Judge*.

Dated the day of, 19.....

No. 21

NOTICE OF ATTACHMENT OF A DECREE TO THE HOLDER OF THE DECREE

(O. XXI, r. 48)

(*Title*)

To

Whereas an application has been made in this court by the decree-holder in the above suit for the attachment of a decree obtained by you on theday of, 19...., in the Court of in Suit No.of 19.., in which was and was: It is ordered that you, the said be, and you are hereby, prohibited and restrained, until the further order of this court, from transferring or charging the same in any way.

Given under my hand and the seal of the court this day of, 19....

....., *Judge*.

No. 22

ATTACHMENT IN EXECUTION.-PROHIBITORY ORDER, WHERE THE PROPERTY CONSISTS OF

IMMOVABLE PROPERTY

(O. XXI, r. 49)

(*Title*)

To

....., Defendant.

Whereas you have failed to satisfy a decree passed against you on theday of, 19.., in Suit No. of 19.., in favour of for shillings: It is ordered that you, the said, be, and you are hereby, prohibited and restrained, until the further order of this court, from transferring or charging the property specified in the Schedule hereunto annexed, by sale, gift or otherwise, and that all persons be, and that they are, hereby prohibited from receiving the same by purchase, gift or otherwise.

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Given under my hand and the seal of the court this day of, 19.....
Schedule

....., *Judge*.

 No. 23

ORDER FOR PAYMENT TO THE PLAINTIFF, ETC., OF MONEY, ETC., IN THE HANDS OF A THIRD
 PARTY

(O. XXI, r. 51)

(*Title*)

To

Whereas the following property has been attached in execution of a decree in Suit No. of, 19..., passed on theday of, 19..., in favour of for shillings: It is ordered that the property so attached, consisting of shillings in money and shillings in currency notes, or a sufficient part thereof to satisfy the said decree, shall be paid over by you, the said..... to.....

Given under my hand and the seal of the court this day of, 19.....
 , *Judge*.

 No. 24

NOTICE TO ATTACHING CREDITOR

(O. XXI, r. 54)

(*Title*)

To

Whereas has applied to this court for the removal of attachment on placed by you in execution of the decree in this suit, you are required within 15 days to inform the court in writing whether you propose to proceed with the attachment and execution either wholly or in part.

If you do not so inform the court an order will be made raising the attachment and making such order for costs as is appropriate.

Given under my hand and the seal of the court this day of, 19.....
 , *Judge*.

 No. 25

WARRANT OF SALE OF PROPERTY IN EXECUTION OF DECREE FOR MONEY

(O. XXI, r. 61)

(*Title*)

To

The Bailiff of the Court.

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These are to command you to sell by auction, after giving days' previous notice, by affixing the same in the precincts of this court, and after making due proclamation, the property attached under a warrant from this court dated the day of, 19.., in execution of a decree in favour of in Suit No. of 19.., or so much of the said property as shall realize the sum of shillings, being the..... of the said decree and costs still remaining unsatisfied.

You are further commanded to return this warrant on or before theday of, 19.., with an endorsement certifying the manner in which it has been executed, or the reason why it has not been executed.

Given under my hand and the seal of the court this day of, 19.....
....., *Judge*.

No. 26

NOTICE OF THE DAY FIXED FOR SETTling A SALE NOTIFICATION

(O. XXI, r. 61)

(Title)

To

....., Judgment-debtor.

Whereas in the above-named suit, the decree-holder has applied for sale of: You are hereby informed that the day of, 19.., has been fixed for settling the terms of the proclamation of sale.

Given under my hand and the seal of the court this day of, 19.....
....., *Judge*.

No. 27

NOTIFICATION OF SALE

(O. XXI, r. 61)

(Title)

Notice is hereby given that, under Rule 61 of Order XXI of the Civil Procedure Rules an order has been passed by this court for the sale of the attached property mentioned in the annexed Schedule, in satisfaction of the claim of the decree-holder in the suit (1) mentioned in the margin amounting with costs and interest up to date of sale to the sum of

The sale will be by public auction, and the property will be put up for sale in the lots specified in the Schedule. The sale will be of the

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property of the judgment-debtors above-named as mentioned in the Schedule below, and the liabilities and claims attaching to the said property, so far as they have been ascertained, are those specified in the Schedule against each lot.

In the absence of any order of postponement, the sale will be held by commencing at o'clock on the at In the event, however, of the debt above specified and of the costs of the sale being tendered or paid before the knocking down of any lot, the sale will be stopped.

At the sale the public generally are invited to bid either personally or by duly authorized agent. No bid by or on behalf of the judgment-creditors, above-mentioned, however, will be accepted, nor will any sale to them be valid without the express permission of the court previously given. The following are the further conditions of sale -

Conditions of Sale

1. The particulars specified in the Schedule below have been stated to the best of the information of the court, but the court will not be answerable for any error, misstatement or omission in this proclamation.

2. The amount by which the biddings are to be increased shall be determined by the officer conducting the sale. In the event of any dispute arising as to the amount bid, or as to the bidder, the lot shall at once be again put up to auction.

3. The highest bidder shall be declared to be the purchaser of any lot, provided always that he is legally qualified to bid and provided it shall be in the discretion of the court or officer holding the sale to decline acceptance of the highest bid when the price offered appears so clearly inadequate as to make it advisable to do so.

4. For reasons recorded, it shall be in the discretion of the officer conducting the sale to adjourn it subject always to the provisions of Rule 63 of Order XXI of the Civil Procedure Rules.

5. In the case of movable property, the price of each lot shall be paid at the time of sale or as soon after as the officer holding the sale directs, and in default of payment the property shall forthwith be again put up and re-sold.

6. In the case of immovable property, the person declared to be the purchaser shall pay immediately after such declaration a deposit of 25 per cent on the amount of his purchase money to the officer conducting the sale, and in default of such deposit the property shall forthwith be put up again and re-sold.

7. The full amount of the purchase money shall be paid by the purchaser before the court closes on the fifteenth day after the sale of the property, exclusive of such day, or if such fifteenth day be a Sunday or other holiday, then on the first office day after such

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fifteenth day.

8. In default of payment of the balance of purchase money within the period allowed, the property shall be re-sold after the issue of a fresh notification of sale. The deposit, after defraying the expenses of the sale, may, if the court thinks fit, be forfeited to Government, and the defaulting purchaser shall forfeit all claim to the property or to any part of the sum for which it may be subsequently sold.

(1) Suit No. of 19.....,
decided by the of
..... in which
was plaintiff and was
defendant.

Given under my hand and the seal of the court
this day of, 19.....

.....
....., Judge.

SCHEDULE OF PROPERTY

Number of lot.	Description of property to be sold with the name of each owner where there are more judgment-debtors than one.	The revenue assessed upon the estate or part of the estate, if the property to be sold is an interest in an estate or a part of an estate paying revenue to government.	Details of any encumbrances to which the property is liable.	Claims, if any, which have been put forward to the property and any other loan particulars bearing on its nature or value.

No. 28

ORDER OF THE BAILIFF FOR CAUSING SERVICE OF PROCLAMATION OF SALE

(O.XXI, R. 61)

(TITLE)

To

The Bailiff of the Court.

Whereas an order has been made for the sale of the property of the judgment-debtor specified in the Schedule hereunder annexed, and whereas the day of 19 has been fixed for the sale of the said property copies of the proclamation of sale are by this warrant made over to you and you are hereby ordered to have the proclamation published by fixing a copy of the said publication on a conspicuous part of each of the said properties and afterwards in the precincts of the court and then to submit to this court

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a report showing the dates on which the proclamation have been published.

Dated the day of

SCHEDULE

....., *JUDGE.*

No. 29

CERTIFICATE BY OFFICERS HOLDING A SALE OF THE DEFICIENCY OF PRICE ON A RE-SALE OF
PROPERTY BY REASON OF THE PURCHASER'S DEFAULT

(O. XXI, r. 64)

(*Title*)

Certified that at the re-sale of the property in execution of the decree in the above-named suit, in consequence of default on the part of, purchaser, there was a deficiency in the price of the said property amounting to shillings and that the expenses attending such re-sale amounting to shillings..... making a total of shillings which sum is recoverable from the defaulter.

Dated the day of, 19.....

.....
Officer holding the sale.

No. 30

NOTICE TO PERSON IN POSSESSION OF MOVABLE PROPERTY SOLD IN
EXECUTION

(O. XXI, r. 70)

(*Title*)

To.....

Whereas has become the purchaser at a public sale in execution of the decree in the above suit of.....now in your possession you are hereby prohibited from delivering possession of the said to any person except the said.....

Given under my hand and the seal of the court this day of, 19.....
....., *Judge.*

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No. 31

PROHIBITORY ORDER AGAINST THE TRANSFER OF SHARES SOLD IN EXECUTION

(O. XXI, r. 70)

(Title)

To

..... and, Secretary of

..... Corporation.

Whereas has become the purchaser at a public sale in execution of the decree, in the above suit, of certain shares in the above Corporation, that is to say, of standing in the name of you..... it is ordered that you be, and you are hereby, prohibited from making any transfer of the said shares to any person except the said the purchaser aforesaid, or from receiving any dividends thereon; and you Secretary of the said Corporation are further prohibited from permitting any such transfer or making any such payment to any person except the said..... the purchaser aforesaid.

Given under my hand and the seal of the court this day of, 19....

....., Judge.

No. 32

NOTICE TO SHOW CAUSE WHY SALE SHOULD NOT BE SET ASIDE

(O. XXI, rr. 79 and 81)

(Title)

To

Whereas the under mentioned property was sold on the day of, 19.., in execution of the decree passed in the above-named suit, and whereas the decree-holder (or judgment-debtor) has applied to this court to set aside the sale of the said property on the ground of a material irregularity (or fraud) in publishing (or conducting) the sale, namely, that

Take notice that if you have any cause to show why the said application should not be granted, you should appear with your proofs in this court on the day of, 19. ., when the said application will be heard and determined.

Given under my hand and the seal of the court this day of, 19....

....., Judge.

Description of property

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No. 33

NOTICE TO SHOW CAUSE WHY SALE SHOULD NOT BE SET ASIDE
(O. XXI, rr. 80 and 81)
(Title)

To

Whereas, the purchaser of the under mentioned property sold on the day of, 19..., in execution of the decree passed in the above-named suit, has applied to this court to set aside the sale of the said property on the ground that, the judgment-debtor had no saleable interest therein.

Take notice that if you have any cause to show why the said application should not be granted, you should appear with your proofs, in this court on theday of 19..., when the said application will be heard and determined.

Given under my hand and the seal of the court this day of, 19.....

....., Judge.

No. 34

CERTIFICATE OF SALE OF LAND
(O. XXI. r. 83)
(Title)

This is to certify that has been declared the purchaser at a sale by public auction on the day of, 19.., of..... in execution of the decree in this suit, and that the said sale has been duly confirmed by this Court.

Given under my hand and the seal of the court this day of, 19.....

....., Judge.

No. 35

ORDER FOR DELIVERY TO CERTIFIED PURCHASER OF LAND AT A SALE IN EXECUTION
(O. XXI, r. 85)
(Title)

To

The Bailiff of the Court.

Whereas has become the certified purchaser of at a sale in execution of the decree in Suit No. of 19, you are hereby ordered to put the said, the certified purchaser, as aforesaid, in possession of the same, by

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affixing a copy of the certificate of sale in some conspicuous place on the property sold, and by notifying the occupant thereof in the following manner -

Given under my hand and the seal of the court this day of, 19.....
, Judge.

No. 36

SUMMONS TO APPEAR AND ANSWER CHARGE OF OBSTRUCTING EXECUTION OF DECREE

(O. XXI, r. 86)

(Title)

To.....

Whereas....., the decree-holder in the above suit, has complained to this court that you have resisted (or obstructed) the officer charged with the execution of the warrant for possession.

You are hereby summoned to appear in this court on the day of, 19.., at a.m. to answer the said complaint.

Given under my hand and the seal of the court this day of, 19.....
, Judge.

No. 37

WARRANT OF COMMITTAL

(O. XXI, r. 87)

(Title)

To

The Officer-in-Charge of the G.K. Prison at

Whereas the under mentioned property has been decreed to....., the plaintiff in this suit, and whereas the court is satisfied that without any just cause resisted (or obstructed) and is still resisting (or obstructing) the said..... in obtaining possession of the property and whereas the said has made application to this court that the said be committed to prison.

You are hereby commanded and required to take and receive the said into prison and to keep him imprisoned therein for the period of days.

Given under my hand and the seal of the court this day of, 19.....
, Judge.

No. 38

NOTICE BY ADVERTISEMENT OF SALE

(O. XXI r. 61)

(Title)

(Set out description of property, encumbrances, etc.)

By Order of the Court and pursuant to a judgment for Sh.
 *(insert Broker's name and address)*, will sell
 the above property by public auction at *(insert place of sale)* on day
 the day of, 19....., at o'clock.

(Signed).....

Advocate (or Broker)

APPENDIX E

SUPPLEMENTARY PROCEEDINGS

NO. 1

WARRANT OF ARREST BEFORE JUDGMENT

(O. XXXVIII, R. 1)

(Title)

	Sh.	Cts.
Principal ...		
Interest ...		
Costs ...		
Total		

To.....

The Bailiff of the Court.

Whereas, the plaintiff in the
 above suit, claims the sum of shillings
 as noted in the margin and has proved to the
 satisfaction of the court that there is probable cause
 for believing that the defendant is about to

..... These are

to command you to demand and receive from the said the sum of shillings
 as sufficient to satisfy the plaintiff's claim, and unless the said sum of
 shillings is forthwith delivered to you by or on behalf of the said to
 take the said into custody, and to bring him before this court, in order that he may
 show cause why he should not furnish security to the amount of shillings for his
 personal appearance before the court until such time as the said suit shall be fully and
 finally disposed of, and until satisfaction of any decree that may be passed against him
 in the suit.

Given under my hand and the seal of the court this day of

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....., 19... .

....., *Judge*.

No. 2

SECURITY FOR APPEARANCE OF A DEFENDANT ARRESTED BEFORE JUDGMENT

(O. XXXVIII, r. 2)

To.....

Whereas at the instance of, the plaintiff in the above suit, the defendant, has been arrested and brought before the court.

And whereas on the failure of the said defendant to show cause why he should not furnish security for his appearance, the court has ordered him to furnish such security.

Therefore I have voluntarily become surety and do hereby bind myself, my heirs and executors, to the said court, that the said defendant shall appear at any time when called upon while the suit is pending and until satisfaction of any decree that may be passed against him in the said suit; and in default of such appearance I bind myself, my heirs and executors, to pay to the said court, at its order, any sum of money that may be adjudged against the said defendant in the said suit.

Witness my hand at this day of, 19.....

Witness

(1)

(2).....

.....*Signed*

No. 3

SUMMONS TO DEFENDANT TO APPEAR ON SURETY'S APPLICATION FOR DISCHARGE

(O. XXXVIII, r. 3)

(Title)

To

Whereas, who became surety on the day of, 19... for your appearance in the above suit, has applied to this court to be discharged from his obligation:

You are hereby summoned to appear at this court in person on theday of, 19.., at a.m., when the said application will be heard and determined.

Given under my hand and the seal of the court this day of, 19...

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....., Judge.

No. 4

ORDER FOR COMMITTAL

(O. XXXVIII, r. 4)

(Title)

To

Whereas, the plaintiff in this suit, has made application to the court that security be taken for the appearance of, the defendant, to answer any judgment that may be passed against him in the suit; and whereas the court has called upon the defendant to furnish such security or to offer a sufficient deposit in lieu of security, which he has failed to do; it is ordered that the said defendant..... be committed to prison until the decision of the suit; or, if judgment be pronounced against him, until satisfaction of the decree.

Given under my hand and the seal of the court this day of,
19...

....., Judge.

No. 5

ATTACHMENT BEFORE JUDGMENT, WITH ORDER TO CALL FOR SECURITY FOR FULFILMENT OF
DECREE

(O. XXXVIII, r. 5)

(Title)

To

The Bailiff of the Court.

Whereas has proved to the satisfaction of the court that the defendant in the above suit

These are to command you to call upon the said defendant on or before the day of, 19....., either to furnish security for the sum of shillings to produce and place at the disposal of this court when required or the value thereof, or such portion of the value as may be sufficient to satisfy any decree that may be passed against him; or to appear and show cause why he should not furnish security; and you are further ordered to attach the said..... and keep the same under safe and secure custody until the further order of the court; and you are further commanded to return this warrant on or before the day of, 19.., with an endorsement certifying the date on which and the manner in which it has been executed, or the reason why it has not been executed.

Given under my hand and the seal of the court this day of,

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19...

....., *Judge.*

No. 6

SECURITY FOR THE PRODUCTION OF PROPERTY

(O. XXXVIII, r. 5)

(Title)

Whereas at the instance of, the plaintiff in the above suit, the defendant has been directed by the court to furnish security in the sum of shillings to produce and place at the disposal of the court the property specified in the Schedule hereunto annexed.

Therefore I have voluntarily become surety and do hereby bind myself, my heirs and executors, to the said court, that the said defendant shall produce and place at the disposal of the court, when required, the property specified in the said Schedule, or the value of the same, or such portion thereof as may be sufficient to satisfy the decree; and in default of his so doing, I bind myself, my heirs and executors, to pay to the said court at its order, the said sum of shillings or such sum not exceeding the said sum as the said court may adjudge.

Witness my hand at this day of, 19....

Schedule

Witness.

(1)

(2)

.....*Signed.*

No. 7

ATTACHMENT BEFORE JUDGMENT, ON PROOF OF FAILURE TO FURNISH SECURITY

(O. XXXVIII, r. 6)

(Title)

To

The Bailiff of the Court.

Whereas, the plaintiff in this suit, has applied to the court to call upon the defendant, to furnish security to fulfil any decree that may be passed against him in the suit, and whereas the court has called upon the said

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to furnish such security, which he has failed to do; these are to command you to attach, the property of the said and keep the same under safe and secure custody until the further order of the court; and you are further commanded to return this warrant on or before the day of 19.., with an endorsement certifying the date on which and the manner in which it has been executed, or the reason why it has not been executed.

Given under my hand and the seal of the court this day of, 19....

....., Judge.

No. 8

TEMPORARY INJUNCTIONS

(O. XXXIX, r. 1)

(Title)

Upon the motion made unto this court by pleader of (or counsel for) the plaintiff A.B., and upon reading the petition of the said plaintiff in this matter filed (this day) (or the plaint filed in this suit on the day of or the written statement of the said plaintiff filed on the day of) and upon hearing the evidence of and in support thereof (if after notice and defendant not appearing add, and also the evidence of as to service of notice of this motion upon the defendant C.D.): This court doth order that an injunction do issue to restrain the defendant C.D., his servants, agents and workmen from pulling down, or suffering to be pulled down, the house in the plaint in the said suit of the plaintiff mentioned (or in the written statement or petition, of the plaintiff and evidence at the hearing of this motion mentioned), being, and from selling the materials whereof the said house is composed, until the hearing of this suit or until the further order of this court.

Dated this day of, 19...

....., Judge.

(Where the injunction is sought to restrain the negotiation of a note or bill, the ordering part of the order may run thus -)

..... to restrain the defendants and from parting with the custody of them or any of them or endorsing, assigning or negotiating the promissory note (or bill of exchange) in question, dated on or about the, etc., mentioned in the plaintiff's plaint (or petition) and the evidence heard at this motion until the hearing of this suit or until the further order of this court.

(In copyright cases) to restrain the defendant C.D., his servants, agents or workmen, from printing, publishing or vending a book, called or any part

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thereof, until the, etc.

(Where part only of a book is to be restrained)

..... to restrain the defendant C.D., his servants, agents or workmen, from printing, publishing, selling or otherwise disposing of such parts of the book in the plaint (or petition and evidence, etc.) mentioned to have been published by the defendant as hereinafter specified namely that part of the said book which is entitled..... and also that part which is entitled (or which is contained in page to page both inclusive) until, etc.

(In patent cases) to restrain the defendant C.D., his agents, servants and workmen, from making or vending any perforated bricks (or as the case may be) upon the principle of the inventions in the plaintiff's plaint (or petition, etc., or written statement, etc.) mentioned, belonging to the plaintiff's or either of them during the remainder of the respective terms of the patents in the plaintiff's plaint (or as the case may be) mentioned, and from counterfeiting, imitating or resembling the same inventions, or either of them, or making any addition thereto, or subtraction therefrom until the hearing, etc.

(In cases of trade marks) to restrain the defendant C.D., his servants, agents or workmen, from selling, or exposing for sale, or procuring to be sold, any composition or blacking (or as the case may be) described as or purporting to be blacking manufactured by the plaintiff A.B., in bottles having affixed thereto such labels as in the plaintiff's plaint (or petition, etc.) mentioned, or any other labels so contrived or expressed as, by colourable imitation or otherwise, to represent the composition or blacking sold by the defendant to be the same as the composition or blacking manufactured and sold by the plaintiff A.B., and from using trade cards so contrived or expressed as to represent that any composition or blacking sold or proposed to be sold by the defendant is the same as the composition or blacking manufactured or sold by the plaintiff A.B., until the, etc.

(To restrain a partner from in any way interfering in the business)

..... to restrain the defendant C.D., his agents, servants, from entering into any contract and from accepting, drawing, endorsing or negotiating any bill of exchange, note or written security in the name of the partnership firm of B. and D., and from contracting any debt, buying and selling any goods, and from making or entering into any verbal or written promise, agreement or undertaking, and from doing, or causing to be done any act, in the name or on the credit of the said partnership firm of B. and D. or whereby the said partnership firm can or may in any manner become or be made liable to or for the payment of any sum of money, or for the performance of any contract, promise or undertaking until the, etc.

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App. E

APPOINTMENT OF A RECEIVER
(O. XL, r. 1)
(Title)

To

Whereas has been attached in execution of a decree passed in the above suit on the day of, 19..., in favour of; you are hereby (subject to your giving security to the satisfaction of the court) appointed receiver of the said property under Order XL of the Civil Procedure Rules with full powers under the provisions of that Order.

You are required to render a due and proper account of your receipts and disbursements in respect of the said property on You will be entitled to remuneration at the rate of per cent upon your receipts under the authority of this appointment.

Given under my hand and the seal of the court this day of, 19...

....., Judge.

No. 10

BOND TO BE GIVEN BY RECEIVER
(O. XL, r. 3)
(Title)

Know all men by these presents, that we, and and, are jointly and severally bound to of the court of in shillings to be paid to the said or his successor in office for the time being. For which payment we bind ourselves, and each of us, in the whole, our and each of our heirs, executors and administrators, jointly and severally, by these presents.

Dated this day of 19...

Whereas a plaint has been filed in this court by against for the purpose of (here insert the object of the suit).

And whereas the said has been appointed, by order of the above-mentioned court, to receive the rents and profits of the immovable property and to get in the outstanding movable property of in the said plaint named.

Now the condition of this obligation is such, that if the above-bounden shall duly account for all and every the sum and sums of money which he shall so receive on account of the rents and profits of the immovable property, and in respect of the movable property, of the said at such periods as the said court shall appoint, and shall duly pay the balances which shall from time to time be certified to be due from him as

[Subsidiary]

App. F

the said court hath directed or shall hereafter direct, then this obligation shall be void, otherwise it shall remain in full force.

Signed and delivered by the above-bounden in the presence of.....

Note. - If deposit of money is made, the memorandum thereof should follow the terms of the condition of the bond.

APPENDIX F

APPEAL, REFERENCE AND REVIEW

No. 1

MEMORANDUM OF APPEAL

(O. XLI, r. 1)

(Title)

The.....

..... above-named appeals to the Court at from the decree of in Suit No., of 19..., dated the day of, 19....., and sets forth the following grounds of objection to the decree appealed from namely-

No. 2

SECURITY BOND TO BE GIVEN ON ORDER BEING MADE TO STAY EXECUTION OF DECREE

(O. XLI, r. 4)

(Title)

To

This security bond on stay of execution of decree executed by witnesseth

-

That, the plaintiff in Suit No. of 19 ..., having sued, the defendant, in this court, and a decree having been passed on the day of, 19....., in favour of the plaintiff, and the defendant having preferred an appeal from the said decree in the court, the said appeal is still pending.

Now the plaintiff decree-holder having applied to execute the decree, the defendant has made an application praying for stay of execution, and has been called upon to furnish security. Accordingly I, of my own free will, stand security to the extent of shillings, mortgaging the properties specified in the Schedule hereunto annexed, and covenant that if the decree of the first court be confirmed or varied by the appellate court the said defendant shall duly act in accordance with the decree of the appellate court, and shall pay whatever may be payable by him thereunder, and if he should fail therein then any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insufficient to pay the amount due, I and my legal

[Subsidiary]

App. F

representatives will be personally liable to pay the balance. To this effect I execute this security bond thisday of,19.....

Schedule

(Signed).....

Witnessed by:

1.

2.

No. 3

SECURITY BOND TO BE GIVEN DURING THE PENDENCY OF APPEAL

(O. XLI, r. 5)

(Title)

To

This security bond on stay of execution of decree executed by
witnesseth -

That, the plaintiff in Suit No. of 19.., having sued, the defendant, in this court, and a decree having been passed on the day of, 19.., in favour of the plaintiff, and the defendant having preferred an appeal from the said decree in the court, the said appeal is still pending.

Now the plaintiff decree-holder has applied for execution of the said decree and has been called upon to furnish security. Accordingly I, of my own free will, stand security to the extent of shillings, mortgaging the properties specified in the Schedule hereto annexed, and covenant that if the decree of the first court be reversed or varied by the appellate court, the plaintiff shall restore any property which may be or has been taken in execution of the said decree, and shall duly act in accordance with the decree of the appellate court and shall pay whatever may be payable by him thereunder, and if he should fail therein then any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insufficient to pay the amount due, I and my legal representatives will be personally liable to pay the balance. To this effect I execute this security bond this day of, 19.....

Schedule

(Signed).....

Witnessed by:

1.

2.

No. 4

SECURITY FOR COSTS OF APPEAL

[Subsidiary]

App. F

(O. XLI, r. 9)

(Title)

To

This security bond for costs of appeal executed by witnesseth -

This appellant has preferred an appeal from the decree in Suit No. of 19..., against the respondent and has been called upon to furnish security. Accordingly I, of my own free will, stand security for the costs of the appeal, mortgaging the properties specified in the Schedule hereunto annexed. I shall not transfer the said properties or any part thereof, and in the event of any default on the part of the appellant, I shall duly carry out any order that may be made against me with regard to payment of the costs of appeal. Any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insufficient to pay the amount due I and my legal representatives will be personally liable to pay the balance. To this effect I execute this security bond thisday of, 19...

Schedule

(Signed).....

Witnessed by:

1.

2.....

No. 5

INTIMATION TO LOWER COURT OF ADMISSION OF APPEAL

(O. XLI, r. 10)

(Title)

To

You are hereby directed to take notice that the in the above suit has preferred an appeal to this court from the decree passed by you therein on the day of, 19...

You are requested to send with all practicable despatch all material papers in the suit.

Dated the day of, 19...

....., Judge.

No. 6

NOTICE TO RESPONDENT OF THE DAY FIXED FOR THE HEARING OF THE APPEAL

[Subsidiary]
App. F

(O. XLI, rr. 11, 12)
(Title)

Appeal from the of the Court of dated the..... day of, 19...

To

....., respondent

Take notice that an appeal from the decree of in this case has been presented by, and registered in this court, and that the day of, 19....., has been fixed by this court for the hearing of this appeal.

If no appearance is made on your behalf by yourself, your pleader, or by some one by law authorized to act for you in this appeal, it will be heard and decided in your absence.

Given under my hand and the seal of the court this day of, 19... ..

....., Judge.

(Note. - If a stay of execution has been ordered, intimation should be given of the fact on this notice.)

No. 7

NOTICE TO A PARTY TO A SUIT NOT MADE A PARTY TO THE APPEAL, BUT JOINED BY THE COURT
AS A RESPONDENT

(O. XLI, r. 17)
(Title)

To

Whereas you were a party to Suit No. of 19.., in the Court of and whereas the has preferred an appeal to this court from the decree passed against him in the said suit and it appears to this court that you are interested in the result of the said appeal:

This is to give you notice that this court has directed you to be made a respondent in the said appeal and has adjourned the hearing thereof till the day of, 19.., at a.m. If no appearance is made on your behalf on the said day and at the said hour the appeal will be heard and decided in your absence.

Given under my hand and the seal of the court this day of, 19...

....., Judge.

[Subsidiary]

App. F

No. 8

DECREE IN APPEAL

(O. XLI, r. 28)

Appeal No. of 19.., from the decree of the Court of dated the day of

Memorandum of Appeal

....., plaintiff.

....., defendant.

The above-named appeals to the Court at..... from the decree of in the above suit, dated the day of, 19...., for the following reasons, namely -

This appeal coming on for hearing on the day of, 19.., before, in the presence of for the appellant, and of for the respondent, it is ordered -

The costs of this appeal, as detailed below, amounting to shillings are to be paid by The costs of the original suit are to be paid by

Given under my hand this day of, 19....
....., *Judge*.

COSTS OF APPEAL			
Appellant	Amount Sh. cts.	Respondent	Amount Sh. cts.
1. Stamp for Memorandum of Appeal		Stamp for power	
2. Stamp for power.....		Stamp for petition	
3. Service of processes....		Service of processes	
4. Pleader's fee on shillings		Pleader's fee on shillings	
Total		Total	

No. 9

APPLICATION TO APPEAL in *Forma Pauperis*

(O. XLIII, r. 1)

[Subsidiary]
App. F

(Title)

I,, the above-named, present the accompanying memorandum of appeal from the decree in the above suit, and apply to be allowed to appeal as a pauper.

Annexed is a full and true Schedule of all the movable and immovable property belonging to me with the estimated value thereof.

Dated the day of 19...

Schedule

(Signed)

(Note. - Where the application is by the plaintiff he should state whether he applied and was allowed to sue in the court of first instance as a pauper.)

No. 10

NOTICE OF APPEAL in *Forma Pauperis*

(O. XLIII. r. 1)

(Title)

Whereas the above-named has applied to be allowed to appeal as a pauper from the decree in the above suit dated the day of 19..., and whereas the day of 19..., has been fixed for hearing the application: Notice is hereby given to you that if you desire to show cause why the applicant should not be allowed to appeal as a pauper an opportunity will be given you of doing so on the aforementioned date.

Given under my hand and the seal of the court this day of, 19.....

....., *Judge*.

No. 11

NOTICE TO SHOW CAUSE WHY A REVIEW SHOULD NOT BE GRANTED

(O. XLIV, r. 3)

(Title)

To

Take notice that has applied to this Court for a review of its decree passed on the day of, 19..., in the above case.

The day of, 19..., is fixed for you to show cause why the court should not grant a review of its decree in this case.

[Subsidiary]

App. F

Given under my hand and the seal of the court this..... day of
 , 19.....

....., *Judge.*

APPENDIX G

MISCELLANEOUS

No. 1

AGREEMENT OF PARTIES AS TO ISSUES TO BE TRIED

(O. XIV, r. 6)

(Title)

Whereas we, the parties in the above suit, are agreed as to the question of fact (or of law) to be decided between us and the point at issue between us is

We, therefore, severally bind ourselves that, upon the finding of the court in the negative (or affirmative) of such issue, will pay to the said the sum of shillings (or such sum as the court shall hold to be due thereon), and I, the said will accept the said sum of shillings (or such sum as the court shall hold to be due) in full satisfaction of my claim on the bond aforesaid (or that upon such finding I, the said, will do or abstain from doing, etc., etc.).

Witness:

1.
2.

.....plaintiff.
defendant.

Dated this day of19.....

No. 2

NOTICE OF APPLICATION FOR THE TRANSFER OF A SUIT TO ANOTHER COURT FOR TRIAL

(Sec. 18 of the Act)

(Title)

In the Court of

No of, 19..

[Subsidiary]

App. F

To

Whereas an application dated the day of, 19.... has been made to this court by, the in Suit No. of 19..., now pending in the court of the at in which is plaintiff and is defendant, for the transfer of the suit for trial to the court of the at -

You are hereby informed that the day of, 19....., has been fixed for the hearing of the application, when you will be heard if you desire to offer any objection to it.

Given under my hand and the seal of the court this day of, 19...

....., Judge.

No. 3

NOTICE TO SHOW CAUSE (GENERAL FORM)

(Title)

To

Whereas the above-named has made application to this court that:

You are hereby warned to appear in this court in person or by an advocate duly instructed on the day of, 19.., at o'clock in the forenoon, to show cause against the application, failing wherein, the said application will be heard and determined *ex parte*.

Given under my hand and the seal of the court thisday of, 19.....

....., Judge.

No. 4

LIST OF DOCUMENTS PRODUCED BY PLAINTIFF

DEFENDANT

(O. X, r. 13)

(Title)

[Subsidiary]
App.G

purpose. The evidence will be taken in the presence of the parties or their agents, if in attendance, who will be at liberty to question the witness on the points specified, and you are further requested to make return of such evidence as soon as it may be taken.

Process to compel the attendance of the witness will be issued by any court having jurisdiction on your application.

A sum of shillings, being your fee in the above, is herewith forwarded.

Given under my hand and the seal of the court this day of, 19...

....., *Judge*.

No. 7

COMMISSION FOR A LOCAL INVESTIGATION, OR TO EXAMINE ACCOUNTS

(O. XXVII, rr. 9, 11)

(*Title*)

To

Whereas it is deemed requisite, for the purposes of this suit, that a commission for should be issued: You are hereby appointed Commissioner for the purpose of

Process to compel the attendance before you of any witnesses, or for the production of any documents, whom or which you may desire to examine or inspect, will be issued by any court having jurisdiction on your application.

A sum of shillings, being your fee in the above, is herewith forwarded.

Given under my hand and the seal of the court this day of, 19...

....., *Judge*.

No. 8

COMMISSION TO MAKE A PARTITION

(O. XXVII, r. 13)

(*Title*)

Whereas it is deemed requisite for the purposes of this suit that a commission should be issued to make the partition or separation of the property specified in, and according to the rights as declared in, the decree of this court dated the day, 19.....: You are hereby appointed Commissioner for the said purpose and are directed to make such enquiry as may be necessary, to divide the said property according to the best

[Subsidiary]

App. G

of your skill and judgment in the shares set out in the said decree, and to allot such shares to the several parties. You are hereby authorized to award sums to be paid to any party by any other party for the purpose of equalizing the value of the shares.

Process to compel the attendance before you of any witness, or for the production of any documents, whom or which you may desire to examine or inspect, will be issued by any court having jurisdiction on your application.

A sum of shillings, being your fee in the above, is herewith forwarded.

Given under my hand and the seal of the court this day of,
19...

....., *Judge*.

No. 9

NOTICE TO MINOR DEFENDANT AND GUARDIAN

(O. XXXI, r. 3)

(Title)

To

.....minor defendant

..... natural guardian

Whereas an application has been presented on the part of the plaintiff in the above suit for the appointment of a guardian for the suit to the minor defendant, you the said minor, and you (*), are hereby required to take notice that unless within days from the service upon you of this notice an application is made to this court for the appointment of you (*), or of some friend of you, the minor, to act as guardian for the suit, the court will proceed to appoint some other person to act as guardian to the minor for the purposes of the said suit.

Given under my hand and the seal of the court this day of,
19.....

....., *Judge*.

No. 10

NOTICE TO OPPOSITE PARTY OF DAY FIXED FOR HEARING EVIDENCE OF PAUPERISM

(O. XXXII, r. 7)

(Title)

To

Whereas, has applied to this court for permission to institute a suit

(*)Here insert name of guardian.

[Subsidiary]

App.G

against *in forma pauperis* under Order XXXII of the Civil Procedure Rules and whereas the court sees no reason to reject the application, and whereas the day of, 19....., has been fixed for receiving such evidence as the applicant may adduce in proof of his pauperism, and for hearing any evidence which may be adduced in disproof thereof:

Notice is hereby given to you under rule 7 of Order XXXII that in case you may wish to offer any evidence to disprove the pauperism of the applicant, you may do so on appearing in this court on the said day of, 19.....

Given under my hand and the seal of the court this day of, 19...

....., *Judge*.

No. 11

NOTICE TO SURETY OF HIS LIABILITY UNDER A DECREE

(Section 94 of the Act)

(Title)

To

Whereas you did on become liable as surety for the performance of any decree which might be passed against the said defendant in the above suit, and whereas a decree was passed on the day of, 19... , against the said defendant for the payment of, and whereas application has been made for execution of the said decree against you:

Take notice that you are hereby required, on or before the day, 19.., to show cause why the said decree should not be executed against you, and if no sufficient cause shall be, within the time specified shown to the satisfaction of the court an order for its execution will be forthwith issued in the terms of the said application.

Given under my hand and the seal of the court this day of, 19...

....., *Judge*.

No. 12

APPLICATION FOR AN ORDER OF REFERENCE

(O. XLV, r. 1)

(Title)

1. This suit is instituted for (*state nature of claim*).
2. The matter in difference between the parties is (*state matter of difference*).
3. The applicants being all the parties interested have agreed that the matter in

~~(C.D.)~~ between them shall be referred to arbitration.

App. G 4. The applicants therefore apply for an order of reference.

A.B.

C.D.

Dated the day of, 19....

(Note.-If the parties are agreed as to the arbitrator or arbitrators it should be so stated and a written statement signed by the arbitrator or arbitrators to the effect that he or they are willing to act must be filed.)

No. 13
ORDER OF REFERENCE
(O. XLV, rr. 2, 3)
(Title)

Upon reading the application presented on the day of, 19...., it is ordered that the following matter in difference arising in this suit, namely..... be referred for determination to X and Y, or in case of their not agreeing, then to the determination of Z, who is hereby appointed to be umpire; and such arbitrators are to make their award in writing on or before theday of, 19.., and in case the said arbitrators not agreeing in an award, the said umpire is to make his award in writing within month's after the time during which it is within the powers of the arbitrators to make an award shall have ceased.

Liberty to apply.

Given under my hand and the seal of the court this day of, 19

....., Judge.

No. 14
ORDER FOR APPOINTMENT OF NEW ARBITRATOR
(O. XLV, r. 5)
(Title)

Whereas by an order dated the day of, 19.., (*state order of reference and death, refusal, etc., of arbitrator*) it is by consent ordered that Z be appointed in the place of X (*deceased, or as the case may be*) to act as arbitrator, with Y, the surviving arbitrator, under the said order, and it is ordered that the award of the said arbitrators be made on or before theday of, 19.....

Given under my hand and the seal of the court this day of....., 19.....

....., Judge.

[Subsidiary]
App.G

No. 15
SPECIAL CASE
(O. XLV, r. 11)
(Title)

In the matter of an arbitration between A.B., of and C.D., of the following case is stated for the opinion of the court -
(Here state the facts concisely in numbered paragraphs.)

The questions of law for the opinion of the court are -

First, whether

Secondly, whether

X.
Y.

Dated theday of, 19.....

No. 16
AWARD
(O. XLV, r. 10)
(Title)

In the matter of an arbitration between A.B., of and C.D., of.....
.....:

Whereas in pursuance of an order of reference made by the court of and dated the day of, 19..., the following matter in difference between A.B. and C.D., namely has been referred to us for determination:

Now we, having duly considered the matter referred to us, do hereby make our award as follows -

We award -

(1) That

(2) That

X.
Y.

Dated the..... day of....., 19.....

[Subsidiary]

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[Subsidiary]

THE CONSTITUTION OF KENYA
THE CIVIL PROCEDURE ACT

(*Cap. 21*)

**PRACTICE DIRECTIONS TO THE FILING OF SUITS, APPLICATIONS AND
REFERENCES IN PROPER COURTS.**

IN EXERCISE of the powers conferred by section 65(3) of the Constitution and in pursuance of sections 11 to 18 of the Civil Procedure Act, Chapter 21 of the Laws of Kenya which make provisions for the place of suing according to (a) the pecuniary jurisdiction of the court; (b) the place where the subject matter or property is situate; (c) the place where the cause of action arose; and (d) where the defendants or any of them resides or works for gain, the Chief Justice makes the following practice directions:

1. The place of suing is to be determined in accordance with the provisions of sections 11 to 18 of the Civil Procedure Act and not according to the preference or convenience of the plaintiff. The Courts and the filing registries must strictly observe the provisions as to the place of suing by allowing only those that comply with the law and rejecting those that do not.
2. Where suits have already been filed in the wrong Court, the Court should exercise its authority under Order VII rule 9 of the Civil Procedure Rules to return the plaint to be presented to the court in which the suit should have been instituted, without prejudice to any other powers that it may possess under the law to strike out the pleadings as an abuse of the process of the Court.
3. The filing of appeals, bail applications and references from the subordinate courts should be made at the High Court with corresponding Supervisory Jurisdiction according to the established judicial administrative districts as set out in the Schedule.
4. All Judicial Review proceedings under Order LIII of the Civil Procedure Rules and Constitutional applications and references must be filed at the Central Office Registry of the High Court in Nairobi except where leave of the Chief Justice is obtained for filing in any District Registry.
5. All High Court stations are hereby directed to observe the provisions of Order XLVI of the Civil Procedure Rules with regard to the filing and hearing of suits in the High Court Central Registry and in the District Registries and to ensure their compliance and enforcement.

[Subsidiary]

SCHEDULE

HIGH COURT AND THE RESPECTIVE MAGISTRATE'S COURT AREAS OF SUPERVISION

Province	High Court Station		Magistrate Court Areas
Nairobi	Nairobi Law Courts	1. 2. 3. 4. 5. 6. 7. 8. 9. 10. 11.	Chief Magistrate's Court Makadara Magistrate's Court. Kibera Magistrate's Court. City Court. Children's Court. Kiambu Magistrate's Court. Githunguri Magistrate's Court. Limuru Magistrate's Court. Kikuyu Magistrate's Court. Gatundu Magistrate's Court. Thika Magistrate's Court.
Nairobi	Milimani Commercial Court	12.	Magistrate's Court, Milimani
Coast	Mombasa High Court.	13. 14. 15. 16. 17. 18. 19.	Mombasa Magistrate's Court. Tononoka Magistrate's Court. Kwali Magistrate's Court Voi Magistrate's Court. Wundanyi Magistrate's Court Taveta Magistrate's Court. Kaloleni Magistrate's Court
Coast	Malindi High Court.	20. 21. 22. 23	Malindi Magistrate's Court, Kilifi Magistrate's Court. Hola Magistrate's Court. Lamu Magistrate's Court
Rift Valley	Nakuru High Court	24. 25. 26. 27. 28. 29	Nakuru Magistrate's Court Naivasha Magistrate's Court. Molo Magistrate's Court. Narok Magistrate's Court, Nyahururu Magistrate's Court Maralal Magistrate's Court
Rift Valley	Kericho Sub-registry	30. 31. 32.	Kericho Magistrate's Court Sotik Magistrate's Court Bomet Magistrate's Court
Rift Valley	Eldoret High Court	33. 34. 35. 36. 37.	Eldoret Magistrate's Court. Kapsabet Magistrate's Court. Iten Magistrate's Court Kabarnet Magistrate's Court Eldama Ravine Magistrate's Court
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Eastern	Machakos High Court	50. 51. 52. 53. 54. 55. 56. 57. 58. 59	Machakos Magistrate's Court, Kangundo Magistrate's Court Kithimani Magistrate's Court, Tawa Magistrate's Court, Kilungu Magistrate's Court, Makueni Magistrate's Court, Makindu Magistrate's Court, Kitui Magistrate's Court, Mwingi Magistrate's Court, Kajiado Magistrate's Court
Eastern	Meru High Court	60. 61. 62. 63. 64. 65. 66. 67	Meru Magistrate's Court Nkubu Magistrate's Court, Chuka Magistrate's Court, Tigania Magistrate's Court, Maua Magistrate's Court, Isiolo Magistrate's Court, Marsabit Magistrate's Court. Moyale Magistrate's Court
Eastern	Embu High Court	68. 69. 70. 71. 72. 73. 74	Embu Magistrate's Court Kerugoya Magistrate's Court Gichugu Magistrate's Court, Wang'uru Magistrate's Court, Baricho Magistrate's Court, Siakago Magistrate's Court, Runyenjes Magistrate's Court.
Western	Kakamega High Court	75. 76. 77. 78. 79. 80.	Kakamega Magistrate's Court, Hamisi Magistrate's Court, Vihiga Magistrate's Court, Butere Magistrate's Court, Butali Magistrate's Court, Mumias Magistrate's Court,
Western	Bungoma High Court	81. 82. 83	Bungoma Magistrate's Court, Webuye Magistrate's Court, Kimilili Magistrate's Court
Western	Busia Sub-registry	84. 85.	Sirisia Magistrate's Court, Busia Magistrate's Court,

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Nyanza	Kisii High Court	94. 95. 96. 97. 98. 99. 100. 101. 102. 103.	Kisii Magistrate's Court Nyamira Magistrate's Court, Keroka Magistrate's Court, Kilgoris Magistrate's Court, Kehancha Magistrate's Court, Homa Bay Magistrate's Court, Migori Magistrate's Court, Rongo Magistrate's Court, Oyugis Magistrate's Court, Ndhiwa Magistrate's Court,
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Dated the 10th January, 2007

J.E. GICHERU
Chief Justice.

GAZETTE NOTICE NO. 301

HIGH COURT OF KENYA
NOTIFICATION OF PRACTICE DIRECTIONS ON THE DIVISIONS OF THE
HIGH COURT OF KENYA AT NAIROBI

IT IS notified for the information of the general public that in the interest of effective case management for the expeditious disposal of cases and in order that similar disputes are effectively and efficiently adjudicated before specialized divisions of the High Court, the Chief Justice makes the following practice directions:

1. In addition to the divisions of the High Court at Nairobi, namely, the Criminal Division, the Civil Division, the Constitutional and Judicial Review Division and the Family Division, there shall be established beginning the next term of the Court on 15th January, 2007 a Land and Environmental Law Division to specially deal with land and environmental law matters.
2. All disputes relating to land and all environmental law matters that may be filed under any law in the High Court shall in Nairobi be lodged and heard before the Land and Environmental Law Division of the High Court at Nairobi. All land and environmental law matters outside Nairobi may be filed in the appropriate High Court stations in accordance with the provisions of the Civil Procedure Act with regard to the place of suing.
3. The Land and Environmental Law Division of the High Court at Nairobi will have its own registry and it shall determine the categorization of the matters that may be lodged and heard in the Division. The High Court may order that land and environmental law matters already filed in the other divisions of the High Court at Nairobi shall be transferred, heard and determined at the Land and Environmental Law Division.

[Subsidiary]

4. The Commercial Division of the High Court at Nairobi shall be renamed "The Commercial and Tax Division of the High Court" and shall, in addition to the commercial matters presently dealt with by the Division, hear and determine all tax matters in the Republic of Kenya lodged under any law by or against the Kenya Revenue Authority or any other Authority or Government Department charged with the levying or collection of any tax or other public charges, except where otherwise provided by any written law.
5. All applications for international adoptions under section 162 of the Children Act, 2001 shall be lodged, heard and determined at the Family Division of the High Court at Nairobi. All other adoption applications may be lodged and disposed of at any of the High Court stations including the Family Division of the High Court at Nairobi.

Dated the 10th January, 2007.

J.E.GICHERU
Chief Justice

Practice Note

High Court of Kenya
Simpson Ag CJ

March 16, 1982

Practice Note No. 1 of 1982
Civil Procedure Act (Cap. 21) section 26

Interest- *rate of interest- power of the court to order payment of interest- interest on principal sum of decree-rate to be applied in the absence of a valid reason to order either a higher or lower rate.*

March 16, 1982, Simpson AG CJ gave the following practice direction. The Civil Procedure Act (Cap. 21 Laws of Kenya) section 26 enables the court to order interest on the principal sum adjudged in a decree both before and after the date of the decree to be paid at such rate as the court deems reasonable.

In the absence of any valid reason for ordering a higher or lower rate of interest, the rate of interest should now be 12%.